

CODE OF ORDINANCES
Town of
CHINA GROVE, NORTH CAROLINA
Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2025-16, adopted September 2, 2025.

See the Code Comparative Table—Ordinances/Resolutions for further information.

Included in the Charter are:

Resolution of September 3, 2024, and HB-17, May 20, 2025.

See the Charter Comparative Table for further information.

Remove Old Pages

ix—xii
Checklist of up-to-date pages

SH:1, SH:2
CHT:5, CHT:6
CHTCT:1
CD2:5, CD2:6
CD30:1—CD30:4
CD38:1—CD38:4
CD43:1—CD43:3
CCT:11
SLT:1—SLT:3
CDi:1, CDi:2
CDi:9—CDi:10.1
CDi:19—CDi:20.1
CDi:27—CDi:30
CDi:35, CDi:36
CDi:41, CDi:42
CDi:59, CDi:60
CDi:61, CDi:62

Insert New Pages

ix—xii
Checklist of up-to-date pages
(following Table of Contents)
SH:1—SH:3
CHT:5, CHT:6
CHTCT:1
CD2:5—CD2:6.1
CD30:1—CD30:5
CD38:1—CD38:4
CD43:1—CD43:7
CCT:11
SLT:1—SLT:3
CDi:1, CDi:2
CDi:9—CDi:10.1
CDi:19—CDi:20.1
CDi:27—CDi:30
CDi:35, CDi:36
CDi:41, CDi:42
CDi:59, CDi:60
CDi:61, CDi:62

Insert and maintain this instruction sheet in front of this publication. File removed

INSTRUCTION SHEET—Cont'd.

pages for reference.



Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

CODE OF ORDINANCES
Town of
CHINA GROVE, NORTH CAROLINA
Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2018-12, adopted November 6, 2018.

See the Code Comparative Table—Ordinances/Resolutions for further information.

Remove Old Pages

Checklist of up-to-date pages

SH:1, SH:2
CD18:3, CD18:4
CD26:11—CD26:14
CD58:1—CD58:3
CD58:13, CD58:14
CCT:9, CCT:10
SLT:1—SLT:3
CDi:60.1, CDi:60.2

Insert New Pages

Checklist of up-to-date pages
(following Table of Contents)

SH:1, SH:2
CD18:3, CD18:4
CD26:11—CD26:14
CD58:1—CD58:3
CD58:13, CD58:14
CCT:9—CCT:11
SLT:1—SLT:3
CDi:60.1, CDi:60.2

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.



CODE OF ORDINANCES
Town of
CHINA GROVE, NORTH CAROLINA
Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2017-16, adopted November 7, 2017.

See the Code Comparative Table—Ordinances/Resolutions for further information.

Remove Old Pages

ix—xii
Checklist of up-to-date pages

SH:1, SH:2
CD2:1—CD2:4.4
CD10:1
CD10:9—CD10:12
CD18:1—CD18:6
CD26:3—CD26:8.1
CD30:3, CD30:4
CD38:3, CD38:4
CD43:1

CD46:3—CD46:7
CD50:5—CD50:8
CD58:17, CD58:18
CCT:9
SLT:1—SLT:3
CDi:1—CDi:8
CDi:13—CDi:20.1
CDi:27—CDi:46
CDi:59, CDi:60

Insert New Pages

ix—xii
Checklist of up-to-date pages
(following Table of Contents)
SH:1, SH:2
CD2:1—CD2:4.6
CD10:1
CD10:9—CD10:12
CD18:1—CD18:10
CD26:3—CD26:8.3
CD30:3, CD30:4
CD38:3, CD38:4
CD43:1—CD43:3
CD44:1
CD46:3—CD46:8
CD50:5—CD50:8.1
CD58:17, CD58:18
CCT:9, CCT:10
SLT:1—SLT:3
CDi:1—CDi:8
CDi:13—CDi:20.1
CDi:27—CDi:46
CDi:59, CDi:60

INSTRUCTION SHEET—Cont'd.

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.



Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

CODE OF ORDINANCES
Town of
CHINA GROVE, NORTH CAROLINA
Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2016-09, adopted August 2, 2016.

See the Code Comparative Table—Ordinances/Resolutions for further information.

Remove Old Pages

Title Page
ix—xii
Checklist of up-to-date pages

SH:1
CD10:1
CD10:11
CD26:1—CD26:4
CD30:1—CD30:3

CD34:3
CD50:5—CD50:8
CD58:1—CD58:3
CD58:21, CD58:22
CD58:29, CD58:30
CCT:9
SLT:1, SLT:2
CDi:3—CDi:4.1
CDi:9, CDi:10
CDi:17—CDi:20
CDi:33, CDi:34
CDi:39, CDi:40
CDi:45, CDi:46
CDi:57—CDi:60

Insert New Pages

Title Page
ix—xii
Checklist of up-to-date pages
(following Table of Contents)
SH:1, SH:2
CD10:1
CD10:11, CD10:12
CD26:1—CD26:4.1
CD30:1
CD30:3, CD30:4
CD34:3
CD50:5—CD50:8
CD58:1—CD58:3
CD58:21—CD58:22.1
CD58:29, CD58:30
CCT:9
SLT:1—SLT:3
CDi:3—CDi:4.1
CDi:9—CDi:10.1
CDi:17—CDi:20.1
CDi:33, CDi:34
CDi:39, CDi:40
CDi:45, CDi:46
CDi:57—CDi:60.2

INSTRUCTION SHEET—Cont'd.

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.



Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

CODE OF ORDINANCES
Town of
CHINA GROVE, NORTH CAROLINA
Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance of November 3, 2015.

See the Code Comparative Table—Ordinances/Resolutions for further information.

Remove Old Pages

Title Page

ix—xii

CD2:1, CD2:2

CD2:3, CD2:4

CD10:1

CD10:3, CD10:4

CD10:11

CD14:1, CD14:2

CD14:5—CD14:8

CD14:21—CD14:22.1

CD18:1

CD18:3, CD18:4

CD26:1, CD26:2

CD26:3—CD26:8

CD38:1

CD38:3—CD38:13

CD42:1

CD42:3—CD42:5

CD54:3

CD58:3

CD58:21, CD58:22

CD58:25, CD58:26

CCT:9

Insert New Pages

Title Page

vii, viii

ix—xii

Checklist of up-to-date pages
(following Table of Contents)

SH:1 (following Checklist of
up-to-date pages)

CD2:1, CD2:2

CD2:3—CD2:4.4

CD10:1

CD10:3—CD10:4.2

CD10:11

CD14:1, CD14:2

CD14:5—CD14:8

CD14:21, CD14:22

CD18:1

CD18:3, CD18:4

CD26:1, CD26:2

CD26:3—CD26:8.1

CD38:1

CD38:3—CD38:14

CD42:1

CD42:3—CD42:7

CD54:3—CD54:4.1

CD54:55—CD54:77

CD58:3

CD58:21, CD58:22

CD58:25—CD58:30

CCT:9

INSTRUCTION SHEET—Cont'd.

Remove Old Pages

SLT:1, SLT:2
CDi:1—CDi:4
CDi:9, CDi:10
CDi:17, CDi:18
CDi:27—CDi:58

Insert New Pages

SLT:1, SLT:2
CDi:1—CDi:4.1
CDi:9, CDi:10
CDi:17, CDi:18
CDi:27—CDi:58.2

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.



municode

Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

OC, CORRECTION, 2
October 2008

CODE OF ORDINANCES

Town of

CHINA GROVE, NORTH CAROLINA

Looseleaf Supplement

This OC, Correction, 2, is printed to correct pages appearing in the OC, Correction and should be inserted as directed below.

Remove old pages

CD26:13, CD26:14

Insert new pages

CD26:13, CD26:14

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

MUNICIPAL CODE CORPORATION
Post Office Box 2235
1700 Capital Circle, S.W.
Tallahassee, FL 32316
(850) 576-3171
1-800-262-CODE
Website: www.municode.com

CODE OF ORDINANCES

Town of

CHINA GROVE, NORTH CAROLINA

Looseleaf Supplement

This OC, Correction is printed to add an ordinance omitted in the Original Codificatio and contains all ordinances deemed advisable to be included at this time through:

Ordinances of May 2, 2006.

See the Code Comparative Table for further information.

Remove old pages

ix—xii
CD14:1, CD14:2
CD14:21, CD14:22
CCT:9
CDi:1, CDi:2
CDi:9, CDi:10
CDi:17, CDi:18
CDi:27, CDi:28
CDi:31, CDi:32
CDi:37, CDi:38
CDi:47, CDi:48
CDi:55, CDi:56

Insert new pages

ix—xii
CD14:1, CD14:2
CD14:21—CD14:22.1
CCT:9
CDi:1—CDi:2.1
CDi:9, CDi:10
CDi:17, CDi:18
CDi:27—CDi:28.1
CDi:31, CDi:32
CDi:37—CDi:38.1
CDi:47—CDi:48.1
CDi:55—CDi:56.1

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

MUNICIPAL CODE CORPORATION
Post Office Box 2235
1700 Capital Circle, S.W.
Tallahassee, FL 32316
(850) 576-3171
1-800-262-CODE
Website: www.municode.com

CODE OF ORDINANCES

TOWN OF

CHINA GROVE, NORTH CAROLINA

Published in 2008 by Order of the Town Council



Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

PREFACE

This Code constitutes a recodification of the general and permanent ordinances of the Town of China Grove.

Source materials used in the preparation of the Code were the 1993 Code and ordinances subsequently adopted by the town council. The source of each section is included in the history note appearing in parentheses at the end thereof. The absence of such a note indicates that the section is new and was adopted for the first time with the adoption of the Code. By use of the comparative tables appearing in the back of this Code, the reader can locate any section of the 1993 Code and any subsequent ordinance included herein.

The chapters of the Code have been conveniently arranged in alphabetical order, and the various sections within each chapter have been provided catchlines to facilitate usage. Notes which tie related sections of the Code together and which refer to relevant state law have been included. A table listing the state law citations and setting forth their location within the Code is included at the back of this Code.

Chapter and Section Numbering System

The chapter and section numbering system used in this Code is the same system used in many state and local government codes. Each section number consists of two parts separated by a dash. The figure before the dash refers to the chapter number, and the figure after the dash refers to the position of the section within the chapter. Thus, the second section of chapter 1 is numbered 1-2, and the first section of chapter 6 is 6-1. Under this system, each section is identified with its chapter, and at the same time new sections can be inserted in their proper place by using the decimal system for amendments. For example, if new material consisting of one section that would logically come between sections 6-1 and 6-2 is desired to be added, such new section would be numbered 6-1.5. New articles and new divisions may be included in the same way or, in the case of articles, may be placed at the end of the chapter embracing the subject, and, in the case of divisions, may be placed at the end of the article embracing the subject. The next successive number shall be assigned to the new article or division. New chapters may be included by using one of the reserved chapter numbers. Care should be taken that the alphabetical arrangement of chapters is maintained when including new chapters.

Page Numbering System

The page numbering system used in this Code is a prefix system. The letters to the left of the colon are an abbreviation which represents a certain portion of the volume. The number to the right of the colon represents the number of the page in that portion. In the case of a chapter of the Code, the number to the

left of the colon indicates the number of the chapter. In the case of an appendix to the Code, the letter immediately to the left of the colon indicates the letter of the appendix. The following are typical parts of codes of ordinances, which may or may not appear in this Code at this time, and their corresponding prefixes:

CHARTER	CHT:1
RELATED LAWS	RL:1
CHARTER COMPARATIVE TABLE	CHTCT:1
RELATED LAWS COMPARATIVE TABLE	RLCT:1
CODE	CD1:1
CODE APPENDIX	CDA:1
CODE COMPARATIVE TABLES	CCT:1
STATE LAW REFERENCE TABLE	SLT:1
CHARTER INDEX	CHTi:1
CODE INDEX	CDi:1

Indexes

The indexes have been prepared with the greatest of care. Each particular item has been placed under several headings, some of which are couched in lay phraseology, others in legal terminology, and still others in language generally used by local government officials and employees. There are numerous cross references within the indexes themselves which stand as guideposts to direct the user to the particular item in which the user is interested.

Looseleaf Supplements

A special feature of this publication is the looseleaf system of binding and supplemental servicing of the publication. With this system, the publication will be kept up-to-date. Subsequent amendatory legislation will be properly edited, and the affected page or pages will be reprinted. These new pages will be distributed to holders of copies of the publication, with instructions for the manner of inserting the new pages and deleting the obsolete pages.

Keeping this publication up-to-date at all times will depend largely upon the holder of the publication. As revised pages are received, it will then become the responsibility of the holder to have the amendments inserted according to the attached instructions. It is strongly recommended by the publisher that all such amendments be inserted immediately upon receipt to avoid misplacing them and, in addition, that all deleted pages be saved and filed for historical reference purposes.

Acknowledgments

This publication was under the direct supervision of Daniel Walker, Code Attorney, and Kyle Meyer, Legal Editor, of the Municipal Code Corporation, Tallahassee, Florida. Credit is gratefully given to the other members of the publisher's staff for their sincere interest and able assistance throughout the project.

The publisher is most grateful to Amanda Eller, Town Clerk, for her cooperation and assistance during the progress of the work on this publication. It is hoped that her efforts and those of the publisher have resulted in a Code of Ordinances which will make the active law of the town readily accessible to all citizens and which will be a valuable tool in the day-to-day administration of the town's affairs.

Copyright

All editorial enhancements of this Code are copyrighted by Municipal Code Corporation and the Town of China Grove, North Carolina. Editorial enhancements include, but are not limited to: organization; table of contents; section catchlines; prechapter section analyses; editor's notes; cross references; state law references; numbering system; code comparative table; state law reference table; and index. Such material may not be used or reproduced for commercial purposes without the express written consent of Municipal Code Corporation and the Town of China Grove, North Carolina.

© Copyrighted material.

Municipal Code Corporation and the Town of China Grove, North Carolina.
2008.

ADOPTING ORDINANCE

TOWN OF CHINA GROVE

AN ORDINANCE ADOPTING AND ENACTING A NEW CODE FOR THE TOWN OF CHINA GROVE, NORTH CAROLINA; PROVIDING FOR THE REPEAL OF CERTAIN ORDINANCES NOT INCLUDED THEREIN; PROVIDING A PENALTY FOR THE VIOLATION THEREOF; PROVIDING FOR THE MANNER OF AMENDING SUCH CODE; AND PROVIDING WHEN SUCH CODE AND THIS ORDINANCE SHALL BECOME EFFECTIVE.

BE IT ORDAINED BY THE TOWN COUNCIL:

Section 1. The Code entitled "Code of Ordinances, Town of China Grove, North Carolina," published by Municipal Code Corporation, consisting of chapters 1 through 62, each inclusive, is adopted.

Section 2. All ordinances of a general and permanent nature enacted on or before May 2, 2006, and not included in the Code or recognized and continued in force by reference therein, are repealed.

Section 3. The repeal provided for in section 2 hereof shall not be construed to revive any ordinance or part thereof that has been repealed by a subsequent ordinance that is repealed by this ordinance.

Section 4. Unless another penalty is expressly provided, every person convicted of a violation of any provision of the Code or any ordinance, rule or regulation adopted or issued in pursuance thereof shall be punished by a fine as set forth in Code section 1-6. Each act of violation and each day upon which any such violation shall continue or occur shall constitute a separate offense. The penalty provided by this section, unless another penalty is expressly provided, shall apply to the amendment of any Code section, whether or not such penalty is reenacted in the amendatory ordinance. In addition to the penalty prescribed above, the town may pursue other remedies such as abatement of nuisances, injunctive relief and revocation of licenses or permits.

Section 5. Additions or amendments to the Code when passed in such form as to indicate the intention of the town to make the same a part of the Code shall be deemed to be incorporated in the Code, so that reference to the Code includes the additions and amendments.

Section 6. Ordinances adopted after May 2, 2006, that amend or refer to ordinances that have been codified in the Code, shall be construed as if they amend or refer to like provisions of the Code.

Section 7. This ordinance shall be effective as of May 6, 2008.

Adopted by the Town of China Grove Town Council this, the 6th day of May, 2008.

/s/ _____
Mayor

/s/ _____
Town Clerk

Certificate of Adoption

I hereby certify that the foregoing is a true copy of the ordinance passed at the regular meeting of the Town of China Grove Town Council, held on the 6th day of May, 2008.

/s/ _____
Town Clerk

TABLE OF CONTENTS

	Page
Preface	iii
Adopting Ordinance	vii
Checklist of Up-to-Date Pages	[1]
Supplement History Table	SH:1

PART I CHARTER

Charter	CHT:1
Art. I. Incorporation, Corporate Powers, and Boundaries	CHT:3
Art. II. Governing Body	CHT:4
Art. III. Elections	CHT:5
Art. IV. Town Manager	CHT:5
Art. V. Administrative Officers and Employees	CHT:5
Charter Comparative Table	CHTCT:1

PART II CODE OF ORDINANCES

Chapter	
1. General Provisions	CD1:1
2. Administration	CD2:1
Art. I. In General	CD2:3
Art. II. Mayor and Town Council	CD2:4
Div. 1. Generally	CD2:4
Div. 2. Meetings	CD2:4.5
Div. 3. Ordinances	CD2:7
Art. III. Officers and Employees	CD2:8
Div. 1. Generally	CD2:8
Div. 2. Town Attorney	CD2:9
Div. 3. Tax Collector	CD2:9
Div. 4. Town Clerk	CD2:9
Div. 5. Personnel Manual	CD2:11
Art. IV. Boards, Commissions and Committees	CD2:12
Div. 1. Generally	CD2:12
Div. 2. Planning Board	CD2:12
3—5. Reserved	CD3:1
6. Amusements and Entertainment	CD6:1
Art. I. In General	CD6:3

CHINA GROVE CODE OF ORDINANCES

Chapter	Page
Art. II. Circuses, Carnivals and Similar Entertainment; Mechanical Rides	CD6:3
Art. III. Pool Rooms, Bowling Alleys and Amusement Centers	CD6:5
7—9. Reserved	CD7:1
10. Animals	CD10:1
11—13. Reserved	CD11:1
14. Buildings and Building Regulations	CD14:1
Art. I. In General	CD14:3
Art. II. Minimum Housing Standards	CD14:3
Art. III. Nonresidential Building Maintenance Standards	CD14:16
Div. 1. Generally	CD14:16
Div. 2. Standards for Nonresidential Buildings and Premises Fitness	CD14:21
Div. 3. Procedures for Enforcement	CD14:25
Div. 4. Administration	CD14:29
15—17. Reserved	CD15:1
18. Businesses	CD18:1
Art. I. In General	CD18:3
Art. II. Garage Sales	CD18:3
Art. III. Peddlers and Solicitors	CD18:5
19—21. Reserved	CD19:1
22. Civil Emergencies	CD22:1
23—25. Reserved	CD23:1
26. Environment	CD26:1
Art. I. In General	CD26:3
Art. II. Nuisances	CD26:4
Div. 1. Generally	CD26:4
Div. 2. Abandoned and Junked Motor Vehicles ...	CD26:7
Art. III. Noise	CD26:12
27—29. Reserved	CD27:1
30. Fire Prevention and Protection	CD30:1
31—33. Reserved	CD31:1
34. Law Enforcement	CD34:1
Art. I. In General	CD34:3
Art. II. Police Department	CD34:3
35—37. Reserved	CD35:1
38. Offenses	CD38:1
Art. I. In General	CD38:3
Art. II. Weapons	CD38:8

TABLE OF CONTENTS—Cont'd.

Chapter	Page
Art. III. Juvenile Curfew	CD38:10
39—41. Reserved	CD39:1
42. Parks and Recreation.....	CD42:1
Art. I. In General	CD42:3
Art. II. Use of Parks and Recreation Areas	CD42:5
43. Alcoholic Beverages	CD43:1
44, 45. Reserved	CD44:1
46. Solid Waste	CD46:1
47—49. Reserved	CD47:1
50. Streets, Sidewalks and Other Public Property.....	CD50:1
Art. I. In General	CD50:3
Art. II. Obstructions	CD50:5
Art. III. Control of Vegetation Near Streets.....	CD50:6
Art. IV. Acceptance and Improvement of Public Streets	CD50:8
Art. V. Excavation and Repair	CD50:12
Art. VI. Parades and Demonstrations	CD50:15
Div. 1. Generally	CD50:15
Div. 2. Permit.....	CD50:17
51—53. Reserved	CD51:1
54. Utilities	CD54:1
Art. I. In General	CD54:5
Art. II. Water Service	CD54:5
Art. III. Water Quality Protection	CD54:8
Div. 1. Generally	CD54:8
Div. 2. Water Conservation	CD54:16
Art. IV. Sewer Service	CD54:20
Div. 1. Generally	CD54:20
Div. 2. Fees	CD54:37
Div. 3. Wastewater Discharge Permits	CD54:39
Div. 4. Reporting Requirements	CD54:46
Div. 5. Compliance Monitoring	CD54:51
Div. 6. Affirmative Defenses to Discharge Viola- tions.....	CD54:53
Art. V. Stormwater Quality Management and Discharge Control	CD54:55
Div. 1. Title, Purpose and General Provisions	CD54:55
Div. 2. Discharge Prohibitions.....	CD54:67
Div. 3. Regulations and Requirements	CD54:69
Div. 4. Inspection and Monitoring	CD54:72
Div. 5. [Enforcement and Penalties]	CD54:73
55—57. Reserved	CD55:1
58. Vehicles and Traffic	CD58:1
Art. I. In General	CD58:5

CHINA GROVE CODE OF ORDINANCES

Chapter	Page
Art. II. Operation	CD58:8
Art. III. Traffic Control Devices	CD58:11
Art. IV. Parking, Stopping and Standing	CD58:14
Div. 1. Generally	CD58:14
Div. 2. Regulations	CD58:15
Div. 3. Parking of Special/Commercial Vehicles...	CD58:22
Art. V. Pedestrians	CD58:22.1
Art. VI. Bicycles	CD58:24
Art. VII. Low Speed Vehicles	CD58:27
59—61. Reserved	CD59:1
62. Vehicles for Hire	CD62:1
Art. I. In General	CD62:3
Art. II. Taxicabs	CD62:3
Div. 1. Generally	CD62:3
Div. 2. Certificate of Convenience and Necessity .	CD62:4
Div. 3. Driver's Permit	CD62:7
 Appendix	
A. Zoning (Reserved)	CDA:1
Code Comparative Table—1977 Code	CCT:1
Code Comparative Table—1993 Code	CCT:5
Code Comparative Table—Ordinances/Resolutions	CCT:7
State Law Reference Table	SLT:1
Charter Index	CHTi:1
Code Index	CDi:1

Checklist of Up-to-Date Pages

(This checklist will be updated with the
printing of each Supplement)

From our experience in publishing Looseleaf Supplements on a page-for-page substitution basis, it has become evident that through usage and supplementation many pages can be inserted and removed in error.

The following listing is included in this Code as a ready guide for the user to determine whether the Code volume properly reflects the latest printing of each page.

In the first column all page numbers are listed in sequence. The second column reflects the latest printing of the pages as they should appear in an up-to-date volume. The letters "OC" indicate the pages have not been reprinted in the Supplement Service and appear as published for the original Code. When a page has been reprinted or printed in the Supplement Service, this column reflects the identification number or Supplement Number printed on the bottom of the page.

In addition to assisting existing holders of the Code, this list may be used in compiling an up-to-date copy from the original Code and subsequent Supplements.

Page No.	Supp. No.	Page No.	Supp. No.
Title Page	2	CD2:4.3, CD2:4.4	3
iii, iv	OC	CD2:4.5, CD2:4.6	3
v	OC	CD2:5, CD2:6	5
vii, viii	1	CD2:6.1	5
ix, x	5	CD2:7, CD2:8	OC
xi, xii	5	CD2:9, CD2:10	OC
SH:1, SH:2	5	CD2:11, CD2:12	OC
SH:3	5	CD3:1	OC
CHT:1	OC	CD6:1	OC
CHT:3, CHT:4	OC	CD6:3, CD6:4	OC
CHT:5, CHT:6	5	CD6:5, CD6:6	OC
CHT:7	OC	CD6:7	OC
CHTCT:1	5	CD7:1	OC
CD1:1	OC	CD10:1	3
CD1:3, CD1:4	OC	CD10:3, CD10:4	1
CD1:5, CD1:6	OC	CD10:4.1, CD10:4.2	1
CD1:7, CD1:8	OC	CD10:5, CD10:6	OC
CD1:9, CD1:10	OC	CD10:7, CD10:8	OC
CD2:1, CD2:2	3	CD10:9, CD10:10	3
CD2:3, CD2:4	3	CD10:11, CD10:12	3
CD2:4.1, CD2:4.2	3	CD11:1	OC

CHINA GROVE CODE OF ORDINANCES

Page No.	Supp. No.	Page No.	Supp. No.
CD14:1, CD14:2	1	CD30:3, CD30:4	5
CD14:3, CD14:4	OC	CD30:5	5
CD14:5, CD14:6	1	CD31:1	OC
CD14:7, CD14:8	1	CD34:1	OC
CD14:9, CD14:10	OC	CD34:3	2
CD14:11, CD14:12	OC	CD35:1	OC
CD14:13, CD14:14	OC	CD38:1	5
CD14:15, CD14:16	OC	CD38:3, CD38:4	5
CD14:17, CD14:18	OC	CD38:5, CD38:6	1
CD14:19, CD14:20	OC	CD38:7, CD38:8	1
CD14:21, CD14:22	1	CD38:9, CD38:10	1
CD14:23, CD14:24	OC	CD38:11, CD38:12	1
CD14:25, CD14:26	OC	CD38:13, CD38:14	1
CD14:27, CD14:28	OC	CD39:1	OC
CD14:29, CD14:30	OC	CD42:1	1
CD14:31	OC	CD42:3, CD42:4	1
CD15:1	OC	CD42:5, CD42:6	1
CD18:1	3	CD42:7	1
CD18:3, CD18:4	4	CD43:1	5
CD18:5, CD18:6	3	CD43:3, CD43:4	5
CD18:7, CD18:8	3	CD43:5, CD43:6	5
CD18:9, CD18:10	3	CD43:7	5
CD19:1	OC	CD44:1	3
CD22:1	OC	CD46:1	OC
CD22:3, CD22:4	OC	CD46:3, CD46:4	3
CD22:5, CD22:6	OC	CD46:5, CD46:6	3
CD23:1	OC	CD46:7, CD46:8	3
CD26:1, CD26:2	2	CD47:1	OC
CD26:3, CD26:4	3	CD50:1, CD50:2	OC
CD26:5, CD26:6	3	CD50:3, CD50:4	OC
CD26:7, CD26:8	3	CD50:5, CD50:6	3
CD26:8.1, CD26:8.2	3	CD50:7, CD50:8	3
CD26:8.3	3	CD50:8.1	3
CD26:9, CD26:10	OC	CD50:9, CD50:10	OC
CD26:11, CD26:12	4	CD50:11, CD50:12	OC
CD26:13, CD26:14	4	CD50:13, CD50:14	OC
CD27:1	OC	CD50:15, CD50:16	OC
CD30:1	5	CD50:17, CD50:18	OC

CHECKLIST OF UP-TO-DATE PAGES

Page No.	Supp. No.	Page No.	Supp. No.
CD51:1	OC	CD54:73, CD54:74	1
CD54:1, CD54:2	OC	CD54:75, CD54:76	1
CD54:3, CD54:4	1	CD54:77	1
CD54:4.1	1	CD55:1	OC
CD54:5, CD54:6	OC	CD58:1, CD58:2	4
CD54:7, CD54:8	OC	CD58:3	4
CD54:9, CD54:10	OC	CD58:5, CD58:6	OC
CD54:11, CD54:12	OC	CD58:7, CD58:8	OC
CD54:13, CD54:14	OC	CD58:9, CD58:10	OC
CD54:15, CD54:16	OC	CD58:11, CD58:12	OC
CD54:17, CD54:18	OC	CD58:13, CD58:14	4
CD54:19, CD54:20	OC	CD58:15, CD58:16	OC
CD54:21, CD54:22	OC	CD58:17, CD58:18	3
CD54:23, CD54:24	OC	CD58:19, CD58:20	OC
CD54:25, CD54:26	OC	CD58:21, CD58:22	2
CD54:27, CD54:28	OC	CD58:22.1	2
CD54:29, CD54:30	OC	CD58:23, CD58:24	OC
CD54:31, CD54:32	OC	CD58:25, CD58:26	1
CD54:33, CD54:34	OC	CD58:27, CD58:28	1
CD54:35, CD54:36	OC	CD58:29, CD58:30	2
CD54:37, CD54:38	OC	CD59:1	OC
CD54:39, CD54:40	OC	CD62:1	OC
CD54:41, CD54:42	OC	CD62:3, CD62:4	OC
CD54:43, CD54:44	OC	CD62:5, CD62:6	OC
CD54:45, CD54:46	OC	CD62:7, CD62:8	OC
CD54:47, CD54:48	OC	CDA:1	OC
CD54:49, CD54:50	OC	CCT:1, CCT:2	OC
CD54:51, CD54:52	OC	CCT:3	OC
CD54:53, CD54:54	OC	CCT:5	OC
CD54:55, CD54:56	1	CCT:7, CCT:8	OC
CD54:57, CD54:58	1	CCT:9, CCT:10	4
CD54:59, CD54:60	1	CCT:11	5
CD54:61, CD54:62	1	SLT:1, SLT:2	5
CD54:63, CD54:64	1	SLT:3	5
CD54:65, CD54:66	1	CHTi:1, CHTi:2	OC
CD54:67, CD54:68	1	CHTi:3, CHTi:4	OC
CD54:69, CD54:70	1	CDi:1, CDi:2	5
CD54:71, CD54:72	1	CDi:3, CDi:4	3

CHINA GROVE CODE OF ORDINANCES

Page No.	Supp. No.
CDi:5, CDi:6	3
CDi:7, CDi:8	3
CDi:9, CDi:10	5
CDi:10.1	5
CDi:11, CDi:12	OC
CDi:13, CDi:14	3
CDi:15, CDi:16	3
CDi:17, CDi:18	3
CDi:19, CDi:20	5
CDi:20.1	5
CDi:21, CDi:22	OC
CDi:23, CDi:24	OC
CDi:25, CDi:26	OC
CDi:27, CDi:28	5
CDi:29, CDi:30	5
CDi:31, CDi:32	3
CDi:33, CDi:34	3
CDi:35, CDi:36	5
CDi:37, CDi:38	3
CDi:39, CDi:40	3
CDi:41, CDi:42	5
CDi:43, CDi:44	3
CDi:45, CDi:46	3
CDi:47, CDi:48	1
CDi:49, CDi:50	1
CDi:51, CDi:52	1
CDi:53, CDi:54	1
CDi:55, CDi:56	1
CDi:57, CDi:58	2
CDi:59, CDi:60	5
CDi:60.1, CDi:60.2	4
CDi:61, CDi:62	5

SUPPLEMENT HISTORY TABLE

The table below allows users of this Code to quickly and accurately determine what ordinances have been considered for codification in each supplement. Ordinances that are of a general and permanent nature are codified in the Code Book and are considered "Includes." Ordinances that are not of a general and permanent nature are not codified in the Code Book and are considered "Omits."

In addition, by adding to this table with each supplement, users of this Code of Ordinances will be able to gain a more complete picture of the Code's historical evolution.

Ord. Date Adopted	Include/Omit	Supp. No.
5- 6-2008	Include	1
6- 3-2008(Res.)	Include	1
7- 7-2009	Include	1
6- 7-2011	Include	1
8- 2-2011	Include	1
11- 1-2011(1)	Include	1
11- 1-2011(2)	Include	1
1- 3-2012(1)	Include	1
1- 3-2012(2)	Include	1
6- 5-2012	Include	1
6-21-2012	Include	1
8- 7-2012	Include	1
9-11-2012	Include	1
3- 5-2013	Include	1
2- 4-2014	Include	1
5- 6-2014	Include	1
5- 5-2015	Include	1
11- 3-2015	Include	1
12- 1-2015	Include	2
2- 2-2016	Include	2
3- 1-2016(1)	Include	2
3- 1-2016(2)	Include	2
8- 2-2016 (2016-07)	Include	2
8- 2-2016 (2016-08)	Include	2

CHINA GROVE CODE OF ORDINANCES

Ord. Date Adopted	Include/ Omit	Supp. No.
8- 2-2016 (2016-09)	Include	2
9- 6-2016(Ord.) (2016-10)	Include	3
12- 6-2016(Ord.) (2016-13)	Include	3
1- 3-2017(Ord.) (2016-14)	Include	3
2- 7-2017(Ord.) (2017-01)	Include	3
3- 7-2017(Ord.) (2017-02)	Include	3
3- 4-2017(Ord.) (2017-04)	Include	3
8- 1-2017(Ord.) (2017-07)	Include	3
10- 3-2017(Ord.) (2017-09)	Include	3
10- 3-2017(Ord.) (2017-11)	Include	3
10- 3-2017(Ord.) (2017-12)	Include	3
10- 3-2017(Ord.) (2017-13)	Include	3
10- 3-2017(Ord.) (2017-14)	Include	3
11- 7-2017(Ord.) (2017-16)	Include	3
8- 7-2018(Ord.) (2018-05)	Include	4
8- 7-2018(Ord.) (2018-06)	Include	4
11- 6-2018(Ord.) (2018-12)	Include	4
12- 1-2020(Ord.) (2020-03)	Omit	5
4- 5-2022(Ord.) (2022-03)	Omit	5
2- 7-2023(Ord.) (2023-01)	Include	5
6- 4-2024(Ord.) (2024-14)	Include	5
6- 4-2024(Ord.) (2024-17)	Omit	5
6- 4-2024(Ord.) (2025-03)	Omit	5
9- 3-2024(1) (Res.)	Include	5

SUPPLEMENT HISTORY TABLE—Cont'd.

Ord. Date Adopted	Include/ Omit	Supp. No.
5-20-2025 (HB-17)	Include	5
9- 2-2025(Ord.) (2025-16)	Include	5

PART I

CHARTER*

Article I. Incorporation, Corporate Powers, and Boundaries

- Sec. 1.1. Incorporation.
- Sec. 1.2. Powers.
- Sec. 1.3. Corporate Limits.

Article II. Governing Body

- Sec. 2.1. Town Governing Body; Composition.
- Sec. 2.2. Town Board of Aldermen; Composition; Terms of Office.
- Sec. 2.3. Mayor; Term of Office; Duties.
- Sec. 2.4. Mayor Pro Tempore.
- Sec. 2.5. Meetings.
- Sec. 2.6. Quorum; Voting.
- Sec. 2.7. Compensation; Qualifications for Office; Vacancies.

Article III. Elections

- Sec. 3.1. Regular Municipal Elections.
- Sec. 3.2. Election of Aldermen.
- Sec. 3.3. Election of Mayor.
- Sec. 3.4. Special Elections and Referenda.

Article IV. Town Manager

- Sec. 4.1. Form of Government.
- Sec. 4.2. Town Manager; Appointment; Powers and Duties.

Article V. Administrative Officers and Employees

- Sec. 5.1. Town Attorney.
- Sec. 5.2. Town Clerk.
- Sec. 5.3. Tax Collector.
- Sec. 5.4. Other Administrative Officers and Employees.
- Sec. 5.5. Town Manager's Authority; Role of Elected Officials.

***Editor's note**—Printed herein is the Charter of the Town of China Grove, North Carolina, as ratified by the North Carolina Assembly by Session Law 2002-42, House Bill 1615, on July 29, 2002. The governing body of the town is referred to in the Code of Ordinances as "town council," but the term "board of aldermen" has been retained in the Charter. Obvious misspellings have been corrected without notation. Additions made for clarity are indicated by brackets.

GENERAL ASSEMBLY OF NORTH CAROLINA

SESSION 2001

SESSION LAW 2002-42

HOUSE BILL 1615

AN ACT TO REVISE AND CONSOLIDATE THE CHARTER OF THE TOWN OF CHINA GROVE.

The General Assembly of North Carolina enacts:

SECTION 1. The Charter of the Town of China Grove is revised and consolidated to read as follows:

THE CHARTER OF THE TOWN OF CHINA GROVE

ARTICLE I. INCORPORATION, CORPORATE POWERS, AND BOUNDARIES

Section 1.1. Incorporation.

The Town of China Grove, North Carolina, in Rowan County and the inhabitants thereof shall continue to be a municipal body politic and corporate, under the name of the "Town of China Grove", hereinafter at times referred to as the "Town."

Section 1.2. Powers.

The Town shall have and may exercise all of the powers, duties, rights, privileges, and immunities conferred upon the Town of China Grove specifically by this Charter or upon municipal corporations by general law. The term "general law" is employed herein as defined in G.S. 160A-1.

Section 1.3. Corporate Limits.

The corporate limits shall be those existing at the time of ratification of this Charter, as set forth on the official map of the Town and as they may be altered from time to time in accordance with law. An official map of the Town, showing the current municipal boundaries, shall be maintained permanently in the office of the Town Clerk and shall be available for public inspection. Upon alteration of the corporate limits pursuant to law, the appropriate changes to the official map shall be made and copies shall be filed in the office of the Secretary of State, the office of the Rowan County Register of Deeds, and the appropriate board of elections.

ARTICLE II. GOVERNING BODY

Section 2.1. Town Governing Body; Composition.

The Town Board of Aldermen, hereinafter referred to as the "Board," and the Mayor shall be the governing body of the Town.

Section 2.2. Town Board of Aldermen; Composition; Terms of Office.

The Town Board shall be composed of five members, to be elected by all the qualified voters of the Town, for staggered terms of four years or until their successors are elected and qualified.

Section 2.3. Mayor; Term of Office; Duties.

The Mayor shall be elected by all the qualified voters of the Town for a term of four years or until his or her successor is elected and qualified. The Mayor shall be the official head of the Town government and preside at meetings of the Town Board, shall have the right to vote only when there is an equal division on any question or matter before the Town Board, and shall exercise the powers and duties conferred by law or as directed by the Town Board.

Section 2.4. Mayor Pro Tempore.

The Town Board shall elect one of its members as Mayor Pro Tempore to perform the duties of the Mayor during his or her absence or disability, in accordance with general law. The Mayor Pro Tempore shall serve in such capacity at the pleasure of the Town Board.

Section 2.5. Meetings.

In accordance with general law, the Town Board shall establish a suitable time and place for its regular meetings. Special and emergency meetings may be held as provided by general law.

Section 2.6. Quorum; Voting.

Official actions of the Town Board and all votes shall be taken in accordance with the applicable provisions of general law, particularly G.S. 160A-75. The quorum provisions of G.S. 160A-74 shall apply.

Section 2.7. Compensation; Qualifications for Office; Vacancies.

The compensation and qualifications of the Mayor and Aldermen shall be in accordance with general law. Vacancies shall be filled as provided in G.S. 160A-63.

ARTICLE III. ELECTIONS**Section 3.1. Regular municipal elections.**

Regular municipal elections shall be held at the time of the general election in each even-numbered year. Except as otherwise provided, the election shall be conducted in accordance with the uniform municipal election laws of North Carolina. Elections shall be conducted on a nonpartisan plurality basis and the results determined as provided in G.S. 163-292.

(Res. of 09-03-2024(1), 9-3-2024; House Bill 17, § 3(a), 5-20-2025)

Section 3.2. Election of aldermen.

The Aldermen shall be elected for staggered four-year terms.

(Res. of 09-03-2024(1), 9-3-2024; House Bill 17, § 3(a), 5-20-2025)

Section 3.3. Election of mayor.

A Mayor shall be elected for a four-year term.

(Res. of 09-03-2024(1), 9-3-2024; House Bill 17, § 3(a), 5-20-2025)

Section 3.4. Special Elections and Referenda.

Special elections and referenda may be held only as provided by general law or applicable local acts of the General Assembly.

ARTICLE IV. TOWN MANAGER**Section 4.1. Form of Government.**

The Town shall operate under the council-manager form of government, in accordance with Part 2 of Article 7 of Chapter 160A of the North Carolina General Statutes.

Section 4.2. Town Manager; Appointment; Powers and Duties.

The Town Board shall appoint a Town Manager who shall be responsible for the administration of all departments of the Town government. The Town Manager shall have all the powers and duties conferred by general law, except as expressly limited by the provisions of this Charter, and the additional powers and duties conferred by the Town Board, so far as authorized by general law.

ARTICLE V. ADMINISTRATIVE OFFICERS AND EMPLOYEES**Section 5.1. Town Attorney.**

The Town Board shall appoint a Town Attorney licensed to practice law in North Carolina. It shall be the duty of the Town Attorney to represent the Town, advise Town officials, and perform other duties required by law or as the Town Board may direct.

Section 5.2. Town Clerk.

The Town Manager shall appoint a Town Clerk to keep a journal of the proceedings of the Town Board, to maintain official records and documents, to give notice of meetings, and to perform such other duties required by law or as the Town Manager may direct.

Section 5.3. Tax Collector.

The Town shall have a Tax Collector to collect all taxes owed to the Town and perform those duties specified in G.S. 105-350 and such other duties as prescribed by law or assigned by the Town Manager. Notwithstanding the contrary provisions of G.S. 105-349, the Town Manager is authorized to appoint the Tax Collector.

Section 5.4. Other Administrative Officers and Employees.

The Town Board may authorize other positions to be filled by appointment by the Town Manager and may organize the Town government as deemed appropriate, subject to the requirements of general law.

Section 5.5. Town Manager's Authority; Role of Elected Officials.

As chief administrator, the Town Manager shall have the power to appoint, suspend, and remove all nonelected officers, department heads, and employees of the Town, except the Town Attorney, who shall be appointed as provided in Section 5.1 of this Charter. Neither the Mayor nor the Town Board nor any of its committees or members shall take part in the appointment or removal of officers, department heads, and employees in the administrative service of the Town, except as provided by this Charter. Except for the purpose of inquiry, or for consultation with the Town Attorney, the Mayor and the Town Board and its members shall deal with officers and employees in the administrative service of the Town only through the Town Manager, Acting Manager, or Interim Manager, and neither the Mayor nor the Town Board nor any of its members shall give orders or directions to any subordinate of the Town Manager, Acting Manager, or Interim Manager, either publicly or privately.

SECTION 2. The purpose of this act is to revise the Charter of the Town of China Grove and to consolidate certain acts concerning the property, affairs, and government of the Town. It is intended to continue without interruption those provisions of prior acts which are expressly consolidated into this act, so that all rights and liabilities which have accrued are preserved and may be enforced.

SECTION 3. This act does not repeal or affect any acts concerning the property, affairs, or government of public schools or any acts validating official actions, proceedings, contracts, or obligations of any kind.

SECTION 4. The following acts, having served the purposes for which they were enacted or having been consolidated into this act, are expressly repealed:

Chapter 180, Private Laws of 1889

Chapter 292, Private Laws of 1901

Chapter 309, Private Laws of 1903

Chapter 190, Private Laws of 1909

Chapter 68, Private Laws of 1925

Chapter 278, Public-Local Laws of 1937

Chapter 2, Public-Local Laws of 1939

Chapter 433, Session Laws of 1983

S.L. 1999-7

S.L. 2000-10.

SECTION 5. The Mayor and Aldermen serving on the date of ratification of this act shall serve until the expiration of their terms or until their successors are elected and qualified. Thereafter, those offices shall be filled as provided in Articles II and III of the Charter of the Town of China Grove as contained in Section I of this act.

SECTION 6. This act does not affect any rights or interests that arose under any provisions repealed by this act.

SECTION 7. All existing ordinances, resolutions, and other provisions of the Town of China Grove not inconsistent with the provisions of this act shall continue in effect until repealed or amended.

SECTION 8. No action or proceeding pending on the effective date of this act by or against the Town or any of its departments or agencies shall be abated or otherwise affected by this act.

SECTION 9. If any provision of this act or application thereof is held invalid, such invalidity shall not affect other provisions or applications of this act that can be given effect without the invalid provision or application, and to this end the provisions of this act are declared to be severable.

SECTION 10. Whenever a reference is made in this act to a particular provision of the North Carolina General Statutes, and the provision is later amended, superseded, or recodified, the reference shall be deemed amended to refer to the amended law or the law which most clearly corresponds to the statutory provision that is amended, superseded, or recodified.

SECTION 11. This act is effective when it becomes law.

In the General Assembly read three times and ratified this the 29th day of July, 2002.

CHARTER COMPARATIVE TABLE

This table shows the location of the sections of the basic Charter and any amendments thereto.

Ordinance Number	Date	Section	Section this Charter
09-03- 2024(1)(Res.)	9- 3-2024		3.1—3.3
HB-17	5-20-2025	3(a)	3.1—3.3

PART II
CODE OF ORDINANCES

Chapter 1

GENERAL PROVISIONS

- | | |
|-----------|--|
| Sec. 1-1. | Designation and citation of Code. |
| Sec. 1-2. | Definitions and rules of construction. |
| Sec. 1-3. | Provisions considered as continuation of existing ordinances. |
| Sec. 1-4. | Catchlines of sections; history notes and references. |
| Sec. 1-5. | Severability of parts of Code. |
| Sec. 1-6. | General penalty; enforcement of ordinances; continuing violations. |
| Sec. 1-7. | Amendments to Code. |
| Sec. 1-8. | Supplementation of Code. |
| Sec. 1-9. | Ordinances not affected by Code. |

Sec. 1-1. Designation and citation of Code.

The ordinances embraced in this and the following chapters and sections shall constitute and be designated as the "Code of Ordinances, Town of China Grove, North Carolina," and may be so cited. Such Code may also be cited as "China Grove Town Code."

(Code 1993, § 1-1)

State law reference—Admission of Code in evidence, G.S. 160A-79.

Sec. 1-2. Definitions and rules of construction.

In the construction of this Code and of all ordinances, the following definitions and rules of construction shall be observed, unless inconsistent with the manifest intent of the mayor and town council or the context clearly requires otherwise:

Code. The term "Code" means the Code of Ordinances, Town of China Grove, North Carolina, as designated in section 1-1.

Computation of time. The time within which an act is to be done shall be computed by excluding the first and including the last day, and, if the last day is Saturday, Sunday or a legal holiday, that day shall be excluded.

State law reference—Computation of time, G.S. 1-593.

Council, town council. The terms "council" and "town council" mean the mayor and town council of the Town of China Grove, North Carolina.

County. The term "county" means the County of Rowan, in the State of North Carolina, except as otherwise provided.

G.S. and General Statutes. Whenever the abbreviation "G.S." or the term "General Statutes" is used, it means the latest edition of the General Statutes of North Carolina, as amended.

Gender. Words importing the masculine gender include the feminine and neuter.

Governor. The terms "governor" and "the governor" mean the governor of North Carolina.

Joint authority. All words giving a joint authority to three or more persons or officers shall be construed as giving such authority to a majority of such persons or officers.

May, shall. The term "may" is permissive; the term "shall" is mandatory.

Month. The term "month" means a calendar month.

N.C. Admin. Code or NCAC. The term "N.C. Admin. Code" or "NCAC" means the North Carolina Administrative Code.

Number. Words used in the singular include the plural and the plural includes the singular number.

Oath. The term "oath" shall be construed to include an affirmation in all cases in which, by law, an affirmation may be substituted for an oath, and in such cases the terms "swear" and "sworn" shall be equivalent to the terms "affirm" and "affirmed."

Officers. Whenever the title of an officer is given, it shall be construed as though the words "of the Town of China Grove" were added.

Official time standard. Whenever certain hours are named in this Code, they shall mean standard time or daylight saving time as may be in current use in the town.

Owner. The term "owner," applied to any property, includes any part owner, joint owner, tenant in common, joint tenant or tenant by the entirety, of the whole or a part of such property.

Person. The term "person" includes a corporation, firm, partnership, association or organization and any other group acting as a unit, as well as an individual.

Personal property. The term "personal property" includes every species of property except real property.

Preceding, following. The terms "preceding" and "following" mean next before and next after, respectively.

Property. The term "property" includes real and personal property.

Real property. The term "real property" includes lands, tenements and hereditaments.

Sidewalk. The term "sidewalk" means any portion of a street between the curblin and the adjacent property line intended for the use of pedestrians.

Signature and subscription. The terms "signature" and "subscription" include a mark when the person cannot write.

State. The term "state" means the State of North Carolina, except as otherwise provided.

Street. The term "street" means and includes any public way, road, highway, street, avenue, boulevard, parkway, alley, lane, viaduct, bridge and the approaches thereto within the town and shall mean the entire width of the right-of-way between abutting property lines.

Tenant and occupant. The terms "tenant" and "occupant," applied to a building or land, include any person who occupies the whole or a part of such building or land, whether alone or with others.

Tense. Words used in the past or present tense include the future as well as the past and present.

Town. The term "the town" means the Town of China Grove, in the County of Rowan, in the State of North Carolina, except as otherwise provided.

Writing and written. The terms "writing" and "written" include printing and any other mode of representing words and letters.

Year. The term "year" means a calendar year, unless otherwise specified.
(Code 1977, § 1-1001; Code 1993, § 1-2)

State law reference—Similar rules of construction of statutes, G.S. 12-3.

Sec. 1-3. Provisions considered as continuation of existing ordinances.

The provisions appearing in this Code, so far as they are the same as those of ordinances adopted prior to the adoption of this Code and included in this Code, shall be considered as continuations thereof and not as new enactments.

(Code 1977, § 1-1002; Code 1993, § 1-3)

Sec. 1-4. Catchlines of sections; history notes and references.

(a) The catchlines of the several sections of this Code are intended as mere catchwords to indicate the contents of the section and shall not be deemed or taken to be titles of such sections or as any part of the section, nor, unless expressly so provided, shall they be so deemed when any of such sections, including the catchlines, are amended or reenacted.

(b) The history notes following provisions of the Code and the references scattered throughout the Code are not part of the Code, but are for the benefit of the user only.

(Code 1977, § 1-1003; Code 1993, § 1-4)

Sec. 1-5. Severability of parts of Code.

It is hereby declared to be the intention of the mayor and town council that the sections, paragraphs, sentences, clauses and phrases of this Code are severable, and if any phrase, clause, sentence, paragraph or section of this Code shall be declared unconstitutional or otherwise invalid by the judgment or decree of any court of competent jurisdiction, such unconstitutionality or invalidity shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections of this Code, since they would have been enacted by the mayor and town council without the incorporation in this Code of any such unconstitutional or invalid phrase, clause, sentence, paragraph or section.

(Code 1977, § 1-1006; Code 1993, § 1-5)

Sec. 1-6. General penalty; enforcement of ordinances; continuing violations.

(a) Unless otherwise provided herein, each violation of this Code shall constitute a misdemeanor, except as otherwise provided by statute, and violations of such provisions of this Code shall be punished by fine or imprisonment as provided by law. Each day any violation of this Code shall continue shall constitute a separate offense, except as may be specifically provided.

(b) Violations of this Code shall constitute either a misdemeanor or, at the election of the town, shall subject the offender to a civil penalty upon the issuance of a citation for said violation as hereinafter provided. The civil penalty, if not paid to the town within 15 days of the issuance of a citation, may be recovered by the town in a civil action in the nature of debt. Unless otherwise provided by a specific provision of this Code, said civil penalties shall be in the amount of \$50.00 for each violation, and each day any single violation continues shall be a separate violation.

(c) In addition to any civil or criminal penalties set out in this section, any provision of this Code or any other town ordinance may be enforced by an appropriate equitable remedy issuing from a court of competent jurisdiction. In such case, the general court of justice shall have jurisdiction to issue such orders as may be appropriate, and it shall not be a defense to the application of the town for equitable relief that there is an adequate remedy at law.

(d) In addition to any civil or criminal penalties set out in this section, any provision of this Code or any other town ordinance that makes unlawful a condition existing upon or a use made of real property may be enforced by injunction and order of abatement, and the general court of justice shall have jurisdiction to issue such orders. When a violation of such a provision occurs, the town may apply to the appropriate division of the general court of justice for a mandatory or prohibitory injunction and/or order of abatement commanding the defendant to correct the unlawful condition upon or cease the unlawful use of the property. The action shall be governed in all respects by the laws and rules governing civil proceedings, including the Rules of Civil Procedures in general and rule 65 in particular.

(e) In addition to an injunction, the court may enter an order of abatement as a part of the judgment in the cause. An order of abatement may direct that:

- (1) Buildings or other structures on the property be closed, demolished or removed;
- (2) Fixtures, furniture or other movable property be removed from buildings on the property;
- (3) That abandoned, nuisance, or junked vehicles be removed;
- (4) Grass and weeds be cut;
- (5) Improvements or repairs be made; or
- (6) Any other action be taken that is necessary to bring the property into compliance with this Code or such other ordinance.

If the defendant fails or refuses to comply with an injunction or with an order of abatement within the time allowed by the court, he may be cited for contempt, and the town may execute the order of abatement. The town shall have a lien on the property for the cost of executing an order of abatement in the nature of a mechanic's and materialman's lien. The defendant may secure cancellation of an order of abatement by paying all costs of the proceedings and posting a bond for compliance with the order. The bond shall be given with sureties approved by the clerk of superior court in an amount approved by the judge before whom the matter is heard and shall be conditioned on the defendant's full compliance with the terms of the order of abatement within a time fixed by the judge. Cancellation of an order of abatement shall not suspend or cancel an injunction issued in conjunction therewith.

(f) The provisions of this Code and any other town ordinances may be enforced by one, all or a combination of the remedies authorized and prescribed by this section.

(g) Except as otherwise specifically provided, each day's continuing violation of any provision of this Code or any other town ordinance shall be a separate and distinct offense.

(h) Ordinances hereafter adopted by the mayor and town council, the violation of which shall incur a penalty, shall specify whether the enforcement shall be pursuant to the civil penalty and/or criminal penal provisions of this section.

(i) Upon determination of a violation of any section of this Code, the penalty for which is a civil penalty, the appropriate enforcement official of the town shall report such violation to the appropriate administrative person who is appointed by the town council for such purposes as this section requires and request approval to proceed with the civil citation procedure. Approval of the request to proceed by the appropriate administrative person shall empower the appropriate enforcement official to proceed to issue a warning citation and, if necessary, a penalty citation. Such warning citation shall set out the nature of the violation, the section violated and the date of the violation, shall contain an order to immediately cease the violation, and shall specify that a second citation shall incur a civil penalty, together with costs, and attorney fees. If the violation is in the nature of an infraction for which an order of abatement would be appropriate in a civil proceeding, a reasonable period of time must be stated in which the violation must be abated.

(j) An appeal from a warning citation shall be taken within ten days from the date of said warning citation to the board of adjustment. Except in any case where the ordinance which is violated specifically grants to the board of adjustment other powers in considering appeals and such appeal is applied for, the board of adjustment, in considering appeals of a warning citation, shall have power only in the manner of administrative review and interpretation where it is alleged that the official has made an error in the application of this Code, in the factual situation as it relates to the application of the Code, or both.

(k) Where the official determines that the period of time stated in the original warning citation is not sufficient for abatement based upon the work required or based upon a schedule agreed upon with the violator for abatement, the official may amend the warning citation to provide for additional time.

(l) Upon failure of the violator to obey the warning citation, a civil citation shall be issued by the appropriate official of the town and either served directly on the violator, his duly designated agent, or a registered agent if a corporation, either in person or posted in the United States mail service by first class mail addressed to the last known address of the violator as contained in the records of the town or as obtained from the violator at the time of issuance of the warning citation. The violator shall be deemed to have been served upon the mailing of such citation. The citation shall direct the violator to appear before the town clerk, located in the town hall, within 15 days of the date of the citation, or alternatively to pay the citation by mail. The violation for which the citation is issued must have been corrected by the time the citation is paid; otherwise, further citations shall be issued. Citations may be issued for each day the offense continues until the prohibited activity is ceased or abated.

(m) If the violator fails to respond to a citation within 15 days of its issuance and pay the penalty prescribed therein, the town may institute a civil action in the nature of debt in the appropriate division of the state general court of justice for the collection of the penalty, costs, attorney fees, and such other relief as permitted by law.

(n) Notwithstanding any other penalty provision which might be found in the following chapters, the existing provisions of this Code, a violation of which shall subject the offender to civil penalties and/or criminal penal provisions of law, are as follows:

- (1) Chapter 6, Amusements and Entertainment.
 - (2) Chapter 10, Animals.
 - (3) Chapter 14, Buildings and Building Regulations.
 - (4) Chapter 18, Businesses.
 - (5) Chapter 22, Civil Emergencies.
 - (6) Chapter 26, Environment.
 - (7) Chapter 30, Fire Prevention and Protection.
 - (8) Chapter 38, Offenses.
 - (9) Chapter 46, Solid Waste.
 - (10) Chapter 50, Streets and Sidewalks.
 - (11) Chapter 54, Utilities.
 - (12) Chapter 58, Vehicles and Traffic.
 - (13) Provisions of the Zoning and Subdivision Ordinances.
- (Code 1993, § 1-6; Ord. of 1-5-1999(2), pt. 1(1-6))
- State law references**—Similar provisions, G.S. 160A-175; penalty for violation of town ordinances, G.S. 14-4.

Sec. 1-7. Amendments to Code.

(a) All ordinances passed subsequent to this Code which amend, repeal or in any way affect this Code may be numbered in accordance with the numbering system of this Code and printed for inclusion in the Code. When subsequent ordinances repeal any chapter, section or subsection or any portion thereof, such repealed portions may be excluded from this Code by omission from reprinted pages. The subsequent ordinances, as numbered and printed or omitted, in the case of repeal, shall be prima facie evidence of such subsequent ordinances until such time that this Code and subsequent ordinances numbered or omitted are readopted as a new Code by the mayor and town council.

(b) Amendments to any of the provisions of this Code shall be made by amending such provisions by specific reference to the section number of this Code in the following language: "That section _____ of the Code of Ordinances, Town of China Grove, North Carolina, is hereby amended to read as follows:" The new provisions shall then be set out in full as desired.

(c) If a new section not heretofore existing in the Code is to be added, the following language shall be used: "That the Code of Ordinances, Town of China Grove, North Carolina, is hereby amended by adding a section, to be numbered _____, which section reads as follows:" The new section shall then be set out in full as desired.

(d) All sections, articles, chapters or provisions desired to be repealed must be specifically repealed by section, article or chapter number, as the case may be.
(Code 1993, § 1-7)

Sec. 1-8. Supplementation of Code.

(a) By contract or by town personnel, supplements to this Code shall be prepared on an annual basis. A supplement to the Code shall include all substantive, permanent and general parts of ordinances passed by the mayor and town council during the period covered by the supplement and all changes made thereby in the Code. The pages of a supplement shall be so numbered that they will fit properly into the Code and will, where necessary, replace pages which have become obsolete or partially obsolete, and the new pages shall be so prepared that, when they have been inserted, the Code will be current through the date of the adoption of the latest ordinance included in the supplement.

(b) In preparing a supplement to this Code, all portions of the Code which have been repealed shall be excluded from the Code by the omission thereof from reprinted pages.

(c) When preparing a supplement to this Code, the codifier, meaning the person, agency or organization authorized to prepare the supplement, may make formal, nonsubstantive changes in ordinances and parts of ordinances included in the supplement, insofar as it is necessary to do so to embody them into a unified code. For example, the codifier may:

- (1) Organize the ordinance material into appropriate subdivisions.
- (2) Provide appropriate catchlines, headings and titles for sections and other subdivisions of the Code printed in the supplement, and make changes in such catchlines, headings and titles.
- (3) Assign appropriate numbers to sections and other subdivisions to be inserted in the Code and, where necessary to accommodate new material, change existing section or other subdivision numbers.
- (4) Change the words "this ordinance" or words of the same meaning to "this chapter," "this article," "this division," etc., as the case may be, or to "sections _____ to _____," inserting section numbers to indicate the sections of the Code which embody the substantive sections of the ordinance incorporated into the Code.
- (5) Make other nonsubstantive changes necessary to preserve the original meanings of ordinance sections inserted into the Code, but in no case shall the codifier make any change in the meaning or effect of ordinance material included in the supplement or already embodied in the Code.

(Code 1993, § 1-8)

Sec. 1-9. Ordinances not affected by Code.

(a) Nothing in this Code or the ordinance adopting this Code shall be construed to repeal or otherwise affect the validity of any of the following:

- (1) Any offense or act committed or done or any penalty or forfeiture incurred or any contract or right established or accruing before the effective date of this Code;
- (2) Any ordinance or resolution promising or guaranteeing the payment of money for the town or authorizing the issuance of any bonds of the town or any evidence of the town's indebtedness;
- (3) Any contract or obligation assumed by the town;
- (4) Any ordinance fixing the salary of any town officer or employee;
- (5) Any right or franchise granted by the town;
- (6) Any ordinance dedicating, naming, establishing, locating, relocating, opening, widening, paving, etc., any street or public way in the town;
- (7) Any appropriation ordinance;
- (8) Any ordinance which, by its own terms, is effective for a stated or limited term;
- (9) Any ordinance providing for local improvements and assessing taxes therefor;
- (10) Any zoning ordinance;
- (11) Any ordinance dedicating or accepting any subdivision plat;
- (12) Any annexation ordinance or any ordinance describing or altering the boundaries of the town;
- (13) The administrative ordinances or resolutions of the town not in conflict or inconsistent with the provisions of this Code;
- (14) Any ordinance levying or imposing taxes not included in this Code;
- (15) Any ordinance establishing or prescribing street grades in the town;
- (16) Any personnel ordinance;
- (17) Any ordinance or resolution levying water charges or setting water regulations;
- (18) Any flood ordinance.

(b) No ordinance shall be construed to revive any ordinance or part thereof that has been repealed by a subsequent ordinance which is repealed by the ordinance adopting this Code, and all such ordinances are hereby recognized as continuing in full force and effect to the same extent as if set out at length in this Code.

(Code 1993, § 1-9)

State law reference—Statutes not repealed by General Statutes, G.S. 164-7.

Chapter 2

ADMINISTRATION*

Article I. In General

- Sec. 2-1. Disbursement of funds.
- Sec. 2-2. [Procedures for disposing of personal property valued at less than \$30,000.00.]
- Secs. 2-3—2-20. Reserved.

Article II. Mayor and Town Council

Division 1. Generally

- Sec. 2-21. Compensation of councilmembers.
- Sec. 2-22. Resignation of councilmembers.
- Sec. 2-23. Administrative powers of town council.
- Sec. 2-24. Duties of mayor.
- Sec. 2-25. Code of ethics.
- Secs. 2-26—2-51. Reserved.

Division 2. Meetings

- Sec. 2-52. Time and place of regular meetings; attendance.
- Sec. 2-53. Adjourned meetings.
- Sec. 2-54. Order of business.
- Sec. 2-55. Rules of procedure generally.
- Sec. 2-56. Moving the previous question.
- Sec. 2-57. Precedence of motions.
- Sec. 2-58. Motion to adjourn.
- Sec. 2-59. Disruption of meeting.
- Secs. 2-60—2-76. Reserved.

Division 3. Ordinances

- Sec. 2-77. Form.
- Sec. 2-78. Ordinances to be confined to single subject; exception.
- Sec. 2-79. Official copy.
- Sec. 2-80. Amendments.
- Sec. 2-81. Inclusion in Code.
- Secs. 2-82—2-105. Reserved.

Article III. Officers and Employees

Division 1. Generally

- Secs. 2-106—2-123. Reserved.

***State law reference**—Cities and towns, G.S. 160A-1 et seq.

CHINA GROVE CODE OF ORDINANCES

Division 2. Town Attorney

Sec. 2-124. Duties.
Secs. 2-125—2-146. Reserved.

Division 3. Tax Collector

Sec. 2-147. Remittance of funds; monthly report.
Secs. 2-148—2-177. Reserved.

Division 4. Town Clerk

Sec. 2-178. Election; general duties.
Sec. 2-179. Duties as personnel director.
Sec. 2-180. Duties as purchasing agent.
Secs. 2-181—2-198. Reserved.

Division 5. Personnel Manual

Sec. 2-199. Adopted; availability.
Secs. 2-200—2-221. Reserved.

Article IV. Boards, Commissions and Committees

Division 1. Generally

Secs. 2-222—2-250. Reserved.

Division 2. Planning Board

Sec. 2-251. Composition; appointment of members.
Sec. 2-252. Term of office of members; vacancies.
Sec. 2-253. Powers and duties.

ARTICLE I. IN GENERAL**Sec. 2-1. Disbursement of funds.**

(a) In accordance with the Local Government Budget and Fiscal Control Act, no bill or claim against the town may be paid unless it has been approved by the officer or employee responsible for the function or agency to which the expense is charged. No check or draft of the town shall be valid unless it bears on its face the certificate of the clerk as follows:

"This disbursement has been approved as required by the Local Government Budget and Fiscal Control Act."

(b) No contract, agreement or purchase order shall be valid unless it bears the clerk's certificate as follows:

"This instrument has been preaudited in the manner required by the Local Government Budget and Fiscal Control Act."

(Code 1977, § 2-4001; Code 1993, § 2-1)

State law reference—Local Government Budget and Fiscal Control Act, G.S. 159-7 et seq.

Sec. 2-2. [Procedures for disposing of personal property valued at less than \$30,000.00.]

(a) *Property that can be disposed of under this section.* The town manager is hereby authorized to declare surplus and dispose of any personal property owned by the Town of China Grove when, in his or her judgment, each of the following three criteria are met:

- (1) The item or group of items to be disposed of has a fair market value of less than \$30,000.00;
- (2) The property is no longer necessary for the conduct of town business; and
- (3) Sound property management principles and financial considerations indicate that the interests of the Town of China Grove would be best served by disposing of the property.

Personal property that, in the judgment of the town manager, meets these three criteria is referred to in this section as "surplus property."

(b) *Methods of disposition.* The town manager may dispose of surplus property by any means which he or she judges reasonably calculated to secure for the town the fair market value in money or other consideration and to accomplish the disposal efficiently and economically, including but not limited to the methods of sale provided in G.S. 160A-266 and 160A-270. Such sale may be public or private, and with or without notice and minimum waiting period.

(c) *Sale by electronic auction.* As one of several means of disposing of surplus property, the town manager is specifically authorized to dispose of surplus property by electronic means. The town manager is authorized to establish procedures for disposing of surplus property by

electronic means, and is further authorized to use existing public or private electronic auction services to dispose of surplus property. Notwithstanding the requirements of G.S. 160A-270, the town shall not be required to provide advance notice of electronic auctions of such surplus property.

(d) *Terms of disposition.* The surplus property shall be sold to the party who tenders the highest offer, or exchanged for any property or services useful to the Town of China Grove if greater value may be obtained in that manner, and the town manager is hereby authorized to execute and deliver any applicable title documents necessary or appropriate to consummate such sale. If no offers are received within a reasonable time, the town manager may retain the property for the town, obtain any reasonably available salvage value, or cause it to be disposed of as waste material. No surplus property may be donated except by resolution of the town council.

(e) *Records and reports.* The town clerk shall keep a record of all property sold under the authority of this section and that record shall describe the property sold or exchanged, to whom it was sold, or with whom it was exchanged, and the amount of money or other consideration received for each sale or exchange.

(Ord. No. 2017-07, §§ 1—5, 8-1-2017)

Editor's note—Ord. No. 2017-07, §§ 1—5, adopted Aug. 1, 2017, has been included as § 2-2 at the request of the town.

Secs. 2-3—2-20. Reserved.

ARTICLE II. MAYOR AND TOWN COUNCIL*

DIVISION 1. GENERALLY

Sec. 2-21. Compensation of councilmembers.

The compensation of members of the town council shall be as provided in the annual budget ordinance.

(Code 1977, § 2-1005; Code 1993, § 2-26)

State law reference—Compensation of governing body, G.S. 160A-64.

Sec. 2-22. Resignation of councilmembers.

Resignation of members of the town council shall be in writing. No final action shall be taken thereon by the town council until the next regular meeting.

(Code 1977, § 2-1004; Code 1993, § 2-27)

***State law reference**—Form of government, G.S. 160A-59 et seq.

Sec. 2-23. Administrative powers of town council.

The town council shall have the powers granted to municipal governing bodies under state law.

(Code 1977, § 2-1003; Code 1993, § 2-29)

Sec. 2-24. Duties of mayor.

The mayor shall have all duties and powers granted to mayors under state law.
(Code 1977, § 2-1001; Code 1993, § 2-30)

State law reference—Duties of the mayor, G.S. 160A-67, 160A-69.

Sec. 2-25. Code of ethics.

(a) *A town council member shall obey the law.* Town council members shall support the Constitution of the United States, the Constitution of North Carolina and the laws enacted by the Congress of the United States and the General Assembly pursuant thereto. Members specifically acknowledge and agree to comply with the requirements of G.S. 14-234 entitled "Public officers or employees benefiting from public contracts; exceptions."

(b) *A town council member should uphold the integrity and independence of his or her office.* Town council members should demonstrate the highest standards of personal integrity, truthfulness, honesty and fortitude in all their public activities in order to inspire public confidence and trust in town government. Town council members should participate in establishing, maintaining, and enforcing, and should themselves observe, high standards of conduct so that the integrity and independence of their office may be preserved. The provisions of this Code should be construed and applied to further these objectives.

(c) *A town council member should avoid impropriety and the appearance of impropriety in all his or her activities.* It is essential that town government attract those citizens best qualified and willing to serve. Town council members have legitimate interests - economic, professional and vocational - of a private nature. Town council members should not be denied, and should not deny to other town council members or citizens, the opportunity to acquire, retained pursue private interests, economic or otherwise, except when conflicts with their responsibility to the public cannot be avoided. Town council members must exercise their best judgment to determine when this is the case.

Town council members should respect and comply with the law and should conduct themselves at all times in a manner that promotes public confidence in the integrity of the office of town council and of town government.

Town council members should not allow family, social, or other relationship to unduly influence their conduct or judgment and should not lend prestige of the office of town council to advance the private interests or others; nor should they convey or permit others to convey the impression that they are in a special position to influence them. Town council members shall not grant any special consideration, treatment or advantage to any citizen beyond that which is available to every other citizen.

Town council members who have interest in any official act or action before the council shall publicly disclose on the record of the council the nature and extent of such interest and shall withdraw from any consideration of the matter if excused by the council pursuant to G.S. 160A-75.

(d) *A town council member should perform the duties of the office diligently.* Town council members should, while performing the duties of the office as prescribed by law, give precedence to these duties over other activities. In the performance of these duties, the following standards should apply:

(1) *Legislative responsibilities.*

- a. Town council members should actively pursue policy goals they believe to be in the best interests of their constituents within the parameters of orderly decision-making, rules of the town council and open government.
- b. Town council members should respect the legitimacy of the goals and interests of other town council members and should respect the rights of others to pursue goals and policies different from their own.

(2) *Adjudicative responsibilities.*

- a. Town council members should be faithful to the general and local laws pertaining to the office and strive for professional competence in them. They should not be swayed by partisan interests, public clamor, or fear of criticism.
- b. Town council members should demand and contribute to the maintenance of order and decorum in proceedings before the town council.
- c. Town council members should be honest, patient, dignified and courteous to those with whom they deal in their official capacity, and should require similar conduct of their staff and others subject to their direction and control.
- d. Town council members should accord to every person who is legally interested in a proceeding before the council full right to be heard according to law.
- e. Town council members should dispose promptly of the business of the town for which they are responsible.

(3) *Administrative responsibilities.*

- a. Town council members should clearly distinguish legislative, adjudicatory and administrative responsibilities and should refrain from inappropriate interference in the impartial administration of town affairs by town employees. Town council members should diligently discharge those administrative responsibilities that are appropriate, should maintain professional competence in the administration of these duties and should facilitate the diligent discharge of the administrative responsibilities of fellow town council members and other town officials.

- b. Town council members should conserve the resources of the town in their charge. They should employ town equipment property, funds and personnel only in legally permissible pursuits and in a manner that exemplifies excellent stewardship.
- c. Town council members should require town employees subject to their direction and control to observe the standards of fidelity and diligence that apply to town council members as well as those appropriate for employees.
- d. Town council members who become aware of improper conduct by a town employee should promptly inform the town manager, or, in the case of a town employee who reports directly to the council, initiate appropriate disciplinary measures.
- e. Town council members should not employ or recommend the appointment of unnecessary employees and should exercise the power of employment only on the basis of merit, avoid favoritism and refrain from illegal discrimination and nepotism. They should not approve compensation of employees beyond fair value of services rendered.

(e) *A town council member should conduct the affairs of the town council in an open and public manner.* Town council members should be aware of the letter and intent of the state's Open Meetings Law, should conduct the affairs of the town council consistent with the letter and spirit of that law and consistent with the need to inspire and maintain public confidence in the integrity and fairness of town government and the office of town council. Consistent with this goal of preserving public trust, town council members should be aware of the need for discretion in deliberations when the lack of discretion would pose a threat to the resources of the town, to the reputation of current or potential town employees, to orderly and responsible decision making, to the integrity of other governmental processes or to other legitimate interests of the town.

(f) *A town council member should regulate his or her extra governmental activities to minimize the risk of conflict with his or her official duties.*

- (1) Town council members should inform themselves concerning campaign finance, conflict of interest and other appropriate state and federal laws and should scrupulously comply with the provisions of such laws.
- (2) Town council members should refrain from financial and business dealings that tend to reflect adversely on the council or on town government or to interfere with the proper performance of official duties.
- (3) Town council members should manage their personal financial interests to minimize the number of cases in which they must abstain from voting on matters coming before the council.
- (4) Information acquired by town council members in their official capacity should not be used or disclosed in financial dealings or for any other purpose not related to official duties.

(g) *A town council member should refrain from political activity inappropriate to his or her office.*

- (1) Town council members have a civic responsibility to support good government by every available means, to continue to inform and educate the citizens about the affairs and processes of town government, and to make themselves available to citizens of the town so that they may ascertain and respond to the needs of the community. In doing so, town council members may and should join or affiliate with civic organizations whether partisan or non-partisan, may and should attend political meetings, may and should advocate and support principals or policies of civic or political organizations consistent with the Constitution and laws of the United States and North Carolina.
- (2) Candidates for the office of town council, including incumbents:
 - a. Should inform themselves concerning the laws of this state with regard to campaigns and relevant disclosure requirements and should scrupulously comply with the provisions of such laws;
 - b. Should maintain the dignity appropriate to the office, and should encourage members of their families to adhere to the same standards of political conduct that apply to the town council;
 - c. Should not make pledges or promises of conduct in office that they will not or cannot perform or would be illegal if it were performed;
 - d. Should not misrepresent their identity, qualifications, present position, or other fact; and
 - e. Should avoid pledges or promises of conduct in office other than the faithful and impartial performance of the duties of the office.

(h) *[Violation.]*

- (1) A violation of this code of ethics may subject a mayor/council member to a censure resolution by the Town of China Grove Town Council; however, no such censure resolution be adopted until the person alleged to have committed the violation has been given notice of the alleged violation and provided with the opportunity to appear before the council and be heard regarding the allegation.
- (2) When a mayor/council member has a question as to the applicability of this code to a particular situation, he or she may apply, orally or in writing, to the town attorney for advisory guidance. Upon receipt of a request for advisory guidance and based only upon the information given to the town attorney, the town attorney will provide advisory guidance to the mayor/council member. In the town attorney's discretion, he may retain outside legal counsel to advise him in connection with any request for

advisory guidance. In no event will the town attorney's advisory guidance excuse a mayor/council member from complying with the code of ethics or other applicable law.

(Res. of 6-3-2008, §§ 1—7)

Editor's note—A resolution adopted June 3, 2008, §§ 1—7, did not specify manner of inclusion; hence, codification as § 2-25 was at the discretion of the editor.

Secs. 2-26—2-51. Reserved.

DIVISION 2. MEETINGS*

Sec. 2-52. Time and place of regular meetings; attendance.

The regular meetings of the town council shall be held as established from time to time by ordinance or resolution, at the town hall, unless otherwise designated by the town council. Every member of the town council and officer shall attend all meetings of the council, unless excused.

(Code 1977, § 2-1011; Code 1993, § 2-51)

Sec. 2-53. Adjourned meetings.

Any meeting of the town council may be continued or adjourned from day to day, or for more than one day, but no adjournment shall be for a longer period than until the next regular meeting thereafter.

(Code 1977, § 2-1012; Code 1993, § 2-52)

Sec. 2-54. Order of business.

(a) At the hour appointed for the meeting of the town council, the mayor shall take the chair and direct a call of the members by the clerk, who shall note the absentees. If a quorum is not present, the mayor shall send for the absentees, and upon the appearance of a quorum shall call to order and proceed with the order of business. If a quorum fails to attend, the meeting shall stand adjourned to a time agreed on by a majority of the members present. The mayor may, when present, substitute any member of the town council to perform the duties of the chair, but the substitution shall not extend beyond adjournment except by special consent of the town council.

(b) The business of the town council shall be taken up for consideration and disposition at regular meetings in the following order:

- (1) Roll call;
- (2) Reading, correction and approval of minutes of the preceding regular meeting and other special meetings, if any;

***State law reference**—Meetings of governing body, G.S. 160A-71.

- (3) Introduction and adoption of resolutions and ordinances;
- (4) Reports of officers, boards, regular committees and special committees;

- (5) Unfinished business;
- (6) Petitions, remonstrances and communications;
- (7) Motions, resolutions and ordinances;
- (8) Miscellaneous business;
- (9) Appropriations; and
- (10) Adjournment.

(c) If the town council shall direct any matter to be the special business of a future meeting, that matter shall have precedence over all other business at the future meeting. (Code 1977, § 2-1013; Code 1993, § 2-53)

Sec. 2-55. Rules of procedure generally.

(a) *Agenda.* All reports, communications, ordinances, resolutions, contract documents or other matters to be submitted to the town council shall be delivered or submitted to the clerk at least four days prior to its meeting. The clerk shall arrange a list of such matters according to the order of business and furnish each member of the town council and the town attorney with a copy of the list prior to the town council meeting and as far in advance of the meeting as time for preparation will permit.

(b) *Rules of debate.*

- (1) Every member desiring to speak shall address the chair, and upon recognition by the mayor, shall confine himself to the question under debate, avoiding all personal remarks and indecorous language.
- (2) A member, once recognized, shall not be interrupted when speaking, unless it is to call him to order or as otherwise provided in this section. If a member, while speaking, is called to order, he shall cease speaking until the question of order is determined and, if in order, he shall be permitted to proceed.
- (3) The member moving the adoption of an ordinance or resolution shall have the privilege of closing the debate.
- (4) A motion to reconsider a vote may be made only at the same or any adjourned meeting to that at which the vote is taken, or upon notice by a member voting with the majority that a motion to reconsider will be made at the next regular meeting. The motion must be made by a member of the town council voting on the prevailing side, but may be seconded by any other member, and may be made at any time and shall have precedence over all other motions, except while a member has the floor.
- (5) A member may request from the mayor the privilege of having an abstract of his statement on any subject under consideration by the town council entered in the minutes.

- (6) The clerk may be directed by the mayor, with consent of the town council, to enter in the minutes a synopsis of the discussion on any question coming before the town council.

(c) *Public comment period.*

- (1) *Frequency of public comment periods.* The council must provide an opportunity for public comment at each regular meeting, except that the council need not offer a public comment period during any month in which it does not hold a regular meeting.
- (2) *Rules for public comment periods.* The council by resolution at the organizational meeting, or at any other meeting at the discretion of the council, shall adopt reasonable rules for public comment periods that, among other things,
 - a. Fix the maximum time allotted to each speaker,
 - b. Provide for the designation of spokespersons for groups supporting or opposing the same positions,
 - c. Provide for the selection of delegates from groups supporting or opposing the same positions when the number of persons wishing to attend the public comment period exceeds the capacity of the hall (so long as arrangements are made for those excluded from the hall to listen to the hearing), and
 - d. Provide for the maintenance of order and decorum in the conduct of the hearing.
- (3) *Content-based restrictions generally prohibited.* The council may not restrict speakers based on subject matter, as long as their comments pertain to subjects within the council's real or apparent jurisdiction.

(d) *Voting; explanation of vote.* All elections by the town council shall be made by ballot if required by any two members present. A member may be permitted to explain his vote only by leave of a majority of the members present, and for such explanation, he may be allowed not more than five minutes. He may, if he desires, have his reason for voting for or against any measure recorded in the minutes.

(e) *Decisions on questions of order.* All questions of order shall be decided by the mayor without debate, subject to an appeal to the town council.

(f) *Use of Robert's Rules of Order, Newly Revised.* When any point of procedure shall arise not covered by this article, the latest revised edition of Robert's Rules of Order, Newly Revised, shall determine such question of procedure.

(Code 1977, § 2-1014; Code 1993, § 2-54; Ord. No. 2023-01, 2-7-2023)

State law reference—Governing body may adopt its own rules of procedure, G.S. 160A-71(c).

Sec. 2-56. Moving the previous question.

When the previous question is moved at a meeting of the town council, and seconded by one other member, it shall be put as follows: "Shall the main question be now put?" There shall be no further amendment or debate, but, following an affirmative vote by a majority of

the members present, pending amendments shall be put in their order before the main question. If the question "Shall the main question be put?" be decided in the negative, the main question remains before the town council.

(Code 1977, § 2-1015; Code 1993, § 2-55)

Sec. 2-57. Precedence of motions.

When a question is under consideration before the town council, no motion shall be received except as follows:

- (1) To lay on the table;
- (2) To postpone to a time certain;
- (3) To postpone indefinitely;

- (4) To refer to a committee;
- (5) To amend; or
- (6) To divide.

Motions for any of such purposes shall have precedence in the order named.
(Code 1977, § 2-1016; Code 1993, § 2-56)

Sec. 2-58. Motion to adjourn.

A motion to adjourn a meeting of the town council shall always be in order and shall be decided without debate.
(Code 1977, § 2-1017; Code 1993, § 2-57)

Sec. 2-59. Disruption of meeting.

Any person disrupting the proceedings of the meetings of the town council by continually speaking out of turn without having been recognized by the mayor, when such person has been once warned by the mayor to refrain from such outbursts, may be removed from the meeting and shall be charged with a misdemeanor, and upon conviction, such person shall be fined or imprisoned or both, at the discretion of the court.
(Code 1977, § 2-1018; Code 1993, § 2-58)

Secs. 2-60—2-76. Reserved.

DIVISION 3. ORDINANCES*

Sec. 2-77. Form.

Every ordinance amending or repealing any ordinance and every new ordinance shall be proposed in writing and shall be approved as to form by the town attorney. Ordinances shall have ordinance and section captions.
(Code 1977, § 2-1021; Code 1993, § 2-81)

Sec. 2-78. Ordinances to be confined to single subject; exception.

All ordinances shall be confined to one subject, except appropriation ordinances, which shall be confined to the subject of appropriations only.
(Code 1977, § 2-1022; Code 1993, § 2-82)

***State law reference**—Code of Ordinances, G.S. 160A-77 et seq.

Sec. 2-79. Official copy.

A true copy of an ordinance which has been duly enacted by the town council, signed by the mayor, and attested to by the clerk shall be known as an official copy of any ordinance of the town. All ordinances of a general and permanent nature or a true copy thereof, unless otherwise reserved, shall be inserted in this Code in the proper chapter.

(Code 1977, § 2-1023; Code 1993, § 2-83)

Sec. 2-80. Amendments.

(a) It shall be unlawful for members of the town council to annul, abridge, modify or in any way change any ordinance of the town council except at a regular or special meeting of the council. Any consent obtained relative to the amendment of an ordinance, except in such manner, shall in all cases be inoperative and void.

(b) An ordinance proposed to add to or replace provisions of a current ordinance of the town shall set out:

- (1) Each paragraph to be amended as it stands;
- (2) The words proposed to be stricken out and those to be inserted; and
- (3) The paragraph as it would stand if so amended.

The title of the new ordinance shall contain the entire title of the ordinance amended thereby.

(Code 1977, §§ 2-1024, 2-1025; Code 1993, § 2-84)

Sec. 2-81. Inclusion in Code.

Whenever a chapter, article or section of this Code is repealed, the clerk shall make a notation of the repeal in the official copy of this Code. Whenever a new chapter, article or section of this Code is ordained, the clerk shall make a notation of such new ordinance in the official copy of this Code. Not later than nine months after the enactment of all ordinances, the ordinances shall be printed in the format of this Code and inserted in the appropriate places in the Code.

(Code 1977, § 2-1026; Code 1993, § 2-85)

Secs. 2-82—2-105. Reserved.

ARTICLE III. OFFICERS AND EMPLOYEES*

DIVISION 1. GENERALLY

Secs. 2-106—2-123. Reserved.

***State law reference**—Officers and employees, G.S. 160A-147 et seq.

DIVISION 2. TOWN ATTORNEY*

Sec. 2-124. Duties.

The town attorney shall:

- (1) Prosecute or defend any and all suits or actions at law or equity to which the town may be a party, in which it may be interested, or which may be brought against or by any officer of the town or in the capacity of such person as an officer of the town;
- (2) See to the full enforcement of all judgments or decrees rendered or entered in favor of the town and of all similar interlocutory orders;
- (3) See to the completion of all special assessment proceedings and condemnation proceedings;
- (4) Draft or review any contract, lease or other document or instrument to which the town may be a party;
- (5) At the request of the town council, draft ordinances covering any subjects within the power of the town; and
- (6) Perform any other duties required of him by G.S. 160A-173 and other laws and ordinances.

(Code 1977, § 2-2001; Code 1993, § 2-131)

Secs. 2-125—2-146. Reserved.

DIVISION 3. TAX COLLECTOR†

Sec. 2-147. Remittance of funds; monthly report.

The tax collector shall, at least once a day, pay over to the town finance officer all monies collected or received by him and shall also, once a month, furnish the finance committee with an itemized statement of the amount of funds collected by him and the sources from which they were obtained, together with the receipts of the finance officer for the amounts turned over to him. He and the sureties on his official bond shall be liable for all taxes and other revenues which he collected or might have collected.

(Code 1977, § 2-2002; Code 1993, § 2-151)

Secs. 2-148—2-177. Reserved.

DIVISION 4. TOWN CLERK‡

Sec. 2-178. Election; general duties.

(a) A clerk shall be elected by the town council at the first meeting of the town council after the election and qualification of the members, or as soon thereafter as possible.

***State law reference**—City attorney, G.S. 160A-173.

†**State law reference**—Tax collector, G.S. 105-349, 105-350.

‡**State law reference**—City clerk, G.S. 160A-171.

(b) It shall be the duty of the clerk to:

- (1) Act as clerk to the town council and, as such, keep a complete and accurate account of all proceedings of all meetings in a book especially provided for this purpose by the council.
- (2) Have the powers and perform the duties of the finance officer.
- (3) Do other acts as may be required by the town council.

(Code 1977, § 2-2004; Code 1993, § 2-171)

Sec. 2-179. Duties as personnel director.

The town clerk shall serve as personnel director and as such shall:

- (1) Establish and maintain a roster of all employees, in which there shall be set forth, as to each employee, the class title of the position held, the salary or pay status, and any other necessary data;
- (2) Assign and direct the work of any and all assistants provided for by the town council;
- (3) Advise and consult with the department heads in the development of training programs;
- (4) Develop, in consultation with the department heads, a system of periodic service ratings of employees, to be administered by the department heads;
- (5) Make annual reports and such special reports as he deems advisable regarding personnel administration and recommendations for improvement therein to the town council;
- (6) Prepare and maintain the classification and compensation plans and, after consultation with department heads, prepare and present to the town council class specifications and amendments thereto;
- (7) Recommend to the town council amendments to the personnel regulations and cause all rules and regulations to be published and copies thereof to be given to the department heads and the council, and maintain copies in his office;
- (8) Maintain all registers of eligible persons for appointment and make certification from such registers;
- (9) Make such regulations and other administrative memoranda as he may deem necessary, consistent with this Code, relative to his authority under this section; and
- (10) Perform such other duties as may be required of him by statute or ordinance.

(Code 1977, § 2-2003; Code 1993, § 2-172)

Sec. 2-180. Duties as purchasing agent.

The town clerk shall serve as purchasing agent and as such shall:

- (1) Make all purchases of material, equipment and supplies authorized by the town council, at the most favorable price for the town, and see that the material, equipment and supplies delivered are correct in number or amount and comply with the standards and specifications agreed to at the time of purchase;
- (2) Establish sets of standards and specifications to control purchases by the town;
- (3) Prepare and publish specifications and notices to bidders;
- (4) Advise the town council as to anticipated needs for purchases and make purchases in advance of needs as authorized by the council;
- (5) Store material, equipment and supplies in advance of actual need;
- (6) Keep records of all purchases made by him and of the destination or ultimate use of such material, equipment and supplies; and
- (7) Cause to be kept an inventory of all municipal property in his custody and of all municipal property in the custody of other officers and employees of the town.

(Code 1977, § 2-4002; Code 1993, § 2-173)

Secs. 2-181—2-198. Reserved.

DIVISION 5. PERSONNEL MANUAL

Sec. 2-199. Adopted; availability.

(a) An official personnel manual shall be kept on file in the town hall, and such manual shall set forth all regulations and policies concerning employment in the town, including, but not being limited to:

- (1) Pay rates for employees.
- (2) Benefits available to employees.
- (3) Hiring and promotion.
- (4) Hours of work and overtime.
- (5) Sick pay and vacation.
- (6) Health and safety.
- (7) Affirmative action and equal opportunities.
- (8) Individuals with disabilities.
- (9) Drug testing and drug awareness.
- (10) Disciplinary actions and termination of employment.
- (11) Grievances.

(b) The personnel manual shall be kept current and made available to all employees.

Secs. 2-200—2-221. Reserved.

ARTICLE IV. BOARDS, COMMISSIONS AND COMMITTEES

DIVISION 1. GENERALLY

Secs. 2-222—2-250. Reserved.

DIVISION 2. PLANNING BOARD

Sec. 2-251. Composition; appointment of members.

The planning board of the town shall be composed of eight members, who shall be appointed by the town council. The members shall consist of seven town residents appointed by the town council, and one resident of the extraterritorial area recommended by the town council and appointed by the board of county commissioners.

(Code 1977, § 2-7001; Code 1993, § 2-231; Ord. of 4-7-1981(1), § 1)

Sec. 2-252. Term of office of members; vacancies.

Each member of the planning board shall be appointed for a term of three years, except for the initial appointments. The initial members shall be appointed for staggered terms. Vacancies shall be filled for unexpired portions of terms in the same manner as an original appointment.

(Code 1977, § 2-7002; Code 1993, § 2-232; Ord. of 4-7-1981(1), § 2)

Sec. 2-253. Powers and duties.

The powers and duties of the planning board of the town shall be those set forth in state statutes and others as defined by the town council.

(Code 1977, § 2-7003; Code 1993, § 2-233)

State law reference—Authority and duties of planning board, G.S. 160A-360 et seq.

Chapters 3—5

RESERVED

Chapter 6

AMUSEMENTS AND ENTERTAINMENT*

Article I. In General

Secs. 6-1—6-18. Reserved.

Article II. Circuses, Carnivals and Similar Entertainment; Mechanical Rides

- Sec. 6-19. License required.
- Sec. 6-20. Application for license; issuance.
- Sec. 6-21. Grounds for denial of license.
- Sec. 6-22. License fee.
- Sec. 6-23. Suspension or revocation of license.
- Sec. 6-24. Inspection.
- Sec. 6-25. Certificate of public liability insurance.
- Sec. 6-26. Disorderly conduct; sale of obscene material; obscene performances.
- Secs. 6-27—6-55. Reserved.

Article III. Pool Rooms, Bowling Alleys and Amusement Centers

- Sec. 6-56. License required; expiration; transfer.
- Sec. 6-57. Application for license.
- Sec. 6-58. Persons ineligible for license.
- Sec. 6-59. Contents of license; posting.
- Sec. 6-60. Revocation of license.
- Sec. 6-61. Responsibility of licensee for acts of agents and employees.
- Sec. 6-62. Operation generally.
- Sec. 6-63. Prohibited acts by licensee and employees.

***State law reference**—Regulation of places of amusement, G.S. 160A-181.

ARTICLE I. IN GENERAL

Secs. 6-1—6-18. Reserved.

**ARTICLE II. CIRCUSES, CARNIVALS AND SIMILAR ENTERTAINMENT;
MECHANICAL RIDES**

Sec. 6-19. License required.

No person shall exhibit, show, conduct, operate or cause or permit to be exhibited, shown, conducted or operated in any place within the town or on any property owned, leased or controlled by him, any circus, carnival or outdoor show or other similar public entertainment, or any merry-go-round, Ferris wheel, airplane ride or other mechanical amusement unless the show or amusement has been licensed according to the provisions of this article.

(Code 1977, § 6-1081; Code 1993, § 4-26)

Sec. 6-20. Application for license; issuance.

(a) Any and all persons desiring to operate a circus, carnival, outdoor show or any other similar public entertainment, or a merry-go-round, Ferris wheel or other mechanical ride, shall first make application to the town council upon a form prescribed by the council at least 60 days prior to the opening date thereof. The council shall consider the application and direct that the application be granted or refused. If granted, a license shall be duly issued, and such license shall be signed by the mayor.

(b) The application shall contain the name and residence of the person to whom the license shall be issued, and shall contain a complete description of the type of show, rides and other amusements to be offered, as well as the place upon which the activities shall be held.

(Code 1977, § 6-1083; Code 1993, § 4-27)

Sec. 6-21. Grounds for denial of license.

The town council may refuse the issuance of a license under this article on account of the existence of any unsanitary, hazardous or dangerous condition, because the location is deemed to be unsuitable, on account of the creation of a traffic hazard, or for the lack of accommodations for the number of persons or vehicles likely to be attracted thereto.

(Code 1977, § 6-1084; Code 1993, § 4-28)

Sec. 6-22. License fee.

No fee shall be charged for a license issued under this article.

(Code 1977, § 6-1085; Code 1993, § 4-29)

Sec. 6-23. Suspension or revocation of license.

The mayor is hereby authorized to suspend or revoke any license granted under this article in case of failure to maintain proper standards of safety and sanitation, and in case the licensee shall permit the sale of any obscene literature or pictures or any obscene act or performance.

(Code 1977, § 6-1088; Code 1993, § 4-30)

Sec. 6-24. Inspection.

After a license has been granted under this article, officials of the town shall inspect the premises and installations made thereon in order to determine the existence of any unsanitary, dangerous or hazardous conditions, and if such conditions shall exist, the town council shall have the authority to suspend the license and prohibit the circus, carnival or other outdoor show from continuing, or may suspend the operation of any mechanical ride or mechanical amusement if the ride or amusement shall be deemed unsanitary, dangerous or hazardous per se, and such suspension shall continue in effect until the unsanitary, dangerous or hazardous conditions shall be eliminated.

(Code 1977, § 6-1086; Code 1993, § 4-31)

Sec. 6-25. Certificate of public liability insurance.

The sponsor of any circus, carnival or outdoor show or other similar public entertainment, or the owner or operator thereof, or the operator of any mechanical ride of any type, shall file with the mayor, at least ten days prior to the opening of the circus, carnival or outdoor show or the operation of any merry-go-round, Ferris wheel, airplane ride or any other type of mechanical ride or mechanical amusement, a certificate of public liability insurance in the currently required sum. The filing of the certificate of public liability insurance shall be a condition precedent to the opening of the circus, carnival or outdoor show or other similar public entertainment, or the operation of any merry-go-round, Ferris wheel, airplane ride or any other type of mechanical ride or mechanical amusement. No circus, carnival or outdoor show or any mechanical ride or mechanical amusement shall be permitted to perform or operate unless the certificate of insurance is first provided, as set forth in this section.

(Code 1977, § 6-1089; Code 1993, § 4-32)

Sec. 6-26. Disorderly conduct; sale of obscene material; obscene performances.

No person granted a license under this article shall permit any disorderly conduct upon the premises for which such license shall have been granted, or the sale of any obscene literature or pictures, or any obscene act or performance upon the premises.

(Code 1977, § 6-1087; Code 1993, § 4-33)

Secs. 6-27—6-55. Reserved.

ARTICLE III. POOL ROOMS, BOWLING ALLEYS AND AMUSEMENT CENTERS**Sec. 6-56. License required; expiration; transfer.**

No person shall maintain or operate any pool or billiard table, bowling alley or other table or alley for any game or play for which a charge is made, either directly or indirectly, unless he shall first have secured a license from the town council to do so. The license shall expire on June 30 each year, and shall not be transferable.

(Code 1977, § 6-1041; Code 1993, § 4-56)

Sec. 6-57. Application for license.

Applications for a license under this article shall be made upon forms provided by the clerk, and shall contain all information necessary for the town council to act intelligently upon such applications.

(Code 1977, § 6-1042; Code 1993, § 4-57)

Sec. 6-58. Persons ineligible for license.

The town council shall not issue a license under this article to any person who:

- (1) Has been convicted of unlawfully selling intoxicating liquors or narcotic drugs;
- (2) Is not a citizen and resident of the state;
- (3) Is of immoral character; or
- (4) Is a habitual user of intoxicating liquor or narcotic drugs.

(Code 1977, § 6-1043; Code 1993, § 4-58)

Sec. 6-59. Contents of license; posting.

Every license issued pursuant to this article shall specify the premises for which it is issued, the number of tables or alleys to be operated thereunder, the name of the owner or operator, and the dates upon which the license begins and shall expire. The license shall be posted in a prominent place on the premises at all times.

(Code 1977, § 6-1044; Code 1993, § 4-59)

Sec. 6-60. Revocation of license.

A second conviction of a licensee under this article, or his agent or employee, for any violation of any provision of this article shall, by operation of law, constitute an automatic revocation of the license of such licensee. In addition, the town council may, at any time, for cause, and after a hearing, of which such licensee shall be given such reasonable notice as the council may direct, revoke any license issued pursuant to this article.

(Code 1977, § 6-1048; Code 1993, § 4-60)

Sec. 6-61. Responsibility of licensee for acts of agents and employees.

The acts and conduct of the agents and employees of a licensee under this article in the conduct of the business shall be deemed to be the acts and conduct of the licensee.

(Code 1977, § 6-1047; Code 1993, § 4-61)

Sec. 6-62. Operation generally.

The following rules shall be observed by all operators of pool rooms, bowling alleys and amusement centers within the town:

- (1) All pool rooms, bowling alleys and amusement centers shall close at 1:00 a.m. each morning, Monday through Friday, and 12:00 midnight on Saturdays, and no person other than the owner, operator or employees shall be permitted on the premises from that hour until 7:00 a.m. the following morning.
- (2) No play in any pool room, bowling alley or amusement center shall be allowed during the times when pool rooms, bowling alleys and amusement centers are required by this article, or any state statute, to remain closed.
- (3) Pool rooms, bowling alleys and amusement centers shall remain closed on Sundays except during the hours from 1:00 p.m. to 6:00 p.m.
- (4) All pool rooms, bowling alleys and amusement centers shall be operated only on the ground floor of a building, and a plate glass window shall be located in those parts of the building facing any street so that a clear view inside may be had from the street.
- (5) No screens, curtains, blinds, partitions or other obstructions shall be placed between the entrance to the pool room, bowling alley or amusement center and the rear wall of such room. A clear view of the interior from the entrance to the rear of the room must be maintained at all times.
- (6) No partitions forming rooms, stalls or other enclosures where the public congregates shall be permitted; provided that this shall not be construed so as to prohibit the maintenance of closets used exclusively for storage purposes, or of toilets.
- (7) There shall not be permitted or maintained any open or secret connections through doors, windows, trapdoors, hidden doors, panels, stairways or other devices with any place where gambling is conducted or where persons meet or congregate for illegal purposes.

(Code 1977, § 6-1046; Code 1993, § 4-62)

Sec. 6-63. Prohibited acts by licensee and employees.

Licensees under this article, including any employees of such licensees, shall not:

- (1) Permit any gambling on the licensed premises at any time, or the sale or use of any racing, football or other parlay cards or gambling boards.
- (2) Permit the licensed premises to become disorderly, or permit any obscene language thereon.

- (3) Permit any narcotic drugs to be sold or kept or consumed on the licensed premises.
 - (4) Employ in carrying on the business any person who has been convicted of unlawfully selling intoxicating liquors or narcotic drugs.
 - (5) Permit any keeley board, keno board, or any other such board or device to be attached to or placed upon any tables.
 - (6) Permit any person under the age of 21 years to enter or remain on the licensed premises if on-premises consumption of alcoholic beverages is permitted.
- (Code 1977, § 6-1045; Code 1993, § 4-63; Ord. of 3-3-1987)

Chapters 7—9

RESERVED

Chapter 10

ANIMALS*

- Sec. 10-1. Definitions.
- Sec. 10-2. Violation of chapter.
- Sec. 10-3. Territorial applicability of chapter.
- Sec. 10-4. Fees for animal control activities.
- Sec. 10-5. Interference with animal control officer.
- Sec. 10-6. Town declared a bird sanctuary.
- Sec. 10-7. Permission required for keeping of certain animals.
- Sec. 10-8. Keeping or grazing livestock near residential structure.
- Sec. 10-9. Rabies vaccination required for dogs and cats.
- Sec. 10-10. Report and confinement of animal suspected of having rabies.
- Sec. 10-11. Animal bites.
- Sec. 10-12. Impoundment.
- Sec. 10-13. Animals at large.
- Sec. 10-14. Vicious animals.
- Sec. 10-15. Nuisance animals.
- Sec. 10-16. Right to hearing on declaration of viciousness or public nuisance.
- Sec. 10-17. Authority to destroy certain animals.
- Sec. 10-18. Injured, sick or diseased animals.
- Sec. 10-19. Unwanted animals.
- Sec. 10-20. Cruelty to animals; maintenance of animal pens.
- Sec. 10-21. Unlawful removal of vaccination tag; interfering with dog belonging to another.
- Sec. 10-22. Animals at town-sponsored events.
- Sec. 10-23. Urban archery deer hunting.
- Sec. 10-24. Animal waste.

***Federal law reference**—"Service animal" defined for purposes of Americans with Disabilities Act, 28 CFR 36.104.

State law references—Protection of animals generally, G.S. 19A-20 et seq.; regulation of domestic animals, G.S. 160A-186.

Sec. 10-1. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Animal control officer means a county employee designated as dog warden, animal control officer, animal control official or other designation that may be used, whose responsibility includes animal control.

At large means any animal not under physical restraint or is not sufficiently near the owner or keeper as to be under his direct control and is not obedient to that person's command.

Harbor means to feed, water or shelter an animal or allow an animal to remain unmolested on or about any premises over which a person has control.

Health director means the administrative head of the county health department, or his authorized representative.

Keeper means a person having custody of an animal, who keeps or harbors an animal, or who knowingly permits an animal to remain on or about any premises occupied or controlled by such person.

Kitten means a cat of either sex under the age of four months.

Owner means any person owning, keeping, having charge of, sheltering, feeding, harboring or taking care of any animal. The owner of an animal is responsible for the care, actions and behavior of the animal.

Public nuisance means any animal which is found to be in violation of section 10-15 and whose owner or keeper has been properly notified of the violation.

Pup means a dog of either sex under the age of four months.

Stray means any animal that:

- (1) Is not under restraint;
- (2) Is not on the property of its owner;
- (3) Is wandering at large;
- (4) Is lost;
- (5) Does not have an owner; or
- (6) Does not bear evidence of the identification of any owner.

Vicious animal means any animal which is found to be in violation of section 10-14 and whose owner or keeper has been properly notified of the violation.
(Code 1993, § 6-1; Ord. of 6-4-1991(2), § I; Ord. of 1-3-1995(1))

Sec. 10-2. Violation of chapter.

Any owner found violating any provision of this chapter shall be guilty of a misdemeanor, and upon conviction thereof shall be punished as provided in section 1-6.

(Code 1977, § 8-2005(a); Code 1993, § 6-2)

Sec. 10-3. Territorial applicability of chapter.

This chapter shall be effective within the corporate limits of the town.

(Code 1993, § 6-3; Ord. of 6-4-1991(2), § XV)

Sec. 10-4. Fees for animal control activities.

Fees charged for animal control activities shall be set at the discretion of the county board of health.

(Code 1993, § 6-4; Ord. of 6-4-1991(2), § XI)

Sec. 10-5. Interference with animal control officer.

It shall be unlawful for any person to interfere with, hinder or molest any animal control officer or his agents in the performance of those duties authorized by this chapter or by state law, or to refuse to release any animal into the custody of the officer upon direction.

(Code 1993, § 6-5; Ord. of 6-4-1991(2), § XIII)

Sec. 10-6. Town declared a bird sanctuary.

(a) The area embraced within the corporate limits of the town, and all lands owned or leased by the town outside the corporate limits, are hereby designated as a bird sanctuary.

(b) It shall be unlawful to trap, hunt, shoot or otherwise kill, within the sanctuary established by subsection (a) of this section, any domestic or wild bird; provided that, in accordance with G.S. 160A-188, it shall be lawful to trap, hunt, shoot or otherwise kill starlings, English sparrows, blackbirds (except red wing blackbirds) and other birds having an unprotected status under the law.

(c) The town beautification committee is granted permission to erect artistic signs giving notice of the regulations set out in this section.

(Code 1977, § 8-2008; Code 1993, § 6-6)

Sec. 10-7. Permission required for keeping of certain animals.

(a) *[Permit.]* It shall be unlawful for any person to own, keep, have, or maintain any equine animals, cloven-hoofed animals or other livestock or any chickens, turkeys, ducks, guineas, geese, pheasants, pigeons or other domestic fowl in the city, except by special permission of the town council by receiving a permit to do so or to continue to have any of such animals or fowl after a permit has been denied.

This section shall not apply to, and no permit shall be required for, any agricultural operation within the city limits, which pertains to nuisance liability of agricultural operation,

or to any rabbit that is kept exclusively inside its owner's residence. The permit shall be valid for one year from the date of issuance and shall be renewed annually. The one-time fee for such permit shall be \$40.00 per household. The application shall list all such animals and fowl on the premises. Before a permit is issued an employee of the Town of China Grove shall inspect the premises to determine if the keeping of the animals or fowl on the premises will endanger or is likely to endanger the health, safety, peace, quiet, comfort, enjoyment of or otherwise become a public nuisance to nearby residents or occupants or places of business.

(b) *Denial.* When a permit is denied for any reason, the applicant shall be given a written explanation of the reason for denial.

(c) *Compliance required prior to issuance.* An owner or possessor of such animals or fowl shall comply with the following applicable subsections before a permit is issued. Compliance with the following applicable subsections will create a rebuttable presumption that a permit shall be issued. That presumption may only be rebutted by specific findings supported by competent evidence that, despite compliance with the following, the presence of such animals or fowl is still likely to endanger the health, safety, peace, quiet, comfort, enjoyment of or otherwise become a public nuisance to nearby residents or occupants or places of business:

- (1) *Fowl and other specifically identified animals.* The keeping of chickens, turkeys, ducks, guineas, geese, pheasants or other domestic fowl or rabbits shall be in compliance with the following:
 - a. Such animals must be confined in a coop, fowl house or rabbit hutch not less than 18 inches in height. The fowl must be kept within the coop or fowl house and the rabbits in the hutch at all times.
 - b. The coop or fowl house must be used for fowl only and the hutch for rabbits only, and both must be well ventilated.
 - c. The coop, fowl house or hutch shall have a minimum of four square feet of floor area for each fowl or rabbit.
 - d. The run must be well drained so there is no accumulation of moisture.
 - e. The coop, fowl house or hutch shall be kept clean, sanitary and free from accumulation of animal excrement and objectionable odors. It shall be cleaned daily, and all droppings and body excretion shall be placed in a fly proof container and double-bagged in plastic bags.
 - f. The coop, fowl house or hutch shall be a minimum of 25 feet from any property line.
 - g. No more than four such fowl or rabbits shall be kept or maintained per quarter acre.
 - h. The area required for the keeping of fowl shall be at least a quarter acre.
 - i. Male chickens (roosters) are not permitted.
- (2) *Pigeons.* Pigeons, while allowed to fly to and from the premises, must be provided with adequate space on the premises, and sanitary conditions must be maintained.

(d) *Revocation.* The bureau may revoke any permit:

- (1) When the permit has been mistakenly issued without compliance with this section;
- (2) When the applicant has submitted false information;
- (3) For a violation of any of the sections of this chapter;
- (4) When, in the opinion of the town manager, the health, safety or welfare of any person or property is menaced by the keeping of such animals; or
- (5) When the animals become a nuisance. If a permit is revoked, the applicant shall be given a written explanation of the reasons for the revocation. Upon the determination of a violation of this section, and if the violation pertains to a correctable condition on the property, the owner shall have 30 days in which to bring the property or condition into compliance with this chapter.

(Code 1977, § 8-2001; Code 1993, § 6-7; Ord. of 8-7-2012)

Sec. 10-8. Keeping or grazing livestock near residential structure.

It shall be unlawful for any person to graze or stall any cattle or livestock within the corporate limits of the town and within a distance of 200 feet of any residential structure other than that of the owner of the cattle or livestock.

(Code 1977, § 8-2007; Code 1993, § 6-8)

Sec. 10-9. Rabies vaccination required for dogs and cats.

(a) It shall be the duty of the owner or keeper of each and every dog or cat over four months of age to have the dog or cat vaccinated against rabies pursuant to the laws of the state.

(b) Dogs and cats shall wear a current rabies tag at all times.

(Code 1993, § 6-9; Ord. of 6-4-1991(2), § II)

State law reference—Time of rabies vaccination, 10A N.C. Admin. Code 41G.0101.

Sec. 10-10. Report and confinement of animal suspected of having rabies.

The owner of or a person who has in his possession or under his control an animal having rabies or reasonably suspected of having rabies shall immediately report the animal's condition to the animal control officer and confine the animal, subject to rules and provisions of state law.

(Code 1993, § 6-10; Ord. of 6-4-1991(2), § III(F))

Sec. 10-11. Animal bites.

(a) *Dogs and cats.*

- (1) Any dog or cat which bites a person shall be reported, pursuant to G.S. 130A-196, to the county animal shelter immediately and quarantined for no less than ten days. It shall be the responsibility of the animal control officer to decide whether to quarantine the animal at the animal shelter, at the owner's home or, at the owner's expense and request, in a veterinary hospital. Before an owner is allowed to quarantine his animal at home, he must satisfy the animal control officer that the animal will be securely confined at home and that no threat to other animals or humans exists. If the animal is a dog or cat, the owner must show proof that the animal has been recently vaccinated against rabies. If the animal control officer decides that the animal should be quarantined at the shelter, the owner shall surrender the animal and bear the expense of such confinement.
- (2) After ten days, if the animal is determined to be free of rabies, the owner shall be notified by the animal control officer that, upon payment of fees, he may reclaim the animal. However, if the animal does show signs of rabies during the observation period, the animal shall be beheaded and the head of the animal shall be sent to the state laboratory of public health for examination.
- (3) Any stray dog or cat whose owner cannot be located shall be quarantined at the shelter and euthanized at the end of the observation period.

- (4) Any dog or cat which has been involved in a bite, or any animal under quarantine that dies during the observation, shall be immediately beheaded, and the head shall be promptly delivered to the state laboratory of public health for testing.

(b) *Other animals.* All wild carnivores involved in bites will be beheaded immediately and sent to the state laboratory of public health for testing. Other animals will be beheaded for testing at the discretion of the animal control officer, after consultation with the local health director.

(Code 1993, § 6-11; Ord. of 6-4-1991(2), § VI)

Sec. 10-12. Impoundment.

(a) *Animals subject to impoundment.* An animal within the following categories may be taken up by the animal control officer or other law enforcement officer and impounded at the county animal shelter:

- (1) Any animal observed at large.
- (2) Any stray or lost animal.
- (3) Any animal which is a public nuisance.
- (4) Any animal involved in an animal bite or other exposure.
- (5) A dog or cat over the age of four months which has not been vaccinated against rabies pursuant to this chapter.

(b) *Notification of owner.* Upon impoundment of an animal, the animal control officer shall notify the owner or keeper of the animal, if the owner or keeper can be readily identified, that the animal has been impounded, and of the procedures for reclaiming the animal.

(c) *Redemption by owner.* Impounded animals can be released to their owners or keepers upon compliance with all applicable laws and payment of all fees at any time following impoundment. Any owner reclaiming a dog or cat shall:

- (1) Furnish proof that the dog or cat is presently immunized against rabies; or
- (2) Have the dog or cat vaccinated by a county veterinarian against rabies within three days after release and provide a statement of proof of vaccination signed by the veterinarian administering the vaccine.

(d) *Retention period.* The following animals shall be retained by the animal control officer at the animal shelter for the periods listed:

- (1) All animals, except injured, sick or diseased animals and those pups or kittens not capable of nourishment, not reclaimed by the owner shall be kept a minimum of three days, unless otherwise provided in this section.
- (2) All pups and kittens not reclaimed by the owner shall be kept for a minimum of 24 hours, unless incapable of nourishment.

- (3) Any injured, sick or diseased animal whose owner cannot be located may, at the discretion of the animal control officer, be impounded at the animal shelter and held for a minimum of 12 hours.
- (4) Pups and kittens incapable of nourishment may be retained for a minimum of 12 hours.
- (5) Any animal held for the minimum time period may be placed for adoption in a suitable home or may be humanely euthanized, at the discretion of the animal control officer.

(e) *Adoption.* Any person adopting a dog, cat, puppy or kitten shall:

- (1) Furnish proof that the dog or cat is presently immunized against rabies.
- (2) Have the dog or cat vaccinated against rabies within three days after release and provide a statement of proof of vaccination containing the date of vaccination and signed by the county veterinarian administering the vaccine.
- (3) Have the animal spayed or neutered within 60 days after adoption. Spaying or neutering may be postponed for animals which are too young, upon presentation to the animal shelter of a statement to that effect signed by a licensed veterinarian, along with an appointment date indicating when the procedure is to be performed.
- (4) Furnish proof that spaying or neutering has been completed. All monies paid to the animal shelter for the adoption shall be refunded to the owner of the animal. However, no fees collected for rabies vaccination shall be refunded.
- (5) Return the animal to the animal shelter if the animal has not been spayed or neutered within the required time period. Ownership of the animal shall revert to the county, and all fees paid in connection with the adoption of the animal shall be forfeited.

(f) *Voluntary surrender of animal.* If an owner surrenders his animal voluntarily to the shelter and no other section of this chapter has been violated, the animal control officer may allow for the immediate adoption or euthanization of the animal.

(Code 1993, § 6-12; Ord. of 6-4-1991(2), § III(A)—(E))

Sec. 10-13. Animals at large.

(a) Any animal found at large, whether or not it is displaying its current valid rabies tag, will be subject to pickup and impoundment. An effort will be made by the animal warden to identify its owner. Any animal impounded for running at large shall be retained for no less than three days for redemption by its legal owner.

(b) Should any owner elect not to pay the charges assessed against the animal, it becomes the property of the county by forfeit, and the animal may then be offered for adoption to any person who, in the judgment of the warden, would be capable of caring for the animal in a proper and humane manner and who will pay the total fees which have accrued on its behalf.

(c) In addition to the remedies set forth herein, it shall be unlawful for any person to permit any dog owned or harbored by him to run at large within the town unless accompanied by and under the control of a responsible person at all times. Violation of this subsection shall be punished as a misdemeanor as provided in section 1-6.

(Code 1993, § 6-13; Ord. of 6-4-1991(2), § IV; Ord. of 1-3-1995(1))

State law reference—Municipal authority to seize and sell or destroy animals running at large in violation of an ordinance, G.S. 160A-186.

Sec. 10-14. Vicious animals.

(a) Any animal which has made an unprovoked attack on a human by biting or in any manner causing abrasions or cuts of the skin, or which has attacked any livestock or pets resulting in death or injury through physical contact, may, after investigation supported by evidence, be declared by the animal warden as vicious. It shall be unlawful for any owner or keeper to permit his animal to run at large after such animal has been declared vicious and the owner or keeper has been so notified in writing by the health department. It shall be unlawful for any owner or person to keep any vicious, fierce or dangerous animal within the town unless it is confined within a secure building or enclosure or unless it is securely muzzled and under restraint by a competent person who, by means of a leash, has such animal firmly under control at all times.

(b) No animal which has been declared vicious may be adopted from the animal shelter.
(Code 1993, § 6-14; Ord. of 6-4-1991(2), § V)

State law reference—City may regulate or prohibit possession and harboring of dangerous animals, G.S. 160A-187.

Sec. 10-15. Nuisance animals.

(a) An animal shall be deemed to be a public nuisance when it commits the following acts two or more times, commits any combination of two or more offenses, or otherwise is declared a public nuisance by a law enforcement officer or an appropriate public health official:

- (1) Chases, snaps at or attacks pedestrians, bicyclists, vehicles or domestic animals;
- (2) Turns over garbage pails;
- (3) Damages gardens, flowers, vegetables or other property; or
- (4) Otherwise is a menace or threat to public health or safety.

(b) It shall be unlawful for an owner or keeper to permit his animal to run at large if such animal is deemed to be a public nuisance, provided a law enforcement officer has determined, after investigation, that the report is supported by evidence and the health department has notified the owner or keeper in writing of his findings. In such cases, the owner must keep the animal that has been found to be a public nuisance on his property at all times, unless the animal is under physical restraint.

(Code 1993, § 6-15; Ord. of 6-4-1991(2), § VIII(A), (B))

Sec. 10-16. Right to hearing on declaration of viciousness or public nuisance.

(a) Any owner or keeper of an animal declared to be vicious under section 10-14 or a public nuisance under section 10-15 shall be notified by personal delivery, certified mail delivery or registered mail delivery of such declaration, and may then request a hearing before the health director if he desires to contest the declaration. Such hearing must be requested in writing, and the request must be received by the director within ten days after receipt of the notice of declaration of viciousness or public nuisance.

(b) There is hereby established a rebuttable presumption that the adult tax-listing property owner, or lessee of the premises, if rental property, at which the animal is kept, sheltered, harbored or taken care of is the owner or keeper of such animal for purposes of this chapter.

(Code 1993, § 6-16; Ord. of 6-4-1991(2), § XII)

Sec. 10-17. Authority to destroy certain animals.

Any public nuisance, vicious or feral animal without any recognizable identification may be destroyed after the animal control officer has been unsuccessful in his attempt to catch or trap the animal or tranquilize the animal within a closed area. Any feral dog or cat left at the animal shelter may be impounded or euthanized, at the discretion of the animal control officer.

(Code 1993, § 6-17; Ord. of 6-4-1991(2), § VIII(C))

Sec. 10-18. Injured, sick or diseased animals.

When the owner of an injured, sick or diseased animal can be located, it will be his responsibility to provide veterinary care for the animal. If the owner cannot be located, the injured, sick or diseased animal will be taken to the county animal shelter and held for 12 hours if it is not severely injured, sick, diseased or incapable of nourishment. After the 12 hours, the animal may be adopted with the agreement that the person adopting the animal will bear the cost of veterinary care. If the animal is severely injured, sick, diseased or totally incapable of nourishment, the animal may be euthanized in the field or at the shelter, at the discretion of the animal control officer.

(Code 1993, § 6-18; Ord. of 6-4-1991(2), § VII)

Sec. 10-19. Unwanted animals.

Animal control officers are not responsible for picking up animals that are unwanted by their owners. Owners wishing to surrender their animals will be responsible for bringing the animals to the county animal shelter.

(Code 1993, § 6-19; Ord. of 6-4-1991(2), § IX)

Sec. 10-20. Cruelty to animals; maintenance of animal pens.

(a) It shall be unlawful for any owner or keeper to willfully fail to provide animals with sufficient good and wholesome food and water and proper shelter and protection from the weather, with veterinary care when needed to prevent suffering, and with humane care and

treatment. It shall be unlawful for any person to beat, cruelly ill-treat, torment, overload, overwork or otherwise abuse animals, or cause or permit any dogfight, cockfight, bullfight or other combat between animals or between animals and humans.

(b) It shall be unlawful for any owner or keeper to restrain any animal with any collar, rope, chain or other device which causes a break in the skin of the animal or is so tight as to severely restrict swallowing or breathing.

(c) When an owner or keeper confines a dog or cat at his residence or elsewhere, whether by choice or by reason of provisions contained in this chapter, it shall be unlawful for him to allow the area in which the animal is held to become unsanitary through failure to practice effective cleaning procedures. Excrement shall be removed frequently to preclude the breeding and harborage of flies and vermin and disposed of in the county landfill or buried. The area shall be kept limed when necessary to minimize excessive odors.

(Code 1993, § 6-20; Ord. of 6-4-1991(2), § X)

Sec. 10-21. Unlawful removal of vaccination tag; interfering with dog belonging to another.

It shall be a misdemeanor for any person, other than the owner or lawful possessor, to remove the collar or rabies vaccination tag from the neck of the dog, or to entice any dog out of the enclosure or house on the premises of its owner or lawful possessor, or to seize or molest any dog while held or led by its owner or lawful possessor.

(Code 1977, § 8-2005(b); Code 1993, § 6-21)

Sec. 10-22. Animals at town-sponsored events.

(a) *Prohibited.* Except as provided by this section, it shall be unlawful for any person to possess any animal within the boundaries of any town-sponsored public event, unless such event is specifically designated as exempt from this section due to the event's nature by the town manager or his designee. Furthermore, except as provided by this section, it shall be unlawful for any person to actively encourage or facilitate the entry or continued presence of any animal within boundaries of any town-sponsored public event.

(b) *Failure to remove animal.* It shall be unlawful for any person with an animal within the boundaries of town-sponsored public events to fail to obey the command of a law enforcement officer, animal control officer or town employee to remove such animal from the event.

(c) *Exception.* The provisions of this section are not applicable to assistance animals, law enforcement agency animals, and those animals that are part of an authorized event exhibit.

(d) *Definitions.* The following words, terms, and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Animal means, as distinguished from human beings, one of the lower vertebrate animals. The term "animal" includes, but is not limited to, dogs, cats, birds, reptiles, and fish.

Assistance animal means an animal that is trained and may be used to assist a handicapped person, as defined in G.S. 168-1. The term "assistance animal" is not limited to a dog and includes any animal trained to assist a handicapped person, as provided in G.S. 168-1.

Law enforcement agency animal means an animal that is trained and may be used to assist a law enforcement officer in the performance of the officer's official duties.

(e) *Boundaries of town-sponsored events.* The boundaries and the interior of a town-sponsored public event shall consist of any area that is part of the event and shall include any public street, sidewalk or other publicly owned area within that area.

(f) *Applicability.* The prohibition of animals from public areas of the town that are actively utilized for a town-sponsored public event is only effective during the times when the even is scheduled to be in actual operation.

(g) *Notices.* The town manager shall cause notices of the prohibition of animals from public areas of the town that are actively utilized for a town-sponsored public event to be prominently posted at the location of the street closures.

(Code 1993, § 6-22; Ord. of 10-5-2004, pt. 1(6-22); Ord. No. 2017-14, 10-3-2017)

Editor's note—Ord. No. 2017-14, adopted Oct. 3, 2017, changed the title of § 10-22 from "Animals prohibited at the town's annual Farmer's Day" to read as herein set out.

Sec. 10-23. Urban archery deer hunting.

Hunting for deer is authorized in the town limits of China Grove in accordance with the provisions of the Extended Urban Archery Deer Season Act as follows:

- (1) Hunters shall follow all state and local laws, rules and ordinances when hunting deer within the town limits.
- (2) Hunters must have in their possession a valid North Carolina Hunting Licenses showing completion of a hunting safety course.
- (3) Hunters are prohibited from using firearms to hunt. Only archery is permitted.
- (4) Only hunting on private property is allowed. Hunters must have written permission in their possession dated within one year from landowners to hunt on their property or must own the property themselves.
- (5) No hunting is allowed on town property or on, from or across the right-of-way of any road.
- (6) Hunters must hunt from an elevated platform of at least ten feet above ground.
- (7) Hunting is only allowed on a tract or parcel of land which is greater than one acre.
- (8) A violation of any of the provisions of this section shall subject the offender to any of the penalties contained in section 1-6 of the general provision of the Town of China Grove Code of Ordinances.

(Ord. of 1-3-2012(1))

Sec. 10-24. Animal waste.

It shall be unlawful for an owner or possessor of a dog or cat to fail to remove feces deposited on any public street, sidewalk, gutter, park or other publicly-owned property or private property unless the owner of the property has given permission allowing such use of the property.

(Ord. of 8-2-2016(2016-07))

Chapters 11—13

RESERVED

Chapter 14

BUILDINGS AND BUILDING REGULATIONS*

Article I. In General

Sec. 14-1. County inspections department to enforce and administer building codes.
Secs. 14-2—14-20. Reserved.

Article II. Minimum Housing Standards

Sec. 14-21. Findings; purpose of article; statutory authority.
Sec. 14-22. Definitions.
Sec. 14-23. Compliance with article.
Sec. 14-24. Conflicting provisions.
Sec. 14-25. Violation of article; penalty.
Sec. 14-26. Housing inspector.
Sec. 14-27. Appeals board.
Sec. 14-28. Inspections; right of entry.
Sec. 14-29. Enforcement and appeal procedure.
Sec. 14-30. Service of complaints and orders.
Sec. 14-31. Repair or demolition of dwelling on failure to comply with order—Authority; placarding of dwelling.
Sec. 14-32. Same—Lien for payment of costs.
Sec. 14-33. Alternate remedies.
Sec. 14-34. Structural condition of dwellings.
Sec. 14-35. Plumbing, heating and electrical equipment and facilities.
Sec. 14-36. Windows and ventilation.
Sec. 14-37. Size and use of rooms.
Sec. 14-38. General maintenance standards.
Sec. 14-39. Control of insects, rodents and other infestations; garbage and rubbish disposal.
Sec. 14-40. Roominghouses.
Sec. 14-41. Responsibilities of owner and occupants.
Secs. 14-42—14-80. Reserved.

Article III. Nonresidential Building Maintenance Standards

Division 1. Generally

Sec. 14-81. Purpose.
Sec. 14-82. Findings; authority.

***Federal law reference**—Compliance of federal buildings with local building codes and zoning laws, consideration of local laws and cooperation with local officials required, 40 USC 3312.

State law references—Municipal authority to regulate construction of buildings, G.S. 160A-412; state building code, G.S. 143-138; effect upon local codes, G.S. 143-138(e); adoption of published technical code by reference, G.S. 160A-76(b); electrical wiring of houses, buildings, and structures, G.S. 143-143.2.

CHINA GROVE CODE OF ORDINANCES

- Sec. 14-83. Scope; jurisdiction.
- Sec. 14-84. General definitions and interpretations.
- Sec. 14-85. Special definitions and interpretations.
- Sec. 14-86. Duties and responsibilities of the owner.
- Sec. 14-87. Duties and responsibilities of the occupant.
- Sec. 14-88. Relationship of duties and responsibilities to occupancy.
- Sec. 14-89. Conflict with other provisions.
- Sec. 14-90. Amendments.
- Secs. 14-91—14-120. Reserved.

Division 2. Standards for Nonresidential Buildings and Premises Fitness

- Sec. 14-121. Unsafe buildings and structures; conditions and standards.
- Sec. 14-122. Buildings and premises not declared unsafe but which are not in compliance with all standards.
- Secs. 14-123—14-150. Reserved.

Division 3. Procedures for Enforcement

- Sec. 14-151. Unsafe buildings shall be condemned by the inspector.
- Sec. 14-152. Removal of condemnation notice unlawful.
- Sec. 14-153. Complaint and notice of hearing.
- Sec. 14-154. Order to take corrective action; contents; issuance.
- Sec. 14-155. Service of written notice or order of inspector.
- Sec. 14-156. Appeal of order of inspector; finality if not appealed.
- Sec. 14-157. Failure to comply with order of inspector.
- Sec. 14-158. Remedies; lien for cost of demolition and removal.
- Sec. 14-159. Failure of occupant to comply with order to vacate.
- Sec. 14-160. Demolition of nonresidential buildings by owner.
- Secs. 14-161—14-180. Reserved.

Division 4. Administration

- Sec. 14-181. Office of nonresidential building maintenance standards inspector created; powers and duties.
- Sec. 14-182. Inspections.
- Sec. 14-183. Defects in buildings to be corrected.
- Sec. 14-184. Violations.
- Sec. 14-185. Penalties for violations; alternative remedies.

ARTICLE I. IN GENERAL**Sec. 14-1. County inspections department to enforce and administer building codes.**

The town hereby enters into an agreement with the county board of commissioners providing that the county inspections department enforce and administer the state building code within the corporate limits of the town and further that such agreement shall remain in effect unless and until either party to such agreement, with 90 days' written notice, terminates such agreement.

(Code 1993, § 8-1; Res. of 11-16-1977)

Secs. 14-2—14-20. Reserved.**ARTICLE II. MINIMUM HOUSING STANDARDS*****Sec. 14-21. Findings; purpose of article; statutory authority.**

(a) Pursuant to G.S. 160A-411, it is hereby declared that there exist in the town and in its extraterritorial planning jurisdiction dwellings which are unfit for human habitation due to dilapidation, defects increasing the hazards of fire, accidents and other calamities, lack of ventilation, light and sanitary facilities, and other conditions rendering such dwellings unsafe or unsanitary, dangerous and detrimental to the health, safety and morals and otherwise inimical to the welfare of the residents of the town.

(b) In order to protect the health, safety and welfare of the residents of the town and its extraterritorial planning jurisdiction, as authorized by G.S. 160A-360 et seq., it is the purpose of this article to establish minimum standards of fitness for the initial and continued occupancy of all buildings used for human habitation, as expressly authorized by G.S. 160A-444.

(Code 1993, § 8-36; Ord. of 1-7-1986, § I)

Sec. 14-22. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning, and whenever the words "dwelling," "dwelling unit," "roominghouse," "rooming unit" or "premises" are used in this article, they shall be construed as though they were followed by the words "or any part thereof":

Basement means a portion of a dwelling which is located partly underground, having direct access to light and air from windows located above the level of the adjoining ground.

***State law reference**—Municipal authority to adopt minimum housing standards, G.S. 160A-444.

Cellar means a portion of a dwelling which is located partly or wholly underground, having inadequate access to light and air from windows located partly or wholly below the adjoining ground.

Deteriorated means a dwelling unfit for human habitation that can be repaired, altered or improved to comply with all of the minimum standards established by this article at a cost not in excess of 50 percent of its value, as determined by findings of the housing inspector.

Dilapidated means a dwelling unfit for human habitation that cannot be improved, repaired or altered to comply with all of the minimum standards established by this article except at a cost in excess of 50 percent of its value, as determined by the housing inspector.

Dwelling means any building or structure or part thereof which is wholly or partly used or intended to be used for living, sleeping or habitation by human occupants, and includes any outhouses and appurtenances belonging thereto or usually enjoyed therewith. Temporary housing shall not be regarded as a dwelling. The term shall include within its meaning the terms "roominghouse" and "rooming unit."

Dwelling unit means any room or group of rooms located within a dwelling and forming a single habitable unit with facilities which are used or intended to be used for living, sleeping, cooking and eating.

Extermination means the control and elimination of insects, rodents or other pests by removing or making inaccessible materials that may serve as their food, by poisoning, spraying, fumigating or trapping, or by any other recognized and legal pest elimination methods approved by the housing inspector.

Garbage means the waste resulting from the handling, preparation, cooking and consumption of food.

Habitable room means a room or enclosed floorspace used or intended to be used for living, sleeping, cooking or eating purposes, excluding bathrooms, water closet compartments, laundries, heater rooms, foyers or communicating corridors, closets and storage spaces.

Infestation means the presence, within or around a dwelling, of any insects, rodents or other pests in such number as to constitute a menace to the health, safety or welfare of the occupants or the public.

Multiple dwelling means any dwelling containing more than two dwelling units.

Occupant means any person over one year of age living, sleeping, cooking or eating in or having actual possession of a dwelling, dwelling unit or rooming unit.

Operator means any person who has charge, care or control of a building, or part thereof, in which dwelling units or rooming units are let.

Owner means any person who, alone, jointly or severally with others:

- (1) Has title to any dwelling, dwelling unit or rooming unit, with or without accompanying actual possession thereof;

- (2) Is a mortgagee of record for any dwelling, dwelling unit or rooming unit; or
- (3) Has charge, care or control of any dwelling, dwelling unit or rooming unit as owner or agent of the actual owner, or as executor, administrator, trustee, or guardian of the estate of the actual owner. Any such person thus representing the actual owner shall be bound to comply with the provisions of this article and of the rules and regulations adopted pursuant thereto, to the same extent as if he were the owner.

Parties in interest means all persons who have interests of record in a dwelling, dwelling unit or rooming unit, and any persons who are in possession thereof.

Plumbing means all of the following supplied facilities and equipment: gas pipes, gas burning equipment, water pipes, mechanical garbage disposal units (mechanical sink grinders), sewage disposal pipes, water closets, sinks, installed dishwashers, lavatories, bathtubs, showerbaths, installed clothes washing machines, catchbasins, drains, vents and any other similar supplied fixtures, together with all connections to water, sewer or gas lines.

Public authority means any officer who is in charge of any department or branch of the government of the town or the state relating to health, fire or building regulations or other activities concerning dwellings in the town.

Rooming unit means any room or group of rooms forming a single habitable unit used or intended to be used for living and sleeping but not for cooking or eating purposes.

Roominghouse means any dwelling, or that part of any dwelling containing one or more rooming units, in which space is let by the owner or operator to three or more persons who are not husband or wife, son or daughter, mother or father, or sister or brother of the owner or operator.

Rubbish means nonfood waste materials. The term shall include items such as paper, rags, cartons, boxes, wood, excelsior, rubber, leather, tree branches, yard trimmings, tin cans, metals, mineral matter, glass and dust.

Supplied means paid for, furnished or provided by, or under the control of, the owner or operator.

Temporary housing means any tent, trailer or other structure used for human shelter which is designed to be transportable and which is not attached to the ground, to another structure or to any utilities system on the same premises for more than 30 consecutive days.

Unfit for human habitation means that conditions exist in a dwelling, dwelling unit, roominghouse or rooming unit which violate or do not comply with one or more of the minimum standards of fitness or one or more of the requirements established by this article.

(Code 1993, § 8-37; Ord. of 1-7-1986, § II)

Sec. 14-23. Compliance with article.

(a) Every dwelling and dwelling unit used as a human habitation or held out for use as a human habitation shall comply with all of the minimum standards of fitness for human habitation and all of the requirements of this article.

(b) No person shall occupy as owner-occupant or let to another for occupancy or use as a human habitation any dwelling or dwelling unit which does not comply with all of the minimum standards of fitness for human habitation and all of the requirements of this article. (Code 1993, § 8-38; Ord. of 1-7-1986, § III)

Sec. 14-24. Conflicting provisions.

If any provision, standard or requirement of this article is found to be in conflict with any provision of any other ordinance or code of the town, the provision which establishes the higher standard or more stringent requirement for the promotion and protection of the health and safety of the residents of the town shall prevail. (Code 1993, § 8-39; Ord. of 1-7-1986, § XX)

Sec. 14-25. Violation of article; penalty.

(a) It shall be unlawful for the owner of any dwelling or dwelling unit to fail, neglect or refuse to repair, alter or improve the dwelling or dwelling unit, or to vacate and close and remove or demolish and remove the dwelling or dwelling unit, upon order of the housing inspector duly made and served as provided in this article within the time specified in such order. Each day that any such order continues shall constitute a separate and distinct offense.

(b) It shall be unlawful for the owner of any dwelling or dwelling unit with respect to which an order has been issued pursuant to section 14-29 to occupy or permit the occupancy of the dwelling or dwelling unit after the time prescribed in such order for its repair, alteration or improvement or its vacation and closing. Each day that such occupancy continues after such prescribed time shall constitute a separate and distinct offense.

(c) The violation of any provision of this article shall constitute a misdemeanor as provided by G.S. 14-4.

(d) In addition to the penalty established by subsection (c) of this section and the remedies provided by other provisions of this article, this article may be enforced by an appropriate equitable remedy issued by a court of competent jurisdiction. (Code 1993, § 8-40; Ord. of 1-7-1986, § XXI)

Sec. 14-26. Housing inspector.

The code enforcement officer is hereby designated as the housing inspector, the officer authorized to enforce the provisions of this article and to exercise the duties and powers prescribed in this article. The housing inspector shall have the following powers and duties:

- (1) To investigate the condition of and to inspect dwellings and dwelling units located in the town in order to determine which dwellings and dwelling units are unfit for human habitation, and for the purpose of carrying out the objectives of this article with respect to such dwellings and dwelling units;

- (2) To take such action, together with other appropriate departments and agencies, public and private, as may be necessary to effect rehabilitation of housing which is deteriorated;
 - (3) To keep a record of the results of inspections made under this article and an inventory of those dwellings that do not meet the minimum standards of fitness prescribed in this article;
 - (4) To administer oaths and affirmations, examine witnesses and receive evidence;
 - (5) To enter upon premises for the purpose of making examinations and inspections; provided such entries shall be made in accordance with section 14-28 and state law and shall be made in such manner as to cause the least possible inconvenience to the persons in possession;
 - (6) To appoint and fix the duties of such officers, agents and employees as he deems necessary to assist in carrying out the purposes of this article, and to delegate duties to any of his employees; and
 - (7) To perform such other duties as may be prescribed in this article or by the town council.
- (Code 1993, § 8-41; Ord. of 1-7-1986, § XII; Ord. of 5-5-2015)

Sec. 14-27. Appeals board.

(a) All appeals which may be taken from decisions or orders of the housing inspector pursuant to section 14-29(d) shall be heard and determined by the zoning board of adjustment. As the appeals body, the board shall have the power to fix the times and places of its meetings, and to adopt necessary rules of procedure and any other rules and regulations which may be necessary for the proper discharge of its duties. The board shall perform the duties prescribed by section 14-29(d) and shall keep an accurate record of all its proceedings.

(b) The board shall consist of five members, to serve for three-year staggered terms, who shall be appointed by the town council. Any member who fails to attend at least 75 percent of the regular and special meetings and hearings held by the board during any one-year period shall be automatically removed from the board. Vacancies resulting from a member's failure to attend the required number of meetings and hearings shall be filled by the same method as provided for appointments.

(Code 1993, § 8-42; Ord. of 1-7-1986, § XVIX)

Sec. 14-28. Inspections; right of entry.

(a) For the purpose of making inspections, and upon probable cause that minimum housing violations exist, the housing inspector is hereby authorized to enter, examine and survey at all reasonable times all dwellings, dwelling units, roominghouses or rooming units, and the premises associated therewith. The owner or occupant of every dwelling, dwelling unit, roominghouse or rooming unit, or the person in charge thereof, shall give the inspector free access to such dwelling, dwelling unit, roominghouse or rooming unit and its premises at all reasonable times for the purpose of such inspection, examination and survey.

(b) Every occupant of a dwelling, dwelling unit, roominghouse or rooming unit shall give the owner thereof, or his agent or employee, access to any part of such dwelling or dwelling unit and its premises at all reasonable times for the purpose of making such repairs or alterations as are necessary to effect compliance with the provisions of this article or with any lawful order issued pursuant to the provisions of this article.

(Code 1993, § 8-43; Ord. of 1-7-1986, § XIII)

Sec. 14-29. Enforcement and appeal procedure.

(a) *Preliminary investigation; notice of hearing; hearing.* Whenever a petition is filed with the housing inspector by a public authority or by at least five residents of the town at least 18 years of age, charging that any dwelling or dwelling unit is unfit for human habitation, or whenever it appears to the inspector, upon inspection, that any dwelling or dwelling unit is unfit for human habitation, he shall, if his preliminary investigation discloses a basis for such charges, issue and cause to be served upon the owner of and parties in interest in such dwelling or dwelling unit a complaint stating the charges and containing a notice that a hearing will be held before the inspector at a place therein fixed, not less than ten and not more than 30 days after the serving of the complaint. The owner or any party in interest shall have the right to correct the violation or to file an answer to the complaint and to appear in person or send a representative and give testimony at the place and time fixed in the complaint. Notice of such hearing shall be given to at least one of the persons signing a petition relating to such dwelling. Any person desiring to do so may attend such hearing and give evidence relevant to the matter being heard. The rules of evidence prevailing in courts of law or equity shall not be controlling in hearings before the inspector.

(b) *Determination and order of housing inspector.*

- (1) After such notice and hearing, the inspector shall state in writing his determination as to whether the dwelling or dwelling unit is unfit for human habitation and, if so, whether it is deteriorated or dilapidated.
- (2) If the inspector determines that the dwelling or dwelling unit is deteriorated, he shall state in writing his findings of fact in support of such determination, and shall issue and cause to be served upon the owner thereof an order directing and requiring the owner to repair, alter or improve such dwelling or dwelling unit to comply with the minimum standards of fitness established by this article within 90 days. Such order may also direct and require the owner to vacate and close such dwelling or dwelling unit until such repairs, alterations and improvements have been made.
- (3) If the inspector determines that the dwelling is dilapidated, he shall state in writing his findings of fact to support such determination, and shall issue and cause to be served upon the owner thereof an order directing and requiring the owner either to repair, alter or improve such dwelling or dwelling unit to comply with the minimum standards of fitness established by this article or else to vacate and demolish and remove the dwelling or dwelling unit within 90 days. Such order may also direct and require the owner to vacate and close such dwelling or dwelling unit within 30 days.

(c) *Action on failure to comply with order.*

- (1) *In personam remedy.* If the owner of any deteriorated dwelling or dwelling unit shall fail to comply with an order of the inspector to repair, alter or improve or to vacate and close the dwelling or dwelling unit within the time specified therein, or if the owner of a dilapidated dwelling or dwelling unit shall fail to comply with an order of the inspector to repair, alter or improve or to vacate and close and remove or demolish and remove the dwelling or dwelling unit within the time specified therein, the inspector may submit to the town council, at its regular meeting, a resolution directing the town attorney to petition the superior court for an order directing such owner to comply with the order of the inspector, as authorized by G.S. 160A-446(g).
- (2) *In rem remedy.* After failure of an owner of a deteriorated or dilapidated dwelling or dwelling unit to comply with an order of the inspector within the time specified therein, if injunctive relief has not been sought or has not been granted as provided in subsection (c)(1) of this section, the inspector shall submit to the town council an ordinance ordering the inspector to cause such dwelling or dwelling unit to be repaired, altered, improved, vacated, closed, removed or demolished and removed, as provided in the original order of the inspector, and pending removal or demolition and removal to place a placard on such dwelling as provided by G.S. 160A-443 and this section.

(d) *Appeals from orders of inspector.*

- (1) An appeal from any decision or order of the inspector may be taken by any person aggrieved thereby. Any appeal from a decision or order of the inspector shall be taken within ten days from the rendering of the decision or service of the order, and shall be taken by filing with the inspector and with the zoning board of adjustment a notice of appeal, which shall specify the grounds upon which the appeal is based. Upon the filing of any notice of appeal, the inspector shall forthwith transmit to the board all the papers constituting the record upon which the decision appealed from was made. When the appeal is from a decision of the inspector refusing to allow the person aggrieved thereby to do any act, his decision shall remain in force until modified or reversed. When an appeal is from a decision of the inspector requiring the person aggrieved to do any act, the appeal shall have the effect of suspending the requirement until the hearing by the board, unless the inspector certifies to the board, after the notice of appeal is filed with him, that by reason of the facts stated in the certificate, a copy of which shall be furnished the person who is appealing, a suspension of his requirement would cause imminent peril to life or property, in which case the requirement shall not be suspended, except for due cause shown upon not less than one day's written notice to the inspector, by the board or by a court of record upon petition made pursuant to G.S. 160A-446(f) and subsection (e) of this section.
- (2) The zoning board of adjustment shall fix a reasonable time for the hearing of all appeals, shall give due notice to all the parties, and shall render its decision within a reasonable time. Any party may appear in person or by agent or attorney. The board may reverse or affirm, wholly or partly, or may modify the decision or order appealed

from, and may make such decision and order as in its opinion ought to be made in the matter, and to that end it shall have all the powers of the inspector, but the concurring vote of four members of the board shall be necessary to reverse or modify any decision or order of the inspector. The board shall have power also, in passing upon appeals, in cases where there are practical difficulties or unnecessary hardships in a way of carrying out the strict letter of this article, to adapt the application of this article to the necessities of the case, to the end that the spirit of this article shall be observed, public safety and welfare secured and substantial justice done.

- (3) Every decision of the board shall be subject to review by proceedings in the nature of certiorari instituted within 15 days of the decision of the board, but not otherwise.

(e) *Petition to superior court.* Any person aggrieved by an order issued by the inspector or a decision rendered by the zoning board of adjustment shall have the right, within 30 days after issuance of the order or rendering of the decision, to petition the superior court for a temporary injunction restraining the inspector pending a final disposition of the cause, as provided by G.S. 140A-446(f).

(Code 1993, § 8-44; Ord. of 1-7-1986, § XIV)

Sec. 14-30. Service of complaints and orders.

Complaints or orders issued by the housing inspector under this article shall be served upon persons either personally or by registered or certified mail. If the whereabouts of such persons are unknown and their whereabouts cannot be ascertained by the inspector in the exercise of reasonable diligence, the inspector shall make an affidavit to that effect, and the serving of such complaint or order upon such person may be made by publishing the complaint or order once each week for two successive weeks in a newspaper having general circulation in the town. Where service is made by publication, a notice of the pending proceedings shall be posted in a conspicuous place on the premises affected by the complaint or order.

(Code 1993, § 8-45; Ord. of 1-7-1986, § XV)

Sec. 14-31. Repair or demolition of dwelling on failure to comply with order— Authority; placarding of dwelling.

(a) After failure of an owner of a dwelling or dwelling unit to comply with an order of the housing inspector issued pursuant to the provisions of this article, and upon adoption by the town council of an ordinance authorizing and directing him to do so as provided by G.S. 160A-443(5) and section 14-29(c), the inspector shall proceed to cause such dwelling or dwelling unit to be repaired, altered or improved to comply with the minimum standards of fitness established by this article, or to be vacated and closed and removed or demolished and removed as directed by the ordinance of the town council. The inspector shall, immediately upon adoption of such ordinance, cause to be posted on the main entrance of such dwelling or dwelling unit a placard with the following words: "Use of this building for human habitation is prohibited and unlawful." Occupation of a building so posted shall constitute a misdemeanor.

(b) Each ordinance shall be recorded in the office of the register of deeds of the county, and shall be indexed in the name of the property owner in the grantor index, as provided by G.S. 160A-443(5).

(Code 1993, § 8-46; Ord. of 1-7-1986, § XVI)

Sec. 14-32. Same—Lien for payment of costs.

As provided by G.S. 160A-446(6), the cost of any repairs, alterations or improvements, or of vacating and closing, or removal or demolition and removal, caused to be made or done by the housing inspector pursuant to section 14-31 shall be a lien against the real property upon which such cost was incurred. Such lien shall be filed, have priority and be collected in the same manner as the lien for special assessments established by G.S. 160A-216 et seq.

(Code 1993, § 8-47; Ord. of 1-7-1986, § XVII)

Sec. 14-33. Alternate remedies.

Neither this article nor any of its provisions shall be construed to impair or limit in any way the power of the town to define and declare nuisances and to cause this article to be enforced by criminal process as authorized by G.S. 14-4 and section 14-25, and enforcement by means of any remedy provided in this article shall not prevent enforcement by means of any other remedy provided in this article or in other ordinances or laws.

(Code 1993, § 8-48; Ord. of 1-7-1986, § XVIII)

Sec. 14-34. Structural condition of dwellings.

The following standards shall constitute the minimum standards for structural condition of a dwelling or dwelling unit:

- (1) Walls or partitions or supporting members, sills, joists, rafters or other structural members shall not list, lean or buckle, shall not be rotten, deteriorated or damaged, and shall not have holes or cracks which might admit rodents.
- (2) Floors or roofs shall have adequate supporting members and strength to be reasonably safe for the purpose used.
- (3) Foundations, foundation walls, piers or other foundation supports shall not be deteriorated or damaged.
- (4) Steps, stairs, landings, porches or other parts or appurtenances shall be maintained in such condition that they will not fall or collapse.
- (5) Adequate facilities for egress in case of fire or panic shall be provided.
- (6) Interior walls and ceilings of all rooms, closets and hallways shall be finished with suitable materials which will, by use of reasonable household methods, promote sanitation and cleanliness, and shall be maintained in such a manner so as to enable the occupants to maintain reasonable privacy between various spaces.
- (7) The roof, flashings, exterior walls, floors and all doors and windows exposed to the weather shall be constructed and maintained so as to be weathertight and watertight.

- (8) There shall be no chimneys or parts thereof which are defective, deteriorated or in danger of falling, or in such condition or location as to constitute a fire hazard.
 - (9) There shall be no use of the ground for floors, or wood floors on the ground.
- (Code 1993, § 8-49; Ord. of 1-7-1986, § IV)

Sec. 14-35. Plumbing, heating and electrical equipment and facilities.

(a) *Plumbing system.*

- (1) Each dwelling unit shall be connected to a potable water supply and to a public sewer or other approved sewage disposal system.
- (2) Each dwelling unit shall contain not less than a kitchen sink, lavatory, tub or shower, water closet, and adequate supply of both cold water and hot water. All water shall be supplied through an approved pipe distribution system connected to a potable water supply.
- (3) All existing plumbing fixtures shall meet the standards of the state plumbing code and shall be maintained in a state of good repair and in good working order.
- (4) All existing required plumbing fixtures shall be located within the dwelling unit and be accessible to the occupants of the dwelling unit. The water closet and tub or shower shall be located in a room affording privacy to the user.

(b) *Heating system.* Every dwelling and dwelling unit shall have facilities for providing heat in accordance with the following:

- (1) *Central and electric heating systems.* Every central or electric heating system shall be of sufficient capacity to heat all habitable rooms, bathrooms and water closet compartments in every dwelling unit to which it is connected with a minimum temperature of 60 degrees Fahrenheit measured at a point three feet above the floor during ordinary winter conditions.
- (2) *Other heating facilities.* Where a central or electric heating system is not provided, each dwelling and dwelling unit shall be provided with sufficient fireplaces, chimneys, flues, gas vents or other facilities to which heating appliances may be connected to heat all habitable rooms with a minimum temperature of 60 degrees Fahrenheit measured three feet above the floor during ordinary winter conditions.

(c) *Electrical system.*

- (1) Every dwelling and dwelling unit shall be wired for electric lights and convenience receptacles. Every habitable room shall contain at least two floor or wall type electric convenience receptacles, connected in such manner as determined by the state electrical code. There shall be installed in every bathroom, water closet room, laundry room and furnace room at least one supplied ceiling or wall type electric light fixture.
- (2) Every public hall and stairway in every multiple dwelling shall be adequately lighted by electric lights at all times when natural daylight is not sufficient.

- (3) All fixtures, receptacles, equipment and wiring shall be maintained in a state of good repair, safe, capable of being used, and installed in accordance with the state electrical code.

(Code 1993, § 8-50; Ord. of 1-7-1986, § V)

Sec. 14-36. Windows and ventilation.

(a) Every habitable room shall have at least one window or skylight facing directly to the outdoors, unless otherwise approved by the housing inspector.

(b) Every habitable room shall have at least one window or skylight which can easily be opened, or such other device, such as air conditioning, as will adequately ventilate the room.

(c) Every bathroom and water closet room shall comply with the light and ventilation requirements for habitable rooms, except that no window or skylight shall be required in adequately ventilated bathrooms and water closet rooms equipped with an approved ventilation system.

(Code 1993, § 8-51; Ord. of 1-7-1986, § VI)

Sec. 14-37. Size and use of rooms.

(a) *Room size.*

- (1) Every dwelling unit shall contain at least the minimum room size in each habitable room as required by the state residential building code.
- (2) Every dwelling unit shall contain at least 150 square feet of habitable floor area for the first occupant, at least 100 square feet of additional habitable area for each of the next three occupants, and at least 75 square feet of additional habitable floor area for each additional occupant. Under this requirement, a family of four persons would need 450 square feet of habitable floor area, or the equivalent of a 20-foot by 25-foot dwelling unit.
- (3) In every dwelling unit and in every rooming unit, every room occupied for sleeping purposes by one occupant shall contain at least 70 square feet of floor area, and every room occupied for sleeping purposes by more than one occupant shall contain at least 50 square feet of floor area for each occupant 12 years of age and older and at least 35 square feet of floor area for each occupant under 12 years of age.

(b) *Use of cellar for living purposes.* No cellar shall be used for living purposes.

(c) *Use of basement for living purposes.* No basement shall be used for living purposes unless the floor and walls are substantially watertight. Every habitable room shall have at least one window facing directly to the outdoors that can be easily opened. If other ventilation approved by the housing officer is provided, the window need not be openable.

(Code 1993, § 8-52; Ord. of 1-7-1986, § VII)

Sec. 14-38. General maintenance standards.

(a) *Exterior foundation, walls and roof.* Every foundation wall, exterior wall and exterior roof of a dwelling unit shall be substantially weathertight and rodentproof, shall be capable of affording privacy, shall be safe to use and shall be capable of supporting the load which normal use would cause to be placed thereon.

(b) *Interior floors, walls and ceilings.* Every floor, interior wall and ceiling shall be substantially rodentproof, shall be kept in good repair, and shall be safe to use and capable of supporting the load which normal use would cause to be placed thereon.

(c) *Windows and doors.* Every window, exterior door, basement or cellar door and hatchway shall be substantially weathertight, watertight and rodentproof and shall be kept in sound working condition and good repair.

(d) *Stairs, porches and appurtenances.* Every outside and inside stair or porch and any appurtenance thereto shall be safe to use and capable of supporting the load that normal use would cause to be placed thereon, and shall be kept in sound condition and good repair.

(e) *Bathroom floors.* Every bathroom floor surface and water closet compartment floor surface shall be constructed and maintained so that it will be reasonably impervious to water and will permit such floor to be easily kept in a clean and sanitary condition.

(f) *Supplied facilities.* Every supplied facility, piece of equipment or utility which is required under this article shall be so constructed or installed that it will function safely and effectively, and shall be maintained in satisfactory working condition.

(g) *Drainage.* Every yard shall be properly graded in order to obtain thorough drainage and to prevent the accumulation of stagnant water.

(h) *Egress.* Every dwelling unit shall be provided with adequate means of egress as required by the state residential building code.

(Code 1993, § 8-53; Ord. of 1-7-1986, § VIII)

Sec. 14-39. Control of insects, rodents and other infestations; garbage and rubbish disposal.

(a) *Screens.* In every dwelling unit, for protection against mosquitoes, flies and other insects, every door opening directly from the dwelling unit to outdoor space shall be equipped with screens and a self-closing device. If other ventilation approved by the housing inspector is used, doors need not be screened. Every window or other device with openings to outdoor space used or intended to be used for ventilation shall likewise be equipped with screens.

(b) *Rodent control.* Every basement or cellar window used or intended to be used for ventilation and every other opening to a basement which might provide an entry for rodents shall be equipped with screens or such other approved devices as will effectively prevent their entrance.

(c) *Responsibility for extermination.* Every occupant of a dwelling containing a single dwelling unit shall be responsible for the extermination of any insects, rodents or other pests therein or on the premises, and every occupant of a dwelling unit shall be responsible for such extermination whenever his dwelling unit is the only one infested. Whenever infestation is caused by failure of the owner to maintain a dwelling in a rodentproof or reasonably insectproof condition, extermination shall be the responsibility of the owner. Whenever infestation exists in two or more of the dwelling units in any dwelling or in the shared or public parts of any dwelling containing two or more dwelling units, extermination shall be the responsibility of the owner.

(d) *Rubbish storage and disposal.* Every dwelling and every dwelling unit shall be supplied with approved containers and covers for storage of rubbish. The owner, operator or agent in control of such dwelling or dwelling unit shall be responsible for the removal of rubbish.

(e) *Garbage storage and disposal.* Every dwelling and every dwelling unit shall be supplied with an approved outside garbage disposal facility, which may be an approved outside garbage can or an adequate mechanical garbage disposal unit (mechanical sink grinder), in each dwelling unit.

(Code 1993, § 8-54; Ord. of 1-7-1986, § IX)

Sec. 14-40. Roominghouses.

(a) *Applicability of article.* All the provisions of this article and all of the minimum standards and requirements of this article shall be applicable to roominghouses, and to every person who operates a roominghouse or who occupies or lets to another for occupancy any rooming unit in any roominghouse, except as otherwise provided in this section.

(b) *Water closet, hand lavatory and bath facilities.* At least one water closet, lavatory basin and bathtub or shower, properly connected to an approved water and sewer system and in good working condition, shall be supplied for each four rooms within a roominghouse wherever these facilities are shared. All such facilities shall be located within the residence building served and shall be directly accessible from a common hall or passageway and shall not be more than one story removed from any of the persons sharing such facilities. Every lavatory basin and bathtub or shower shall be supplied with hot and cold water at all times. Such required facilities shall not be located in a cellar.

(c) *Minimum floor area for sleeping purposes.* Every room occupied for sleeping purposes by one occupant shall contain at least 70 square feet of floor area, and every room occupied for sleeping purposes by more than one occupant shall contain at least 50 square feet of floor area for each occupant 12 years of age and over and at least 35 square feet of floor area for each occupant under 12 years of age.

(d) *Sanitary conditions required.* The operator of every roominghouse shall be responsible for the sanitary maintenance of all walls, floors and ceilings, and for the sanitary maintenance of every other part of the roominghouse. He shall be further responsible for the sanitary maintenance of the entire premises where the entire structure or building within which the roominghouse is contained is leased or occupied by the operator.

(e) *Location of sanitary facilities.* Every water closet, flush urinal, lavatory basin and bathtub or shower required by subsection (b) of this section shall be located within the roominghouse and within a room which affords privacy, is separate from the habitable rooms, is accessible from a common hall, and is accessible without going outside the roominghouse or through any other room therein.

(Code 1993, § 8-55; Ord. of 1-7-1986, § X)

Sec. 14-41. Responsibilities of owner and occupants.

(a) *Public areas.* Every owner of a dwelling containing two or more dwelling units shall be responsible for maintaining in a clean and sanitary condition the shared or public areas of the dwelling and premises thereof.

(b) *Cleanliness.* Every occupant of a dwelling or dwelling unit shall keep in a clean and sanitary condition that part of the dwelling, dwelling unit and premises thereof which he occupies and controls.

(c) *Disposal of rubbish and garbage.* Every occupant of a dwelling or dwelling unit shall dispose of all his rubbish and garbage in a clean and sanitary manner by placing it in the supplied storage facilities. In all cases, the owner shall be responsible for the availability of rubbish and storage facilities.

(d) *Plumbing fixtures.* Every occupant of a dwelling unit shall keep all supplied plumbing fixtures therein in a clean and sanitary condition and shall be responsible for the exercise of reasonable care in the proper use and operation of such fixtures.

(e) *Care of facilities, equipment and structure.* No occupant shall willfully destroy, deface or impair any of the facilities or equipment or any part of the structure of a dwelling or dwelling unit. Willful destruction of the premises by the occupant shall be deemed legal grounds for eviction.

(Code 1993, § 8-56; Ord. of 1-7-1986, § XI)

Secs. 14-42—14-80. Reserved.

ARTICLE III. NONRESIDENTIAL BUILDING MAINTENANCE STANDARDS

DIVISION 1. GENERALLY

Sec. 14-81. Purpose.

It is the purpose of the provisions of this article to provide a just, equitable and practicable method whereby nonresidential buildings and premises which, from any cause, endanger the life, limb, health, morals, property, safety or welfare of the general public or their occupants, diminish property values or detract excessively from the appropriate appearance of the area in

which they are located may be required to be repaired, closed, vacated or demolished. The provisions of this article are cumulative with and in addition to any other remedy provided by law including the current editions of standard codes adopted by the town.

(Ord. of 6-2-1998, pt. I(8-61))

Sec. 14-82. Findings; authority.

(a) Pursuant to G.S. 160A-174, it is hereby found and declared that there exist in the town nonresidential buildings and premises which are unsafe and especially dangerous to life because of liability to fire or because of bad conditions of walls, overloaded floors, defective construction, decay, unsafe wiring or heating systems, inadequate means of egress and other causes.

(b) In addition, it is hereby found and declared, that there exist in the town nonresidential buildings and premises which, although not meeting the classification of unsafe and especially dangerous to life, fail to fully comply with all the minimum standards for nonresidential buildings and premises fitness as established in this article and, therefore, have present one or more conditions which are inimical to the public health, safety and general welfare. Such conditions, if not corrected, can lead to deterioration and dilapidation of nonresidential buildings and premises which render them unsafe and especially dangerous to life.

(Ord. of 6-2-1998, pt. I(8-62))

Sec. 14-83. Scope; jurisdiction.

The provisions of this article shall apply to all existing nonresidential buildings and premises and to all nonresidential buildings and premises hereafter constructed within the town limits as now or hereafter established.

(Ord. of 6-2-1998, pt. I(8-63))

Sec. 14-84. General definitions and interpretations.

Unless specifically defined in section 14-85, words used in the nonresidential building maintenance standards shall have their respective customary dictionary definitions. For the purpose of these regulations certain words, terms or phrases used herein are interpreted and defined as follows:

- (1) Words used in the present tense shall include the future tense.
- (2) Words used in the singular shall include the plural and words used in the plural shall include the singular.
- (3) The words "shall" and "will" always indicate mandatory. The words "should" and "may" always indicate optional.
- (4) The word "lot" includes the words "plot" and/or "parcel."
- (5) The word "building" includes the word "structure."

- (6) The word "person" includes a "firm, association, organization, partnership, trust, company, corporation and/or individual."
 - (7) The word "use" includes the terms "arranged, designed, and/or intended" for a use, activity and/or purpose.
 - (8) The term "board of adjustment" shall always indicate the board of adjustment of the town as created and appointed by the town council.
 - (9) The term "town council" shall always indicate the town council of the Town of China Grove, North Carolina.
- (Ord. of 6-2-1998, pt. I(8-64))

Sec. 14-85. Special definitions and interpretations.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning, and such definitions shall apply in the interpretation and enforcement of this article:

Building means any covered structure intended for shelter, housing or enclosure of persons, animals, facilities, equipment or chattels; the term "building" shall be construed to include the term "structure"; furthermore, it shall be construed as if followed by the term "or part thereof."

Building, accessory, means a detached subordinate building located on a lot, parcel or tract whose use is incidental to that of the principal building. A building cannot be considered accessory unless it accompanies a principal building on the same lot, parcel or tract.

Building, principal, means a building in which the principal use of the lot, parcel or tract is conducted.

Building code means the North Carolina State Building Code.

Deterioration means the condition of a building, or part thereof, characterized by holes, breaks, rot, crumbling, rusting, peeling paint or other evidence of physical decay or loss of structural integrity.

Fire hazard (see also Nuisance) means any thing or act which increases, or may cause an increase of, the hazard, likelihood or menace of fire to a greater degree than reasonable for the conduct of the nonresidential use on the premises, or which may unreasonably obstruct, delay, or hinder, or may unreasonably become the cause of an obstruction, a delay, a hazard or an unreasonable hindrance to the prevention, suppression or extinguishment of fire.

Garbage means the animal and vegetable waste resulting from the handling, preparation, cooking and consumption of food.

Infestation means the haunting or overrunning by rats, snakes, birds, insects or other destructive vermin or animals that endanger the public health and safety.

Nonresidential building maintenance standards inspector means the person delegated as such by the town council (referred to in this article as "the inspector").

Nuisance means:

- (1) Any public nuisance known as common law or in equity jurisprudence, or as provided by the statutes of the state or the ordinances of the town;
- (2) Any condition including an attractive nuisance which may prove detrimental to human health or safety whether in a building, on the premises of a building, or part of a building or upon an occupied lot;
- (3) Physical conditions dangerous to human life or detrimental to health of persons in, on or near the premises where the condition exists;
- (4) Unsanitary conditions or conditions that are dangerous to public health, well-being or the general welfare; or
- (5) Fire hazards or other safety hazards.

Occupant means any person who has charge, care or control of a nonresidential building and/or premises or a part thereof, whether with or without the knowledge and consent of the owner, or any person, individually or jointly, entitled to possession regardless of whether the building and/or premises are actually occupied or not.

Owner means the holder of the title in fee simple and every mortgagee of record of a property.

Physical valuation means the estimated cost to replace a building in kind.

Plumbing means all of the following supplies, facilities and equipment: gas pipes, gas burning equipment, water pipes, water heaters, garbage disposal units, waste pipes, water closets, sinks, installed dishwashers, lavatories, bathtubs, shower baths, installed clotheswashing machines, catchbasins, vents and other similar fixtures, together with all connections to water, sewer or gas lines, and water pipes and lines utilized in conjunction with HVAC equipment.

Premises means a lot, plot or parcel of land, including the buildings or structures thereon, under control by the same owner or occupant, devoted to or zoned for nonresidential use.

Public sanitary sewer means any sanitary sewer owned, operated and maintained by the town and available for public use for the disposal of sewage.

Rubbish means combustible and noncombustible waste materials, except garbage and ashes, including, but not limited to, paper, rags, cartons, boxes, wood, excelsior, rubber, leather, tree branches, yard trimmings, tin cans, metals, mineral matter, glass crockery and dust.

Sewage means waste from a flush toilet, bathtub, sink, lavatory, dishwashing or laundry machine, or water-carried waste from any other fixture, equipment or machine.

Structurally sound means substantially free from flaw, defect, decay or deterioration to the extent that such structure or structural member is capable of adequately or safely accomplishing the purpose for which it was intended or designed.

Structure means anything constructed or erected which requires location on the ground. (Refer to the definition of "building" in this article.)

Supplied means paid for, furnished or provided by, or under control of, the owner or occupant.

(Ord. of 6-2-1998, pt. I(8-65))

Sec. 14-86. Duties and responsibilities of the owner.

It shall be the duty and responsibility of the owner to maintain all nonresidential buildings and premises in accordance with all standards for nonresidential buildings and premises fitness as stated in division 2 of this article.

(Ord. of 6-2-1998, pt. I(8-66))

Sec. 14-87. Duties and responsibilities of the occupant.

It shall be the duty and responsibility of the occupant to ensure that:

- (1) All parts of the premises under the control of the occupant shall be kept in a safe, clean and sanitary condition consistent with the nonresidential use and the occupant shall refrain from performing any acts which would render any parts of the building or premises unsafe or unsanitary or which would obstruct any adjacent owner/occupant from performing any duty required, or from maintaining his building or premises in a safe and sanitary condition.
- (2) Every occupant shall be responsible for the elimination of infestation in and on the premises subject to his control.
- (3) Every occupant shall maintain all supplied plumbing fixtures in a safe and sanitary condition and shall be responsible for the exercise of reasonable care in the proper use and operation of same.
- (4) No garbage or solid waste shall be stored or allowed by the occupant to accumulate on the premises unless contained in a trash receptacle which is in accordance with this Code of Ordinances.
- (5) Damage to public sidewalks and/or curb and gutter located in the public right-of-way shall be repaired or replaced at no expense to the town when such damage is caused by vehicles making deliveries to the nonresidential use under the control of the occupant.
- (6) Where the owner would not otherwise know of a defect of any facility, utility or equipment required to be furnished under this article and the same is found to be defective or inoperable, the occupant affected thereby shall, upon learning of such defect, provide notice to the owner.

(Ord. of 6-2-1998, pt. I(8-67))

Sec. 14-88. Relationship of duties and responsibilities to occupancy.

The provisions of this article that apply to the exterior or exterior components of a structure or building or to the premises shall be complied with whether the structure or building or premises is occupied or vacant. All unoccupied or vacant structures or buildings shall be secured by their owners to prevent the entry of unauthorized persons or the formation of nuisance conditions such as infestation.

(Ord. of 6-2-1998, pt. I(8-68))

Sec. 14-89. Conflict with other provisions.

In the event any provision, standard or requirement of this article is found to be in conflict with any provision of any other ordinance or code of the town, the provision which establishes the higher standard or more stringent requirement for the promotion and protection of the health and safety of the residents of the jurisdiction shall prevail. The state building code, current edition, shall serve as the standard for all alterations, repairs, additions, removals, demolitions and other acts of building made or required pursuant to this article.

(Ord. of 6-2-1998, pt. I(8-70))

Sec. 14-90. Amendments.

The town council may, from time to time amend, supplement, or change the provisions and requirements of this article. Any such amendment shall be by ordinance of the town council.

(Ord. of 6-2-1998, pt. I(8-71))

Secs. 14-91—14-120. Reserved.**DIVISION 2. STANDARDS FOR NONRESIDENTIAL BUILDINGS AND PREMISES
FITNESS****Sec. 14-121. Unsafe buildings and structures; conditions and standards.**

(a) *Unlawful to own.* It shall be unlawful for any firm, person or corporation to own a building or a structure situated in the jurisdiction of the town which is in such a defective or hazardous condition that it is unsafe and especially dangerous to life. The town council has determined that unsafe and especially dangerous buildings and structures are detrimental to the health, safety and welfare of the citizens of the town, that such unsafe and especially dangerous buildings and structures shall be condemned, and that the owners of such unsafe and especially dangerous buildings and structures shall immediately remedy the unsafe, dangerous, hazardous or unlawful conditions or demolish such buildings or structures.

(b) *Conditions.* A building or structure shall be found to be especially dangerous to life and held unsafe by the inspector if the inspector finds that any one of the following conditions exists in such building or structure:

- (1) Interior walls or vertical studs which seriously list, lean or buckle to an extent as to render the building unsafe.

- (2) Supporting member or members which show 33 percent or more damage or deterioration, or nonsupporting, enclosing or outside walls or covering which shows 50 percent or more of damage or deterioration.
- (3) Floors or roofs which have improperly distributed loads, which are overloaded or which have insufficient strength to be reasonably safe for the purpose used.
- (4) Such damage by fire, wind or other causes as to render the building unsafe.
- (5) Dilapidation, decay, unsanitary conditions or disrepair which is dangerous to the health, safety or welfare of the occupants or other people of the jurisdiction.
- (6) Inadequate facilities for egress in case of fire or panic.
- (7) Defects significantly increasing the hazards of fire, accident or other calamities.
- (8) Lack of adequate ventilation, light, heating or sanitary facilities to such extent as to endanger the health, safety or general welfare of the occupants or other residents of the jurisdiction.
- (9) Lack of proper electrical, heating or plumbing facilities required by this article, which constitutes a health or a definite safety hazard.
- (10) For any building whose occupancy classification requires it, lack of connection to a potable water supply and/or to the public sanitary sewer or other approved sewage disposal system. For the purposes of this standard, a building is not connected to a potable water supply if the water supply has been cut off because of nonpayment of the water bill or otherwise or if the system for any reason is not receiving a flow of potable water to the tap.
- (11) Any violation of the state fire prevention code which constitutes a condition which is unsafe and especially dangerous to life.
- (12) Any abandoned nonresidential building which is found to be a health or safety hazard by the inspector as a result of the attraction of insects or rodents, conditions creating a fire hazard, dangerous conditions constituting a threat to children, or frequent use by vagrants as living quarters in the absence of sanitary facilities.

(c) *Enumerated standards.* In addition to conditions enumerated in subsections (b)(1) through (b)(12) of this section, any one of which renders a building or structure unsafe, the inspector shall determine that a nonresidential building or structure is unsafe if he finds that a building or structure fails to fully comply with any five or more of the following enumerated standards of building and premises fitness. Full compliance with a standard means that if any part of the stated standard is not complied with by a particular building and premises, then that building and premises has failed to fully comply with the enumerated standard.

- (1) General.
 - a. Buildings and premises shall be kept clear of accumulations of garbage, trash, or rubbish which create health and sanitation problems. All garbage and solid waste shall be in approved containers or stored in a safe and sanitary way.

- b. Flammable, combustible, explosive or other dangerous or hazardous materials shall be stored in a manner approved for such materials and consistent with the state fire prevention code.
- c. Buildings and premises shall be kept free of loose and insufficiently anchored overhanging objects which constitute a danger of falling on persons or property.
- d. The premises shall be kept free of insufficiently protected holes, excavations, breaks, projections, obstructions and other such dangerous impediments on and around fences, walls, walks, driveways, parking lots and other areas which are accessible to and generally used by persons on the premises.
- e. Buildings and premises surfaces shall be kept clear of cracked or broken glass, loose shingles, loose wood, crumbling stone or brick, loose or broken plastic or other dangerous objects or similar hazardous conditions. Exterior surfaces shall be maintained in such material or treated in such a manner as to prevent deterioration.
- f. Buildings and premises shall be kept free of objects and elements protruding from building walls, roof or premises which are unsafe or not properly secured or which can create a hazard such as abandoned electrical boxes and conduits, wires, sign brackets and other brackets, and similar objects.

(2) Appurtenances.

- a. All chimneys, flues and vent attachments thereto shall be maintained structurally sound. Chimneys, flues, gas vents or other draft-producing equipment which are in use shall provide sufficient draft to develop the rated output of the connected equipment, shall be structurally safe, durable, smoketight and capable of withstanding the action of flue gases.
- b. All exterior porches, landings, balconies, stairs and fire escapes shall be provided with banisters or railings properly designed and maintained to minimize the hazard of falling, and the same shall be kept structurally sound, in good repair, and free of defects.
- c. All cornices shall be made structurally sound. Rotten or weakened portions shall be removed and/or replaced. All exposed wood shall be treated or painted.
- d. Gutters and downspouts shall be replaced or repaired as necessary and shall be appropriately located and securely installed so as not to cause a hazard to pedestrians, vehicular traffic or property.
- e. Attached and unattached accessory structures shall be maintained in a state of good repair.
- f. Advertising sign structures, attached or freestanding, awnings, marquees and their supporting members and other similar attachments and structures shall be maintained in good repair and shall not cause a nuisance or safety hazard.

(3) Structural.

- a. Walls, partitions, supporting members, sills, joists, rafters or other structural members shall not list, lean or buckle, shall not be rotted, deteriorated or damaged, and shall not have holes or cracks which might admit rodents.
- b. Floors or roofs shall have adequate supporting members and strength to be reasonably safe for the purpose used.
- c. Foundations, foundation walls, piers or other foundation supports shall not be deteriorated or damaged.
- d. Interior steps, railings, landings, porches or other parts or appurtenances shall be maintained in such condition that they will not fall or collapse.
- e. Where a wall of a building has become exposed as a result of demolition of an adjacent building said wall must have all doors, windows, vents or other similar openings closed with material of the type comprising the wall unless such doors, windows, vents or other similar openings are to be maintained in accordance with the provisions of this article. No protrusions or loose material shall be in the wall. The exposed wall shall be painted, stuccoed or bricked so as not to detract from the aesthetics and value of adjacent property and weatherproofed if necessary to prevent deterioration of the wall.

(4) Plumbing, electrical and supplied facilities.

- a. All plumbing fixtures and pipes shall meet the standards of the state plumbing code and shall be maintained in a state of good repair and in good working order.
- b. All electrical fixtures, receptacles, equipment and wiring shall be maintained in a state of good repair, safe, capable of being used, and installed in accordance with the state electrical code.
- c. Every supplied facility, piece of equipment or utility which is required under this article or the state building code for occupancy or use shall be so constructed or installed that it will function safely and effectively and shall be maintained in satisfactory working condition.

(5) Egress.

- a. Facilities for egress in case of fire or panic shall be adequate and shall remain clear for such purposes.
- b. All windows must be tightfitting and have sashes of proper size and design and be free from rotten wood, broken joints, or broken or loose mullions.
- c. All windows shall be maintained free of broken glass that could be dangerous to the public, invitees or third parties ordinarily expected to use the premises, from falling or shattering.
- d. All openings originally designed as windows shall be maintained as windows, unless specifically approved by the inspector for enclosure.

(6) Drainage. All yards and premises shall be properly graded and maintained so as to obtain thorough drainage and so as to prevent the accumulation of stagnant water.
(Ord. of 6-2-1998, pt. I(8-72))

Sec. 14-122. Buildings and premises not declared unsafe but which are not in compliance with all standards.

In any case where the inspector determines that a nonresidential building and/or premises fails to fully comply with one or more but less than five of the standards of nonresidential buildings and premises fitness set forth in section 14-121(c), such building and/or premises shall not be found to be unsafe and shall not be subject to the procedures and remedies as provided for in this article for unsafe buildings and premises. Each such failure of noncompliance, however, shall constitute a violation of the terms of this article and shall subject the violator to the penalties and enforcement procedures, civil or criminal or both, of section 14-185. In such case the inspector shall notify the owner as provided for in section 14-155.
(Ord. of 6-2-1998, pt. I(8-73))

Secs. 14-123—14-150. Reserved.

DIVISION 3. PROCEDURES FOR ENFORCEMENT

Sec. 14-151. Unsafe buildings shall be condemned by the inspector.

If a building or structure shall appear to the inspector to be especially dangerous to life and unsafe under section 14-121, the inspector shall:

- (1) Make a written finding that the building or structure appears to be unsafe and is condemned; and
 - (2) Affix a condemned notice of the dangerous character or conditions of the building or structure to a conspicuous place on the exterior wall of such building or structure.
- (Ord. of 6-2-1998, pt. I(8-74))

Sec. 14-152. Removal of condemnation notice unlawful.

It shall be unlawful for any person to remove a condemned notice from a building or structure after such condemned notice has been affixed to it by the inspector pursuant to the provisions of section 14-151.
(Ord. of 6-2-1998, pt. I(8-75))

Sec. 14-153. Complaint and notice of hearing.

(a) If a building or structure has been condemned by the inspector as unsafe pursuant to section 14-151, the inspector shall serve the owner with a written complaint and notice of hearing which notice shall state that:

- (1) The building or structure is condemned due to its condition that appears to constitute a fire or safety hazard or appears to be dangerous to life, health or other property and that it is held to be unsafe;

- (2) A hearing will be held before the inspector at a designated place and time, which time shall be not less than ten days nor more than 30 days after the date of such notice, and that at such hearing the owner shall be entitled to be heard in person or by counsel and to present arguments and evidence pertaining to the matter; and
- (3) Following the hearing, the inspector may issue such order to repair, close, vacate or demolish the building or structure as the inspector deems to be appropriate under the existing conditions.

(b) Upon the issuance of a complaint and notice of hearing pursuant to this section, the inspector may cause the filing of a notice of lis pendens, with a copy of the complaint and notice of hearing attached thereto, in the office of the clerk of superior court of Rowan County, to be indexed and cross-indexed in accordance with the indexing procedures of the state statutes. The inspector shall cause a copy of the notice of lis pendens to be served upon the owner of the building or structure at the time of filing in accordance with G.S. 160A-428 as applicable. Upon compliance with the requirements of any order issued based upon such complaint and hearing, the inspector shall direct the clerk of superior court to cancel the notice of lis pendens. (Ord. of 6-2-1998, pt. I(8-76))

Sec. 14-154. Order to take corrective action; contents; issuance.

If, upon a hearing held pursuant to the notice prescribed in section 14-153, the inspector shall find that the building or structure is in an unsafe condition which constitutes a fire or safety hazard or renders it dangerous to life, health or other property, the inspector shall issue an order in writing, directed to the owner or owners of such building or structure, directing the owner or owners to remedy the defective condition by repairing, closing, vacating or demolishing the building or structure or taking other necessary steps within such a period as the inspector may prescribe, which period may not be less than 60 days from the service of the order; provided that, where the inspector finds that there is imminent danger to life, health or other property, the order may require that corrective action be taken in such lesser period as may be feasible.

(Ord. of 6-2-1998, pt. I(8-77))

Sec. 14-155. Service of written notice or order of inspector.

In any case where this article requires service of a written notice or order by the inspector, such notice or order shall be made in the following manner:

- (1) The written notice or order shall be served upon each owner by mailing the same by certified or registered mail, return receipt requested, to the owner's last known address or by personal service of the notice or order upon each owner.
- (2) If the name or whereabouts of an owner are unknown and cannot after due diligence be discovered, the notice or order shall be considered properly and adequately served upon such owner if a copy thereof is posted on the outside of the building or structure

in question at least ten days prior to the hearing, if a hearing is required, and a notice of the hearing published in a newspaper having general circulation in the jurisdiction at least once not later than one week prior to the hearing.

(Ord. of 6-2-1998, pt. I(8-78))

Sec. 14-156. Appeal of order of inspector; finality if not appealed.

Any owner who has received an order under section 14-154 may appeal from the order to the town council by giving notice of appeal in writing to the inspector and to the town clerk within ten days following issuance of the order. In the absence of an appeal to the town council within the prescribed time, the order of the inspector shall be final. The town council shall hear appeals within a reasonable time after receipt of the notice of appeal and it may modify and affirm or revoke the order.

(Ord. of 6-2-1998, pt. I(8-79))

Sec. 14-157. Failure to comply with order of inspector.

It shall be unlawful for the owner of a building or structure to fail to comply with an order issued pursuant to section 14-154 from which no appeal has been taken or fail to comply with an order of the town council following an appeal, unless the owner shall, within ten days following issuance of the order by the town council, appeal from that order as by law provided.

(Ord. of 6-2-1998, pt. I(8-80))

Sec. 14-158. Remedies; lien for cost of demolition and removal.

(a) In the event of such failure to comply, in addition to the penalties, remedies and enforcement procedures contained in section 1-6, pertaining to general penalty, enforcement of ordinances and continuing violations, and section 14-185, the inspector may cause such building and premises to be repaired, closed, vacated or demolished as appears appropriate.

(b) The inspector, however, shall not take such action until the town council shall have by ordinance ordered the inspector to proceed with such action with respect to the particular property or properties which the inspector shall have found to be unsafe or not in compliance with all standards of nonresidential building and premises fitness and which property or properties shall be described in the ordinance. No such ordinance shall be adopted to require demolition of a building until the owner has first been given a reasonable opportunity to bring it into conformity with this article. The ordinance adopted pursuant to this section shall be recorded in the office of the register of deeds of the county and shall be indexed in the name of the property owner or owners in the grantor index.

(c) The amount of the cost of repairs, alterations or improvements, or vacating and closing, or removal or demolition by the inspector shall be a lien against the real property upon which the cost was incurred, which lien shall be filed, have the same priority, and be collected as a lien for special assessments provided in G.S. 160A-216 et seq. If the building is removed or demolished by the inspector, he shall sell the materials of the building, and the personal property, fixtures or appurtenances found in or attached to the building, and shall credit the

proceeds of the sale against the cost of the removal or demolition and any balance remaining shall be deposited in the superior court by the inspector, shall be secured in a manner directed by the court, and shall be disbursed by the court to the persons found to be entitled thereto by final order of the decree of the court.

(Ord. of 6-2-1998, pt. I(8-81))

Sec. 14-159. Failure of occupant to comply with order to vacate.

If any occupant fails to comply with an order to vacate a building, the inspector may file a civil action in the name of the town to remove such occupant. The action to vacate the building shall be in the nature of summary ejectment and shall be commenced by filing a complaint naming as parties-defendant any persons occupying such building. The clerk of superior court shall issue a summons requiring the defendant to appear before a magistrate at a certain time, date and place not to exceed ten days from the issuance of the summons to answer the complaint. The summons and complaint shall be served as provided in G.S. 42-29. The summons shall be returned according to its tenor, and if on its return it appears to have been duly served, and if at the hearing the inspector produces a certified copy of an ordinance adopted by the town council pursuant to this section authorizing the inspector to proceed to vacate the occupied building, the magistrate shall enter judgment ordering that the premises be vacated and that all persons be removed. The judgment ordering that the building be vacated shall be enforced in the same manner as the judgment for summary ejectment entered under G.S. 42-30. An appeal from any judgment entered hereunder by the magistrate may be taken as provided in G.S. 7A-228, and the execution of such judgment may be stayed as provided in G.S. 7A-227. An action to remove an occupant of a building who is a tenant of the owner may not be in the nature of a summary ejectment proceeding pursuant to this section unless such occupant was served with notice at least 30 days before the filing of the summary ejectment proceeding that the town council has ordered the inspector to proceed to exercise his duties under this section to vacate and close or remove and demolish the building.

(Ord. of 6-2-1998, pt. I(8-82))

Sec. 14-160. Demolition of nonresidential buildings by owner.

Where a nonresidential building is under the jurisdiction of this article, the building may be demolished by the owner provided that the following requirements are met:

- (1) The owner obtains a demolition permit from the inspections department of the county.
- (2) All sewer, gas, water and similar taps or connections are properly closed and disconnected.
- (3) All debris from the building is removed from the site. This requirement is for the removal of all debris that is above the street level of the building.
- (4) The lot is graded to a smooth, even, finished grade, free from building material, debris, holes, and/or depressions. Where building debris remains on the site below street level, the owner must backfill the lot with 12 inches of clean fill which shall be graded to a smooth, even finished grade.

- (5) Where walls of adjacent buildings become exposed as a result of the demolition, said walls must have all doors, windows, vents or other similar openings closed with material of the type comprising the wall, unless such doors, windows, vents, or other similar openings are to be maintained in accordance with the provisions of this article. No protrusions or loose material shall be in the wall. The exposed wall shall be painted, stuccoed or bricked so as not to detract from the aesthetics and value of the adjacent property and weatherproofed if necessary to prevent deterioration of the wall.
(Ord. of 6-2-1998, pt. I(8-83))

Secs. 14-161—14-180. Reserved.

DIVISION 4. ADMINISTRATION

Sec. 14-181. Office of nonresidential building maintenance standards inspector created; powers and duties.

(a) For the purposes of administering and enforcing the provisions of this article the office of nonresidential building maintenance standards inspector (called "inspector" in this article) is hereby created.

(b) The inspector shall be appointed by the town council and shall take and subscribe to the oath of office administered by the town clerk, and shall have such powers as may be necessary or convenient to carry out and effectuate the purposes and provision of this article, including without limiting the generality of the foregoing, in addition to others herein granted, the following powers:

- (1) To investigate the nonresidential building conditions in the jurisdiction in order to determine which buildings therein are unsafe, being guided in such examinations of buildings by the requirements set forth in this article and for the purpose of carrying out the objectives of this article with respect to such nonresidential buildings.
- (2) To administer oaths and affirmations and to examine witnesses and receive evidence.
- (3) To enter upon and within premises and buildings for the purpose of making examinations and investigations; provided, that such entries shall be made at reasonable hours in such a manner as to cause the least possible inconvenience to the persons in possession.
- (4) To delegate any of his functions and powers under this article to such officers and agents as he may designate.

(Ord. of 6-2-1998, pt. I(8-84))

Sec. 14-182. Inspections.

(a) For the purpose of carrying out the intent of this article, the inspector is hereby authorized to enter, examine and survey at all reasonable times all nonresidential buildings and premises, including abandoned structures. The owner or occupant of every nonresidential

building, or the person in charge thereof, shall give the inspector free access to such building and its premises at all reasonable times for the purposes of such inspection, examination and survey. Every occupant of a nonresidential building shall give the owner thereof, or his agent or employee, access to any part of such building and its premises at all reasonable times for the purpose of making such repairs or alterations as are necessary to effect compliance with the provisions of this article or with any lawful order issued pursuant to the provisions of this article.

(b) The inspector may make periodic inspections for unsafe, unsanitary or otherwise hazardous and unlawful conditions in nonresidential structures within the jurisdiction. In addition, he may make inspections when he has reason to believe that such conditions may exist in a particular structure or premises.

(Ord. of 6-2-1998, pt. I(8-85))

Sec. 14-183. Defects in buildings to be corrected.

When the inspector finds any defects in a nonresidential building, or finds that a building has not been constructed in accordance with applicable state and town laws, or that a building because of its condition is dangerous or contains fire hazardous conditions, it shall be his duty to notify the owner or occupant of the building of its defects, hazardous conditions or failure to comply with law. The owner or occupant shall each immediately remedy the defects, hazardous conditions or violations of law in the property he owns. Failure to do so shall constitute a violation of this article. Each day any violation of this article shall continue shall constitute a separate offense.

(Ord. of 6-2-1998, pt. I(8-86))

Sec. 14-184. Violations.

In addition to the conditions, acts or failures to act that constitute violations specified in this article, it shall be unlawful for the owner of any building and premises to fail, neglect or refuse to repair, alter or improve the same, or to vacate and close or vacate and remove or demolish the same, upon order of the inspector duly made and served as provided in this article, within the time specified in such order. It shall be unlawful for the owner of any building with respect to which an order has been issued pursuant to section 14-154 to occupy or permit the occupancy of the same after the time prescribed in such order for its repair, alteration or improvement or its vacation and closing, or vacation and removal or demolition.

(Ord. of 6-2-1998, pt. I(8-87))

Sec. 14-185. Penalties for violations; alternative remedies.

(a) Violation of this article shall constitute either a misdemeanor punishable by fine or imprisonment as provided by G.S. 14-4 or, at the election of the town, shall subject the offender to civil penalties, remedies, and enforcement procedures contained in section 1-6, pertaining to general penalty, enforcement of ordinances and continuing violations. Civil penalties for violations of this article shall be in the amount of \$100.00 for each violation and each day any single violation continues shall be a separate violation.

(b) If any nonresidential building or premises is erected, constructed, altered, repaired, converted, maintained or used in violation of this article or of any valid order or decision of the inspector or town council made pursuant to any ordinance adopted under authority of this article, the inspector may institute any appropriate action or proceedings to prevent the unlawful erection, construction, reconstruction, alteration or occupancy, to restrain, correct or abate the violation, to prevent the occupancy of the building or to prevent any illegal act, conduct or use in or about the premises of the nonresidential building.

(c) Nothing in this article nor any of its provisions shall be constructed to impair or limit in any way the power of the town to define and declare nuisances and to cause their removal or abatement by summary proceedings or otherwise, nor shall enforcement of one remedy provided in this article prevent the enforcement of any other remedy or remedies provided herein or in other ordinances or laws. An appeal from a warning citation issued under the provisions of section 1-6, pertaining to general penalty, enforcement of ordinances and continuing violations, shall be taken within ten days from the date of said warning citation to the board of adjustment. The board of adjustment in considering appeals of a warning citation shall have power only in the manner of administrative review and interpretation where it is alleged that the inspector has made an error in the application of this article, in the factual situation as it relates to the application of the article, or both.

(d) Where the inspector determines that the period of time stated in the original warning citation is not sufficient for abatement based upon the work required or based upon a schedule agreed upon with the violator for abatement, the inspector may amend the warning citation to provide for additional time.

(Ord. of 6-2-1998, pt. I(8-88))

Chapters 15—17

RESERVED

Chapter 18

BUSINESSES*

Article I. In General

- Sec. 18-1. Sale of malt beverages and wine on Sunday.
- Sec. 18-2. Reserved.
- Sec. 18-3. Temporary signs or banners advertising fairs, carnivals and similar events.
- Secs. 18-4—18-24. Reserved.

Article II. Garage Sales

- Sec. 18-25. Definitions.
- Sec. 18-26. Prohibited sales.
- Sec. 18-27. General regulations.
- Sec. 18-28. Frequency and length.
- Sec. 18-29. Signage.
- Sec. 18-30. Location.
- Sec. 18-31. Penalties.
- Secs. 18-32—18-57. Reserved.

Article III. Peddlers and Solicitors

- Sec. 18-58. Purpose.
- Sec. 18-59. Definitions.
- Sec. 18-60. License required.
- Sec. 18-61. Application.
- Sec. 18-62. Issuance of permit.
- Sec. 18-63. Exemptions.
- Sec. 18-64. Denial or revocation of permit.
- Sec. 18-65. Prohibited conduct.
- Sec. 18-66. Revocation of permit.
- Sec. 18-67. Notice and hearing.
- Sec. 18-68. Display and possession of permit and identification.
- Sec. 18-69. Penalties.
- Sec. 18-70. Badge.

***State law reference**—Municipal authority to regulate and license businesses, trades, etc., G.S. 160A-194, 160A-211.

ARTICLE I. IN GENERAL**Sec. 18-1. Sale of malt beverages and wine on Sunday.**

As provided for in G.S. 160A-205.3, Hours of certain alcohol sales. In accordance with G.S. 18B-1004(c), the sale of malt beverages, unfortified or fortified wine and mixed beverages shall be allowed within the corporate limits of the town on Sundays beginning at 10:00 a.m. pursuant to the licensed premises' permit issued under G.S. 18B-1001.
(Code 1993, § 10-1; Ord. of 12-6-1977; Ord. No. 2018-05, 8-7-2018)

Sec. 18-2. Reserved.

Editor's note—An ordinance adopted July 7, 2009, repealed former § 18-2 which pertained to tattoo parlors, and derived from the 1993 Code, § 10-2; and an ordinance adopted June 7, 1982.

Sec. 18-3. Temporary signs or banners advertising fairs, carnivals and similar events.

It shall be unlawful to affix temporary banners or signs advertising the place and date of fairs, carnivals, horse shows and similar events to be observed within the town for a period not to exceed 30 days, and after the giving of a bond which the chief of police shall set, the amount of such bond to be commensurate with the cost of removing such banners or signs. If the signs or banners are not removed within the 30-day period, the bond shall be retained by the town to defray the costs of removing the banners or signs.
(Code 1977, § 8-6012; Code 1993, § 10-3)

Secs. 18-4—18-24. Reserved.**ARTICLE II. GARAGE SALES****Sec. 18-25. Definitions.**

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Garage sale means a sale from a residence or residential property of personal property which has been owned or used previously by an individual or resident residing on the premises where the sale is conducted. A yard or patio sale is included within the definition of garage sale. The term "garage sale" does not include the mere incidental sale of one or two items of personal property when such sale is not a part of a general sale of a number of items of personal property.
(Code 1977, § 6-1061; Code 1993, § 10-31)

Sec. 18-26. Prohibited sales.

The conduct of general retail sales or commercial activities in residential areas is prohibited, except as otherwise expressly authorized under this Code.

(Code 1977, § 6-1062; Code 1993, § 10-32)

Sec. 18-27. General regulations.

Garage sales shall be permitted on residentially zoned property as defined by the town's zoning ordinance. No garage sale shall be conducted on a commercially zoned property.

(1) By having, holding, or conducting a yard sale, the owner or lessee of the property where the sale is conducted authorizes any code enforcement officer of the Town of China Grove to enter upon the property for the purpose of determining that such sale is being conducted in accordance with the provisions of this article.

(2) All unsold items, trash, and signage shall be cleaned up and/or removed by 8:00 p.m. or within two hours following the conclusion of the garage sale.

(Code 1977, § 6-1062; Code 1993, § 10-33; Ord. No. 2017-02, 3-7-2017)

Editor's note—Ord. No. 2017-02, adopted March 7, 2017, changed the title of § 18-27 from "Conduct" to read as herein set out.

Sec. 18-28. Frequency and length.

(a) No single sale shall be conducted for longer than two consecutive days. Garage sales shall be conducted between the hours of 6:00 a.m. and 6:00 p.m.

(b) It shall be unlawful for residents of residential districts to conduct more than four garage sales in a 12-month period.

(Ord. No. 2017-02, 3-7-2017)

Sec. 18-29. Signage.

No more than two signs shall be placed off site to advertise the garage sale. No sign shall be placed on private property without the property owner's permission. No sign shall be placed in the public right-of-way. Signs shall not be placed on utility poles, NCDOT or town signs. Signs shall not be displayed more than 48 hours prior to the garage sale and shall be removed no more than two hours following the garage sale (or expiration of the permit).

(Ord. No. 2017-02, 3-7-2017)

Sec. 18-30. Location.

(a) Garage sales shall only be permitted on private, residentially zoned property. Properties zoned R-S, R-T, R-MH, R-M, R-S CU, and R-M CU are considered residentially zoned properties. Properties zoned C-B, H-B, O-I, C-P, N-C, L-I, H-I and H-B CUP are considered commercially zoned properties. Garage sales are not permitted on commercially zoned property, with the following exception:

- The garage sale will be held upon the property of a church or non-profit entity (proof of non-profit status required) and all proceeds from that sale benefit the church, non-profit entity, or other charitable organization.

(b) No garage sale shall block, in full or partially, any public street, driveway, alleyway, or sidewalk.

(Ord. No. 2017-02, 3-7-2017)

Sec. 18-31. Penalties.

The violation of any provision of this article shall subject the violator to a civil penalty of \$50.00 for the first violation and \$100.00 per violation for subsequent violations in any one calendar year. Notice of penalties so issued may be delivered in person to the violator, or they may be mailed to the violator if he cannot readily be found.

(Ord. No. 2017-02, 3-7-2017)

Secs. 18-32—18-57. Reserved.

ARTICLE III. PEDDLERS AND SOLICITORS

Sec. 18-58. Purpose.

The purpose of this article is to protect the safety, health and welfare of the general public.

(Ord. No. 2016-10, 9-6-2016)

Sec. 18-59. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Motorized mobile vending unit means any motorized vehicle from which goods or food may be sold.

Nonmotorized mobile vending unit means a cart, kiosk or other device capable of being pushed by one person, with at least two functional wheels and positive wheel-locking devices.

Peddler means any person who transports goods from place to place and sells or offers for sale such goods, or who, without traveling from place to place, sells or offers for sale any goods from any vehicle or device; provided that any person who separates the acts of sale and delivery for the purpose of evading the provisions of this article shall be deemed a peddler.

Solicitor means any person who travels from place to place taking or offering to take orders for the sale of goods for future delivery or for personal services to be performed in the future, whether or not samples are displayed or money is collected in advance, and any person who uses or occupies any building or premises for the sole purpose of taking or offering to take orders for the sale of goods for future delivery or for personal services to be performed in the future, whether or not samples are displayed or money is collected in advance.

Street vendor means any person who shall sell goods or services from either a motorized or nonmotorized mobile vending unit.

Transient vendor means any person who engages in a temporary business of selling and delivering goods and who, for this purpose, uses or occupies any building or premises; provided that no person shall be relieved from complying with the provisions of this article merely by conducting a transient business in association with any permanently established merchant.

(Code 1977, § 6-1051; Code 1993, § 10-56; Ord. No. 2016-10, 9-6-2016; Ord. No. 2017-09, 10-3-2017)

Editor's note—Ord. No. 2016-10, adopted Sept. 6, 2016, amended and renumbered former § 18-58 as § 18-59.

Sec. 18-60. License required.

It shall be unlawful for any person to engage in business as a peddler, solicitor, or transient vendor within the town limits without having first completed and filed an application and obtained a solicitor permit and badge from the town. Applicants shall be at least 18 years of age. The permit shall be in the form of an "identification badge" that shall be displayed by the applicant in accordance with section 18-69 below.

(Ord. No. 2016-10, 9-6-2016; Ord. No. 2017-09, 10-3-2017)

Sec. 18-61. Application.

(a) Each and every person doing business in the town as a peddler, solicitor or transient vendor shall file with the clerk or their designee, a statement setting forth the following information:

- (1) The applicant's name, home address, telephone number, and driver's license number.
- (2) The name and address of the applicant's employer or the organization with which the applicant is associated in connection with the activity.
- (3) A physical description of the applicant, including height, age and any other additional information which the town may reasonably require for identification, including a copy of the document(s) used by the applicant to verify personal identification (e.g., driver's license, passport, picture I.D.).
- (4) If a vehicle is to be used, a complete description of the vehicle including make, model, color, and license number.
- (5) A description of the goods or services to be sold or offered for sale.
- (6) A per unit fee as provided in the town's fee schedule.

(b) Additional requirements and restrictions for transient vendors:

- (1) For food vendors only, a copy of a food service permit from the county health department.

- (2) Transient vendors shall be allowed only with the written permission of the property owner designating the vending site.
 - (3) Transient vendors shall be allowed only in zoning districts Central Business (CB), Highway Business (HB), and Light Industrial (LI).
 - (4) Transient vendors shall not impede vehicular or foot traffic.
 - (5) Only permitted transient vendors shall not be allowed to conduct business on public property during town events. Public property includes, but is not limited to sidewalks, parking lots, state or town maintained streets, parks or any town owned or controlled property.
 - (6) Transient vendors shall not be allowed within 500 feet of an event, parade, or festival held or sponsored by the town without a properly issued permit for the event.
- (Ord. No. 2016-10, 9-6-2016; Ord. No. 2017-09, 10-3-2017)

Sec. 18-62. Issuance of permit.

(a) Permits will be issued no later than five business days after the filing of a completed application for a permit and badge, the applicant shall be notified by the clerk or their designee of the decision of the issue or denial of the permit.

(b) The town clerk or their designee may limit the number of permits issued to a particular merchant or may limit the total number of permits outstanding at any given time to all merchants if such limitation(s) promotes the health, safety or welfare of the town residents or otherwise promotes the findings and purpose set forth herein.

(c) Any applicant denied a permit may seek an appeal pursuant to section 18-64.

(d) The permit expires 30 days after the issuance thereof.

(e) Town held or sponsored event permits are only valid during the time of that event.

(Ord. No. 2016-10, 9-6-2016; Ord. No. 2017-09, 10-3-2017)

Sec. 18-63. Exemptions.

The following merchants or activities are exempt from the permitting requirements of this article:

- (1) The selling of an individual's household personal property at a yard sale on the premises of the individual's residence.
- (2) Any person selling the produce of the person's own farm or one that the person or the person's family tills.
- (3) Any person, firm or corporation who locales at a farmer's market.
- (4) The circulation of petitions for signature of lawful distribution of advertising materials, dyers, or materials expressing views on political, social, or religious matters.

(Ord. No. 2016-10, 9-6-2016; Ord. No. 2017-09, 10-3-2017)

Sec. 18-64. Denial or revocation of permit.

The clerk or their designee shall deny an application under this chapter only if the applicant has not submitted a completed application; has submitted false information; is not permitted by law to engage in such activity due to age or other factors; has been convicted of or has pleaded no contest to a felony charge within the ten years preceding the submittal of the application; or has been within the previous five years convicted of, or has plead no contest to, a misdemeanor charge involving theft, fraud, forging, uttering, other crimes of like nature or any crime involving moral turpitude.

An applicant denied a license under this section shall receive a written statement outlining the grounds on which the denial is based. The applicant then may appeal the denial of the license to the town manager within 15 days after the date of the written denial. In response to the appeal, the town manager may take such action as (s)he shall deem to be necessary. The findings and determination of the town manager shall be final.
(Ord. No. 2016-10, 9-6-2016; Ord. No. 2017-09, 10-3-2017)

Sec. 18-65. Prohibited conduct.

No peddler or solicitor shall engage in the business of peddling or soliciting between the hours of 8:00 p.m. and 9:00 a.m. or after sunset unless the vendor is participating in a town held or sponsored event.
(Ord. No. 2016-10, 9-6-2016; Ord. No. 2017-09, 10-3-2017)

Sec. 18-66. Revocation of permit.

The clerk may revoke a permit issued pursuant to this section if she finds that the permittee has:

- (1) Willfully misrepresented or provided false information in the permit application.
- (2) Been convicted of a felony or any crime involving fraud, deceit, the receiving or possessing of stolen property, or moral turpitude.
- (3) Been convicted of any offense or engaged in any activity that would be grounds for denial or issuance of the permit.
- (4) Failed to comply with any terms or conditions of the permit.
- (5) Conducted the business licensed in an unlawful way or in such a way as to constitute a hazard to the health, safety, morals, or general welfare of the public.
- (6) Has failed to comply with any requirement of this section.

(Ord. No. 2016-10, 9-6-2016)

Sec. 18-67. Notice and hearing.

Before revocation of a permit, the clerk shall notify the permittee of her intent to revoke the permit and the reasons therefor and shall afford the permittee a reasonable opportunity

to appear and be heard on the question of such revocation to the town manager. After the hearing, the clerk shall notify the permit holder in writing of his decision and the reasons therefor.

(Ord. No. 2016-10, 9-6-2016)

Sec. 18-68. Display and possession of permit and identification.

Any person doing business as a peddler or solicitor shall have a permit issued pursuant to this section with him at all times (s)he engages in the business for which the permit is held. Each permit issued under the provisions of this article shall be carried at all times by the permittee when he or she is engaged in business allowed under the permit. It shall be unlawful for such permittee to fail or refuse to exhibit such permit when requested to do so by a police officer. Upon request of any customer, state or local revenue agent, or law enforcement agent or officer, a peddler or solicitor shall provide a valid driver's license, a special identification card issued under G.S. 20-37.7, a military identification, or a passport bearing a physical description of the person named, reasonably describing the peddler or solicitor. If the peddler or solicitor is a corporation, it shall, upon request of any customer, state or local revenue agent, or law enforcement agent or officer, give the name and registered agent of the corporation and the address of the registered office of the corporation, as filed with the Secretary of State.

(Ord. No. 2016-10, 9-6-2016)

Sec. 18-69. Penalties.

Any person found to be in violation of the requirements of this section shall be guilty of a Class 3 misdemeanor and shall be fined not more than \$500.00.

(Ord. No. 2016-10, 9-6-2016)

Sec. 18-70. Badge.

(a) The clerk or their designee shall issue to each person filing the statement required by section 18-61 a badge substantially as follows:

Town of China Grove, N.C. No. _____

SOLICITOR'S BADGE

_____(Name)_____has registered with Town Clerk as required by Ordinance.

Date

Town Clerk

(b) During the time such person is engaged in soliciting, the badge shall be worn on the front of his outer garment in such manner as to be conspicuous.

(c) During the time such person is engaged as a transient vendor, the badge shall be displayed on the vending unit in such manner as to be conspicuous.

(Code 1977, § 6-1053; Code 1993, § 10-58; Ord. No. 2016-10, 9-6-2016; Ord. No. 2017-09, 10-3-2017)

Editor's note—Ord. No. 2016-10, adopted Sept. 6, 2016, amended and renumbered former § 18-60 as § 18-70.

Chapters 19—21

RESERVED

Chapter 22

CIVIL EMERGENCIES*

- Sec. 22-1. Penalty for violation of chapter or restrictions imposed by proclamation.
- Sec. 22-2. State of emergency defined; authority of mayor.
- Sec. 22-3. Contents of declaration of state of emergency.
- Sec. 22-4. Mutual aid agreements.

***Federal law references**—Emergency Planning and Community Right to Know Act of 1986, 42 USC 11011—11050; comprehensive emergency response plans, 42 USC 11003; federal preparedness assistance funding for state and local governments dependent upon compliance with National Incident Management System, HSPD-5 [Homeland Security Presidential Directive 5, *Management of Domestic Incidents*].

State law references—Municipal emergency management, G.S. 166A-7 et seq.; local emergency authorizations, G.S. 166A-8; authority of town to enact ordinances dealing with state of emergency, G.S. 14-228.12; riots and civil disorders, G.S. 14-288.1 et seq.

Sec. 22-1. Penalty for violation of chapter or restrictions imposed by proclamation.

The violation of any provision of this chapter or of any provision of any restriction imposed by any proclamation authorized by this chapter shall constitute a misdemeanor, punishable in accordance with section 1-6.

(Code 1977, § 3-3003; Code 1993, § 12-1)

Sec. 22-2. State of emergency defined; authority of mayor.

(a) A state of emergency shall be deemed to exist whenever, during times of great public crisis, disaster, rioting, catastrophe or similar public emergency, for any reason, municipal public safety authorities are unable to maintain public order or afford adequate protection for lives or property.

(b) In the event of an existing or threatened state of emergency endangering the lives, safety, health and welfare of the people within the town, or threatening damage to or destruction of property, the mayor is hereby authorized and empowered to issue a public proclamation declaring to all persons the existence of such a state of emergency, and, in order to more effectively protect the lives and property of people within the town, to place in effect any or all of the restrictions authorized in this section.

(c) The mayor is hereby authorized and empowered to limit, by proclamation, the application of all or any part of such restrictions to any area specifically designated or described within the corporate limits of the town and to specific hours of the day or night, and to exempt from all or any part of such restrictions law enforcement officers, firefighters and other public employees, doctors, nurses, employees of hospitals and other medical facilities, on-duty military personnel, whether state or federal, on-duty employees of public utilities, public transportation companies and newspaper, magazine, radio broadcasting and television broadcasting corporations operated for profit, and such other classes of persons as may be essential to the preservation of public order and immediately necessary to serve the safety, health and welfare needs of the people within the town.

(d) The mayor shall proclaim the end of such state of emergency or all or any part of the restrictions imposed as soon as circumstances warrant or when directed to do so by the town council.

(e) During the existence of a proclaimed state of emergency, the mayor may impose, by proclamation, any or all of the following restrictions:

- (1) Prohibit or regulate the possession off one's own premises of explosives, firearms, ammunition or dangerous weapons of any kind, and prohibit the purchase, sale, transfer or other disposition thereof.
- (2) Prohibit or regulate the buying or selling of beer, wine or intoxicating beverages of any kind, and their possession or consumption off one's own premises.
- (3) Prohibit or regulate any demonstration, parade, march or vigil or participation therein from taking place on any of the public ways or upon any public property.

- (4) Prohibit or regulate the sale of gasoline, kerosene, naphtha or any other explosive or inflammable fluids or substances.
- (5) Prohibit or regulate travel upon any public street, alley or roadway or upon any other public property, except by those in search of medical assistance, food or other commodity or service necessary to sustain the well-being of themselves or their families or some member thereof.
- (6) Prohibit or regulate the participation in or carrying on of any business activity, and prohibit or regulate the keeping open of places of business, places of entertainment and any other places of public assembly.

(f) Any proclamation may be extended, altered or repealed in any particular during the continued or threatened existence of a state of emergency by the issuance of a subsequent proclamation.

(g) During the existence of a proclaimed state of emergency, it shall be unlawful for any person to violate any provision of any restriction imposed by any proclamation authorized by this chapter.

(Code 1977, § 3-3001; Code 1993, § 12-2)

Sec. 22-3. Contents of declaration of state of emergency.

The proclamation for the declaration of a state of emergency and the imposition of specific prohibitions and restrictions shall take substantially the following form:

Whereas, the governing body of the Town of China Grove has duly adopted an ordinance authorizing the Mayor to determine and proclaim the existence of a state of emergency and to impose various restrictions after he determines that such restrictions are necessary as a response to an emergency.

Now therefore, I, _____, Mayor of the Town of China Grove, proclaim that:

- (1) An emergency exists, and restrictions set forth in this proclamation are necessary in order to maintain an acceptable level of public order, services, and protection of lives, safety and property during this emergency.
- (2) I proclaim the following restrictions:
 - a. No person shall be a part of any assembly of three or more persons in the area bounded by the Corporate limits of the Town.
 - b. Possession, consumption and transfer of intoxicating liquor.
 - 1. No person shall possess or consume any intoxicating liquor, including beer and wine, other than on his premises.
 - 2. No person shall sell or otherwise transfer any intoxicating liquor, including beer and wine.

c. Curfew.

1. No person not exempted by this proclamation shall appear in public in the geographic area described in this proclamation between the hours of _____ p.m. and midnight or between the hours of midnight and _____ a.m. of any day until I remove this curfew by proclamation.
2. This curfew shall apply to the area bounded by _____.
3. I find it necessary to the preservation of the public health, safety and welfare to exempt from these curfew restrictions the following classes of people in the circumstances indicated:
 - (i) Those whose appearance is essential in order to obtain or furnish a service or commodity which is immediately necessary to sustain the health or well-being of themselves or of someone within the curfew area.
 - (ii) Those whose appearance necessarily occurs in the process of leaving a place at which they were temporarily engaged and from which they could not reasonably have planned their departure so as to avoid appearing during the period during which the curfew was applicable.
 - (iii) _____ (Other) _____.

d. Possession and transfer of dangerous weapons or substances.

1. No person shall possess any dangerous weapons or substances unless they remain in a place of storage on his premises, or, if they cannot be readily stored on his premises, unless they remain in a customary place of storage not readily available to the possessor. No person may transport or sell or otherwise transfer any dangerous weapons or substances.
2. I find it necessary to the prevention of the public health, safety and welfare to exempt from these restrictions the following classes of people in the circumstances indicated:
 - (i) Police officers may possess any weapon necessary to carry out their duties when on active duty.
 - (ii) Anyone may possess gasoline when the gasoline is in the tank of a car in his possession.
 - (iii) _____ may transfer _____ when _____.

e. Access to restricted areas.

1. I direct the chief of police and his subordinates to restrict or deny access to any area, location or street where such a restriction is necessary in order to help overcome this emergency or to prevent the emergency from worsening. These restrictions on access shall be indicated by means of barricades, posted notices or orders to anyone in the area.

2. No person shall obtain access or attempt to obtain access to any area, location or street to which the chief of police and his subordinates have restricted access according to the directions I have just given to them.
- (3) Anyone violating any restriction imposed by this proclamation or under its authority violates Town ordinance and is guilty of a misdemeanor.
- (4) This proclamation shall take effect immediately.

Hour and Date

Mayor

SEAL OF THE TOWN

(Code 1977, § 3-3002; Code 1993, § 12-3)

Sec. 22-4. Mutual aid agreements.

(a) The mayor is authorized to execute contracts or agreements with such other political subdivisions of the state as may seem, to him, advisable, pursuant to G.S. 160A-288, whereby the parties agree to render mutual aid and assistance by the loan of law enforcement officers or equipment in time of emergency.

(b) Such contracts or agreements shall specify when they shall take effect, and shall be presented to the governing board of each party for ratification at its next regular meeting or at a special meeting called for that purpose, but any such contract or agreement executed on behalf of the town shall be in all respects valid and binding on the town between the time of its final execution and the next regular or special meeting of the town council.

(Code 1977, §§ 3-3011, 3-3012; Code 1993, § 12-4)

Chapters 23—25

RESERVED

Chapter 26

ENVIRONMENT*

Article I. In General

Sec. 26-1. Smoking prohibited in all town-owned buildings and parks.
Secs. 26-2—26-18. Reserved.

Article II. Nuisances

Division 1. Generally

Sec. 26-19. Certain conditions declared nuisance.
Sec. 26-20. Investigation.
Sec. 26-21. Order to abate.
Sec. 26-22. Abatement by town.
Sec. 26-23. Right of entry.
Sec. 26-24. Violation of county health regulations.
Sec. 26-25. Authority to abate obstructions of sewer line.
Secs. 26-26—26-53. Reserved.

Division 2. Abandoned and Junked Motor Vehicles

Sec. 26-54. Definitions.
Sec. 26-55. Administration.
Sec. 26-56. Exceptions.
Sec. 26-57. Nuisance vehicles prohibited.
Sec. 26-58. Nuisance vehicles unlawful; removal authorized.
Sec. 26-59. Junked motor vehicle regulated; removal authorized.
Sec. 26-60. Removal of abandoned, nuisance or junked motor vehicles—Pre-towing notice requirements.
Sec. 26-61. Same—Post-towing notice requirements.
Sec. 26-62. Same—Exceptions to prior notice requirement.
Sec. 26-63. Same—Right to hearing.
Sec. 26-64. Redemption of impounded vehicle.
Sec. 26-65. Disposition of unclaimed impounded vehicle.
Sec. 26-66. Removal of vehicles from private property.
Sec. 26-67. Nonliability of persons disposing of vehicles.
Sec. 26-68. Unlawful removal of impounded vehicle.
Secs. 26-69—26-80. Reserved.

Article III. Noise

Sec. 26-81. Unreasonably loud noise prohibited.
Sec. 26-82. Prohibited noises enumerated.

***State law references**—Pollution control and environment, G.S. 113A-1 et seq.; municipal abatement of public health nuisances, G.S. 160A-193; abatement of public health nuisance, G.S. 130A-19; abatement of imminent hazard, G.S. 130A-20.

CHINA GROVE CODE OF ORDINANCES

- Sec. 26-83. Permit authorized for regulated activities; application; appeal upon denial.
- Sec. 26-84. Violations; penalties.
- Sec. 26-85. Unreasonable sound amplification.

ARTICLE I. IN GENERAL**Sec. 26-1. Smoking prohibited in all town-owned buildings and parks.***(a) Definitions.*

- (1) *Local government-owned buildings and parks* means a building or park owned, leased as lessor, or the area leased as lessee and occupied by a local government.
- (2) *Smoking* means the use or possession of a lighted cigarette, lighted cigar, lighted pipe, or any other lighted tobacco product.
- (3) *E-cigarette* means any electronic oral device that employs a mechanical heating element, battery, or electronic circuit regardless of shape or size and that can be used to heat a liquid nicotine solution or any other substance, and the use or inhalation of which simulates smoking. The term shall include any such device, whether manufactured, distributed, marketed, or sold as an e-cigarette, e-cigar, e-pipe, or under any other product name or descriptor.

(b) Areas in which smoking and tobacco use is prohibited. Smoking of tobacco products is prohibited:

- (1) In any local government-owned building or park owned, leased, occupied, or operated by the Town of China Grove.

(c) Signage:

- (1) Persons in charge of buildings or grounds identified in subsection (b) shall post signs at all entrances and exits explaining the prohibition of tobacco use.
- (2) Signs must state that tobacco use is prohibited and the sign must include the international "No Smoking" symbol (which consists of a pictorial representation of a burning cigarette and e-cigarette product enclosed in a red circle with a red bar across it).
- (3) Signs must be of sufficient size to be clearly legible to a person of normal vision throughout the areas they are intended to mark, be conspicuously posted and must not be obscured in any way.

(d) Enforcement and penalties:

- (1) Violations by employees. Employees who violate this section shall be subject to sanctions consistent with the Town of China Grove Personnel Policy.
- (2) Violations by other persons. Any person who, following oral or written notice by the person in charge of the area or the person's designee continues to smoke in an area where smoking is prohibited by subsection (b) commits an infraction. Pursuant to G.S. 130A-498(c1), the person committing the infraction may be punished by a fine of not more than \$50.00 and may not be assessed court costs. Conviction of an infraction under this section has no consequence other than payment of a penalty.

- (3) Any amendments to the enforcement or penalty provisions listed in G.S. 130A-498(c1) apply to this section.
(Ord. of 11-3-2015; Ord. of 12-1-2015)

Editor's note—An ordinance adopted Nov. 3, 2015, did not specify manner of inclusion; hence, codification as § 26-1 was at the discretion of the editor. At the request of the town, the title of § 26-1 was changed from "Smoking in all town-owned buildings and parks" to read as herein set out.

Secs. 26-2—26-18. Reserved.

ARTICLE II. NUISANCES*

DIVISION 1. GENERALLY

Sec. 26-19. Certain conditions declared nuisance.

The existence of any of the following conditions on any lot or other parcel of land within the corporate limits is hereby declared to be dangerous and prejudicial to the public health or safety and to constitute a public nuisance:

- (1) Any accumulation of animal or vegetable matter that is offensive by virtue of odors or vapors or by the inhabitation therein of rats, mice, snakes or vermin of any kind which is or may be dangerous or detrimental to the public health.
- (2) Any accumulation of rubbish, trash or junk causing or threatening to cause a fire hazard, or causing or threatening to cause the accumulation of stagnant water, or causing or threatening to cause the inhabitation therein of rats, mice, snakes or vermin of any kind.
- (3) Any condition detrimental to the public health which violates the rules and regulations of the county health department or that injures or causes discomfort to the community at large endangers life, or generates disease.
- (4) Any weeds or other vegetation having overall height of more than 12 inches above the surrounding ground; provided that the following shall not be considered part of this condition: trees and ornamental shrubs, cultured plants, natural vegetation on undeveloped property that is not a threat to character of surrounding properties, and flowers and growing and producing vegetable plants.
- (5) Any accumulation of trash and/or garbage which is the result of the absence of or overflowing or improperly closed trash or garbage containers.

***State law reference**—Municipal authority to define and abate nuisances, G.S. 160A-193.

- (6) Any accumulation of fallen trees, dead trees, sections of tree trunks or tree limbs on a parcel of land, provided this condition shall not apply to accumulations of less than two cubic yards or to natural accumulations on parcels of land or portions thereof that are predominately wooded.
 - (7) Accumulation in an open place of hazardous or toxic materials and chemicals.
 - (8) An open place of concentration of combustible items such as mattresses, boxes, paper, automobile tires and tubes, garbage, trash, refuse, brush, old clothes, rags, or any other combustible materials or objects of a like nature.
 - (9) The open storage of any discarded icebox, furniture, refrigerator, stove, glass, building rubbish or similar items.
 - (10) Any building or other structure which has been burned, partially burned or otherwise partially destroyed and which is unsightly or hazardous to the safety of any person, is a continuing fire hazard or which is structurally unsound to the extent that the town manager or his designee can reasonably determine that there is a likelihood of personal or property injury to any person or property entering the premises.
 - (11) Any condition which blocks, hinders, or obstructs in any way the natural flow of branches, streams, creeks, surface waters, ditches, or drains, to the extent that the premises is not free from standing water.
 - (12) The outside or outdoors use of any furniture originally designed or intended for interior use such as, but not limited to, couches, sofas, chairs, recliners or other like items.
- (Code 1977, § 8-5001; Code 1993, § 14-31; Ord. of 1-5-1999(1), pt. 1(14-31); Ord. of 11-1-2011(1); Ord. No. 2017-01, 2-7-2017; Ord. No. 2017-12, 10-3-2017)

Sec. 26-20. Investigation.

The town, upon notice from any person of the existence of any of the conditions described in section 26-19, shall cause to be made by the county health department official, or town enforcement official, such investigation as may be necessary to determine whether in fact such conditions exist as to constitute a public nuisance as declared in section 26-19.

(Code 1977, § 8-5002; Code 1993, § 14-32; Ord. of 1-5-1999(1), pt. 1(14-32))

Sec. 26-21. Order to abate.

(a) Upon a determination that conditions constituting a public nuisance exist, the town enforcement official shall proceed to notify the owner in accordance with section 1-6.

(b) If the owner of any property fails to comply with a notice given pursuant to this section within the time prescribed in the warning citation or other notification, he shall be in violation of this article, and each day that such failure continues shall be a separate offense. In addition, the town may have the condition described in the notice abated, removed or

otherwise corrected, and all expenses incurred thereby shall be chargeable to and paid by the owner of the property and shall be collected as taxes and levies are collected. All such expenses shall constitute a lien against the property on which the work was done.

(Code 1977, § 8-5003; Code 1993, § 14-33; Ord. of 1-5-1999(1), pt. 1(14-33))

Sec. 26-22. Abatement by town.

(a) *Authority.* If any person, having been ordered to abate a public nuisance pursuant to this article, fails, neglects, or refuses to abate or remove the condition constituting the nuisance within the time prescribed in the order, the town may in addition to other remedies cause the conditions to be removed or otherwise remedied by having employees of the town or contractors to the town to go upon the premises and remove or otherwise abate the nuisance under the supervision of an officer or employee designated by the town. Any person who has been ordered to abate a public nuisance may, within the time allowed by the notice, request the town in writing to remove such conditions, the cost of which shall be paid by the person making the request.

(b) *Payment of costs.* The actual cost incurred by the town in removing or otherwise remedying a public nuisance shall be charged to the owner of such lot or parcel of land, and it shall be the duty of the town clerk to mail a statement of the charges and such charges shall become a lien upon the land or premises where the public nuisance existed and shall be collected as unpaid taxes, as provided in G.S. 160A-193.

(c) *Lien for unpaid charges.* If charges for the removal or abatement of a public nuisance are not paid within 30 days after the receipt of a statement of charges as provided in this section, such charges shall become a lien upon the land or premises where the public nuisance existed and shall be collected as unpaid taxes, as provided in G.S. 160A-193.

(d) *Annual notice to chronic violator.* A chronic violator is a person who owns property whereupon, in the previous calendar year, the city issued a notice of violation at least three times due to violations of this section. The authorized enforcement officer may notify a property owner who is a chronic violator that, if the violator's property is found to be in violation of this section, the city may, without further notice in the calendar year in which the notice is given, take action to remedy the violation and the expense of the action shall become a lien upon the land or premises and shall be collected as unpaid taxes as provided in G.S. 160A-200 and G.S. 160A-200.1. The annual notice shall be served by registered or certified mail. If the owner of the property refuses to accept notice of the violation or if the name or whereabouts of the owner of the property cannot be discovered through the exercise of due diligence, then the notice shall be posted on the property in question.

(Code 1977, §§ 8-5004—8-5006; Code 1993, § 14-34; Ord. of 1-5-1999(1), pt. 1(14-34); Ord. of 9-11-2012)

Sec. 26-23. Right of entry.

The county health officer or any of his assistants and the town enforcement officer shall have the right to enter any premises at any reasonable hour for the purpose of making the inspections or investigations authorized by this article.

(Code 1977, § 8-5010; Code 1993, § 14-37; Ord. of 1-5-1999(1), pt. 1(14-37))

Sec. 26-24. Violation of county health regulations.

It shall be unlawful for any person to violate any lawfully adopted rule or regulation of the county board of health. The enforcement of this section shall be under the supervision of the county health officer.

(Code 1977, § 8-5008; Code 1993, § 14-38; Ord. of 1-5-1999(1), pt. 1(14-38))

Sec. 26-25. Authority to abate obstructions of sewer line.

The town may enter upon any property where there is an obstruction or blockage of a public or private sewer line that inhibits the flow of sewage to property other than the property upon which the obstruction arose, and abate or remedy the blockage or obstruction, with or without the permission of the property owner. The expense of this action shall be paid by the person in default and, if not paid, shall be a lien upon the land or premises where the obstruction or blockage arose, and shall be collected as unpaid taxes.

(Code 1993, § 14-39; Ord. of 10-6-1987; Ord. of 1-5-1999(1), pt. 1(14-39))

Secs. 26-26—26-53. Reserved.

DIVISION 2. ABANDONED AND JUNKED MOTOR VEHICLES*

Sec. 26-54. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Abandoned motor vehicle means a motor vehicle that:

- (1) Has been left upon a street or highway in violation of any law or ordinance prohibiting the parking for longer than 72 hours, or left upon any parking area, either marked or unmarked;
- (2) Is left on property owned or operated by the town for longer than 24 hours;
- (3) Is left on private property without the consent of the owner, occupant or lessee thereof for longer than two hours;
- (4) Is left on any public street or highway for longer than seven days; or

***State law references**—Abandoned and derelict motor vehicles, G.S. 20-137.6; municipal authority to regulate abandoned vehicles, G.S. 160A-303.

- (5) Is left on private property for longer than 30 days and does not display a current license plate.

Junked motor vehicle means an abandoned motor vehicle that also:

- (1) Is partially dismantled or wrecked;
- (2) Cannot be self-propelled or moved in the manner in which it was originally intended to move;
- (3) Is more than five years old and worth less than \$100.00; or
- (4) Does not display a current license plate.

Motor vehicle includes all machines designed or intended to travel over land or water by self-propulsion or while attached to any self-propelled vehicle.

Nuisance motor vehicle means a vehicle on public or private property that is determined and declared to be a health or safety hazard or a public nuisance, or which is aesthetically offensive, including, but not limited to, the following:

- (1) A vehicle found to be a breeding ground or harborage for mosquitoes, other insects, rats or other pests;
- (2) A vehicle found to be a point of heavy growth of weeds or other noxious vegetation over eight inches in height;
- (3) A vehicle found to be a point of collection of pools or ponds of water;
- (4) A vehicle found to be a point of concentration of quantities of gasoline, oil or other flammable or explosive materials, as evidenced by odor;
- (5) A vehicle which has areas of confinement which cannot be operated from the inside, such as trucks, hoods, etc.;
- (6) A vehicle found to be so situated or located that there is a danger of it falling or turning over;
- (7) A vehicle which is the point of collection of garbage, food waste, animal waste or any other rotten or putrescible matter of any kind;
- (8) A vehicle which has sharp parts which are jagged or contain sharp edges of metal or glass;
- (9) Any other vehicle specifically declared a health and safety hazard and a public nuisance by the mayor and town council;
- (10) A vehicle found to be so offensive to the sight as to damage the community, neighborhood or area appearance, upon a finding that the vehicle is in violation of the regulations promulgated pursuant to this division based upon the finding that aesthetic regulation is necessary and desirable for protecting property values and for protecting the comfort, happiness and emotional stability of the area residents.

Vehicle removal officer means someone other than a law enforcement officer appointed by the town council to administer this division.

(Code 1977, § 8-3002; Code 1993, § 14-57; Ord. of 6-4-1991(1); Ord. of 1-5-1999(1), pt. 1(14-57); Ord. of 11-1-2011(1); Ord. No. 2016-14, 1-3-2017)

Sec. 26-55. Administration.

The police department and the town code administrator of the town shall be responsible for the administration and enforcement of this division. The police department shall be responsible for administering the removal and disposition of vehicles determined to be abandoned on the public streets and highways within the town and on property owned by the town. The town code administrator shall be responsible for administering the removal and disposition of abandoned, nuisance or junked motor vehicles located on private property. The town may, on an annual basis, contract with private tow trucks operators or towing businesses to remove, store and dispose of abandoned vehicles, nuisance vehicles and junked motor vehicles in compliance with this article and applicable state laws. Nothing in this division shall be construed to limit the legal authority or powers of officers of the town police department and fire department in enforcing other laws or in otherwise carrying out their duties.

(Ord. of 1-5-1999(1), pt. 1(14-56))

Sec. 26-56. Exceptions.

Nothing in this division shall apply to any vehicle in an enclosed building or any vehicle on the premises of a business enterprise being operated in a lawful place and manner if the vehicle is necessary to the operation of the enterprise, or to any vehicle in an appropriate storage place or depository maintained in a lawful place and manner by the town, or which is located in a bona fide automobile graveyard or junkyard, as defined in G.S. 136-143, in accordance with the Junkyard Control Act, G.S. 16-141 et seq.

(Code 1977, § 8-3011; Code 1993, § 14-57; Ord. of 6-4-1991(1); Ord. of 1-5-1999(1), pt. 1(14-57))

Sec. 26-57. Nuisance vehicles prohibited.

(a) It shall be unlawful for the registered owner or person entitled to possession of a vehicle to cause or allow such vehicle to be abandoned, as defined herein.

(b) Upon investigation, proper authorized officials of the town may determine that a vehicle is an abandoned vehicle and order the vehicle removed.

(Code 1977, § 8-3003; Code 1993, § 14-58; Ord. of 6-4-1991(1); Ord. of 1-5-1999(1), pt. 1(14-58))

Sec. 26-58. Nuisance vehicles unlawful: removal authorized.

(a) It shall be unlawful for the registered owner or person entitled to possession of a motor vehicle, or for the owner, lessee or occupant of the real property upon which the vehicle is located, to leave or allow the vehicle to remain on the property after it has been declared a nuisance vehicle.

(b) Upon investigation, the vehicle removal administrator may determine and declare that a vehicle is a health or safety hazard and a nuisance vehicle, and order the vehicle removed.

(Code 1977, § 8-3001; Code 1993, § 14-59; Ord. of 6-4-1991(1); Ord. of 1-5-1999(1), pt. 1(14-59))

Sec. 26-59. Junked motor vehicle regulated; removal authorized.

(a) It shall be unlawful for the registered owner or person entitled to the possession of a junked motor vehicle, or for the owner, lessee or occupant of the real property upon which a junked motor vehicle is located, to leave or allow the vehicle to remain on the property after the vehicle has been ordered removed.

(b) It shall be unlawful to have more than one junked motor vehicle as defined herein on the premises of public or private property. A single, permitted junked motor vehicle must strictly comply with the location and concealment requirements of this section.

(c) It shall be unlawful for any owner, person entitled to the possession of a junked motor vehicle, or for the owner, lessee or occupant of the real property upon which a junked motor vehicle is located, to fail to comply with the location requirements or the concealment requirements of this section.

(d) Subject to the provisions of subsection (e) of this section, upon investigation, the vehicle removal officer may order the removal of a junked motor vehicle as defined in this division after finding in writing that the aesthetic benefits of removing the vehicle outweigh the burdens imposed on the private property owner. Such finding shall be based on a balancing of the monetary loss of the apparent owner against the corresponding gain to the public by promoting or enhancing community, neighborhood or area appearance. The following, among other relevant factors, may be considered:

- (1) Protection of property values;
- (2) Promotion of tourism and other economic development opportunities;
- (3) Indirect protection of public health and safety;
- (4) Preservation of the character and integrity of the community; and
- (5) Promotion of the comfort, happiness and emotion stability of area residents.

(e) Permitted concealment or enclosure of junked motor vehicle shall be as follows:

- (1) One junked motor vehicle, in its entirety, may be located in the rear yard, as defined by the town zoning ordinance, for a period not to exceed 60 calendar days, provided the junked motor vehicle is entirely concealed from public view from a public street and/or abutting premises by an acceptable covering. Junked motor vehicles kept on the premises more than 60 calendar days shall be kept inside a completely enclosed building. The vehicle removal officer has the authority to determine whether any junked motor vehicle is adequately concealed as required by this provision. The

covering must remain in good repair and must not be allowed to deteriorate. The covering or enclosure must be compatible with the objectives stated in the preamble of the ordinance from which this division is derived.

- (2) Any one or more junked motor vehicles kept for a period exceeding 60 calendar days shall be kept within a completely enclosed building, as defined in the town zoning ordinance.

(Code 1993, § 14-60; Ord. of 1-5-1999(1), pt. 1(14-60))

Sec. 26-60. Removal of abandoned, nuisance or junked motor vehicles—Pre-towing notice requirements.

(a) Except as set forth in section 26-62, an abandoned, nuisance or junked motor vehicle which is to be removed shall be towed only after notice to the registered owner or person entitled to possession of the vehicle. In the case of a nuisance vehicle or a junked motor vehicle, if the names and mailing addresses of the registered owner or person entitled to the possession of the vehicle, or the owner, lessee or occupant of the real property upon which the vehicle is located, can be ascertained in the exercise of reasonable diligence, the notice shall be given by first class mail. The person who mails the notice shall retain a written record to show the name and address to whom and to which mailed and the date mailed. If such name and address cannot be ascertained or if the vehicle to be removed is an abandoned motor vehicle, notice shall be given by affixing on the windshield or some other conspicuous place on the vehicle a notice indicating that the vehicles will be removed by the town on a specified date, no sooner than seven days after the notice is affixed. The notice shall state that the vehicle will be removed by the town on a specified date, no sooner than seven days after the notice is affixed or mailed, unless the vehicle is moved by the owner or legal possessor prior to that time.

(b) With respect to abandoned vehicles on private property, nuisance vehicles and junked motor vehicles for which notice is required to be given, if the registered owner or person entitled to possession does not remove the vehicle but chooses to appeal the determination that the vehicle is abandoned, a nuisance vehicle or, in the case of a junked motor vehicle, that the aesthetic benefits of removing the vehicle outweigh the burdens, such appeal shall be made to the zoning board of adjustment in writing, heard at the next regularly scheduled meeting of the zoning board of adjustment or a special meeting called by the chairperson of the zoning board of adjustment, and further proceedings to remove the vehicle shall be stayed until the appeal is heard and decided.

(Code 1993, § 14-61; Ord. of 1-5-1999(1), pt. 1(14-61))

Sec. 26-61. Same—Post-towing notice requirements.

(a) Any abandoned, nuisance or junked motor vehicle which has been ordered removed may, as directed by the town, be removed to a storage garage or area by the tow truck operator or towing business contracting to perform such services for the town. Whenever such a vehicle is removed, the vehicle removal officer shall immediately notify the last-known registered owner of the vehicle, such notice to include the following:

- (1) The description of the removed vehicle;
- (2) The location where the vehicle is stored;
- (3) The violation with which the owner is charged, if any;

- (4) The procedure the owner must follow to redeem the vehicle; and
- (5) The procedure the owner must follow to request a probable cause hearing on the removal.

(b) The town shall attempt to give notice to the vehicle owner by telephone; however, whether or not the owner is reached by telephone, written notice, including the information set forth in subsections (a)(1)—(a)(5) of this section, shall also be mailed to the registered owner's last-known address, unless this notice is waived in writing by the vehicle owner or his agent.

(c) If a vehicle removed pursuant to this division is registered in the state, notice shall be given to the registered owner within 24 hours. If the vehicle is not registered in the state, notice shall be given to the registered owner within 72 hours from the removal of the vehicle.

(d) Whenever an abandoned or nuisance vehicle is removed and such vehicle has no valid registration or registration plate, the authorizing vehicle removal officer shall make reasonable efforts, including checking the vehicle identification number, to determine the last known registered owner of the vehicle and to notify him of the removal of the vehicle.

(Code 1977, § 8-3004; Code 1993, § 14-62; Ord. of 6-4-1991(1); Ord. of 1-5-1999(1), pt. 1(14-62))

Sec. 26-62. Same—Exceptions to prior notice requirement.

The requirement that notice be given prior to the removal of an abandoned, nuisance or junked motor vehicle may, as determined by the authorizing official, be omitted in those circumstances where there is a special need for prompt action to eliminate traffic obstructions or to otherwise maintain and protect the public safety and welfare. Such findings shall, in all cases, be entered by the authorizing official in the appropriate daily records. Circumstances justifying the removal of vehicles without prior notice include:

- (1) *Vehicles abandoned on the streets.* For vehicles left on the public streets and highways, the town council hereby determines that immediate removal of such vehicles may be warranted when they are:
 - a. Obstructing traffic;
 - b. Parking in violation of an ordinance prohibiting or restricting parking;
 - c. Parking in a no stopping or standing zone;
 - d. Parked in a loading zone;
 - e. Parked in bus zones; or
 - f. Parked in violation of temporary parking restrictions imposed under Code sections.
- (2) *Other abandoned or nuisance vehicles.* With respect to abandoned or nuisance vehicles left on town-owned property other than the streets and highways and on private property, such vehicles may be removed without giving prior notice only in those circumstances where the authorizing official finds a special need for prompt action to protect and maintain the public health, safety and welfare. By way of illustration and

not of limitation, such circumstances include vehicles blocking or obstructing ingress or egress to business and residences, vehicles parked in such a location or manner as to pose a traffic hazard, and vehicles causing damage to public or private property. (Code 1993, § 14-63; Ord. of 1-5-1999(1), pt. 1(14-63))

Sec. 26-63. Same—Right to hearing.

After the removal of an abandoned motor vehicle, junked vehicle or vehicle declared to be a nuisance vehicle, the owner or any other person entitled to possession is entitled to a hearing for the purpose of determining if probable cause existed for removing the vehicle. A request for hearing must be filed in writing with the county magistrate designated by the chief district court judge to receive such hearing requests, and the hearing will be conducted in accordance with the provisions of G.S. 20-219.11.

(Code 1977, § 8-3006; Code 1993, § 14-64; Ord. of 6-4-1991(1); Ord. of 1-5-1999(1), pt. 1(14-64))

Sec. 26-64. Redemption of impounded vehicle.

At any stage in the proceedings, including before the probable cause hearing, the owner may obtain possession of a vehicle removed pursuant to this division by paying the towing fee, including any storage charges, or by posting a bond for double the amount of such fees and charges to the tow truck operator or towing business having custody of the removed vehicle. Upon regaining possession of a vehicle, the owner or person entitled to the possession of the vehicle shall not allow or engage in further violations of this division.

(Code 1977, § 8-3007; Code 1993, § 14-65; Ord. of 6-4-1991(1); Ord. of 1-5-1999(1), pt. 1(14-65))

Sec. 26-65. Disposition of unclaimed impounded vehicle.

Any vehicle declared to be an abandoned, junked or nuisance vehicle under this division which is not claimed by the owner or other party entitled to possession will be disposed of by the tow truck operator or towing business having custody of the vehicle. Disposition of such a vehicle shall be carried out in coordination with the town and in accordance with G.S. 44A-1 et seq.

(Code 1977, § 8-3008; Code 1993, § 14-66; Ord. of 6-4-1991(1); Ord. of 1-5-1999(1), pt. 1(14-66))

Sec. 26-66. Removal of vehicles from private property.

As a general policy, the town will not remove a vehicle from private property if the owner, occupant or lessee of such property could have the vehicle removed under applicable state law procedures. In no case will a vehicle be removed by the town from private property without a written request of the owner, occupant or lessee, except in those cases where a vehicle is declared a nuisance vehicle or is a junked motor vehicle which has been ordered removed by the vehicle removal officer. The town may require any person requesting the

removal of an abandoned, junked or nuisance vehicle from private property to indemnify the town against any loss, expense or liability incurred because of the removal, storage or sale thereof.

(Code 1977, § 8-3009; Code 1993, § 14-67; Ord. of 6-4-1991(1); Ord. of 1-5-1999(1), pt. 1(14-67))

Sec. 26-67. Nonliability of persons disposing of vehicles.

No person shall be held to answer in any civil or criminal action to any owner or other person legally entitled to the possession of an abandoned, junked, or nuisance vehicle, for disposing of such a vehicle as provided in this division.

(Code 1977, § 8-3010; Code 1993, § 14-68; Ord. of 6-4-1991(1); Ord. of 1-5-1999(1), pt. 1(14-68))

Sec. 26-68. Unlawful removal of impounded vehicle.

It shall be unlawful for any person to remove or attempt to remove from any storage facility designated by the town any vehicle which has been impounded pursuant to the provisions of this division, unless and until all towing and impoundment fees which are due, or a bond in lieu of such fees, have been paid.

(Code 1977, § 8-3012; Code 1993, § 14-69; Ord. of 6-4-1991(1); Ord. of 1-5-1999(1), pt. 1(14-69))

Secs. 26-69—26-80. Reserved.

ARTICLE III. NOISE*

Sec. 26-81. Unreasonably loud noise prohibited.

No person shall create or assist in creating any unreasonably loud, disturbing sound levels in the town, taking into consideration volume, duration, frequency and other characteristics of the sound.

(Code 1993, § 14-91; Ord. of 4-7-1992, § 1)

Sec. 26-82. Prohibited noises enumerated.

The following activities, among others, are hereby declared to be unreasonably loud, disturbing sound levels, but such enumeration shall not be deemed to be exclusive:

- (1) The playing of any musical instrument or electronic sound amplification equipment in such manner or with such volume, particularly between the hours of 11:00 p.m. and 7:00 a.m., such that a reasonably prudent person would recognize the sound as likely to unreasonably disturb persons in the vicinity.

***State law reference**—Municipal authority to regulate noise, G.S. 160A-184.

- (2) The keeping of any animal or bird which makes frequent or long continued sounds, such that a reasonably prudent person would recognize the sound as likely to unreasonably disturb persons in the vicinity.
 - (3) The use of any automobile, motorcycle or vehicle so out of repair, so loaded, or in such manner as to create unreasonably loud, disturbing sounds.
 - (4) The use of any electronic sound amplification equipment for advertising or solicitation, except with an appropriate permit.
 - (5) To engage, use, operate or employ unmuffled engine compression brakes on any vehicle or any unit constituting a part thereof on any street within the corporate limits of the town for which one or more signs are posted stating that "Unmuffled Engine Braking Prohibited."
 - a. The term "engine compression brakes" means a device used for the conversion of the vehicle engine from an internal combustion engine to an air compressor for the purpose of slowing or stopping the vehicle without the use of wheel braking systems.
 - b. It shall not be a violation of this subsection during any event deemed an emergency for the purpose of avoiding a collision with another object, person or vehicle.
 - c. This subsection shall not apply to government-owned or operated vehicles.
- (Code 1993, § 14-92; Ord. of 4-7-1992, § 2; Ord. No. 2018-06, 8-7-2018)

Sec. 26-83. Permit authorized for regulated activities; application; appeal upon denial.

(a) Persons wishing to engage in activities regulated by this article may do so when a specific permit is approved by the town council or the police chief or his designee. Applications shall be submitted on forms supplied by the town. The permit shall not be unreasonably withheld and may contain appropriate conditions, including maximum decibel levels, designed to minimize the disruptive impact. Permits for such activities significantly for religious or political purposes shall be granted, subject only to reasonable time, place and manner restrictions. Permits issued under this section may specify that the permission granted will continue for a stated period or until revoked after actual notice. A permit may be revoked if it is determined that the authorized activity has resulted in the generation of unreasonably loud, disturbing sound levels.

(b) In case an application is denied, or a permit is approved with conditions unacceptable to the applicant, or a permit is revoked, the applicant or permit holder shall be entitled to a prompt, informal hearing with the town council, upon submission of a written request. Any person aggrieved by a matter regulated by this article may submit written comments to the police chief, including requests for appropriate relief.

(Code 1993, § 14-93; Ord. of 4-7-1992, § 3)

Sec. 26-84. Violations; penalties.

(a) Any person violating or allowing violation of this article shall be guilty of a misdemeanor and upon conviction shall be fined [at] the discretion of the court not to exceed \$100.00 or 30 days imprisonment.

(b) Each and every day that any person, firm or corporation shall continue such conduct in violation of this article shall be and constitute a distinct and separate offense.

(c) This article may be enforced by injunction or order of abatement.
(Code 1993, § 14-94; Ord. of 4-7-1992, § 4; Ord. No. 2018-06, 8-7-2018)

Sec. 26-85. Unreasonable sound amplification.

(a) Excessive, unreasonably loud noise creates a significant threat to the public health, safety and welfare. There has been an alarming increase in the frequency and volume of noise from the many sound reproducing devices available today. It is the intent of this section to strike an appropriate balance between the right of individuals to obtain information and derive pleasure by listening to radios and other such devices, and the right of the public to a peaceful and healthful environment.

(b) Noise described in subsection (c) of this section is hereby declared unreasonable and dangerous to the public health, safety and welfare and shall be illegal unless exempted herein.

(c) It shall be unlawful for any person to play, use or otherwise operate, either from a motor vehicle or as a pedestrian, any radio, tape player or other sound amplification device emitting sound that is audible from a distance of 50 or more feet from the source of the sound, unless such device is being used to request assistance or warn against an unsafe condition.

(d) This section shall not apply to any of the following:

- (1) Public safety personnel, when responding to an emergency call or engaged in other official business.
- (2) Persons engaged in a lawful assembly, procession or community event.
- (3) The operator of a public utility vehicle, when utilizing two-way communications equipment.
- (4) The operator of a vehicle being used for advertising purposes in accordance with existing ordinances.
- (5) The activation of a theft alarm signal device.

(e) Violation of this section shall be a misdemeanor. The first violation of this section shall result in a penalty of \$100.00. The penalty for a second or subsequent offense thereafter shall be \$300.00.

(Code 1993, § 14-95; Ord. of 1-3-1995(2), § 1; Ord. of 5-2-2006(1))

Chapters 27—29

RESERVED

Chapter 30

FIRE PREVENTION AND PROTECTION*

- Sec. 30-1. Adoption of fire prevention code.
- Sec. 30-2. Fire protection service generally.
- Sec. 30-3. Fire protection service outside town limits.
- Sec. 30-4. Regulation of open burning.
- Sec. 30-5. Knox boxes.

***State law reference**—Fire prevention in municipalities, G.S. 160A-291—160A-293.

Sec. 30-1. Adoption of fire prevention code.

The fire prevention code of the state building code is hereby adopted by reference, as fully as though set forth in this section, as the fire prevention code for the town. An official copy of the code shall be kept on file in the office of the clerk.

(Code 1977, § 3-2021; Code 1993, § 16-1)

Sec. 30-2. Fire protection service generally.

The town will provide fire protection to its residents through the town fire department.

(Code 1977, § 3-2001; Code 1993, § 16-2; Ord. No. 2025-16, § 1, 9-2-2025)

Sec. 30-3. Fire protection service outside town limits.

The town fire department is hereby authorized to provide fire protection to persons or property lying outside the town limits if, and only if, a duly executed contract exists between the town and Rowan County.

(Code 1977, § 3-2002; Code 1993, § 16-3; Ord. No. 2025-16, § 1, 9-2-2025)

State law reference—Fire protection outside town limits, G.S. 160A-293.

Sec. 30-4. Regulation of open burning.

(a) *Definitions.* The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where title context clearly indicates a different meaning:

Open burning means the burning of any matter in such a manner that the products of combustion resulting from the burning are emitted directly into the atmosphere without passing through a chimney.

Fire pit means belowground pits, freestanding fireplaces, and portable devices intended to contain and control outdoor fires.

Building rubbish means waste material resulting from construction, remodeling, repairs and demolition operations on houses, commercial buildings and other structures, including driveways and walkways.

Yard waste means vegetative waste including leaves, grass clippings, tree trimmings, and other plant materials.

Garbage means all refuse, animal, fruit and other vegetable matter, all tin cans and glassware, and all rags, wastepaper, floor sweepings and other combustible refuse.

(b) *Prohibited burning.* It shall be unlawful for any person to set fire to any building rubbish, yard waste, and industrial waste or garbage. Open burning that is offensive or objectionable because of smoke or odor emissions, or when atmospheric conditions or local circumstances make such fires hazardous, shall be prohibited.

(c) *Prohibited burning in public places.* It shall be unlawful to open burn on any property owned by the town unless approved by the fire chief. Any outdoor cooking on approved grills will be permitted.

(d) *Exceptions.* Exceptions shall include only the following:

- (1) Open burning for campfires and outdoor cooking is permitted without any burning permit if performed in an approved container constructed of steel, brick, or masonry.
- (2) Open burning in approved portable containers and outdoor fireplaces is permitted.

(e) *Extinguishment authority.* The town fire department is authorized to order the extinguishment by the responsible person of any burning that creates or adds to a hazardous or objectionable situation.

(f) *Fire pits.* Includes belowground pits, freestanding fireplaces, and portable devices intended to contain and control outdoor fires.

- (1) All belowground fire pits shall be at least four inches in depth and shall be surrounded on the outside aboveground by a non-combustible material such as steel, brick, or masonry. The fire pit cannot exceed three feet in diameter. Nor may the fire pile exceed two feet in height.
- (2) Fire pits must be used in accordance with the manufacturer's specifications and the following regulations:
 - a. Only natural firewood and/or commercial logs may be burned. Burning of leaves, yard waste, paper, cardboard, garbage and similar items is not permitted;
 - b. All fire pits must be located away from any structure or combustible material;
 - c. Belowground fire pits and freestanding fireplaces must be located at a minimum of 25 feet away from any structure or combustible material;
 - d. Portable fire pits must be located at a minimum of 15 feet away from any structure or combustible material;
 - e. The fire must be constantly attended and supervised until the fire has been completely extinguished;
 - f. A portable fire extinguisher or other approved extinguishing equipment, such as a garden hose of sufficient length, must be readily available.

(g) *Violation.* A violation of this section is punishable as a misdemeanor.
(Code 1977, § 4-2010; Code 1993, § 16-4; Ord. No. 2025-16, § 1, 9-2-2025)

Sec. 30-5. Knox boxes.

(a) *Knox box required for new commercial buildings.* All new commercial buildings shall have installed a knox box, of a UL type and size approved by the town's fire chief or official in a location specified by the towns fire official prior to the issuance of the permit of occupancy.

(b) *Knox box required for existing commercial buildings with improvements.* All existing commercial buildings constructing improvements that require planning board approval shall have installed a knox box, of a UL type and size approved by the town's fire official, in a location specified by the fire official prior to the issuance of the construction permit.

(c) *Knox box required for existing commercial buildings.* All existing commercial buildings equipped with automatic fire detection and/or suppression system shall have installed a knox box, of a UL type and size approved by the town's fire official, in a location specified by the towns fire official within six months of the effective date of this section.

(d) *Knox box required for multi-family residential structures.* All multi-family residential structures that have restricted access through locked doors and have a common corridor for access to the living units shall have installed a knox box, of a UL type and size approved by the town's fire official, in a location specified by the town's fire official within six months of the effective date of this section.

(e) *Knox box contents.* All knox boxes shall contain labeled keys, easily identified in the field to provide access into the property and/or building, and to any locked areas within the said building as the town's fire official may direct.

(f) *Penalties.* Any property or building owner failing to comply with, or in violation of the terms of this article after notice from the town's fire official, shall be subject to a fine of \$500.00. Each day a violation shall continue shall constitute a separate offense at the rate of \$100.00 a day until corrected.

(g) *Definitions.* "Knox box" means a secure rapid entry system that is designed to be used by fire department personnel in the event of an emergency to gain entry into a structure by using the enclosed owner provided key(s). This box is usually mounted on the exterior of the building in a location that is specified by the local fire official. All boxes shall be UL (underwriters laboratories) certified and approved by the township fire official.
(Ord. of 3-1-2016(2); Ord. No. 2017-04, 3-4-2017)

Chapters 31—33

RESERVED

Chapter 34

LAW ENFORCEMENT*

Article I. In General

Secs. 34-1—34-18. Reserved.

Article II. Police Department

- Sec. 34-19. Composition.
- Sec. 34-20. Appointment and duties of chief of police.
- Sec. 34-21. Operation policies.

***State law reference**—Law enforcement, G.S. 160A-281 et seq.

ARTICLE I. IN GENERAL

Secs. 34-1—34-18. Reserved.

ARTICLE II. POLICE DEPARTMENT*

Sec. 34-19. Composition.

The police organization of the town shall consist of the chief of police, and as many other police officers as the town council shall from time to time provide.
(Code 1977, § 3-1001; Code 1993, § 18-31; Ord. of 2-2-2016)

Sec. 34-20. Appointment and duties of chief of police.

The chief of police shall be appointed by the town manager and shall have control over the police department under the supervision of the town manager. The chief shall keep the town manager informed of the department's activities and make such reports as the manager may from time to time require, and he shall perform such other duties as may be required of him by the town manager.
(Code 1977, § 3-1002; Code 1993, § 18-32; Ord. of 2-2-2016)

Sec. 34-21. Operation policies.

For all matters pertaining to the government of the police department not provided for by law or by this Code, the chief of police shall recommend, for the approval of the town manager, police department policies. The chief of police shall promulgate and enforce such policies within the police department in accordance with the personnel policy manual.
(Code 1977, § 3-1003; Code 1993, § 18-33; Ord. of 2-2-2016)

***State law references**—Municipal authority to establish police department, G.S. 160A-281; municipality may authorize auxiliary law enforcement personnel, G.S. 160A-282; police powers, G.S. 160A-285; jurisdiction to exercise powers, G.S. 160A-286.

Chapter 35—37

RESERVED

Chapter 38

OFFENSES*

Article I. In General

- Sec. 38-1. Damaging town property.
- Sec. 38-2. Littering.
- Sec. 38-3. Posting of signs on public property.
- Sec. 38-4. Reserved.
- Sec. 38-5. Abandoned airtight containers.
- Sec. 38-6. Loitering for the purpose of engaging in drug-related activity.
- Sec. 38-7. Stopping of a suspect and request for identification.
- Sec. 38-8. Security alarm systems.
- Sec. 38-9. Campaign signs on state highway system roads.
- Secs. 38-10—38-32. Reserved.

Article II. Weapons

- Sec. 38-33. Restrictions on carrying deadly weapon.
- Sec. 38-34. Possession of certain weapons prohibited in public places.
- Sec. 38-35. Discharge of firearms and other weapons firing projectile.
- Sec. 38-36. Weapons on town property.
- Secs. 38-37—38-70. Reserved

Article III. Juvenile Curfew

- Sec. 38-71. Purpose.
- Sec. 38-72. Definitions.
- Sec. 38-73. Applicability.
- Sec. 38-74. Violations.
- Sec. 38-75. Exceptions.
- Sec. 38-76. Defense.
- Sec. 38-77. Enforcement.
- Sec. 38-78. Penalties.

***State law references**—State criminal code, G.S. 14-1 et seq.; violation of local ordinance a misdemeanor, G.S. 14-4.

ARTICLE I. IN GENERAL**Sec. 38-1. Damaging town property.**

No person shall injure, tamper with, remove, paint upon or deface any bridge, culvert, ditch and drain, sign, signpost, streetlight, traffic signal, bulletin board or other municipal property upon the streets and sidewalks or elsewhere, except the employees of the town in the performance of their duties.

(Code 1977, § 4-1032; Code 1993, § 20-1)

State law references—Injury of real property, G.S. 14-127; injury to public buildings and facilities, G.S. 14-132.

Sec. 38-2. Littering.

(a) *Prohibited.* It shall be unlawful for any person to throw or deposit upon any street or sidewalk or upon any private property, except with written permission of the owner or occupant of such private property, any trash, refuse, garbage, building material, cans, bottles, broken glass, paper or other type of litter.

(b) *Throwing litter from vehicle.* It shall be unlawful for any person while a driver or a passenger in a vehicle to throw or deposit litter upon any street or other public place within the town or upon private property.

(c) *Penalty.* Any person found guilty of violating subsections (a) or (b) of this section shall be guilty of a misdemeanor and shall be punished in accordance with section 1-6.

(Code 1977, §§ 6-2011—6-2013; Code 1993, § 20-2)

State law references—Littering, G.S. 14-399; dumping litter, G.S. 14-399.1.

Sec. 38-3. Posting of signs on public property.

It shall be unlawful for any person to tack, post, tie or otherwise attach any advertising sign, poster, campaign signs or placard upon any public property or upon any pole, tree, post, building or other structure located on public property in the town or within the municipal right-of-way. This section does not apply to signs of a permanent nature erected after obtaining a written license from the town, or to any other sign specifically permitted by the Code.

(Code 1977, § 8-6009; Code 1993, § 20-3; Ord. of 8-1-1989(2), § 1; Ord. of 6-5-2012)

Sec. 38-4. Reserved.

Editor's note—Ord. No. 2024-14, adopted June 4, 2024, repealed § 38-4, which pertained to the consumption of alcoholic beverages prohibited in certain places; disposal of containers and derived from prior Code 1977, § 6-1071; prior Code 1993, § 20-4; and Ord. No. 2016-13, § 1, adopted Dec. 6, 2016.

Sec. 38-5. Abandoned airtight containers.

(a) It shall be unlawful for any person to leave outside of any building or dwelling or in any place accessible to children any unattended, abandoned or discarded icebox, refrigerator or other container of any kind which has an airtight door which, when closed, may not be released for opening from the inside of the icebox, refrigerator or other container.

(b) It shall be unlawful for any person to leave outside any building or dwelling or in any place accessible to children any unattended, abandoned or discarded icebox, refrigerator or other container of any kind which has a snap lock or other locking device thereon which may not be released from the inside, without first removing the snap lock or other locking device or the doors from the icebox, refrigerator or other container.

(Code 1977, §§ 8-6015, 8-6016; Code 1993, § 20-5)

Sec. 38-6. Loitering for the purpose of engaging in drug-related activity.

(a) For the purposes of this section, the term "public place" means any street, sidewalk, bridge, alley or alleyway, plaza, park, driveway, parking lot or transportation facility, or the doorways and entranceways to any building which fronts on any of those places, any school, schoolyard or playground, or a motor vehicle in or on any of those places or any property owned by the town.

(b) For the purpose of this section, the term "known unlawful drug user, possessor, or seller" means a person who has, within the knowledge of the arresting officer, been convicted in any court within the state of any violation involving the use, possession or sale of any of the substances referred to in the Controlled Substances Act, G.S. 90-86 et seq., or who has been convicted of any violation of any substantially similar laws of any political subdivision of the state or of any other state or of federal law.

(c) It shall be unlawful for a person to remain or wander about in a public place in a manner and under circumstances manifesting the purpose to engage in a violation of any subdivision of the Controlled Substances Act, G.S. 90-86 et seq. Such circumstances shall include:

- (1) Repeatedly beckoning to, stopping, or attempting to stop passersby, or repeatedly attempting to engage passersby in conversation;
- (2) Repeatedly stopping or attempting to stop motor vehicles;
- (3) Repeatedly interfering with the free passage of other persons;
- (4) Such person is a known unlawful drug user, possessor, or seller;
- (5) Such person behaves in such a manner as to raise a reasonable suspicion that he is about to engage in or is engaged in any unlawful drug-related activity;
- (6) Such person repeatedly passes to or receives from passersby, whether on foot or in a vehicle, money or objects;
- (7) Such person takes flight upon the approach or appearance of a police officer;
- (8) Such person is at a location frequented by persons who use, possess, or sell drugs; or
- (9) Any vehicle involved is registered to a known unlawful drug user, possessor, or seller, or is known to be or have been involved in drug-related activities.

(d) A violation of any provisions of this section shall subject the offender to the penalties set forth in section 1-6.

(Code 1993, § 20-6)

Sec. 38-7. Stopping of a suspect and request for identification.

(a) A police officer may stop any person who he reasonable suspects is committing, has committed, or is about to commit a crime and may require him to give his full name, current address and identification if available. A police officer shall not require any person who is stopped pursuant to this section to produce or divulge such a person's social security number. The stopping shall not constitute an arrest.

(b) Any person who provides false information under subsection (a) of this section shall be in violation of this section.

(c) Any person who willfully refuses to comply with subsection (a) of this section or who knowingly gives false information under subsection (b) of this section is in violation of this section and, upon conviction, shall be guilty of a class 1 misdemeanor.

(Ord. of 5-2-2006(2), § 1-2)

Sec. 38-8. Security alarm systems.

(a) Every alarm system user shall obtain a permit for each alarm system that such owner operates within the town from the police department. The alarm system user shall state on the permit application form:

- (1) The name, address and telephone number of each person in control of the property;

- (2) The street address of the property on which the alarm system has been or will be installed;
- (3) The type of alarm system; and
- (4) The name, address and telephone number of persons who can be reasonably expected to be available at any time, day or night, and who are authorized by the alarm system user to respond to and open the premises in which the alarm system is installed. The alarm system user shall be responsible for ensuring that all information on the permit is current and valid.

(b) Upon approval of the application by the police chief, a permit shall be issued for a fee of \$5.00. Each permit for a business shall be available at the premises wherein the alarm system is installed and shall be available for inspection by the chief of police or fire chief during normal business hours.

(c) Any alarm system user who operates an alarm system without a permit as required by this article shall be assessed a civil penalty of \$25.00 for failure to secure said permit. If, however, at the time of the first false fire or police alarm, the alarm system user has not obtained a permit, the user will not be assessed a civil penalty so long as such user obtains a permit within ten days of the occurrence of the first false fire or police alarm.

(d) When the possession of the premises at which an alarm system is maintained is transferred, the person obtaining possession of the property shall file an application for an alarm user permit. Alarm permits are not transferable.

(e) An activation of an alarm system that elicits a response by the police department or fire department, when no situation requiring such a response exists, shall be considered a false alarm. This includes accidental, avoidable, and unnecessary alarm activation due to user error, equipment malfunction, and improper or unsuited equipment, but does not include alarm activation caused by violent conditions of nature or other extraordinary circumstances not reasonably subject to control by the alarm user or alarm system business. An alarm activated during the alarm system testing procedures shall not be counted if the alarm user first notifies the town police department.

(f) If the police department and/or fire department responds to more than four false alarms in a 12-month period, the alarm system user shall be assessed a civil penalty according to the following schedule

- (1) Fifth and sixth alarms, \$25.00 for police response, \$50.00 for fire response.
- (2) Seventh and eighth alarms, \$50.00 for police response, \$100.00 for fire response.
- (3) Ninth and tenth alarms, \$100.00 for police response, \$200.00 for fire response.
- (4) Every other false alarm response thereafter results in a doubling of the previous civil penalty.

(g) All audible alarms must be reset and cease to sound after ten minutes of continuous activation. An alarm that sounds continuously in excess of ten minutes from the time officers arrive at the alarm location shall be deemed a false alarm and subject the alarm system user to a civil penalty of \$25.00.

(h) If the police department and/or fire department responds to more than ten false alarms in a 12-month period, the alarm system user shall be required to cause the alarm system to be inspected by a licensee of the state to install and inspect alarm systems. Until such inspection is performed, the alarm system user will be assessed an additional civil penalty of \$50.00 for each subsequent false alarm.

(Ord. of 2-3-1998, pt. I)

Sec. 38-9. Campaign signs on state highway system roads.

No person shall erect or maintain upon any highway or traffic sign or signal bearing thereon any commercial or political advertising, except as provided in subsections (1) through (4) of this section; provided, nothing in this section shall be construed to prohibit the erection or maintenance of signs, markers or signals bearing thereon the name of an organization authorized to erect the same by the department of transportation or by any local authority referred to in G.S. 136-31. Any person who shall violate any of the provisions of this section shall be guilty of a Class 1 misdemeanor. The department of transportation may remove any signs erected without authority or allowed to remain beyond the deadline established in subsection (1) of this section.

- (1) *Compliant political signs permitted.* During the period beginning on the thirtieth day before the beginning date of "one-stop" early voting under G.S. 163-227.2 and ending on the tenth day after the primary or election day, persons may place political signs in the right-of-way of the state highway system as provided in this section. Signs must be placed in compliance with subsection (3) of this section and must be removed by the end of the period prescribed in this subsection.
- (2) *Definition.* For purposes of this section, "political sign" means any sign that advocates for political action. The term does not include a commercial sign.
- (3) *Sign placement.* The permittee must obtain the permission of any property owner of a residence, business, or religious institution fronting the right-of-way where a sign would be erected. Signs must be placed in accordance with the following:
 - a. No sign shall be permitted in the right-of-way of a fully controlled access highway.
 - b. No sign shall be closer than three feet from the edge of the pavement of the road.
 - c. No sign shall obscure motorist visibility at an intersection.
 - d. No sign shall be higher than 42 inches above the edge of the pavement of the road.
 - e. No sign shall be larger than 864 square inches.
 - f. No sign shall obscure or replace another sign.

- (4) *Penalties for unlawful removal of signs.* It is a Class 3 misdemeanor for a person to steal, deface, vandalize or unlawfully remove a political sign that is lawfully placed under this section.

(Ord. of 6-5-2012)

Secs. 38-10—38-32. Reserved.

ARTICLE II. WEAPONS*

Sec. 38-33. Restrictions on carrying deadly weapon.

It is hereby declared unlawful for any person to carry about his person any firearm or deadly weapon under any circumstances or conditions:

- (1) In public-owned buildings; or
- (2) On the grounds or parking areas of those buildings; or
- (3) In parks and recreation areas.

This section shall not apply to members of the United States Armed Forces or law enforcement officers, or a duly authorized town employee or persons who possess a valid concealed carry permit.

(Code 1977, § 8-6003; Code 1993, § 20-31; Ord. of 7-10-1979; Ord. of 3-5-2013)

Sec. 38-34. Possession of certain weapons prohibited in public places.

(a) *Definitions.* The following words, terms, and phrases, when used in this section, shall have the meanings attributed to them in this subsection, except where the context clearly indicates a different meaning, and all are hereby declared to be dangerous weapons:

Billy club means any stick, bat or similar device having a blunt end, being constructed of wood, metal or similar material, and which may inflict serious injury when used as a club or bludgeon, commonly referred to as a "Billy club."

Nunchaku means any device constructed, manufactured or assembled so as to be made of pieces of wood or other material joined together by a section of cord, rope, chain or other similar material, having no other purpose except to be used as a weapon, and commonly known as a "nunchaku."

Star means any star-shaped device made of tin, iron or other metal, with pointed or abrasive tips, designed to be aerodynamically stable in flight and to inflict bodily harm when thrown against the person of another.

Switchblade knife means any knife having a spring-loaded blade in excess of three inches in length and which is commonly referred to as a "switchblade knife."

***State law references**—Municipal authority to restrict, regulate, etc., weapons generally, G.S. 160A-183; authority to regulate discharge of firearms, G.S. 160A-189.

(b) *Possession prohibited.* It shall be unlawful for any person to carry or have in his possession or within his immediate access a dangerous weapon, as defined in this section, when going upon the public streets or other public ways, and when a person is within or upon the premises of any establishment which is open to the public within the corporate limits of the town. For purposes of this section, the carrying of any of the dangerous weapons defined in this section in an unlocked glove compartment, upon the dashboard, or under or upon the front and rear seats of an automobile shall be defined as being within the immediate access of the owner or occupant of any automobile in which any of the enumerated dangerous weapons are found.

(c) *Confiscation.* Any member of the police department shall have the authority to confiscate any such dangerous weapon as described in this section.

(Code 1977, §§ 8-6006—8-6008; Code 1993, § 20-32)

Sec. 38-35. Discharge of firearms and other weapons firing projectile.

No person shall fire or discharge any firearm within the corporate limits of the town, unless such firing or discharge is lawfully used in defense of a person or property in accordance with North Carolina self-defense laws. Firearms and weapons shall be defined as set forth in North Carolina General Statutes. This section shall not apply to the following:

- (1) BB/pellet guns may be fired on private property with the permission of the owner as long as the projectile does not leave the owner's property.
- (2) Bow and arrow and crossbows may be fired on private property with the permission of the owner as long as the projectile does not leave the owner's property.

(Code 1977, § 8-6004; Code 1993, § 20-33; Ord. of 7-11-1989, § 1; Ord. of 1-3-2012(2); Ord. of 3-5-2013)

Sec. 38-36. Weapons on town property.

It shall be unlawful for any person to possess, carry, whether openly or concealed any weapon, not used solely for instructional or town sanctioned ceremonial purposes, in any town building, on any property owned, used, or operated by the town. Weapons shall be defined as set forth in North Carolina General Statutes. This section shall not apply to the following persons:

- (1) All law enforcement officers.
- (2) Student members of the (ROTC) who carry weapons in the performance of their duties.
- (3) Any person who possess a valid concealed carry permit.
- (4) Any person violating the provisions of this section shall be guilty of a misdemeanor and upon conviction shall be punished in the discretion of the court by fine or imprisonment or both such fine and imprisonment, not to exceed \$500.00 fine or six months imprisonment.

(Ord. of 5-4-1993; Ord. of 3-5-2013)

Secs. 38-37—38-70. Reserved

ARTICLE III. JUVENILE CURFEW**Sec. 38-71. Purpose.**

The purpose of this article is to protect juveniles from victimization and exposure to criminal activity by establishing a curfew for juveniles under the age of 16 years in the town. This article is intended to reinforce and promote the role of the parent in training and guiding children, and promote the health, safety, and welfare of both juveniles and adults by creating an environment offering better protection and security for all concerned.

(Ord. of 6-4-1996, § 1(20-7(A)))

Sec. 38-72. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Direct route means the shortest reasonable path of travel or a commonly used route to reach a final destination without any detour or stop along the way.

Emergency means an unforeseen combination of circumstances or the resulting state that calls for immediate action. The term includes, but is not limited to, a fire, a natural disaster, an automobile accident, or any situation requiring immediate action to prevent serious bodily injury or death. This term also shall include any action that is reasonably necessary in order to respond to the medical needs of a family member of the juvenile regardless of whether the juvenile's action is taken in order to prevent death or serious bodily injury.

Establishment means any privately owned place of business operated for profit to which the public has access or is invited including but not limited to any place of amusement or entertainment.

Guardian means a person who is court-appointed to be the guardian of a juvenile.

Juvenile means any person under the age of 16 years.

Owner/operator means any individual, firm, association, partnership or corporation, operating, managing or conducting any establishment, including the employees, members or partners of an association or partnership and the officers of a corporation.

Parent means a person who is a natural parent, adoptive parent, foster parent, or stepparent of another person, or a person to whom legal custody has been given by court order.

Public place means any place that is generally open to and used by the public or a substantial group of the public, whether it is publicly or privately owned, including but not limited to, streets, sidewalks, highways, alleys, rights-of-way, public vehicular areas and parking lots, transportation facilities, theaters, restaurants, shops, bowling alleys, schools and schoolgrounds, places of business and amusement, playgrounds, parks, similar areas that are open to the public, and other common areas open to or accessible to the public.

Remain means to linger or stay in a public place, or to fail to leave the premises when requested to do so by a police officer, or fail to leave the premises of an establishment when requested to do so by the owner/operator or employee of the premises.

Restricted hours. The time of night referred to in this article is based upon the prevailing standard of time, whether Eastern Standard Time or Eastern Daylight Saving Time, generally observed at that hour by the public in the town. The term "restricted hours" means:

- (1) From 11:00 p.m. on any Sunday, Monday, Tuesday, Wednesday, or Thursday until 6:00 a.m. of the following day; and
 - (2) From 12:01 a.m. until 6:00 a.m. on any Friday or Saturday.
- (Ord. of 6-4-1996, § 1(20-7(B)))

Sec. 38-73. Applicability.

If any section, subsection, sentence, term, or exception of this article, or any application thereof to any person or circumstance is adjudged to be unconstitutional or invalid, such adjudication shall not affect the validity of any remaining portion of this article or its application to any other person or circumstance. The town council does not intend a result through the enforcement of this article that is absurd, impossible of execution or unreasonable. The town council intends that the article be held inapplicable in such cases, if any, where its application would be unconstitutional under the state constitution or under the Constitution of the United States of America.

(Ord. of 6-4-1996, § 1(20-7(H)))

Sec. 38-74. Violations.

Except as provided by section 38-75, the following offenses constitute a violation of this article:

- (1) A juvenile commits an offense by being present in or remaining in any public place or on the premises of any establishment within the town during the restricted hours.
- (2) A parent or guardian of a juvenile commits an offense if he/she knowingly permits or, by insufficient control, allows the juvenile to remain in any public place or on the premises of any establishment within the town during the restricted hours. The term "knowingly" includes knowledge that a parent should reasonably be expected to have concerning the whereabouts of a juvenile in that parent's legal custody. This requirement is intended to hold a neglectful or careless parent up to a reasonable community standard of parental responsibility through an objective test. It shall, therefore, be no defense that a parent was completely indifferent to the activities or conduct or whereabouts of such juvenile.
- (3) The owner, operator, or any employee of an establishment commits an offense if he/she knowingly allows a juvenile to remain upon the premises of the establishment during the restricted hours. The term "knowingly" includes knowledge that an operator or employer should reasonably be expected to have concerning the patrons of an

establishment. The standard for "knowingly" shall be applied through an objective test: whether a reasonable person in the operator's or employee's position should have known that the patron was a juvenile in violation of this article.

- (4) It shall be a violation of this article for any person 16 years of age or older to aid or abet a juvenile in the violation of subsection (1) of this section.
 - (5) It shall be a violation of this article for a parent or guardian to refuse to take custody during the restricted hours of a juvenile for whom the parent or guardian is responsible.
- (Ord. of 6-4-1996, § 1(20-7(C)))

Sec. 38-75. Exceptions.

A juvenile who is in a public place or establishment during the restricted hours shall not be in violation of this article if the juvenile is:

- (1) Accompanied by his parent or guardian.
- (2) Accompanied by an adult 18 years of age or older authorized by the parent or guardian of such juvenile to take the parent or guardian's place in accompanying the juvenile for a designated period of time and purpose within a specified area.
- (3) On an errand, using a direct route, at the direction of the juvenile's parent or guardian until the hour of 12:30 a.m.
- (4) In a motor vehicle with parental consent engaged in interstate travel through the town or originating or terminating in the town.
- (5) Traveling in a motor vehicle with a parent or guardian, or traveling in a motor vehicle with an adult 18 years of age or older authorized by the parent or guardian of such juvenile to take the parent or guardian's place In accompanying the juvenile for a designated period of time and purpose within a specified area.
- (6) Engaged in a lawful employment activity, or using a direct route to or from a place of employment.
- (7) Reacting or responding to an emergency.
- (8) Attending or traveling to or from, by direct route, an official school, religious, or recreational activity that is supervised by adults and sponsored by a public or private school, the town or other governmental entity, a civic organization, or another similar entity that accepts responsibility for the juvenile.
- (9) Exercising First Amendment rights protected by the United States Constitution, such as the free exercise of religion, freedom of speech, and the right of assembly.
- (10) Married or emancipated.
- (11) When authorized, by special permit from the chief of police or his designee carried on the person of the juvenile thus authorized, as follows: When necessary nighttime activities of a juvenile may be inadequately provided for by other provisions of this

article, then recourse may be had to the chief of police, or his designee, either for a regulation as provided in this subsection (11) or for a special permit as the circumstances warrant. Upon the findings of reasonable necessity for the use of a public place to the extent warranted by a written application signed by a juvenile, and by a parent of the juvenile, if feasible, stating:

- a. The name, age, and address of the juvenile;
- b. The name, address, and telephone number of the parent thereof;
- c. The height, weight, sex, color of eyes and hair and other physical characteristics of the juvenile;
- d. The necessity that requires the juvenile to remain upon a public place during the restricted hours otherwise applicable;
- e. The public place; and
- f. The beginning and ending of the period of time involved by date and hour;

the chief of police or his designee may grant and permit in writing for the juvenile's use of a public place at such hours as in the opinion of the chief of police may reasonably be necessary and consistent with the purposes of this article.

(Ord. of 6-4-1996, § 1(20-7(D)))

Sec. 38-76. Defense.

It is a defense to prosecution under section 38-74(3) that the owner, operator, or employee of an establishment promptly notified the police department that a juvenile was present on the premises of the establishment during the restricted hours and refused to leave.

(Ord. of 6-4-1996, § 1(20-7(E)))

Sec. 38-77. Enforcement.

(a) Before taking any enforcement action under this article, a police officer shall ask the apparent offender's age and reason for being in the public place or establishment during restricted hours.

(b) The officer shall not prepare a juvenile arrest report, issue a citation, or make an arrest under this article unless the officer reasonably believes that an offense has occurred and that, based on any response and other circumstances, no exception or defense in section 38-75 or section 38-76 is present.

(Ord. of 6-4-1996, § 1(20-7(F)))

Sec. 38-78. Penalties.

(a) A juvenile who violates any provision of this article is subject to be adjudicated delinquent. The court may, in its discretion, impose any dispositional alternatives that are provided in the state juvenile code for any juvenile who is delinquent.

(b) Any person other than a juvenile who violates any provision of this article shall be guilty of a misdemeanor and shall be subject to a fine not to exceed \$100.00, and imprisonment in the discretion of the court in accordance with G.S. 14-4.

(Ord. of 6-4-1996, § 1(20-7(G)))

Chapters 39—41

RESERVED

Chapter 42

PARKS AND RECREATION*

Article I. In General

Sec. 42-1. Registered sex offenders in town parks and recreation centers.
Secs. 42-2—42-18. Reserved.

Article II. Use of Parks and Recreation Areas

Sec. 42-19. Permit for use of facilities.
Sec. 42-20. Hours of operation.
Sec. 42-21. Vehicles.
Sec. 42-22. Destruction of town property.
Sec. 42-23. Firearms and other weapons.
Sec. 42-24. Posting of advertisements.
Sec. 42-25. Selling; peddling.
Sec. 42-26. Fires.
Sec. 42-27. Excavations.
Sec. 42-28. Games and sports.
Sec. 42-29. Animals running at large; horseback riding.
Sec. 42-30. Injuring plant material.
Sec. 42-31. Molesting animals.

***State law reference**—Municipal authority to provide for recreational facilities, G.S. 160A-350 et seq.

ARTICLE I. IN GENERAL**Sec. 42-1. Registered sex offenders in town parks and recreation centers.***(a) Definitions:*

- (1) *Town* means Town of China Grove.
- (2) *Department* means the Town of China Grove Public Works and Park and Recreation Department.
- (3) *Park* means all parks, playgrounds, recreation centers, greenway, water areas, wildlife refuges, nature preserves or other recreation areas, including any adjacent public parking area as well as the driveway, entrance way or pedestrian walkway used by the public to access the park or recreation center, developed or undeveloped, and structures thereon, owned, operated, jointly operated, leased or managed by town.
- (4) *Official meeting* means a meeting that is required to be open to the public by the Open Meetings Law, G.S. ch. 143, art. 33C.
- (5) *Recreation center* means any publicly owned, leased, operated, jointly operated, or maintained property that is designated or used as a recreation center by the town, including any adjacent public parking area as well as the driveway, entrance way or pedestrian walkway used by the public to access the recreation facility.
- (6) *Registered sex offender* means an individual who is required to register or is registered with the North Carolina Sex Offender and Public Protection Registry (NCGS) or the Dru Sjodin National Sex Offender Public Registry (NCDOJ), or any other official state or federal registered sex offender listing maintained by either the United States Department of Justice or any of the several states. For purposes of determining if an individual is registered or is required to register with any one of the official registries, law enforcement officers may rely upon the official website of any state or federal registry of sex offenders and the descriptions published and available from such registry.

(b) Areas in which smoking and tobacco use is prohibited.

- (1) No registered sex offender shall enter into or upon any park or recreation center owned or operated or maintained by the town except as permitted by subsection (c) of this section.

(c) Limited exceptions.

- (1) *Polling places.* When a park or recreation center is used as a polling place for an election, the registered sex offender may enter for the limited purpose of voting if he/she has the right to vote and qualifies to do so at that polling place.

- (2) *Official meetings.* A registered sex offender who has the right to be present at an official meeting shall have the limited privilege of entering on and into a park or recreation center for such time as is necessary to attend said meeting or function, but any form of loitering or lingering shall be violation of this section.

The privilege shall only extend to those parts of the park and/or recreation center that are commonplace for meetings of that and any registered sex offender found outside of those parts shall be punished as outlined in subsection (d) below.

- (3) *Consistence with the Jessica Lunsford Act.* After November 30, 2008, any action prohibited by this section that would also be in violation of G.S. 14-208.18 (2008) shall no longer be considered a violation of this section.

(d) *Enforcement and penalties:*

- (1) Duly sworn law enforcement officers with jurisdiction within the Town of China Grove parks and recreation centers shall have the authority to enforce this section.
- (2) A law enforcement officer may detain a person within the Town of China Grove parks and recreation centers under this section for a reasonable amount of time to inquire about that person's status as a registered sex offender if the officer reasonably believes, or has probable cause to believe, that the person is a registered sex offender who is in violation of this section or has committed a crime for which the person, if convicted, could be required to register as a sex offender. Nothing in this section shall limit a law enforcement officer from running any background check that is currently permissible under the law.
- (3) Violation of this section shall be a Class 3 misdemeanor and shall be punishable by a fine of up to \$500.00 and/or incarceration for a period of time as outlined in G.S. 15A-1340.20 et seq. Each and every entrance into a park or recreation center as defined herein, regardless of the time period between such entries, shall constitute a separate offense under this section and shall subject the registered sex offender to a separate penalty.

(e) *Notification.* The town manager or his designee shall post this regulation at the main entrance of each park and/or recreation area within 30 days of passage of this section.

(Ord. of 2-4-2014)

Editor's note—An ordinance adopted Feb. 4, 2014, did not specify manner of inclusion; hence, codification as § 42-1 was at the discretion of the editor.

Secs. 42-2—42-18. Reserved.

ARTICLE II. USE OF PARKS AND RECREATION AREAS**Sec. 42-19. Permit for use of facilities.**

Before an activity, other than those activities carried on by the town, can be scheduled at or on any park or recreation area, the following procedure must be followed and regulations complied with:

- (1) *Application.* A person seeking issuance of a permit under this section shall file an application with the town containing the following:
 - a. The name and address of the applicant, group or organization.
 - b. The name and address of the person sponsoring the activity, if any.
 - c. The day and hours for which the permit is desired.
 - d. The park or portion thereof for which such permit is desired.
 - e. An estimate of the anticipated attendance.
 - f. Any other information which the town shall find reasonably necessary to a fair determination as to whether a permit shall be issued under this section.
- (2) *Standards for issuance.* The town shall issue a permit under this section when it is found that the:
 - a. Proposed activity or use of the park will not unreasonably interfere with or detract from the general public enjoyment of the park.
 - b. Proposed activity and use will not unreasonably interfere with or detract from the promotion of public health, welfare, safety and recreation.
 - c. Proposed activity or use is not reasonably anticipated to incite violence, crime or disorderly conduct.
 - d. Proposed activity will not entail unusual, extraordinary or burdensome expense or police operation by the town.
 - e. Facilities desired have not been reserved for other use at the day and hour required in the application.
- (3) *Compliance with park rules.* A permittee shall be bound by all park rules and regulations and all applicable ordinances as fully as though the rules and regulations and ordinances were inserted in the permit.
- (4) *Liability of permittee.* The person to whom a permit is issued shall be liable for any loss, damage or injury sustained by any person whatever by reason of the negligence of the person to whom such permit has been issued.

(Code 1977, § 4-4017; Code 1993, § 22-31)

Sec. 42-20. Hours of operation.

All town parks and recreation areas shall be open to the public between sunrise and midnight or as posted on each day.

(Code 1977, § 4-4001; Code 1993, § 22-32)

Sec. 42-21. Vehicles.

It shall be unlawful for any person to drive or propel any motor vehicle, minibike, motorcycle or other vehicle in, over, or through any park, except along and upon park drives, parkways and park boulevards. It shall be unlawful for any person to park or permit to be parked any vehicle anywhere except upon designated parking areas.

(Code 1977, § 4-4002; Code 1993, § 22-33)

Sec. 42-22. Destruction of town property.

It shall be unlawful for any person to remove, destroy, mutilate or deface any structure, monument, statue or planter, fountain, wall, fence, railing, vehicle, bench, picnic table, trees, plants or other property in any park, recreation area or recreation center.

(Code 1977, § 4-4003; Code 1993, § 22-34)

Sec. 42-23. Firearms and other weapons.

It shall be unlawful for any person, except a duly authorized town employee or law enforcement officer, to discharge, shoot, fire, explode, or cause to be discharged, shot, fired, or exploded any firearm in any park or to carry any firearm or dangerous weapons in any park, unless they possess a valid concealed carry permit. Firearms and dangerous weapons shall be defined as set forth in North Carolina General Statutes.

(Code 1977, § 4-4004; Code 1993, § 22-35; Ord. of 3-5-2013)

Sec. 42-24. Posting of advertisements.

It shall be unlawful for any person to place or erect any structure, sign, bulletin board, poster or advertising device of any kind whatever in any park, or to attach any notice, bill, poster, sign, wire, rod, chain or cord to any tree, shrub, fence, railing, post or structure within any park, except such persons as authorized by the town.

(Code 1977, § 4-4005; Code 1993, § 22-36)

Sec. 42-25. Selling; peddling.

It shall be unlawful for any person to engage in soliciting, peddling, begging or selling, to ply the vocation of a solicitor, agent, peddler, beggar or salesman of any description, in any park, and to sell, hawk or vend fruits, candies, popcorn, peanuts, ice cream, soft drinks and similar merchandise within the parks, unless written authority is given by the town.

(Code 1977, § 4-4006; Code 1993, § 22-37)

Sec. 42-26. Fires.

It shall be unlawful for any person to make or kindle a fire in any park, except in a regularly constructed fireplace or grill. It shall be unlawful for any person to leave any fire unattended, or to fail to completely extinguish a fire and all the embers thereof before leaving such fire. (Code 1977, § 4-4011; Code 1993, § 22-38)

Sec. 42-27. Excavations.

It shall be unlawful for any person to make an excavation in any park for any purpose without written permission from the town. (Code 1977, § 4-4012; Code 1993, § 22-39)

Sec. 42-28. Games and sports.

It shall be unlawful for any person to play football, golf, baseball or other games of like character in any area in any town park except in specifically designated areas. At no time and under no circumstances shall such games be played in such proximity to playground equipment or park structures as to threaten bodily harm to persons using the park or damage to park structures. (Code 1977, § 4-4013; Code 1993, § 22-40)

Sec. 42-29. Animals running at large; horseback riding.

It shall be unlawful for the owner thereof to allow or permit any horses, dogs or other animals to run at large in any park, and it shall be unlawful to ride horses in any park except upon designated marked bridle trails. (Code 1977, § 4-4015; Code 1993, § 22-41)

Sec. 42-30. Injuring plant material.

It shall be unlawful for any person to dig, cut, bruise, debark or mutilate or cause to be transplanted, cut, bruised, debarked or mutilated any plant material of any description within any park land without written permission of the town. (Code 1977, § 4-4014; Code 1993, § 22-42)

Sec. 42-31. Molesting animals.

It shall be unlawful for any person to trap, catch, wound, kill, cause to be injured, treat cruelly, tease or attempt to trap, catch, wound, kill, injure or tease any bird or animal, or molest or rob any nest of any bird or any lair, den or burrow of any animal, in or upon any park or recreation area owned by the town. (Code 1977, § 4-4016; Code 1993, § 22-43)

Chapter 43

ALCOHOLIC BEVERAGES

- Sec. 43-1. Definitions.
- Sec. 43-2. Possession or consumption of alcoholic beverages.
- Sec. 43-3. Possession, consumption, and distribution of alcoholic beverages at certain town facilities or town owned or controlled property.
- Sec. 43-4. Social districts.
- Sec. 43-5. Penalty.

Sec. 43-1. Definitions.

The following words, terms, and phrases, when used in this section, shall have the meanings ascribed to them in this subsection except where the context clearly indicates a different meaning:

Alcoholic beverage means any beverage containing at least one-half of one percent alcohol by volume, including malt beverages, unfortified wine fortified wine, spirituous liquor, and mixed beverages as defined by G.S. 18B-101.

Beer means the same as the term malt beverage as defined by G.S. 18B-101.

Commission means the North Carolina alcoholic beverage control commission established under G.S. 18B-200.

Fortified wine means any wine, of more than 16 percent and no more than 24 percent alcohol by volume, made by fermentation from grapes, fruits, berries, rice, or honey; or by the addition of pure cane, beet, or dextrose sugar; or by the addition of pure brandy from the same type of grape, fruit, berry, rice, or honey that is contained in the base wine and produced in accordance with the regulations of the United States, as defined by G.S. § 188-101.

Malt beverage means beer, lager, malt liquor, ale, porter, and any other brewed or fermented beverage except unfortified or fortified wine as defined by this chapter, containing at least one-half of one percent, and not more than 15 percent, alcohol by volume. Any malt beverage containing more than six percent alcohol by volume shall bear a label clearly indicating the alcohol content of the malt beverage, as defined by G.S. § 18B-101.

Mixed beverage means either of the following:

- (1) A drink composed in whole or in part of spirituous liquor and served in a quantity less than the quantity contained in a closed package.
- (2) A premixed cocktail served from a closed package containing only one serving as defined by G.S. 188-101.

Nontax paid alcoholic beverage means any alcoholic beverage upon which the taxes imposed by the United States, this state, or any other territorial jurisdiction in which the alcoholic beverage was purchased have not been paid, as defined by G.S. 188-101.

Open container means a container that has a broken seal or a container other than the manufacturer's unopened original container.

Permit or *permits* means any written or printed authorization issued by the North Carolina alcoholic beverage control commission pursuant to the provisions of this chapter, other than a purchase-transportation permit. Unless the context clearly requires otherwise, as in the provisions concerning applications for permits, ABC permit or permit means a presently valid permit.

Public street means any highway, road, street, avenue, boulevard, or other way within and under the control of the town and open to public use, including the sidewalks of any such street.

Spirituous liquor or liquor means distilled spirits or ethyl alcohol, including spirits of wine, whiskey, rum, brandy, gin and all other distilled spirits and mixtures of cordials, liqueur, and premixed cocktails, in closed containers for beverage use regardless of their dilution, as defined by G.S. 18B-101.

Unfortified wine means any wine of 16 percent or less alcohol by volume made by fermentation from grapes, fruits, berries, rice, or honey; or by the addition of pure cane, beet, or dextrose sugar; or by the addition of pure brandy from the same type of grape, fruit, berry, rice, or honey that is contained in the base wine and produced in accordance with the regulations of the United States as defined by G.S. 18B-101.

Wine means the same as the term unfortified wine as defined by G.S. 18B-101.

Social District means an outdoor area in which a person may consume alcoholic beverages sold by an ABC permittee within the boundaries of the social district.

Permittee means a person or entity located within or contiguous to a social district designated by this article and holding any of the following permits issued by the North Carolina alcoholic beverage control commission:

- (1) On-premises malt beverage permit issued pursuant to G.S. 18B-1001(1).
 - (2) On-premises unfortified wine permit issued pursuant to G.S. 18B-1001(3).
 - (3) On-premises fortified wine permit issued pursuant to G.S. 18B-1001(5).
 - (4) Missed beverages permit issue pursuant to G.S. 18B-1001(10).
 - (5) Or a distillery permit issue pursuant to G.S. 18B-1100(5).
- (Ord. No. 2016-13, § 2, 12-6-2016; Ord. No. 2024-14, 6-4-2024)

Sec. 43-2. Possession or consumption of alcoholic beverages.

(a) *Public consumption unlawful.* It shall be unlawful for any person, to consume any alcoholic beverage, including malt beverages, fortified or unfortified wine, mixed beverages, or other spirituous or other spirituous liquors, all as defined in G.S. § 18B-101, upon or within the limits of rights-of-way of any street, boulevard, alley or sidewalk in town parks and buildings, or on any other property owned or occupied by the town.

(b) *Private premises consumption regulated.* It shall be unlawful for any person to consume any alcoholic beverage, including malt beverages, fortified or unfortified wine, mixed beverages, or other spirituous or other spirituous liquors, all as defined in G.S. § 18B-101 upon the private business premises of another without permission of the owner or person in control of such premises.

(c) *Consumption in vehicle.* It shall be unlawful for any person to consume any alcoholic beverage in or upon a motor vehicle or motorized bicycle which is in or upon any public place or in or upon any street, sidewalk, alley, or parking lot, or upon the private premises of another without permission of the owner or person entitled to possession of such premises.

(d) *Possession of open container in public unlawful.* It shall be unlawful for any person to possess an open container of alcoholic beverage, including malt beverages, fortified or unfortified wine, mixed beverages, or other spirituous or other spirituous liquors, all as defined in G.S. § 18B-101, upon or within the limits of any public right-of-way of any street, boulevard, alley or sidewalk in town parks and buildings or on any other property owned or occupied by the town.

(e) *Container disposal.* It shall be unlawful for any person to drop, throw, cast, or deposit any used container of alcoholic beverage, including malt beverages, fortified or unfortified wine, mixed beverages, or other spirituous or other spirituous liquors, upon any public street or sidewalk or upon the private business premises of another without permission of the owner or person in control of such premises.

(Ord. No. 2016-13, § 2, 12-6-2016; Ord. No. 2024-14, 6-4-2024)

Sec. 43-3. Possession, consumption, and distribution of alcoholic beverages at certain town facilities or town owned or controlled property.

(a) *China Grove Community Memorial Building.* The possession, consumption, and distribution of alcoholic beverages shall be lawful in the China Grove Community Memorial Building only, provided a valid and lawful agreement to that effect has been obtained from the town manager or his designee.

(b) *Town owned or controlled property.* The possession, consumption, and distribution of alcoholic beverages shall be lawful, provided a valid and lawful social district permit to that effect has been obtained from the town manager or his designee during town-sponsored public function, festival or celebration being conducted upon and within designated areas of any public street, sidewalk or other property owned or lawfully occupied.

(Ord. No. 2016-13, § 2, 12-6-2016; Ord. No. 2024-14, 6-4-2024)

Sec. 43-4. Social districts.

(a) *Creation.* The town hereby creates and designates the following social districts: a downtown social district which is designated as the area within the town described as shown in exhibit A of ordinance no. 2024-14, a copy is on file with the town clerk.

(b) *Time and duration of social district.* Alcoholic beverages may only be consumed in the district during town event hours as set by duly adopted resolution of the town council.

(c) Requirements for sale of alcoholic beverages in social districts:

(1) A permittee located in or contiguous to the downtown social district may sell alcoholic beverages for consumption within the downtown social district it is located in or contiguous to in accordance with the following requirements:

a. The permittee shall only sell and serve alcoholic beverages on its licensed premises.

- b. The permittee shall only sell alcoholic beverages for consumption in the downtown social district in a container that meets all of the following requirements:
 - 1. The container clearly identifies the permittee from which the alcoholic beverage was purchased.
 - 2. The container clearly displays a logo or some other mark that is unique to the downtown social district.
 - 3. The container is not made of glass.
 - 4. The container displays, in no less than 12-point font, the statement, "drink responsibly - be 21."
 - 5. The container shall not hold more than 16 fluid ounces.
- c. The permittee shall not allow a person to enter or reenter their licensed premises with an alcoholic beverage not sold by a permittee.
- (d) Requirements for possession and consumption of alcoholic beverages in the social districts.
 - (1) The possession and consumption of an alcoholic beverage in the downtown social district is subject to all the following requirements:
 - a. Only alcoholic beverages purchased from a permittee located in or contiguous to the downtown social district may be possessed and consumed.
 - b. Alcoholic beverages shall only be in containers meeting the requirements set forth above.
 - c. Nothing in this section shall be construed as authorizing the sale and delivery of alcoholic beverage drinks in excess of the limitation set forth in G.S. 18B-1010.
 - d. A person shall dispose of any alcoholic beverage in the person's possession prior to exiting the downtown social district unless the person is reentering the licensed premises where the alcoholic beverage was purchased.
 - (e) *Management of the social districts.* The social district create by this article shall be managed in accordance with this article and with any management and maintenance plan enacted by the town in accordance with this article and in accordance with the requirements contained in the G.S. 106A-205.4 and Chapter 18B.
 - (f) *Severability.* If any portion of this section is for any reason invalid or unconstitutional by any court of competent jurisdiction, such portion shall be deemed severable, and such holding shall not affect the validity of the remaining portions thereof.
 - (g) *Repealed.* All ordinances or provisions of the Code which are not in conformance with the provisions of the amendment occurring herein are repealed as of the effective date of this section.

(Ord. No. 2024-14, 6-4-2024)

Editor's note—Ord. No. 2024-14, adopted June, 4, 2024, renumbered the former § 43-4 as § 43-5 and enacted a new § 43-4 as set out herein. The historical notation has been retained with the amended provisions for reference purposes.

Sec. 43-5. Penalty.

A person who violates this section shall be guilty of a Class 3 misdemeanor and fined \$500.00 as provided by G.S. 14-4(a).

(Ord. No. 2016-13, § 2, 12-6-2016; Ord. No. 2024-14, 6-4-2024)

Editor's note—See note at 43-4.

Chapters 44, 45

RESERVED

Chapter 46

SOLID WASTE*

- Sec. 46-1. Definitions.
- Sec. 46-2. Garbage collection and recycling.
- Sec. 46-3. Leaf collection.
- Sec. 46-4. Tree limbs and yard trimmings.
- Sec. 46-5. Other debris and materials.
- Sec. 46-6. Disposal of waste from outside corporate limits.
- Sec. 46-7. Penalty.

***State law references**—City may regulate illegal disposal of solid waste, littering, G.S. 160A-185; authority to regulate disposal of trash and garbage within municipal limits, G.S. 160A-303.1; municipal power to require use of solid waste services and to regulate accordingly, G.S. 160A-317(b); requirements for municipal solid waste landfill facilities, 15A N.C. Admin. Code 13B.1601 et seq.

Sec. 46-1. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Approved container means a roll-out cart provided by garbage collection company.

Ashes means remains from materials used for the creation and continuation of a fire.

Bag means a plastic sack designed to store and enclose solid waste with sufficient wall strength to maintain physical integrity when lifted by the top. Total weight of a bag with contents shall not exceed 40 pounds.

Bulky waste means large items such as furniture, large auto parts, and other oversize wastes whose large size precludes or complicates their handling by normal solid waste collection, processing, or disposal methods.

Construction and demolition waste means waste resulting solely from construction, remodeling, repair or demolition operations on buildings, or other structures, or used asphalt, asphalt mixed with dirt, sand, gravel, rock, concrete or similar materials, but not inert debris, landclearing debris, or yard debris.

Customers means residential units and light commercial entities, located within the service area, identified by the town or by the company and approved by the town as being eligible for and in need of the services provided by the company under this contract.

Hazardous waste means any chemical, compound, mixture, substance or article which is designated by the United States Environmental Protection Agency or appropriate agency of the federal or state government to be hazardous, toxic, radioactive, volatile, corrosive, flammable, explosive, biomedical, infectious, and/or biohazardous, as those terms are defined by or pursuant to federal or state law or regulations.

Industrial waste means solid waste generated by industrial processes and manufacturing.

Light commercial entity means a business within the service area that is approved by the town for the receipt of services hereunder and that generates a volume of municipal solid waste that can be adequately accommodated by one or more roll-out carts.

Medical waste means any solid waste which is generated in the diagnosis, treatment, or immunization of human beings or animals, in research pertaining thereto, or in production or testing of biologicals, but does not include any hazardous waste or those substances excluded from the definition of solid waste.

Municipal solid waste means solid waste resulting from the operation of residential, commercial, industrial, governmental or institutional establishments that would normally be collected, processed and disposed of through a public or private solid waste management service. Municipal solid waste never includes hazardous waste, special waste, medical waste, or solid waste from mining or agricultural operations.

Persons for hire means any corporation, firm, partnership, association or organization and any other group acting as a unit, as well as an individual person, who grants to another either the enjoyment of a thing or the use of the labor and industry, either of himself or his designee, during a certain time, for a stipulated compensation.

Refuse means all nonputrescible waste.

Residential unit means a dwelling within the service area as hereinafter defined, occupied by a person or group of persons. A residential unit shall be deemed occupied when water services, either public or private, are being supplied thereto. Each unit of an apartment or condominium dwelling consisting of four or fewer living units, whether single or multilevel construction, shall be treated as a residential unit.

Roll-out cart means a company-owned receptacle with two wheels and a properly designed axle and fittings, and a top lid that is to remain closed except when loading waste, with a body consisting of approximately 90 to 96 gallons in capacity, constructed of heavy duty plastic and having the strength to store normal household solid waste and equipped with proper attachments for hydraulic loading into the company's collection vehicle.

Rubbish or *trash* means all waste wood, wood products (but not yard waste), chips, shavings, sawdust, pasteboard, rags, straw, used and discarded mattresses, used and discarded clothing, used and discarded shoes and boots, combustible waste pulp and other products such as are used for packaging or wrapping crockery and glass, cinders, glass, and mineral or metallic substances.

Sanitary landfill means a facility for disposal of solid waste on land in a sanitary manner in accordance with the rules, regulations, laws and ordinances of the state and federal regulations.

Service area means the incorporated limits of the town.

Solid waste means all solid and semi-solid garbage, refuse, and rubbish/trash, but never hazardous waste or special waste, solid or dissolved materials in domestic sewage, solid or dissolved materials in irrigation return flows, industrial discharges which are point sources subject to permits under section 402 of the Federal Water Pollution Control Acts, as amended (86 Stat. 880), or source, special nuclear, or by-product materials, as defined by the Atomic Energy Act of 1954, as amended (68 Stat. 923).

Special waste means solid waste that can require special handling and management, including white goods, whole tires, used motor oil, lead-acid batteries and medical wastes. Also, all treated/decharacterized (formerly hazardous) wastes, polychlorinated biphenyl (PCB) wastes, industrial process wastes, asbestos containing material, chemical containing equipment, demolition wastes, incinerator ash, medical wastes, off-spec chemicals, sludges, spill-cleanup wastes, underground storage tank (UST) soils, and wastes from service industries.

White goods means refrigerators, stoves and ranges, water heaters, freezers, swing sets, bicycles (without tires) scrap metal, copper, and other similar domestic and commercial large appliances.

Yard waste means any and all vegetative matter resulting from landscaping, or yard maintenance, such as shrubs, bushes, and garden clippings.
(Ord. of 5-2-2006(3), § 2; Ord. No. 2017-16, 11-7-2017)

Sec. 46-2. Garbage collection and recycling.

(a) *Garbage and recycling contract.* The town will provide curbside collection of household solid waste and recycling materials through a contract with a private solid waste collection company. The town will periodically solicit bids for providing these services.

(b) *Roll-out containers.*

- (1) Each customer will be furnished one roll-out container by the town or their solid waste collection contractor. Additional containers may be obtained from the town or its contractor if needed.
- (2) All solid waste must be placed inside the roll-out container.

(c) *Location of containers.*

- (1) An approved containers shall be placed in a location that is readily accessible to the company and its collection equipment, not to exceed three feet from the curb or edge of the traveled portion of the street or road and not to be located in a manner that will block the driveway or mailbox or otherwise inhibit proper servicing.
- (2) The town will aid the company in resolving problems of waste location. In rural areas, if applicable, pickups will be limited to mailbox locations, and private roads will not be traveled.

(d) *Storage and disposal.* All garbage and recycling bins shall be placed on the street no earlier than dusk on the evening prior to the scheduled collection and no later than 7:00 a.m. on collection days. The owner or occupant of the premises shall remove containers from the street by midnight on the day of collection. No containers of any type are to be placed kept or left on the street for any purposes on Saturday and Sunday.

(e) *Notification of collection schedule.* The town will notify customers of changes; either temporary or permanent; to the garbage and recycling collection schedule.

(f) *Frequency of collection.* All garbage and recycling will be collected at least one time per calendar week. In the event of inclement weather, the collection of garbage and recyclables will be scheduled as soon as possible.

(Ord. of 5-2-2006(3), § 3)

Sec. 46-3. Leaf collection.

(a) *Collection schedule.*

- (1) The method for collecting leaves within the corporate limits of the town will be determined by the date, and whether that date is considered to be "in season" or "out of season." The dates for in season and out of season are as follows:
 - a. In season: October 1 through January 31.
 - b. Out of season: February 1 through September 30.
- (2) In season, the town will run predetermined routes on a regular basis using vacuum machines to collect leaves.
- (3) Out of season, the town will only collect leaves that are bagged in 35-gallon or smaller bags. These will be collected on a call in basis through the issuance of a work order.
- (4) Dependent upon the weather, the town manager or his designee may determine if the regular routes will be run, or if leaves will be collected on a call in basis.

(b) *Location of leaves.* Leaves must be placed behind the sidewalk or curb so as to not impede storm water drainage, pedestrian traffic, or vehicular traffic.

(c) *General disposal.* Leaves must be free of all limbs, brick, rock, etc. If leaves are commingled with limbs, brick, rock, or other materials, then the town may refuse to collect the debris.

(Ord. of 5-2-2006(3), § 4)

Sec. 46-4. Tree limbs and yard trimmings.

(a) *Collection schedule.* The method for collecting tree limbs and yard trimmings within the corporate limits of the town will be on a call basis only. This will be handled through the issuance of a work order.

(b) *Location of tree limbs/yard trimmings.* Tree limbs and yard trimmings must be placed behind the sidewalk or curb and out of the public right-of-way so as to not impede stormwater drainage, pedestrian traffic, or vehicular traffic. It shall be unlawful for any owner or occupant of any property to cause or allow such debris to be placed in the public right-of-way, or to allow such debris to remain after it has been ordered removed.

(c) *General disposal.* In order for the town to properly remove limbs from the customer's property, the resident must ensure that all of the tree limbs meet the following criteria:

- (1) Limbs shall not be longer than six feet in length.
- (2) Limbs shall not be larger than six inches in diameter.
- (3) Limbs shall be stacked, but end facing the street, on or near curb for easy access to collection truck.

- (4) Small limbs and twigs shall be bundled and tied or place in bags or other containers. Their weight shall not to exceed 50 pounds.
- (5) Yard trimmings shall be placed in bags or other containers. Their weight shall not exceed 50 pounds.

(d) *Items not collected.*

- (1) The town will not pick up debris that is the result of cropping or topping of trees, the felling of trees, tree stumps, or the clearing of undeveloped property. It shall be unlawful for any owner or occupant of any property to cause or allow debris that is the result of cropping or topping of trees, the felling of trees, tree stumps, or the clearing of undeveloped property to be placed in the public right-of-way or curbside, or to allow such debris to remain after it has been ordered removed.
- (2) The town will not pick up debris from trees that was removed by contractors or persons for hire. It shall be unlawful for any owner or occupant of any property to cause or allow debris resulting from work conducted by hired labor to be placed in the public right-of-way or curbside, or allow such debris to remain after it has been ordered removed.

(Ord. of 5-2-2006(3), § 5; Ord. No. 2017-16, 11-7-2017)

Sec. 46-5. Other debris and materials.

(a) *Collection schedule.* The method for collecting debris and other materials within the corporate limits of the town will be on a call basis only. This will be handled through the issuance of a work order.

(b) *Location of materials and debris.* Materials and debris must be placed behind the sidewalk or curb so as to not impede storm water drainage, pedestrian traffic, or vehicular traffic.

(c) *General disposal.* All items must have the ability to be easily removed by hand or placed within a container. Rocks, dirt, brick, gravel, or other similar materials shall be placed in bags or other containers so that their weight shall not exceed 50 pounds.

(d) *Collectible items.* The town will collect the following items: white goods (appliances), tires without rims, toys, lawn mowers, grills, deck and yard furniture, household furniture, construction debris, and other nonhazardous disposable items that do not exceed one cubic yard.

(e) *Noncollectible items.* The town will not collect the following items: drums or barrels of any size, pressurized containers, liquids of any type, hazardous materials, batteries, roofing materials, items with sharp or jagged points or edges, or any other materials that may be considered harmful or hazardous to humans, animals, or the environment.

(Ord. of 5-2-2006(3), § 6)

Sec. 46-6. Disposal of waste from outside corporate limits.

The disposal of solid waste within the corporate limits of the town from areas outside of the boundaries of the town is prohibited.

(Ord. of 5-2-2006(3), § 7)

Sec. 46-7. Penalty.

Customers found in violation of this chapter will, for the first violation, receive a warning stipulating the nature of the violation. Second and future violations will result in a \$50.00 citation. Each occurrence and/or each day's continuing violation shall constitute a separate offense. Failure to pay this citation may result in a civil action taken by the town towards the offending customer.

(Ord. of 5-2-2006(3), § 8; Ord. No. 2017-16, 11-7-2017)

Chapter 47—49

RESERVED

Chapter 50

STREETS, SIDEWALKS AND OTHER PUBLIC PROPERTY*

Article I. In General

- Sec. 50-1. Moving of buildings.
- Sec. 50-2. Damaging street with machinery or equipment.
- Sec. 50-3. Mixing building materials on street or sidewalk.
- Sec. 50-4. Vehicles dropping debris on street.
- Sec. 50-5. Maintenance of parking lots and other public areas.
- Sec. 50-6. Street address numbers.
- Sec. 50-7. Posting of signs prohibiting the carrying of concealed weapons on certain municipal property.
- Secs. 50-8—50-30. Reserved.

Article II. Obstructions

- Sec. 50-31. Assembly on street or sidewalk.
- Sec. 50-32. Display of goods on sidewalk.
- Sec. 50-33. Placing objects on street or sidewalk.
- Sec. 50-34. Construction near sidewalk.
- Sec. 50-35. Structures and appurtenances over sidewalk.
- Secs. 50-36—50-58. Reserved.

Article III. Control of Vegetation Near Streets

- Sec. 50-59. Violation of article; obstructing enforcement of article.
- Sec. 50-60. Visibility at intersections.
- Sec. 50-61. Control of vegetation near streets.
- Sec. 50-62. Notice of violation; removal of vegetation or obstruction by town.
- Secs. 50-63—50-82. Reserved.

Article IV. Acceptance and Improvement of Public Streets

- Sec. 50-83. Policy.
- Sec. 50-84. Acceptance of new streets.
- Sec. 50-85. Street improvements defined.
- Sec. 50-86. Petition for improvements.
- Sec. 50-87. Improvement project procedure.
- Sec. 50-88. Opening and improving streets without petition.
- Sec. 50-89. Determination of assessments for improvements.
- Sec. 50-90. Payment of assessments for improvements.
- Sec. 50-91. Improvements in new subdivisions.
- Sec. 50-92. Payment of costs by developer when improvements done by town.
- Sec. 50-93. Notice to utilities and property owners to prepare for street improvements.

***State law references**—General city authority over all public streets, sidewalks and public passages in city limits, G.S. 160A-296; city may regulate direction of traffic flow and construction of driveway connections to streets, G.S. 160A-307.

CHINA GROVE CODE OF ORDINANCES

- Sec. 50-94. Construction specifications for improvements.
- Sec. 50-95. Closing of streets during resurfacing.
- Sec. 50-96. Location of streetlights.
- Secs. 50-97—50-120. Reserved.

Article V. Excavation and Repair

- Sec. 50-121. Penalty for violation of article.
- Sec. 50-122. Permit.
- Sec. 50-123. Indemnification of town.
- Sec. 50-124. Disposition of fees.
- Sec. 50-125. Supervision of work.
- Sec. 50-126. Street repair.
- Sec. 50-127. Public safety requirements.
- Sec. 50-128. Permit for sidewalk construction.
- Sec. 50-129. Construction of driveways.
- Secs. 50-130—50-156. Reserved.

Article VI. Parades and Demonstrations

Division 1. Generally

- Sec. 50-157. Definitions.
- Sec. 50-158. Exceptions to article.
- Sec. 50-159. Prohibited acts by participants.
- Sec. 50-160. Interference with parade.
- Sec. 50-161. Picketing.
- Sec. 50-162. "Snappers" prohibited.
- Secs. 50-163—50-192. Reserved.

Division 2. Permit

- Sec. 50-193. Required.
- Sec. 50-194. Issuance.
- Sec. 50-195. Revocation.

ARTICLE I. IN GENERAL**Sec. 50-1. Moving of buildings.**

No person shall move any house or building upon or across the public streets or sidewalks without the written consent of the town council and the deposit of the currently required bond to cover damage done to such street or sidewalk or to any property of any person.

(Code 1977, § 4-1031; Code 1993, § 26-1)

State law references—Professional housemoving, G.S. 20-356 et seq.; housemoving to comply with local regulations, G.S. 20-368.

Sec. 50-2. Damaging street with machinery or equipment.

It shall be unlawful for any person to drag or run or cause to be dragged or run any harrow or other implement, engine, machine or tool upon any asphalt, bithulitic, warrenite or other type of permanently paved street of the town which shall be liable in any way to injure or cut the surface thereof. It shall also be unlawful to injure any dirt street in the same manner.

(Code 1977, § 4-1028; Code 1993, § 26-2)

Sec. 50-3. Mixing building materials on street or sidewalk.

No person shall mix any building materials on any street, sidewalk or other public place unless a written permit therefor has been issued by the clerk or some other officer of the town vested with such authority. All persons desiring a permit to mix building materials shall make written application therefor, and such application shall show the location of the proposed mixing and the kind and approximate amounts of materials to be mixed. The application shall be accompanied by a fee, which shall be established by the town council.

(Code 1977, § 4-1033; Code 1993, § 26-3)

Sec. 50-4. Vehicles dropping debris on street.

It shall be unlawful for any person to haul or transport, by motor truck or other vehicle, over the public streets of the town loose dirt, sand, stone, trash, debris or unbaled or unpackaged materials of any kind in such manner as to permit the material to be deposited in the course of such hauling or transportation upon the streets other than at the place designated for unloading.

(Code 1977, § 6-2017; Code 1993, § 26-4)

Sec. 50-5. Maintenance of parking lots and other public areas.

(a) *Required.* Every owner, lessee, tenant, occupant or other person in charge of any commercial establishment or premises which maintains any paved or unpaved areas for the use of the public, either for parking or as access area, and incident to the carrying on of the principal business of any such commercial establishment or premises, which parking or access areas abut or lie within ten feet of any public street or other public way, shall keep and maintain such areas clean and free from trash, litter, rubbish and any materials liable to be blown, deposited or cast upon such street or other public way.

(b) *Trash receptacles.* Suitable receptacles shall be provided in all parking or access areas within the meaning of subsection (a) of this section. Such receptacles shall be plainly marked and constructed to prevent scattering of any trash, litter, rubbish or other material deposited therein.

(c) *Penalty.* Any owner, lessee, tenant, occupant or other person in charge of any commercial establishment or premises, within the meaning of subsection (a) of this section, who fails to abide by the provisions of this section shall be subject to a penalty of \$50.00, in addition to the penal provisions of state law for violations of municipal ordinances.

(Code 1977, §§ 6-2014—6-2016; Code 1993, § 26-5)

Sec. 50-6. Street address numbers.

(a) All new and existing buildings shall have approved numbers or addresses.

- (1) The official address number must be displayed on the front of a building or at the entrance to a building which is most clearly visible from the street or road during both day and night.
- (2) If a building is more than 75 feet from the street, the address number shall be displayed at the end of the driveway which provides access to the building.
- (3) Numerals indicating the address number for a single-family dwelling shall be at least four inches in height and shall be posted and maintained so as to be legible from the street.
- (4) Numerals for mutable dwellings and nonresidential buildings shall be at least six inches in height and shall be placed on the front of the building facing the street or on the end of the building nearest to the street.
- (5) Numerals must be of contrasting color to the background.
- (6) Mobile home lots shall have a single assigned address with the lot within the park appended to that address. The number of each lot must be clearly displayed on the lot or mobile home so as to be legible from the street.

(b) A temporary street address must be displayed on the job site prior to and at all times during construction. Minimum size of four inch for residential and six inch for commercial.

(Code 1993, § 26-6; Res. of 12-19-2000, pt. 1(26-6))

Sec. 50-7. Posting of signs prohibiting the carrying of concealed weapons on certain municipal property.

(a) *Posting of signs required.* The town council is hereby authorized and instructed to post conspicuous signage at appropriate locations on or within each park and each building or portion of a building owned, leased as lessee, operated, occupied, managed or controlled by the town, as well as the appurtenant premises to such buildings, indicating that carrying a concealed handgun is prohibited therein.

(b) *Location of signs.* Signs on buildings shall be visibly posted on the exterior or each entrance by which the general public can access the building. The town council shall exercise discretion in determining the number and appropriate location of signs to be placed on or within appurtenant premises and parks.

(c) *Severability; conflict of laws.* If this section or application thereof to any person or circumstance is held invalid, such invalidity shall not affect other provisions or applications of the section which can be given separate effect and to that end the provisions of this section are declared to be severable. All ordinances or parts of ordinances in conflict with this section, otherwise valid as of November 14, 1995, are hereby repealed.

(Ord. of 11-14-1995)

Secs. 50-8—50-30. Reserved.

ARTICLE II. OBSTRUCTIONS*

Sec. 50-31. Assembly on street or sidewalk.

All persons are forbidden from assembling or collecting and standing so as to obstruct any sidewalk or street, and all persons so collecting and standing shall disperse and move upon the demand of any police officer.

(Code 1977, § 6-2001; Code 1993, § 26-31)

Sec. 50-32. Display of goods on sidewalk.

No person shall place for display or sale any goods, wares or merchandise of any kind upon any of the sidewalks of the town which extend out on the sidewalks, except with permission from the town.

(Code 1977, § 6-2002; Code 1993, § 26-32)

Sec. 50-33. Placing objects on street or sidewalk.

No brick, stone or wood or other substance obstructing the free passage of persons and vehicles shall be placed or suffered to lie in any of the alleyways, streets or other routes of the town, nor shall any person place on or in any of the streets, sidewalks or alleyways of the town any boxes, crates, casks or barrels of any description, or any other obstruction of any kind; provided that any person erecting a building may with permission place building material for immediate use on the streets in such a way as to not interfere with the usual traffic.

(Code 1977, § 6-2003; Code 1993, § 26-33)

***State law reference**—Obstructing highways and roads, G.S. 136-90, 136-91.

Sec. 50-34. Construction near sidewalk.

Before building or remodeling at any place where the building or remodeling is in close proximity to the sidewalk, an overhead covered passageway shall be constructed so as to leave the sidewalk unobstructed and provide safe and easy passage.

(Code 1977, § 6-2004; Code 1993, § 26-34)

Sec. 50-35. Structures and appurtenances over sidewalk.

No person shall erect over any sidewalk or street any part of a building, except marquees and signs which are approved by the building inspector. Awnings may be attached to buildings, provided they are supported upon metallic frames and at least seven feet above the level of the sidewalk.

(Code 1977, § 6-2005; Code 1993, § 26-35)

Secs. 50-36—50-58. Reserved.

ARTICLE III. CONTROL OF VEGETATION NEAR STREETS

Sec. 50-59. Violation of article; obstructing enforcement of article.

No person shall:

- (1) Neglect to cut or remove weeds, grass, vegetation or obstructions to visibility as directed in this article;
- (2) Fail, neglect or refuse to comply with the provisions of any notice provided for in this article; or
- (3) Resist or obstruct the director of public works or his agents in the cutting or removal of weeds, grass, vegetation or obstructions to visibility.

(Code 1993, § 26-61; Ord. of 7-9-1991, pt. 1(8-4006))

Sec. 50-60. Visibility at intersections.

On a corner lot in any district other than the central business district, no planting, structure, sign, fence, wall or obstruction to vision more than three feet in height, measured from the centerline of the street, shall be placed or maintained within the triangular area formed by the intersecting street centerlines and a straight line connecting points on the street centerlines, each of which is 75 feet (150 feet for major streets) in distance from the point of intersection.

(Code 1993, § 26-62; Ord. of 7-9-1991, pt. 1(8-4003))

Sec. 50-61. Control of vegetation near streets.

(a) Required. No person occupying, owning or having control of property or any part thereof in the town shall permit any growth of weeds, grass or other rank vegetation to a height greater than 12 inches, or any accumulation of dead weeds, grass or brush. No person

shall cause, suffer or allow poison ivy, ragweed or other poisonous or detrimental plants to grow on any such lot or land so that any part of such ivy, ragweed or other poisonous or harmful weed shall extend upon, cover, overhang or border any public place or allow seed, pollen or other poisonous particles or emanations therefrom to be carried through the air into any public place.

(b) It shall be unlawful for any person occupying, owning or having control of property to allow any form or type of vegetation to remain that obstructs or impairs the visibility of any person operating any type of vehicle, including motor vehicles upon a public street or highway. For purposes of this section, a vehicle or motor vehicle shall be defined as set out in G.S. ch. 20.

(c) It shall be unlawful for any person occupying, owning or having control of property abutting on a street or highway to permit the uncontrolled growth of noxious weeds or uncontrolled growth of grass, undergrowth, or other vegetation from his premises into the curb, guttering, or other stormwater drainage channel.

(d) It shall be the duty of every person occupying, owning or having control of property abutting on a street or highway that utilizes a portion of the unused street or highway right-of-way as a yard or any other use to maintain said right-of-way in the same character and manner as the abutting use.

(e) It shall be unlawful for any person to blow, place or allow to be placed, or to permit to continue the accumulation of leaves, grass clippings, or any other debris from his premises on a public street, sidewalk, grass strip between a paved sidewalk and street, an area that pedestrians would be expected to use to walk upon parallel to a public street, or within a public right-of-way. This section shall not apply to the accumulation of leaves along a curbline of a public right-of-way for the purpose of collection by Town of China Grove Public Works employees or private collection contractors.

(f) It shall be unlawful to plant trees, shrubs or any other type of flora in the rights-of-way of all streets, alleys, avenues, lanes, squares and public grounds.

(g) Planting and removal. The town shall have the right to plant, prune, maintain and remove trees, plants and shrubs within the lines and or rights-of-way of all streets, alleys, avenues, lanes, squares and public grounds, as may be necessary to ensure public safety or to preserve or enhance the symmetry and beauty of such public grounds.

(Code 1993, § 26-63; Ord. of 7-9-1991, pt. 1(8-4001), (8-4002); Ord. of 10-3-2000, pt. 1(26-3); Ord. of 8-2-2016(2016-08); Ord. No. 2017-13, 10-3-2017)

Sec. 50-62. Notice of violation; removal of vegetation or obstruction by town.

(a) *Notice of violation.* If the provisions of this article are not complied with, the code enforcement officer shall serve written notice upon the owner, lessee or occupant or any person having the care or control of any such lot to comply with the provisions of this article.

(b) *Performance of work by town.* If the person upon whom the notice is served fails, neglects or refuses to cut or remove or to cause to be cut or removed such weeds, grass, vegetation or obstruction to visibility within ten days after receiving such notice, or if the owner or his representative cannot be found in the town, the director of public works shall cause such weeds, grass, vegetation or obstruction to visibility to be cut or removed.

(c) *Assessment of cost of removal.* The actual cost of the cutting and removing of such weeds, grass, vegetation or obstruction to visibility by the town, plus five percent for inspection and additional costs in connection therewith, including a civil penalty levy of \$50.00 in addition to actual costs, shall be certified by the code enforcement officer and shall be a lien upon the property upon which such weeds, grass, vegetation or obstruction to visibility was located. Such cost shall be added to the taxes next to be assessed and levied upon such lot, shall bear interest at the same rate as taxes and shall be collected and enforced by the same officer and in the same manner as taxes.

(Code 1993, § 26-64; Ord. of 7-9-1991, pt. 1(8-4004), (8-4005); Ord. of 8-2-2016(2016-08))

Secs. 50-63—50-82. Reserved.

ARTICLE IV. ACCEPTANCE AND IMPROVEMENT OF PUBLIC STREETS

Sec. 50-83. Policy.

It shall be the policy of the town council to regulate the acceptance and improvement of public streets by exercising the powers and duties conferred by G.S. 160A-296 in the best interests of the citizens of the town.

(Code 1977, § 4-1001; Code 1993, § 26-86)

Sec. 50-84. Acceptance of new streets.

(a) *Dedication for public use; recording of map.* Streets shall be considered for acceptance for maintenance by the town when the proper width street is dedicated for public use and a map is recorded in the office of the register of deeds of the county. Such map shall meet the requirements established by the town's subdivision ordinance.

(b) *Grading.* Streets shall be graded full width with banks at property lines sloped on private property. The grading shall be done in accordance with grades, standards and specifications established by the town foreman (referred to in this article as "the foreman"). The cost of all grading shall be at the owner's expense.

(c) *Sloping of banks when applicant does not control all property abutting street.* When a person filing an application with the foreman for acceptance of a public street does not control all property frontage abutting the street acceptance which is desired, the applicant shall attempt to secure written approval from the owners permitting sloping of banks on private property not in his control and furnish copies to the office of the foreman; provided, however, that this requirement shall not be construed so as to delay the project unduly.

(d) *Storm drainage generally.* As a prerequisite to acceptance of a street for maintenance, storm drainage shall be installed at the owner's expense in accordance with designs, standards and specifications of the director of public works. The size, material, grade and length of pipe culvert required shall be as established by the foreman.

(e) *Basins for entrance of surface water.* As a prerequisite to acceptance of a street for maintenance, basins shall be constructed, at the expense of the person filing the application, at designated locations in accordance with the number required adequately to permit surface water entrance. Requirements for such basins shall be specified by the director of public works.

(f) *Curbs and gutters for individual lots.* With regard to individual lots, standard curb and gutter improvements shall be constructed by an approved licensed contractor in accordance with the specifications and design approved by the foreman, across the full frontage of the lot, at the expense of the person filing the application. Such applicant shall submit two copies of a map to the foreman, showing the location of driveway entrances. Curbs and gutters shall not be constructed until all utilities have been installed.

(g) *Curbs and gutters for developments.* With regard to developments, standard curb and gutter improvements shall be constructed, at the expense of the person filing the application, by an approved licensed contractor, in accordance with specifications and designs approved by

the foreman. The applicant shall submit two copies of a map for approval showing the location of driveway entrances. Curbs and gutters shall not be constructed until all utilities have been installed and accepted.

(h) *Crushed stone stabilization.* When utilities have been installed and accepted and curb and gutter construction is complete and acceptable, a minimum of 300 pounds per square yard of crushed stone stabilization is required over the traveled portion of a street with reference to which an application has been filed. The application of stone shall be placed in accordance with specifications of the foreman.

(Code 1977, § 4-1002; Code 1993, § 26-87)

Sec. 50-85. Street improvements defined.

For the purpose of this article, the term "street improvements" shall include the grading, regrading, paving, repaving, macadamizing and remacadamizing of streets, alleys, sidewalks or other public places or ways, and the construction, reconstruction and altering of curbing, guttering, storm sewers, turnouts, water mains and water, gas or sewer connections therein. (Code 1977, § 4-1004; Code 1993, § 26-88)

Sec. 50-86. Petition for improvements.

(a) *Execution by owners.* All petitions for street improvements must be signed in ink by the owners of the property signed for, or by their duly authorized agents.

(b) *Execution when town owns property.* Whenever the abutting landowners on any street petition to have the street improved and the town owns property along the street whereon such improvement is desired, the mayor is hereby authorized and empowered to sign the petition in the name of the town for the full frontage of the property owned by the town along such street.

(c) *Right to withdraw signature.* Any person shall have the right to withdraw his signature from a petition for the pavement or repavement of a street, but any such withdrawal must be in the handwriting of the withdrawing petitioner and shall state that it is his own act, uninfluenced by persuasion from any person manufacturing competing products.

(d) *Effect of withdrawal of signature.* Any person who has signed a petition for the pavement or repavement of a street or portion of a street and withdraws his signature therefrom thereafter will not be considered on any petition for pavement or repavement; that is, such withdrawing person may sign any other paving petition, but the town will not pass such other petition unless the required number of feet is signed in addition to that of the party who has withdrawn his signature.

(e) *Misrepresentation to induce withdrawal of signers.* No person shall appeal personally to signers of such petitions to withdraw their names and in making such appeals misrepresent the facts, either as to the cost of the respective pavements or any other fact connected therewith.

(Code 1977, § 4-1003; Code 1993, § 26-89)

Sec. 50-87. Improvement project procedure.

The procedure for street improvement projects shall be as specified in G.S. 160A-216 et seq. (Code 1977, § 4-1005; Code 1993, § 26-90)

Sec. 50-88. Opening and improving streets without petition.

It shall be wholly discretionary with the town council whether any street improvement work is necessary or desirable and shall be done or not. Except for the levy of assessments, street improvements made without a petition therefor shall follow the same procedures as street improvements made pursuant to a petition.

(Code 1977, § 4-1009; Code 1993, § 26-91)

Sec. 50-89. Determination of assessments for improvements.

The cost for street improvements charged against each abutting property owner shall be determined by the town council under the provisions of G.S. 160A-218.

(Code 1977, § 4-1011; Code 1993, § 26-92)

Sec. 50-90. Payment of assessments for improvements.

Assessments for street improvements shall be due within 30 days after presentation and notification of the assessment, but the property owners shall have the privilege, on giving written notice of such intention, to pay one-fourth thereof in cash and to give notes for the balance for payment of such assessments in installments. Such notices shall provide that if all installments are paid before maturity, only interest accruing to the date of payment shall be collected.

(Code 1977, § 4-1012; Code 1993, § 26-93)

Sec. 50-91. Improvements in new subdivisions.

Street improvements in new subdivisions shall be made as provided by the foreman.

(Code 1977, § 4-1013; Code 1993, § 26-94)

Sec. 50-92. Payment of costs by developer when improvements done by town.

Developers shall be assessed as abutting property owners for the cost of street improvements done by the town.

(Code 1977, § 4-1014; Code 1993, § 26-95)

Sec. 50-93. Notice to utilities and property owners to prepare for street improvements.

(a) *Notification of utilities.*

- (1) At least 30 days before a contractor is notified that a street is ready for him to proceed with street improvement work, the foreman shall notify all public utilities that the street is being turned over to the contractor for the execution of his contract. If those

so notified are not ready or cannot get ready within the 30 days, the foreman shall be so notified in writing, whereupon he may, at his discretion and upon the approval of the town council, delay the sending of the notice to the contractor.

- (2) For purposes of this section, the term "public utilities" shall include power, gas, light, telephone and telegraph corporations, and such others as may operate like public services, and also shall include departments of the town providing any of such services, as well as water distribution and sewage disposal.

(b) *Notification of property owners.* All abutting property owners shall receive the same notice as is provided to public utilities under subsection (a)(1) of this section and shall be required to make all necessary preparations for street improvements. Property owners may request a delay in the sending of notice to the contractor as provided in subsection (a)(1) of this section.

(Code 1977, §§ 4-1006, 4-1007; Code 1993, § 26-96)

Sec. 50-94. Construction specifications for improvements.

All street improvements shall be constructed in accordance with specifications furnished by the foreman, and all such work shall be done under his supervision.

(Code 1977, § 4-1008; Code 1993, § 26-97)

Sec. 50-95. Closing of streets during resurfacing.

(a) In all cases where a street is being repaved, the foreman shall be authorized to close such street or part of such street from the time the work is started until such time, as in his judgment, the street is suitable for ordinary traffic thereon. If there is any dispute as to the time when such pavement is sufficiently set or hardened or otherwise has become fit for travel, the decision of the foreman shall be final. It shall be the special duty of the foreman to see that the provisions of this section are enforced, both as to the erection of barriers or enclosures and as to travel on any such street by vehicles, during the time prohibited. It shall also be the duty of the foreman to serve such notice as may be necessary to protect any person having a permanent line thereon, such as bus lines, taxicab lines and the like.

(b) No person shall interfere with such closing or undertaking by operating a car or otherwise traveling thereon before the enclosures have been removed therefrom and such street opened for travel.

(Code 1977, § 4-1010; Code 1993, § 26-98)

Sec. 50-96. Location of streetlights.

Streetlights shall be installed and maintained by the town, in other than business sections, only at street intersections or terminations, unless the distance between street intersections exceeds 350 feet.

(Code 1977, § 4-1015; Code 1993, § 26-99)

Secs. 50-97—50-120. Reserved.

ARTICLE V. EXCAVATION AND REPAIR

Sec. 50-121. Penalty for violation of article.

All persons found guilty of violation of this article shall be guilty of a misdemeanor and shall be punished in accordance with section 1-6.

(Code 1977, § 4-1029; Code 1993, § 26-131)

Sec. 50-122. Permit.

(a) *Required.* No person shall make any excavation or opening or dig any ditch, trench, tunnel or hole in, along, across or under any street, sidewalk or other public place for the purpose of laying or placing therein any pipe, wires or poles or for any other purposes unless a written permit therefor has been issued by the clerk or some other officer of the town vested with such authority. A permit shall not be required where such work is performed under a contract with the town, but if such work requires a sidewalk or street to be wholly or partially obstructed, the person shall notify the clerk, the public works department and the police department at least two hours before obstructing the sidewalk or street, unless prevented by sudden emergency.

(b) *Application.* All persons desiring a permit to make an opening in any street or sidewalk as set forth in subsection (a) of this section shall make written application therefor, and such application shall show the location of the proposed opening, the purpose therefor, and the approximate number of square yards of surface to be cut. The application shall be accompanied by a fee, which shall be established by the town council.

(Code 1977, §§ 4-1021, 4-1022; Code 1993, § 26-132)

Sec. 50-123. Indemnification of town.

Any person obtaining a permit as provided for in section 50-122 agrees, as a condition of the issuance of the permit, to indemnify and hold harmless the town against any claims or expenses, including attorney's fees, for bodily injury or property damage for accidents or occurrences arising out of the person's operations, excluding only the liability of the town for its sole negligence except in connection with general supervision of work performed by that person.

(Code 1977, § 4-1023; Code 1993, § 26-133)

Sec. 50-124. Disposition of fees.

All fees collected under the provisions of this article shall be paid into the general fund.

(Code 1977, § 4-1025; Code 1993, § 26-134)

Sec. 50-125. Supervision of work.

All excavations and work in streets, sidewalks, alleys or public places of the town shall be under the supervision and control of the foreman, whose duty it shall be to inspect the work from time to time during the progress thereof. Upon the completion thereof, he shall make a

final inspection and see that the street, sidewalk or public place is restored to a condition as good in all respects as before the excavation or work was made or done, and that all debris, materials, tools and equipment are removed therefrom. Any person refusing or failing to comply with any provision of this article shall be guilty of a violation thereof, and, where such failure or refusal is continued after notice from the foreman, every day's continuance shall constitute a separate and distinct offense.

(Code 1977, § 4-1024; Code 1993, § 26-135)

Sec. 50-126. Street repair.

When any part of any street, sidewalk, alley or other public place of the town shall be torn or dug up for any purpose, the person making the excavation or opening shall have the duty of refilling such excavation or opening, and the refilling shall be done in accordance with the standards and specifications issued by the foreman or his duly authorized representative. Any person neglecting, refusing or failing to comply with any provision of this article shall be guilty of a violation thereof, and, where such neglect, refusal or failure is continued after notice from the director of public works or his authorized representative, every day's continuance thereafter shall constitute a separate and distinct offense.

(Code 1977, § 4-1026; Code 1993, § 26-136)

Sec. 50-127. Public safety requirements.

It shall be unlawful for any person who obtains a permit under this article to do any excavation of any kind which may create or cause a dangerous condition in or near any street, alley, sidewalk or public place of the town without placing and maintaining proper guardrails three feet from the ground and signal lights or other warnings at, in or around the excavation, sufficient to warn the public of such excavation or work and to protect all persons using reasonable care from injuries on account of the work. It shall be unlawful to cut drains or ditches across the sidewalks or streets unless boxing is used and the boxing is covered on a level with the sidewalk.

(Code 1977, § 4-1027; Code 1993, § 26-137)

Sec. 50-128. Permit for sidewalk construction.

No sidewalk of any description shall be built of brick, wood or any other material by any person without a written permit from the town.

(Code 1977, § 4-1030; Code 1993, § 26-138)

Sec. 50-129. Construction of driveways.

(a) *Permit required.* No person shall begin to construct, reconstruct, repair, alter or grade any driveway on the public streets unless a written permit therefor has been issued by the clerk or some other officer of the town vested with such authority.

(b) *Application for permit.* All persons desiring a driveway permit shall make application therefor, which application shall show:

- (1) The name and address of the owner or agent in charge of the abutting property and the proposed work area;
- (2) The name and address of the party doing the work;
- (3) The location of the work area;
- (4) Attached plans showing details of the proposed alteration;
- (5) The estimated cost of the alteration; and
- (6) Such other information as the issuing officer shall find reasonably necessary to the determination of whether a permit should be issued under this section.

Such application shall be accompanied by a fee, which shall be established by the town council.

(c) *Standards for issuance of permit.* The officer shall issue a permit under this section when he finds:

- (1) That the plans for the proposed operation have been approved by the director of public works, to whom they shall be forwarded by the officer within a reasonable time after receipt thereof;
- (2) That the work shall be done according to the standard specifications of the town for public work of like character;
- (3) That the operation will not unreasonably interfere with vehicular and pedestrian traffic, the demand and necessity for parking spaces, and the means of entrance to and egress from the property affected and adjacent properties; and
- (4) That the health, welfare and safety of the public will not be unreasonably impaired.

(d) *Construction standards.* Driveways shall be constructed of Portland cement concrete in one course.

(Code 1977, §§ 4-1034—4-1037; Code 1993, § 26-139)

Secs. 50-130—50-156. Reserved.

ARTICLE VI. PARADES AND DEMONSTRATIONS*

DIVISION 1. GENERALLY

Sec. 50-157. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Block means that portion of any street lying between its intersections with other streets.

Group demonstration means any assembly or concert of action between or among 50 or more persons for the purpose of protesting any matter or of making known any position or promotion of such persons, or of or on behalf of any organization or class of persons, or for the purpose of attracting attention to such assembly.

Parade means any assemblage of 25 or more persons participating in or operating any vehicle in any march, ceremony, show, exhibition or procession of any kind in or upon the public streets, sidewalks, alleys, parks or other public grounds or places.

Picket line means any two or more persons formed together for the purpose of making known any position or promotion of such persons, or on behalf of any organization or class of persons.

(Code 1977, § 6-2021; Code 1993, § 26-156)

Sec. 50-158. Exceptions to article.

This article shall not apply to:

- (1) Funeral processions.
- (2) Any governmental agency acting within the scope of its functions.
- (3) Groups or associations of less than 25 people engaging in expressive activities at locations other than public streets and roads.

(Code 1977, § 6-2029; Code 1993, § 26-157)

Sec. 50-159. Prohibited acts by participants.

The following acts or activities, when performed or undertaken in conjunction with or as a part of any parade, picket line or group demonstration, are hereby prohibited and declared unlawful:

- (1) The carrying on or about the person of any firearm, or any weapon or article, including, but not limited to, blackjacks, nightsticks or flashlights, which, by its use, might constitute a deadly weapon.

***State law references**—Picketing and parading, G.S. 14-225.1; regulation of motor vehicles in parades, G.S. 20-169; municipal authority to regulate mass gatherings, G.S. 130A-258.

- (2) The taking or keeping of any dog or other vicious animal, whether leashed or unleashed.

(Code 1977, § 6-2025; Code 1993, § 26-158)

Sec. 50-160. Interference with parade.

No person shall hamper, obstruct, impede or interfere with any parade, picket line or group demonstration being conducted under authority of a permit duly issued by the chief of police.
(Code 1977, § 6-2027; Code 1993, § 26-159)

Sec. 50-161. Picketing.

Picket lines and picketing shall be subject to the following additional regulations:

- (1) Picketing may be conducted only on the sidewalks reserved for pedestrian movement, and may not be conducted on the portion of a street used primarily for vehicular traffic.
- (2) Not more than ten pickets promoting the same objective shall be permitted to use either of the two sidewalks within a single block at any one time.
- (3) Pickets may carry written or printed placards or signs not exceeding two feet in width and two feet in length promoting the objective for which the picketing is done, provided the words used are not derogatory or defamatory in nature.
- (4) Pickets must march in single file and not abreast and must not march closer together than 15 feet, except in passing one another.

(Code 1977, § 6-2028; Code 1993, § 26-160)

Sec. 50-162. "Snappers" prohibited.

(a) For the purpose of this section, the term "snappers" means a snapper or drop pop, which is a small, paper-wrapped item containing not in excess of 16 milligrams of explosive mixture coated on small bits of sand. When dropped, the device produces a small explosion.

(b) Snappers are prohibited at or in the vicinity of parades and group demonstrations in the town.

(c) Violations of this section shall be a misdemeanor and punishable as provided by G.S. 14-4.

(Code 1993, § 26-161; Ord. of 1-11-1996, pt. 1(26-161))

Secs. 50-163—50-192. Reserved.

DIVISION 2. PERMIT

Sec. 50-193. Required.

It shall be unlawful for any person to organize, conduct or participate in any parade or group demonstration of 25 people or more in or upon any street, sidewalk, alley or other public place within the town unless a permit therefor has been issued by the town in accordance with the provisions of this division.

(Code 1977, § 6-2022; Code 1993, § 26-176)

Sec. 50-194. Issuance.

(a) *Standards.* The chief of police shall issue a permit for a proposed parade unless he finds that:

- (1) Such parade, picket line or group demonstration is to commence before 6:00 a.m. or terminate after 5:00 p.m.;
- (2) Such parade or group demonstration is to be held at the same time and place as one designated in a permit issued pursuant to a written application previously received by the chief of police or his designee;
- (3) The conduct of the parade will substantially interrupt the safe and orderly movement of other traffic contiguous to its route;
- (4) The conduct of the parade will require the diversion of so great a number of police officers of the town to properly police the line of movement of the parade and of contiguous areas that adequate police protection cannot be provided to the remainder of the town;
- (5) The conduct of the parade will require the diversion of so great a number of ambulances that adequate ambulance service to portions of the town not occupied by the parade and contiguous areas will be prevented;
- (6) The concentration of persons, animals and vehicles at assembly points of the parade will substantially interfere with adequate fire and police protection of or ambulance service to areas contiguous to such assembly areas;
- (7) The conduct of the parade is reasonably likely to result in violence to persons or property, causing serious harm to the public;
- (8) The parade is to be held for the primary purpose of advertising a product, goods or an event, and is designed to be held primarily for private profit; or
- (9) The conduct of the parade will interfere with the movement of firefighting equipment to such an extent that adequate fire protection cannot be provided to the town.

(b) *Conditions.* The chief of police or his designee shall issue permits as required in this division, and in the issuance thereof, he shall:

- (1) Require a written application for permit to be filed not less than 72 hours in advance of such parade, picket line or group demonstration, which application shall specify the time and place for the commencement of any such picket line and the time, place, route and duration of any such parade or group demonstration.
- (2) Require that the applicant for a permit specify whether or not minors below the age of 18 years will be permitted to participate.
- (3) Require that the application for a permit shall specify and the permit shall designate the person in charge of the activity. That person shall be required to accompany the parade, picket line or group demonstration and shall carry such permit with him at that time. The permit shall not be valid in the possession of any other person.

(Code 1977, §§ 6-2023, 6-2024; Code 1993, § 26-177)

Sec. 50-195. Revocation.

The chief of police shall revoke any permit granted for a parade or group demonstration of more than 25 people, for any of the following causes:

- (1) The violation by any participant of section 50-159.
- (2) The failure to comply with the terms and conditions of the permit.
- (3) The failure to comply with the terms and conditions of this article.

(Code 1977, § 6-2026; Code 1993, § 26-178)

Chapters 51—53

RESERVED

Chapter 54

UTILITIES*

Article I. In General

Secs. 54-1—54-18. Reserved.

Article II. Water Service

- Sec. 54-19. Authority and duties of town council.
- Sec. 54-20. Water superintendent.
- Sec. 54-21. Right of entry.
- Sec. 54-22. Work on water system.
- Sec. 54-23. Connection with public system required.
- Sec. 54-24. Connection permit.
- Sec. 54-25. Rates and charges.
- Sec. 54-26. Unauthorized cut-off prohibited.
- Sec. 54-27. Adjustment of bills for meter error.
- Sec. 54-28. Testing of meters.
- Sec. 54-29. Fee for restoration of service after disconnection for nonpayment of bills.
- Sec. 54-30. Two or more dwelling units using single tap.
- Sec. 54-31. Furnishing water to other premises.
- Sec. 54-32. Tampering with or obstructing water lines.
- Sec. 54-33. Taking water from public facilities.
- Sec. 54-34. Use of fire hydrants.
- Sec. 54-35. Approval of private water supply for premises rented or open to public.
- Secs. 54-36—54-58. Reserved.

Article III. Water Quality Protection

Division 1. Generally

- Sec. 54-59. Definitions.
- Sec. 54-60. Compliance with federal and state law.
- Sec. 54-61. Unlawful connections.
- Sec. 54-62. Inspection of property.
- Sec. 54-63. Right of access.
- Sec. 54-64. Existing conditions.
- Sec. 54-65. Hazardous uses.
- Sec. 54-66. Other connections.
- Sec. 54-67. Installation of containment devices.
- Sec. 54-68. New construction.
- Sec. 54-69. Notification of consumer.
- Sec. 54-70. Changes in nature of use.
- Sec. 54-71. Consumer responsibilities.
- Sec. 54-72. Testing and maintenance of devices.

***State law references**—Municipal authority to construct, establish, operate, etc., water and sewer systems, G.S. 160A-312; public enterprises defined, G.S. 160A-311

CHINA GROVE CODE OF ORDINANCES

- Sec. 54-73. Enforcement by civil penalty.
- Sec. 54-74. Limitation of liability.
- Secs. 54-75—54-91. Reserved.

Division 2. Water Conservation

- Sec. 54-92. Definition.
- Sec. 54-93. Penalties and discontinuance of water service.
- Sec. 54-94. Declaration of water emergency.
- Sec. 54-95. Level I water emergency.
- Sec. 54-96. Staged water use restriction—Level II water emergency.
- Sec. 54-97. Same—Level III water emergency.
- Sec. 54-98. Same—Level IV water emergency.
- Sec. 54-99. Lifting of restrictions.
- Secs. 54-100—54-126. Reserved.

Article IV. Sewer Service

Division 1. Generally

- Sec. 54-127. Purpose and policy.
- Sec. 54-128. Definitions.
- Sec. 54-129. Abbreviations.
- Sec. 54-130. Prohibited discharge standards.
- Sec. 54-131. National Categorical Pretreatment Standards.
- Sec. 54-132. Industrial waste survey and local limits.
- Sec. 54-133. State requirements.
- Sec. 54-134. Right of revision.
- Sec. 54-135. Dilution.
- Sec. 54-136. Pretreatment of wastewater.
- Sec. 54-137. Accidental discharge/slug control plans.
- Sec. 54-138. Hauled wastewater.
- Sec. 54-139. Use of public sewers.
- Sec. 54-140. Regulations concerning building of sewers and connections.
- Sec. 54-141. Confidential information.
- Sec. 54-142. Enforcement.
- Sec. 54-143. Annual publication of significant noncompliance.
- Secs. 54-144—54-169. Reserved.

Division 2. Fees

- Sec. 54-170. Purpose.
- Sec. 54-171. User charges.
- Sec. 54-172. Surcharges.
- Sec. 54-173. Pretreatment program administration charges.
- Secs. 54-174—54-199. Reserved.

Division 3. Wastewater Discharge Permits

- Sec. 54-200. Permission to connect or discharge to wastewater collection system; required wastewater information.

UTILITIES

- Sec. 54-201. Significant industrial user permit—Required; determination.
- Sec. 54-202. Same—Application.
- Sec. 54-203. Same—Required signature, certification.
- Sec. 54-204. Same—Application review and evaluation.
- Sec. 54-205. Same—Tentative determination and draft.
- Sec. 54-206. Same—Synopsis.
- Sec. 54-207. Same—Final action on applications.
- Sec. 54-208. Same—Hearings.
- Sec. 54-209. Same—Modification.
- Sec. 54-210. Same—Conditions.
- Sec. 54-211. Same—Duration.
- Sec. 54-212. Same—Transfer.
- Sec. 54-213. Same—Reissuance.
- Secs. 54-214—54-234. Reserved.

Division 4. Reporting Requirements

- Sec. 54-235. Baseline monitoring reports.
- Sec. 54-236. Compliance schedule progress reports.
- Sec. 54-237. Reports on compliance with categorical pretreatment standard deadline.
- Sec. 54-238. Periodic compliance reports.
- Sec. 54-239. Reports of changed conditions.
- Sec. 54-240. Reports of potential problems.
- Sec. 54-241. Reports from nonpermitted users.
- Sec. 54-242. Notice of violation/repeat sampling and reporting.
- Sec. 54-243. Notification of the discharge of hazardous waste.
- Sec. 54-244. Analytical requirements.
- Sec. 54-245. Sample collection.
- Sec. 54-246. Timing.
- Sec. 54-247. Recordkeeping.
- Secs. 54-248—54-272. Reserved.

Division 5. Compliance Monitoring

- Sec. 54-273. Monitoring facilities.
- Sec. 54-274. Inspection and sampling.
- Sec. 54-275. Search warrants.
- Secs. 54-276—54-298. Reserved.

Division 6. Affirmative Defenses to Discharge Violations

- Sec. 54-299. Upset.
- Sec. 54-300. Prohibited discharge standards defense.
- Sec. 54-301. Bypass.
- Secs. 54-302—54-330. Reserved.

Article V. Stormwater Quality Management and Discharge Control

Division 1. Title, Purpose and General Provisions

- Sec. 54-331. Title.

CHINA GROVE CODE OF ORDINANCES

- Sec. 54-332. Authority.
- Sec. 54-333. Purpose and intent.
- Sec. 54-334. Applicability.
- Sec. 54-335. Exceptions to applicability.
- Sec. 54-336. Definitions.
- Sec. 54-337. Interpretation.
- Sec. 54-338. Permits.
- Sec. 54-339. Fees.
- Sec. 54-340. Applicability and vested rights.
- Sec. 54-341. Responsibility for administration.
- Sec. 54-342. Variances and appeals.
- Sec. 54-343. Severability.
- Sec. 54-344. Regulatory consistency.
- Sec. 54-345. Ultimate responsibility of discharger.
- Sec. 54-346. Stormwater management.
- Sec. 54-347. Stream buffers.
- Secs. 54-348—54-360. Reserved.

Division 2. Discharge Prohibitions

- Sec. 54-361. Illegal discharges.
- Sec. 54-362. Illicit connections.
- Sec. 54-363. Waste disposal prohibitions.
- Sec. 54-364. Discharges in violation of industrial or construction activity NPDES stormwater discharge permit.
- Secs. 54-365—54-394. Reserved.

Division 3. Regulations and Requirements

- Sec. 54-395. Requirement to prevent, control, and reduce stormwater pollutants.
- Sec. 54-396. Requirement to eliminate illegal discharges.
- Sec. 54-397. Requirement to eliminate or secure approval for illicit connections.
- Sec. 54-398. Watercourse protection.
- Sec. 54-399. Requirement to remediate.
- Sec. 54-400. Requirement to monitor and analyze.
- Sec. 54-401. Notification of spills.
- Secs. 54-402—54-425. Reserved.

Division 4. Inspection and Monitoring

- Sec. 54-426. Authority to inspect.
- Sec. 54-427. Authority to sample, establish sampling devices, and test.
- Secs. 54-428—54-445. Reserved.

Division 5. [Enforcement and Penalties]

- Sec. 54-446. Enforcement.
- Sec. 54-447. Notice of violation.
- Sec. 54-448. Appeal.
- Sec. 54-449. Abatement.
- Sec. 54-450. Charging cost of abatement/liens.

UTILITIES

- Sec. 54-451. Urgency abatement.
- Sec. 54-452. Violations.
- Sec. 54-453. Compensatory action.
- Sec. 54-454. Violations deemed a public nuisance.
- Sec. 54-455. Acts potentially resulting in a violation of the Federal Clean Water Act.

ARTICLE I. IN GENERAL

Secs. 54-1—54-18. Reserved.

ARTICLE II. WATER SERVICE

Sec. 54-19. Authority and duties of town council.

The water system of the town shall be under the control of the town council or its authorized agent, and the duty of prescribing and enforcing full compliance with all rules and regulations governing all connections with the water system shall be vested in the town council or its authorized agent.

(Code 1977, § 5-1001; Code 1993, § 28-31)

Sec. 54-20. Water superintendent.

The town council may select a competent person to supervise, under its general control, the entire water system of the town. The council may from time to time prescribe the duties and responsibilities of the superintendent.

(Code 1977, § 5-1008; Code 1993, § 28-32)

Sec. 54-21. Right of entry.

The town foreman or his assistant shall, at all reasonable hours, have free access to all premises for the purpose of examining hydrants, fixtures or connections on which town water pressure is maintained.

(Code 1977, § 5-1013; Code 1993, § 28-33)

Sec. 54-22. Work on water system.

All work on the town water system and all connections or disconnections thereto shall be performed by the authorized employees of the town or their representatives, or plumbers approved by the town. All work shall be performed in accordance with the plumbing code of the state and town and such amendments thereto that the town council may from time to time adopt.

(Code 1977, § 5-1009; Code 1993, § 28-34)

Sec. 54-23. Connection with public system required.

All owners of improved property located within the corporate limits and upon or within a reasonable distance of any water line owned and operated by the town shall connect their premises with the town water system.

(Code 1977, § 5-1003; Code 1993, § 28-35)

State law reference—Municipal power to require connections to water or sewer service, G.S. 160A-317.

Sec. 54-24. Connection permit.

No person shall connect with the water system of the town until he has made application for permission to so connect in writing to the clerk, and this application shall be made before any part of the drainage system of the house or other connection is laid or constructed. Such application shall be accompanied with a plan or drawing showing the location of the building and the entire proposed connection from the public sewer line through the building to its terminus, showing the location of all the fixtures, traps, ventilating pipes, etc., and shall state the name of the street and the name of the person.

(Code 1977, § 5-1002; Code 1993, § 28-36)

Sec. 54-25. Rates and charges.

Water rates, deposits and connection and reconnection charges shall be determined from time to time by the town council and shall be kept on file in the office of the clerk.

(Code 1977, § 5-1005(a); Code 1993, § 28-37)

Sec. 54-26. Unauthorized cut-off prohibited.

It shall be unlawful for any person other than a person authorized by the town officials to cut off the town supply of water.

(Code 1977, § 5-1005(b); Code 1993, § 28-38)

Sec. 54-27. Adjustment of bills for meter error.

The foreman may adjust and settle inequitable and abnormal water bills due to meter error.

(Code 1977, § 5-1015; Code 1993, § 28-39)

Sec. 54-28. Testing of meters.

The town shall test or cause to be tested and make a thorough examination of water meters and all fixtures where so desired by the consumer under the following conditions:

- (1) Should the test of meter and inspection prove the excessive bill to be caused by negligence of the town or inaccuracy of the meter, then the expense of the investigation shall be borne by the town.
- (2) Should the test and inspection prove to be the fault of the consumer or any person not connected with or in the employ of the town, then the actual cost of the investigation is to be borne by the consumer making the protest and asking for the inspection, with the actual cost to be fixed by the town council.

(Code 1977, § 5-1016; Code 1993, § 28-40)

Sec. 54-29. Fee for restoration of service after disconnection for nonpayment of bills.

When the water that is being used by any person has been cut off because of nonpayment of the water account, such person shall pay a fee as fixed by the town council and kept on file in the office of the clerk before such water shall be turned back on.

(Code 1977, § 5-1011; Code 1993, § 28-41)

State law reference—Discontinuance of service for delinquency, G.S. 160A-314.

Sec. 54-30. Two or more dwelling units using single tap.

Any property owner having more than one dwelling unit using water from the same water tap shall be responsible for the water consumed at all the dwelling units.

(Code 1977, § 5-1010; Code 1993, § 28-42)

Sec. 54-31. Furnishing water to other premises.

No residence, firm or corporation shall furnish water for any other residence, firm or corporation through any one meter, by way of piping or tubing. Each additional residence, firm or corporation must have its own separate water meter if it is to be served by the town.

(Code 1977, § 5-1012; Code 1993, § 28-43)

Sec. 54-32. Tampering with or obstructing water lines.

No person shall touch, tamper with or in any manner manipulate or turn the cut-offs on the water mains forming a part of the water system of the town, nor shall any person tamper with or harm in any manner whatsoever any water line or main or any appurtenance thereto. No person shall throw or deposit any material or substance into any water line that will in any manner obstruct such line.

(Code 1977, § 5-1006; Code 1993, § 28-44)

Sec. 54-33. Taking water from public facilities.

No person shall take or carry away water from any watering trough, public fountain or other public place unless authorized by the town council or, in the case of an emergency, by the mayor, fire chief or police chief.

(Code 1977, § 5-1004; Code 1993, § 28-45)

Sec. 54-34. Use of fire hydrants.

No person, except employees of the town or other persons authorized by the mayor, shall take water from any public hydrant, plug, street washer, drawcock, hose pipe or fountain, except for fire purposes, nor shall anyone in any way use or take water for private use unless such person shall pay for the privilege and receive a permit from the mayor.

(Code 1977, § 5-1014; Code 1993, § 28-46)

Sec. 54-35. Approval of private water supply for premises rented or open to public.

(a) It shall be unlawful for any person to furnish, supply or provide, for gain or profit, any water from a private well or pumps in or to any dwelling house, boardinghouse, inn, hotel, cafe or other commercial establishment, or any rooms of such establishments, when the dwelling house or any rooms therein are rented or offered for rent to the public, or when the boardinghouse, inn, hotel, cafe or other commercial establishment is open to or used by the public, unless and until an analysis of the water from such private well or pump has first been submitted to and approved by the clerk.

(b) The water analysis referred to in subsection (a) of this section shall be made by or under the direction of the county board of health or the state department of public health.

(c) If the water analysis bears the approval of either of the authorities referred to in subsection (b) of this section, the clerk shall approve the analysis by endorsing thereon the word "approved" and affixing thereto his signature as clerk. If, however, such analysis shows that such water is contaminated and unfit for human consumption, the clerk shall not approve such analysis, but shall deliver such analysis to the town council, which may disapprove such analysis and return the analysis to its owner.

(Code 1977, § 5-1007; Code 1993, § 28-47)

Secs. 54-36—54-58. Reserved.

ARTICLE III. WATER QUALITY PROTECTION

DIVISION 1. GENERALLY

Sec. 54-59. Definitions.

The following words, terms, and phrases, when used in this article, shall have the meanings ascribed to them in this section, unless the context clearly indicates a different meaning:

Air-gap separation means an unobstructed vertical distance through the atmosphere between the lowest opening from any pipe or faucet supplying water to a tank, plumbing fixture, or other device and the flood level rim of the receptacle. An approved air-gap vertical separation shall be at least double the diameter of the supply pipe. In no case shall the air-gap be less than one inch.

Approved means certified in writing by the operator in responsible charge (ORC) as an acceptable device or methodology for the purpose of backflow prevention.

Auxiliary intake means any piping connection or other device whereby water may be secured from a source other than public water supply.

Backflow means any flow of water into the public water supply from any other source due to a cross connection, auxiliary intake, interconnection, backpressure, backsiphonage, any combination thereof, or other cause.

Backflow prevention device means an approved effective device method used to prevent backflow from occurring in the potable water supply. The type of device required shall be based on degree of hazard, existing or potential.

Backpressure means any pressure on any source of water other than the public water supply that may be greater than the pressure on the public water supply and may result in a backflow.

Backsiphonage means any circumstance in which the pressure on the public water supply may be reduced to the point that the elevation and atmospheric pressure on a source of water other than the public water supply may result in a pressure to be greater than the pressure on the public water supply and may result in a back flow.

Certified tester means a person who has proven his competency to test, repair, overhaul and make reports on backflow prevention devices as evidenced by certification of successful completion of a training program approved by the ORC.

Confinement device means a backflow prevention device, as approved and required, installed within a private plumbing or distribution system to isolate a localized hazard from the remainder of said system.

Consumer means any person responsible for any property at which water from the town public water supply is received. In the absence of other parties or the failure of other parties to accept the responsibilities herein set forth, the owner of record shall be ultimately responsible.

Containment device means a backflow prevention device, as approved and required, installed at the point of separation between the public water supply and a private service or private distribution system or at the point of metering.

Contamination means the presence of any foreign substance (organic, inorganic, radiological, or biological) in water that tends to degrade its quality as to constitute a hazard or impair the usefulness of the water.

Cross connection means any physical connection whereby the public water supply is connected with any other water supply system, whether public or private, either inside or outside of any building or buildings, in such a manner that a flow of water into the public water supply is possible either through the manipulation of valves or because of ineffective check or back-pressure valves, or because of any other arrangement.

Cross connection control coordinator means the official position established and authorized by the town, designated by the ORC, to administer and interpret this article and who shall be a certified tester.

Double check valve backflow prevention device means an approved assembly composed of two single, spring-loaded independently operating check valves, including tightly closing shut-off valves located at each end of the assembly, and having suitable connections for testing the water tightness of each check valve.

Dual check valve means an approved device containing two independently acting check valves in series.

Fire line means a system of pipes and equipment used to supply water in an emergency for extinguishing fire.

Interconnection means any system of piping or other arrangement whereby the public water supply is connected directly with a sewer, drain, conduit, pool, heat exchanger, storage reservoir, or other device which does or may contain sewage or other waste or substance which would be capable of imparting contamination to the public water supply.

Pressure vacuum breaker means an approved assembly containing an independently operating spring loaded check valve and an independently operating loaded air inlet valve located on the discharge side of the check valve. The assembly must be equipped with suitable connections for testing the proper operation of the device and tightly closing shut-off valves located at each end of the assembly.

Public water supply means the water and waterworks system of the town and its customers outside the town limits for general use and which is recognized as the public water supply by the state department of environmental health and natural resources.

Reduced pressure zone principle backflow prevention device (RPZ) means an approved device containing, within its structure, two spring-loaded independently operating check valves, together with an automatically operating pressure differential relief valve located between the two check valves. The first check valve reduces the supply pressure a predetermined amount so that during normal flow and at cessation of normal flow the pressure between the checks shall be less than the supply pressures. In case of leakage of either check valve, the differential relief valve, by discharging to the atmosphere, shall operate to maintain the pressure between the check valves less than the supply pressure. This device shall have suitable connections for testing the proper operation of the device, including tightly closing shut-off valves located at each end of the device.

(Ord. of 10-7-2003, § 28-48a)

Sec. 54-60. Compliance with federal and state law.

The town will comply with the Federal Safe Drinking Water Act, the state Drinking Water Act, and state building code, which pertain to cross connections, auxiliary intakes and interconnections, and establish an effective ongoing program to control potential sources of contamination of the public water supply.

(Ord. of 10-7-2003, § 28-48b)

Sec. 54-61. Unlawful connections.

It shall be unlawful for any person to cause a cross connection, auxiliary intake or inter-connection to be made or to allow one to exist for any purpose whatsoever.

(Ord. of 10-7-2003, § 28-48c)

Sec. 54-62. Inspection of property.

It shall be the duty, upon request of the operator in responsible charge (ORC), of the cross connection coordinator to cause inspections to be made of properties served by the public water supply where cross connections with the public water supply are deemed possible. The frequency of inspections and reinspections shall be set by the ORC.

(Ord. of 10-7-2003, § 28-48d)

Sec. 54-63. Right of access.

The operator in responsible charge (ORC) or his authorized representative shall have the right to enter, at reasonable times, any nonresidential property served by a connection to the town public water supply for the purpose of performing the duties of this article. In those cases in which the property owner chooses not to provide such access, the ORC or authorized representative may designate the location as a high hazard in accordance with section 54-65.

(Ord. of 10-7-2003, § 28-48e)

Sec. 54-64. Existing conditions.

Any consumer shall be allowed 90 days to correct any cross connections, auxiliary intakes, interconnections or other hazards, as defined by section 54-65, in violation of the provisions of this article. The 90 days will be from the date of receipt of the notification given by the operator in responsible charge.

(Ord. of 10-7-2003, § 28-48f)

Sec. 54-65. Hazardous uses.

(a) The following uses shall be classified as hazardous uses:

- (1) Pumps and tanks handling sewage, radioactive, lethal, or toxic substances, boiler and steam connections, sewer waste lines, low inlets to receptacles containing toxic substances, coils or jackets used as heat exchangers, flush valve toilets without vacuum breaks, bacterial and viral materials, private wells or other private water supply, irrigation systems, water systems or hose connections, with booster pumps, carbonation equipment, or similar hazard potential as determined by the cross connection coordinator.
- (2) Any location at which the nature or mode of operations within a premises are such that frequent alterations are made to the plumbing or at which there is a likelihood in the determination of the cross connection coordinator that protective measures may be subverted, altered, or disconnected.
- (3) Any facility which contains, but is not limited to, a bottling plant, cannery, building having five or more stories, battery manufacturer, exterminator, greenhouse, chemical processing plant, dairy, dye works, film laboratory, car wash, hospital, commercial laboratory, laundry, metal fabricating operations, mortuary, swimming pool, morgue, x-ray equipment, medical office with laboratory, aspirator, medical washing equipment, packing house, plating plant, poultry house, power plant, nuclear reactor, those

fire sprinkler systems equipped with facilities for introduction of freeze preventive chemicals or other substances other than water, dental office, any radioactive material, restaurant, shopping mall with tenant conducting any activity listed in this section, and sewage pump or treatment facilities.

(b) All installations described in this section shall be deemed hazardous uses and must have a containment device in the form of a reduced pressure zone backflow prevention device; provided that, if the consumer demonstrates to the satisfaction of the cross connection coordinator that sufficient internal confinement devices have been installed and tested, the cross connection coordinator may require that the consumer provide engineering drawings sealed by a professional engineer of installations within the premises, which provide complete internal protection against cross connection, as approved by the cross connection coordinator. Any such connection shall be considered another connection for determining the type of containment device required. Each internal confinement device shall be one of the following, as approved by the operator in responsible charge (ORC) or his authorized representative: reduced pressure zone principle backflow prevention device, double check valve backflow prevention device, air gap, vacuum break-pressure type, or dual check valve. Each reduced pressure zone principal backflow prevention device serving as an internal confinement device shall have a mesh strainer immediately upstream of the inlet gate valve.

(c) No person shall fill any tanks or tankers, which include those containing pesticides, fertilizers, other toxic chemicals or residues, flush trucks, street sweepers, and nonpotable water tankers from a public water system, except with an approved air gap fill or an approved reduced pressure backflow preventer properly installed on the tank or tanker or on the public water supply fill pipeline or hose.

(Ord. of 10-7-2003, § 28-48g)

Sec. 54-66. Other connections.

(a) Services to single-family residential units not otherwise required by this article to have other containment devices may have a containment device in the form of an approved dual check valve on all such services which meters are applied more than 90 days following the date of adoption of the ordinance from which this article is derived. Such dual check valves or other containment devices, as required, shall be installed by the owner's representative prior to the installation of the meter by the public works department. On all such services for which meters have been applied prior to that date, said dual check valve shall be installed by the public works department; provided that the town reserves the right to charge the owner or occupant of any residence for the cost of said device and its installation. Maintenance of dual check valve containment devices installed in accordance with this section shall be conducted by the public works department. Testable containment devices that are required on lawn irrigation water systems and must be tested every two years by a contractor that has been approved by the town.

(b) All other connections to the public water supply of the town shall have containment devices in the form of a double check valve backflow prevention device as set forth in this article. This shall include water mains installed to town standard and with town supervision

but which are not maintained by the town, including, but not limited to, manufactured home parks, apartments, group housing projects, and other private distribution systems, or similar hazard potential, as determined by the operator in responsible charge or his authorized representative. Private distribution systems shall be configured so as to provide looped mains, with two or more containment devices on each building water service connection and at dead-end branch mains.

(Ord. of 10-7-2003, § 28-48h)

Sec. 54-67. Installation of containment devices.

(a) The containment devices shall be located off street rights-of-way on the water main side of any plumbing connections. When installed in a building, the device shall be located on the service line immediately after its entrance into the building. Each containment and confinement device shall be installed in a location that is physically accessible for inspection and testing, as determined by the cross connection coordinator. Containment devices which have been buried in the ground do not satisfy the provisions of this article. Each reduced pressure principle zone device shall be installed such that flooding of the device is unlikely, as determined by the operator in responsible charge (ORC).

(b) The ORC shall maintain a list of approved manufacturers and models of hazard containment devices and drawings of standard installation, copies of which shall be made available through the office of the director of public utilities and the chief inspector's office. All reduced pressure zone principle backflow prevention devices and double check valve backflow prevention devices shall be approved by the Foundation for Cross Connection Control and Hydraulic Research. All vacuum breaks and dual check valve devices shall be approved by the American Society for Sanitary Engineers. All installations and materials shall conform to town standards as set by the ORC.

(c) In those cases in which containment and/or confinement devices have been previously installed by prior owners, the town, or other parties, the responsibility for maintenance, testing, and replacement as applicable shall be with the consumer.

(d) The cost of said means of containment, and any other plumbing modifications necessary and convenient thereto, and the testing and maintenance thereof is to be paid for by the consumer.

(Ord. of 10-7-2003, § 28-48i)

Sec. 54-68. New construction.

All buildings proposing to connect to the public water system of the town that have received building permits on or after the effective date of the ordinance from which this article is derived shall be equipped with approved and tested as properly functioning backflow prevention devices, as prescribed herein, prior to the issuance of a certificate of code compliance for that building. If a building permit was issued for the building prior to the

effective date of the ordinance from which this article is derived, or if a building permit was not required, the building shall be considered to be an existing building prior to said effective date. (Ord. of 10-7-2003, § 28-48j)

Sec. 54-69. Notification of consumer.

(a) Upon identification of a hazard or hazard potential, as defined in sections 54-65 through 54-66, the cross connection coordinator shall notify the consumer of record of the property on which the hazard exists of the following:

- (1) Location of hazard.
- (2) Nature of hazard observed.
- (3) Date hazard observed.
- (4) Section of Code applicable.
- (5) Requirements of Code.

(b) Such notification to be made by certified mail, with return receipt requested. (Ord. of 10-7-2003, § 28-48k)

Sec. 54-70. Changes in nature of use.

The operator in responsible charge shall be notified by the consumer if the nature of use of the property changes so as to change the hazard classification of that property, as set forth in sections 54-65 and 54-66.

(Ord. of 10-7-2003, § 28-48l)

Sec. 54-71. Consumer responsibilities.

(a) The consumer shall, upon notification, pursuant to section 54-69, install the hazard containment devices as required within 90 days from the date of notification.

(b) If, after expiration of 90 days, the containment devices have not been installed in conformance with standards set by the operator in responsible charge (ORC) in a proper working condition, the ORC may discontinue the public water supply service at that premises, and service shall not be restored until such devices have been installed. The ORC may permit an extension of up to 90 additional days if compliance efforts are underway and the existence of hardship can be demonstrated.

(c) The town shall bear no liability for direct or consequential damages proximately caused by the discontinuance of service pursuant to this section.

(Ord. of 10-7-2003, § 28-48m)

Sec. 54-72. Testing and maintenance of devices.

The consumer at each property at which containment and/or confinement devices have been installed, except those with devices installed in accordance with section 54-66(a), shall have each containment and/or confinement device tested on an annual basis, perform any routine

maintenance to such devices as recommended by the manufacturer, and provide the operator in responsible charge (ORC) with a report of that inspection and work. The consumer shall cause such maintenance or repairs to be made rendering the device fully operational. Failure of the consumer to perform such testing and maintenance shall be cause for the premises to be deemed an immediate public health hazard. The ORC may immediately thereafter discontinue public water supply service to that premises, and service shall not be restored until such devices have been rendered operational. Where the use of water is critical to the continuance of normal operations or protection of life, property, or equipment, duplicated containment or confinement devices shall be provided by the property owner to avoid the necessity of discontinuing water service to test or repair the device.

(Ord. of 10-7-2003, § 28-48n)

Sec. 54-73. Enforcement by civil penalty.

(a) *Penalty.*

- (1) Violation of any provision of this article may subject the offender to a civil penalty to be recovered by the town in a civil action in the nature of debt if the offender does not pay the penalty within 30 days after the assessment has become final by exhaustion of the appeal process established by this section, or by failure to appeal the assessment.
- (2) The civil penalty for violation of any provision of this article shall not exceed \$500.00 per day for each day of continuous violation, or a cumulative or single civil penalty of \$10,000.00. The civil penalty for willful violation of any provision of this article shall not exceed \$1,000.00 per day for each day of a continuous violation, or a cumulative or single civil penalty of \$20,000.00.

(b) *Assessment.* Any civil penalty shall be assessed by the town manager, upon the recommendation of the operator in responsible charge (ORC), and shall be based upon the reasonable estimated cost of correcting the cited violation, the magnitude of the potential risk posed to the public health, safety and welfare by the violation, and the cost of the public safety or other emergency response caused by the violation. The town manager shall serve written notice of the civil penalty assessment to the offender and set out with reasonable care the basis of the amount so assessed.

(c) *Equitable relief.* An appropriate equitable remedy, including a mandatory or prohibitory injunction issuing from a court of competent jurisdiction, may endorse the provisions of this article.

(d) *Enforcement option.* The penalties and enforcement provisions established by this article may be applied in additional to or instead of the penalties established by other sections of this Code.

(Ord. of 10-7-2003, § 28-48o)

Sec. 54-74. Limitation of liability.

The town shall not be held liable, for any cause, for failure to detect any unit failing to operate adequately, or failure to identify any specific hazard, which may result in contamination of its public water supply, nor shall this article diminish the responsibility of any property owner from whose property a contamination of the public water supply may originate. (Ord. of 10-7-2003, § 28-48p)

Secs. 54-75—54-91. Reserved.

DIVISION 2. WATER CONSERVATION*

Sec. 54-92. Definition.

For the purposes of this division, the term "water emergency" means any condition or situation which threatens the safety or supply of either treated or potable water within the water supply, treatment, and distribution systems of the town or within the systems of the municipal, commercial, and industrial customers. Determination of whether specific situations are considered to be water emergencies shall be made by the public works director or his designee after consultation with the utility department head. Water emergency situations include, but are not limited to, drought, or periods of insufficient raw water supply and fires of a magnitude, such that system integrity is threatened. (Ord. of 1-9-2001(1), § 28-66)

Sec. 54-93. Penalties and discontinuance of water service.

(a) *Penalties.* Any person violating the mandatory provisions of this division shall be issued a civil citation pursuant to section 1-6 and a fine not to exceed \$100.00 for residential customers and \$500.00 for commercial industrial users. Each occurrence of a violation of this division shall be considered a separate violation.

(b) *Discontinuance of service.* Water service may be temporarily discontinued for willful disregard of this division. All applicable penalty fees may be applied in the event of service suspensions. In the event of continued gross noncompliance with this division, the removal of the meter and service will be deemed proper and service will be discontinued. Tap fees and deposits will be forfeited.

(c) *Municipal customers, water corporations or company compliance.* Municipalities, water corporations or companies purchasing water from the town shall adopt and enforce this entire ordinance as a condition of continuing existing water sales agreements, upon declaration of a water emergency, said municipalities and companies shall enforce the appropriate water use restrictions for the level of declared emergency. Water service to said municipalities and companies shall be terminated for not enforcing the provisions of this division. (Code 1993, § 28-67; Ord. of 10-7-1986, arts. VI, VII; Ord. of 1-9-2001(1), § 28-67)

***State law reference**—Local governments providing public water service must prepare local water supply plan, G.S. 143-355.

Sec. 54-94. Declaration of water emergency.

The town manager or his designee after consultation with appropriate town staff shall be authorized to declare that a water emergency exists. Depending on the severity of the emergency; voluntary (level I), mandatory (levels II, III), or mandatory (level IV) staged water use restrictions, as described in this division shall be imposed upon customers.

(Code 1993, § 28-68; Ord. of 10-7-1986, art. I; Ord. of 1-9-2001(1), § 28-68)

Sec. 54-95. Level I water emergency.

During a declared level I water emergency, the following voluntary water conservation practices shall be encouraged for the public water system served by the town:

- (1) Watering of lawns, ornamental plants, and gardens shall be limited to that necessary for plant survival only.
- (2) Planting of new ornamental plants and seeding of lawns should be deferred until the water emergency situation no longer exists.
- (3) Household water should be re-utilized to the greatest possible extent for watering.
- (4) Use of water for wash down of outside areas such as driveways or parking lots should be curtailed.
- (5) Faucets should not be left running while shaving, brushing teeth, or washing dishes.
- (6) The use of clothes and dishwashers should be limited, if possible, and these units should be operated with full loads when used.
- (7) Washing of cars or other vehicles should be curtailed to Saturdays or Sundays. Hoses should not be left running while washing vehicles.
- (8) The use of flow restrictions and other water saving devices is encouraged.
- (9) Showers should be used for bathing showers should be limited to four minutes or less.
- (10) Filing of pools shall be deferred or limited to hours between 9:30 p.m. and 6:00 a.m.
- (11) Any practice listed above may be modified or additional practices added at the discretion of the director of water resources.

(Code 1993, § 28-69; Ord. of 10-7-1986, art. II; Ord. of 1-9-2001(1), § 28-69)

Sec. 54-96. Staged water use restriction—Level II water emergency.

During a declared level II water emergency, the following mandatory water use restrictions shall be in effect for the public water system served by the town:

- (1) All voluntary practices listed above shall be mandatory.
- (2) Watering and irrigation of lawn, ornamental plants and gardens shall not be done except with spring loaded washing nozzle with automatic shut-off or by automatic sprinkler systems only on Tuesdays and Saturdays between the hours of 7:00 p.m. and 7:00 a.m.

- (3) Planting of new ornamental plants and seeding of lawns should be deferred until the water emergency situation no longer exists.
- (4) Use of water for wash down of outside areas is prohibited.
- (5) Residential washing of cars and other vehicles shall be prohibited except on Saturdays and Sundays with a spring-loaded washing nozzle with automatic shut-off. Commercial washing facilities, including those providing hand-held washing nozzles, may continue normal operation. However, the facility owner/operator shall ensure that water wastage does not occur.
- (6) Restaurant and other food-serving establishments shall serve water to a patron only at the request of the patron.
- (7) Commercial, industrial, and construction operations shall eliminate all possible wastewater.
- (8) Newly constructed or drained pools shall be filled by permit only. Fill permits shall be issued by the public works director, and issuance of the permits may be curtailed depending on the severity of the situation.

Any practice listed above may be modified or additional practices added at the discretion of the director of water resources.

(Code 1993, § 28-70; Ord. of 10-7-1986, art. III; Ord. of 1-9-2001(1), § 28-70)

Sec. 54-97. Same—Level III water emergency.

During a declared level III water emergency, the following mandatory water use restrictions shall be in effect for the public water system served by the town:

- (1) Watering and irrigation of lawns, ornamental plants and gardens shall not be done except by handheld container (bucket, jug, etc.).
- (2) Washing of cars, vehicles, and equipment is prohibited.
- (3) Restaurants and other food serving establishments shall utilize single serving utensils and plates, and serve water at the patron's request, or, in the alternative, achieve a 25 percent reduction in total water usage.
- (4) Recreational use of potable water including filling of pools is prohibited.
- (5) Large scale commercial and industrial water customers and construction activities utilizing 5,000 or more gallons water per day shall achieve mandatory reduction in daily water usage of 25, 50, 75 percent through whatever means is available. The target reduction percentage shall be determined by the severity of the water emergency and shall be publicly announced as part of the emergency declaration. The director of public works shall determine compliance with the daily usage reduction targets. Variances to this restriction may be granted to designated public health facilities including but not limited to hospitals and nursing homes.

- (6) Drinking water taps or hydrant permits shall be issued or revoked at the discretion of the town public works director.

Any practice listed above may be modified, or additional practices may be added, at the discretion of the director of public works.

(Code 1993, § 28-71; Ord. of 10-7-1986, art. IV; Ord. of 1-9-2001(1), § 28-71)

Sec. 54-98. Same—Level IV water emergency.

During a declared level IV water emergency, the following mandatory water use restrictions shall be in effect for the public water system served by the town:

- (1) All use of water for purposes other than maintenance of public safety is prohibited.
- (2) Where the town system is not functional, daily per day residential water shall not exceed 300 gallons at each metered location.
- (3) Where the town system is not functional, National Guard and emergency services vehicles shall be utilized to distribute water for household use at a prearranged location within the affected area. Usage by individuals shall be limited to those amounts necessary to sustain life through drinking, food preparation, and personal hygiene.
- (4) Any practice listed above may be modified or additional practices added at the discretion of the director of the public works department.
- (5) Compliance plan for industries during level IV remains the same as level III or as directed by the state public health department. Such plans shall be submitted to the town water resources department within 90 calendar days from the adoption of the ordinance from which this section is derived. Plans shall be updated at least every five years.

(Ord. of 1-9-2001(1), § 28-72)

Sec. 54-99. Lifting of restrictions.

(a) A water emergency conditions will expire when the mayor, after consultation with the town council and upon recommendation of the public works supervisor, deems that the condition that caused the alert has abated.

(b) The expiration or cancellation of a water emergency declaration shall be promptly and extensively publicized.

(Code 1993, § 28-72; Ord. of 10-7-1986, art. V; Ord. of 1-9-2001(1), § 28-73)

Secs. 54-100—54-126. Reserved.

ARTICLE IV. SEWER SERVICE

DIVISION 1. GENERALLY

Sec. 54-127. Purpose and policy.

(a) This article sets forth uniform requirements for direct and indirect contributors into the wastewater collection and treatment system for the town and enables the town to comply with all applicable state and federal laws, including the Clean Water Act, 33 USC 1251 et seq., and the General Pretreatment Regulations, 40 CFR 403.

(b) The purpose of this article is to:

- (1) Prevent the introduction of pollutants into the municipal wastewater system which will interfere with the operation of the system or contaminate the resulting sludge;
- (2) Prevent the introduction of pollutants into the municipal wastewater system which will pass through the system, inadequately treated, into any waters of the state or otherwise be incompatible with the system;
- (3) Promote reuse and recycling of industrial wastewater and sludges from the municipal system;
- (4) Protect both municipal personnel who may be affected by sewage, sludge, and effluent in the course of their employment, as well as protecting the general public;
- (5) Provide for equitable distribution of the cost of operation, maintenance and improvement of the municipal wastewater system; and
- (6) Ensure that the municipality complies with its NPDES or nondischarge permit conditions, sludge use and disposal requirements, and any other federal or state laws to which the municipal wastewater system is subject.

(c) This article provides for the regulation of direct and indirect contributors to the municipal wastewater system, through the issuance of permits to certain nondomestic users and through enforcement of general requirements for the other users, authorizes monitoring and enforcement activities, requires user reporting, and provides for the setting of fees for the equitable distribution of costs resulting from the program established herein.

(d) This article shall apply to all users of the municipal wastewater system. Except as otherwise provided herein, the director shall administer, implement, and enforce the provisions of this article. Any powers granted to or imposed upon the director may be delegated by the director to other town personnel. By discharging wastewater into the municipal wastewater system, industrial users located outside the town limits agree to comply with the terms and conditions established in this article, as well as any permits, enforcement actions, or orders issued hereunder.

Sec. 54-128. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Act or the Act means the Federal Water Pollution Control Act, also known as the Clean Water Act, as amended, 33 USC 1251 et seq.

Approval authority means the director of the division of environmental management of the state department of environment, health and natural resources, or his designee.

Authorized representative of the industrial user means:

- (1) If the industrial user is a corporation:
 - a. The president, secretary, or a vice-president of the corporation in charge of a principal business function, or any other person who performs similar policy or decision-making functions for the corporation; or
 - b. The manager of one or more manufacturing, production, or operation facilities employing more than 250 persons or having gross annual sales or expenditures exceeding \$25,000,000.00 (in second-quarter 1980 dollars), if authority to sign documents has been assigned or delegated to the manager in accordance with corporate procedures.
- (2) If the industrial user is a partnership or sole proprietorship, a general partner or the proprietor, respectively.
- (3) If the industrial user is a federal, state or local government facility, a director or highest official appointed or designated to oversee the operation and performance of the activities of the government facility, or such person's designee.

The individuals described in subsections (1)—(3) of this definition may designate another authorized representative if the authorization is in writing, the authorization specifies the individual or position responsible for the overall operation of the facility from which the discharge originates or having overall responsibility for environmental matters for the company, and the written authorization is submitted to the town.

Biochemical oxygen demand or *BOD* means the quantity of oxygen utilized in the biochemical oxidation of organic matter under standard laboratory procedures for five days at 20 degrees Celsius, usually expressed as a concentration (e.g., mg/l).

Building sewer means a sewer conveying wastewater from the premises of a user to the town's system.

Bypass means the intentional diversion of wastestreams from any portion of a user's treatment facility.

Categorical standards means National Categorical Pretreatment Standards or Pretreatment Standard.

Director means the town's director of public works and utilities.

Environmental Protection Agency or EPA means the United States Environmental Protection Agency, or, where appropriate, the term may also be used as a designation for the administrator or other duly authorized official of said agency.

Grab sample means a sample which is taken from a wastestream on a one-time basis without regard to the flow in the wastestream and over a period of time not to exceed 15 minutes.

Holding tank waste means any waste from holding tanks, including, but not limited to, such holding tanks as vessels, chemical toilets, campers, trailers, septic tanks, and vacuum-pump tank trucks.

Indirect discharge or discharge means the discharge or the introduction from any nondomestic source regulated under section 307(b), (c), or (d) of the act (33 USC 1317) into the POTW, including holding tank waste discharged into the system.

Industrial user or user means any person who is a source of indirect discharge.

Interference means the inhibition or disruption of the City of Salisbury's treatment processes, operations, or its sludge process, use, or disposal, which causes or contributes to a violation of any requirement of the City of Salisbury POTW's NPDES or nondischarge permit or prevents sewage sludge use or disposal in compliance with specified applicable state and federal statutes, regulations, or permits. The term "interference" includes prevention of sewage sludge use or disposal by the City of Salisbury POTW in accordance with section 405 of the act (33 USC 1345) or any criteria, guidelines, or regulations developed pursuant to the Solid Waste Disposal Act (SWDA), 42 USC 6901 et seq., the Clean Air Act, the Toxic Substances Control Act, the Marine Protection Research and Sanctuary Act (MPRSA), or more stringent state criteria, including those contained in any state sludge management plan prepared pursuant to title IV of SWDA, applicable to the method of disposal or use employed by the POTW.

Medical waste means isolation wastes, infectious agents, human blood and blood products, pathological wastes, sharps, body parts, contaminated bedding, surgical wastes, potentially contaminated laboratory wastes, and dialysis wastes.

National Categorical Pretreatment Standard or categorical standard means any regulation containing pollutant discharge limits promulgated by the EPA in accordance with section 307(b) and (c) of the act (33 USC 1317) which apply to a specific category of industrial users, and which appear in 40 CFR 405—471.

National Pollution Discharge Elimination System permit or NPDES permit means a permit issued pursuant to section 402 of the act (33 USC 1342), or pursuant to G.S. 143-215.1 by the state under delegation from the EPA.

National Prohibitive Discharge Standard or prohibitive discharge standard means absolute prohibitions against the discharge of certain substances; these prohibitions appear in section 54-130 and are developed under the authority of section 307(b) of the Act and 40 CFR 403.5.

New source means:

- (1) Any building, structure, facility, or installation from which there may be a discharge of pollutants, the construction of which commenced after the publication of proposed categorical pretreatment standards under section 307(c) of the act which will be applicable to such source if such standards are thereafter promulgated in accordance with 40 CFR 307(c), provided that:
 - a. The building, structure, facility, or installation is constructed at a site at which no other source is located;
 - b. The building, structure, facility, or installation totally replaces the process or production equipment that causes the discharge of pollutants at an existing source;
 - c. The production or wastewater generating processes of the building, structure, facility, or installation are substantially independent of an existing source at the same site. In determining whether these are substantially independent, factors such as the extent to which the new facility is integrated with the existing plant, and the extent to which the new facility is engaged in the same general type of activity as the existing source, should be considered.
- (2) Construction on a site at which an existing source is located that results in a modification rather than a new source if the construction does not create a new building, structure, facility, or installation meeting the criteria of subsections (1)b and (1)c of this definition, but otherwise alters, replaces, or adds to existing process or production equipment. For purposes of this definition, construction of a new source has commenced if the owner or operator has:
 - a. Begun, or caused to begin, as part of a continuous on-site construction program:
 1. Any placement, assembly, or installation of facilities or equipment; or
 2. Significant site preparation work including clearing, excavation, or removal of existing buildings, structures or facilities which is necessary for the placement, assembly, or installation of new source facilities or equipment; or
 - b. Entered into a binding contractual obligation for the purchase of facilities or equipment which are intended to be used in its operation within a reasonable time. Options to purchase or contracts which can be terminated or modified without substantial loss, and contracts for feasibility, engineering, and design studies do not constitute a contractual obligation under this definition.

Noncontact cooling water means water used for cooling which does not come into direct contact with any raw material, intermediate product, waste product, or finished product.

Nondischarge permit means a disposal system permit issued by the state pursuant to G.S. 143-215.1.

Pass through means a discharge which exits the town collection system into waters of the state in quantities or concentrations which, alone or with discharges from other sources, causes a violation, including an increase in the magnitude or duration of a violation, of the nondischarge permit, or a downstream water quality standard.

Person means any individual, partnership, copartnership, firm, company, corporation, association, joint stock company, trust, estate, governmental entity or any other legal entity, or their legal representatives, agents or assigns. This definition includes all federal, state, and local government entities.

pH means a measure of the acidity or alkalinity of a substance, expressed as standard units, and calculated as the logarithm (base 10) of the reciprocal of the concentration of hydrogen ions, expressed in g/L of solution.

Pollutant means any waste, as defined in G.S. 143-213(18), and dredged soil, solid waste, incinerator residue, sewage, garbage, sewage sludge, munitions, medical wastes, chemical wastes, biological materials, radioactive materials, heat, wrecked or discarded equipment, rock, sand, cellar dirt and industrial, municipal, and agricultural waste and certain characteristics of wastewater (e.g., pH, temperature, TSS, turbidity, color, BOD, chemical oxygen demand (COD), toxicity, or odor).

POTW treatment plant means that portion of the City of Salisbury POTW designed to provide treatment to wastewater.

Pretreatment or *treatment* means the reduction of the amount of pollutants, the elimination of pollutants, or the alteration of the nature of pollutant properties in wastewater prior to or in lieu of discharging or otherwise introducing such pollution into a POTW. The reduction or alteration can be obtained by physical, chemical or biological processes, or process changes or other means, except by diluting the concentration of the pollutants, unless allowed by an applicable pretreatment standard.

Pretreatment program means the program for the control of pollutants introduced into the POTW from nondomestic sources which was developed by the town in compliance with 40 CFR 403.8 and approved by the approval authority, as authorized by G.S. 143-215.3(a)(14), in accordance with 40 CFR 403.11.

Pretreatment requirements means any substantive or procedural requirement related to pretreatment, other than a pretreatment standard.

Pretreatment standards means prohibited discharge standards, categorical standards, and local limits.

Publicly owned treatment works (POTW) or municipal wastewater system means a treatment works, as defined by section 212 of the act (33 USC 1292) which is owned in this instance by the City of Salisbury. This definition includes any devices or systems used in the collection, storage, treatment, recycling, and reclamation of municipal sewage or industrial wastes of a liquid nature. It also includes sewers, pipes, and other conveyances only if they convey wastewater to the town's collection system.

Severe property damage means substantial physical damage to property, damage to the user's treatment facilities which causes them to become inoperable, or substantial and permanent loss of natural resources which can reasonably be expected to occur in the absence of a bypass. Severe property damage does not mean economic loss caused by delays in production.

Significant industrial user means any industrial user of the wastewater disposal system that:

- (1) Has an average daily process wastewater flow of 25,000 gallons or more;
- (2) Contributes more than five percent of any design capacity (i.e., allowable pollutant load) of the wastewater treatment plant receiving the indirect discharge;
- (3) Is required to meet a National Categorical Pretreatment Standard; or
- (4) Is found by the town, the division of environmental management, or the EPA to have the potential for impact, either singly or in combination with other contributing industrial users, on the wastewater treatment system, the quality of sludge, the system's effluent quality, or compliance with any pretreatment standards or requirements.

Significant noncompliance or reportable noncompliance means a status of noncompliance, as follows:

- (1) Violations of wastewater discharge limits.
 - a. Chronic violations. Sixty-six percent or more of the measurements exceed (by any magnitude) the same daily maximum limit or the same average limit in a six-month period.
 - b. Technical review criteria (TRC) violations. Thirty-three percent or more of the measurements equal or exceed the TRC, times the limit (maximum or average) in a six-month period. There are two groups of TRCs:

For conventional pollutants (BOD, TSS, Fats, Oil and Grease) TRC =	1.4
For All Other Pollutants TRC =	1.2

- c. Any other violation of an effluent limit (average or daily maximum) that the control authority believes has caused, alone or in combination with other discharges, interference or pass-through, or has endangered the health of the sewage treatment plant personnel or of the public.
- d. Any discharge of a pollutant that has caused imminent endangerment to human health, welfare to the environment or has resulted in the City of Salisbury POTW's exercise of its emergency authority to halt or prevent such a discharge.

- (2) Violations of compliance schedule milestones, contained in a pretreatment permit or enforcement order, for starting construction, completing construction, and attaining final compliance by 90 days or more after the schedule date.
- (3) Failure to provide reports for compliance schedule, self-monitoring data, baseline monitoring reports, 90-day compliance reports, and periodic compliance reports within 30 days from the due date.
- (4) Failure to accurately report noncompliance.
- (5) Any other violation or group of violations that the control authority considers to be significant.

Slug load means any discharge at a flow rate or concentration which could cause a violation of the prohibited discharge standards in section 54-130.

Standard industrial classification or *SIC* means a classification pursuant to the Standard Industrial Classification Manual issued by the Executive Office of the President, Office of Management and Budget, 1987.

Stormwater means any flow occurring during or following any form of natural precipitation and resulting therefrom.

Superintendent means the person designated by the City of Salisbury to supervise the operation of the publicly owned treatment works and the town's director, who is charged with certain duties and responsibilities by this article, or his duly authorized representative.

Suspended solids means the total suspended matter that floats on the surface of, or is suspended in, water, wastewater or other liquids, and which is removable by laboratory filtering.

Upset means an exceptional incident in which there is unintentional and temporary noncompliance with categorical pretreatment standards because of factors beyond the reasonable control of the user. The term "upset" does not include noncompliance to the extent caused by operational error, improperly designed treatment facilities, inadequate treatment facilities, lack of preventive maintenance, or careless or improper operation.

Wastewater means the liquid and water-carried industrial or domestic wastes from dwellings, commercial buildings, industrial facilities, mobile sources, treatment facilities and institutions, together with any groundwater, surface water, and stormwater that may be present, whether treated or untreated, which are contributed into or permitted to enter the town collection system.

Wastewater permit means as set forth in division 3 of this article.

Waters of the state means all streams, lakes, ponds, marshes, watercourses, waterways, wells, springs, reservoirs, aquifers, irrigation systems, drainage systems and all other bodies or accumulations of water, surface or underground, natural or artificial, public or private, which are contained within, flow through, or border upon the state or any portion thereof.

Sec. 54-129. Abbreviations.

The following abbreviations, when used in this article, shall have the following designated meanings:

- | | | |
|------|-------|---|
| (1) | BOD | Biochemical oxygen demand |
| (2) | COD | Chemical oxygen demand |
| (3) | EPA | Environmental Protection Agency |
| (4) | L | Liter |
| (5) | mg | Milligrams. |
| (6) | mg/l | Milligrams per liter |
| (7) | NPDES | National Pollution Discharge Elimination System |
| (8) | POTW | Publicly-owned treatment works |
| (9) | RCRA | Resource Conservation and Recovery Act |
| (10) | SIC | Standard industrial classification |
| (11) | SWDA | Solid Waste Disposal Act |
| (12) | TSS | Total suspended solids |
| (13) | TKN | Total Kjeldahl Nitrogen |

Sec. 54-130. Prohibited discharge standards.

(a) *General prohibitions.* No user shall contribute or cause to be contributed into the town collection system, directly or indirectly, any pollutant or wastewater which causes interference or pass through. These general prohibitions apply to all users of a City of Salisbury POTW, whether or not the user is a significant industrial user or subject to any national, state, or local pretreatment standards or requirements.

(b) *Specific prohibitions.* No user shall contribute or cause to be contributed into the town collection system the following pollutants, substances, or wastewater:

- (1) Pollutants which create a fire or explosive hazard in the City of Salisbury POTW or the town collection system, including, but not limited to, wastestreams with a closed cup flashpoint of less than 140 degrees Fahrenheit (60 degrees Celsius) using the test methods specified in 40 CFR 261.21.
- (2) Solid or viscous substances in amounts which will cause obstruction of the flow in the collection system resulting in interference, but in no case solids greater than one-half inch in any dimension (including wood, glass, ashes, sand, cinders, nonshredded garbage, etc.).
- (3) Any ground paper products.
- (4) Petroleum oil, nonbiodegradable cutting oil, or products of mineral oil origin, in amounts that will cause interference or pass through.
- (5) Any wastewater having a pH less than 5.0 or more than 10, or wastewater having any other corrosive property capable of causing damage to the collection system or POTW.

- (6) Any wastewater containing pollutants, including oxygen-demanding pollutants, (BOD, etc.) in sufficient quantity, flow, or concentration, either singly or by interaction with other pollutants, to cause interference with the POTW.
- (7) Any wastewater having a temperature greater than 150 degrees Fahrenheit (66 degrees Celsius), or which will inhibit biological activity in the POTW treatment plant resulting in interference, but in no case wastewater which causes the temperature at the introduction into the treatment plant to exceed 104 degrees Fahrenheit (40 degrees Celsius).
- (8) Any pollutants which result in the presence of toxic gases, vapors or fumes within the collection system or POTW in a quantity that may cause acute worker health and safety problems.
- (9) Any trucked or hauled pollutants, except at discharge points designated by the town's director or POTW director in accordance with section 54-138.
- (10) Any noxious or malodorous liquids, gases, or solids or other wastewater which, either singly or by interaction with other wastes, are sufficient to create a public nuisance or hazard to life or are sufficient to prevent entry into the sewers for maintenance and repair.
- (11) Any substance which may cause the POTW's effluent or any other product of the POTW such as residues, sludges, or scums, to be unsuitable for reclamation and reuse or to interfere with the reclamation process. In no case shall a substance discharged to the POTW cause the POTW to be in noncompliance with sludge use or disposal regulations or permits issued under section 405 of the act, the Solid Waste Disposal Act, the Clean Air Act, the Toxic Substances Control Act, or state criteria applicable to the sludge management method being used.
- (12) Any wastewater containing any radioactive wastes or isotopes, except as specifically approved by the POTW director in compliance with applicable state or federal regulations.
- (13) Stormwater, surface water, groundwater, artesian well water, roof runoff, subsurface drainage, swimming pool drainage, condensate, deionized water, noncontact cooling water, and unpolluted industrial wastewater, unless specifically authorized by the POTW director.
- (14) Fats, oils, or greases of animal or vegetable origin in concentrations greater than 100 mg/L.
- (15) Any sludges, screenings or other residues from the pretreatment of industrial wastes.
- (16) Any medical wastes, except as specifically authorized by the POTW director in a wastewater discharge permit.
- (17) Any material containing ammonia, ammonia salts, or other chelating agents which will produce metallic complexes that interfere with the municipal wastewater system.

- (18) Any material that would be identified as hazardous waste according to 40 CFR 261 if not disposed of in a sewer, except as may be specifically authorized by the POTW director.
- (19) Any wastewater causing the treatment plant effluent to violate state water quality standards for toxic substances, as described in 15A N.C. Admin. Code 2B.0200.
- (20) Wastewater causing, alone or in conjunction with other sources, the treatment plant's effluent to fail a toxicity test.
- (21) Recognizable portions of the human or animal anatomy.
- (22) Any wastes containing detergents, surface active agents, or other substances which may cause excessive foaming in the municipal wastewater system.
- (23) At no time shall two successive readings on an explosion hazard meter at the point of discharge into the system (or at any point in the system) be more than five percent, nor any single reading over ten percent, of the lower explosive limit (LEL) of the meter.
- (24) At no time shall any sanitary wastewater be discharged or allowed to be discharged into the storm sewer system without exception.

Pollutants, substances, wastewater, or other wastes prohibited by this section shall not be processed or stored in such a manner that they could be discharged to the municipal wastewater system. All floor drains located in process or materials storage areas must discharge to the industrial user's pretreatment facility before connecting with the system.

(c) *Violation; action of town director or POTW director.* When the town director or POTW director determines that a user is contributing to the wastewater system any of the substances enumerated in subsection (b) of this section in such amounts which may cause or contribute to interference of POTW operation or pass through, the director shall:

- (1) Advise the user of the potential impact of the contribution on the wastewater system in accordance with section 54-142(a); and
- (2) Take appropriate actions in accordance with division 3 of this article for such user to protect the wastewater system from interference or pass through.

Sec. 54-131. National Categorical Pretreatment Standards.

Users subject to categorical pretreatment standards are required to comply with applicable standards as set out in 40 CFR 405—471 and incorporated herein.

- (1) Where a categorical pretreatment standard is expressed only in terms of either the mass or the concentration of a pollutant in wastewater, the director may impose equivalent concentration or mass limits in accordance with 40 CFR 403.6(c).
- (2) When wastewater subject to a categorical pretreatment standard is mixed with wastewater not regulated by the same standard, the director shall impose an alternate limit using the combined wastestream formula in 40 CFR 403.6(e).

- (3) A user may obtain a variance from a categorical pretreatment standard if the user can prove, pursuant to the procedural and substantive provisions in 40 CFR 403.13, that factors relating to its discharge are fundamentally different from the factors considered by the EPA when developing the categorical pretreatment standard.
- (4) A user may obtain a net gross adjustment to a categorical standard in accordance with 40 CFR 403.15.

Sec. 54-132. Industrial waste survey and local limits.

(a) Industrial waste survey information will be used to implement the general and specific discharge prohibitions listed in this article. Industrial user-specific local limits will be developed ensuring that the POTW's maximum allowable headworks loading is not exceeded for particular pollutants of concern for each industrial user. Where specific local limits are not contained for a given parameter or pollutant in an industrial user permit, the following limits will apply to all users:

(1)	250	mg/l	BOD
(2)	250	mg/l	TSS
(3)	40	mg/l	Oil and grease
(4)	500	mg/l	COD
(5)	40	mg/l	TKN
(6)	0.003	mg/l	Arsenic
(7)	0.003	mg/l	Cadmium
(8)	0.061	mg/l	Copper
(9)	0.041	mg/l	Cyanide
(10)	0.049	mg/l	Lead
(11)	0.0003	mg/l	Mercury
(12)	0.021	mg/l	Nickel
(13)	0.050	mg/l	Molybdenum
(14)	0.025	mg/l	Selenium
(15)	4.00	mg/l	Phosphorus
(16)	0.050	mg/l	Phenol
(17)	0.005	mg/l	Silver
(18)	0.05	mg/l	Total chromium
(19)	0.175	mg/l	Zinc
(20)	10	mg/l	Ammonia

(b) Industrial user-specific local limits for appropriate pollutants of concern shall be included in wastewater permits and are considered pretreatment standards. The director may impose mass limits in addition to, or in place of, the concentration-based limits above.

Sec. 54-133. State requirements.

State requirements and limitations on discharges shall apply in any case where they are more stringent than federal requirements and limitations or those in this article.

Sec. 54-134. Right of revision.

The town reserves the right to establish limitations and requirements which are more stringent than those required by either state or federal regulation if deemed necessary to comply with the objectives presented in section 54-127 or the general and specific prohibitions in section 54-130, as is allowed by 40 CFR 403.4.

Sec. 54-135. Dilution.

No user shall ever increase the use of process water or in any way attempt to dilute a discharge as a partial or complete substitute for adequate treatment to achieve compliance with the limitations contained in the National Categorical Pretreatment Standards, unless expressly authorized by an applicable pretreatment standard, or in any other pollutant-specific limitation developed by the town or state.

Sec. 54-136. Pretreatment of wastewater.

(a) *Pretreatment facilities.* Users shall provide wastewater treatment as necessary to comply with this article and wastewater permits issued under division 3 of this article and shall achieve compliance with all National Categorical Pretreatment Standards, local limits, and the prohibitions set out in section 54-130 within the time limitations as specified by the EPA, the state, or the director, whomever is more stringent. Any facilities necessary for compliance shall be provided, operated, and maintained at the user's expense. Detailed plans showing the pretreatment facilities and operating procedures shall be submitted to the town for review, and shall be approved by the director before construction of the facility. The review of such plans and operating procedures shall in no way relieve the user from the responsibility of modifying the facility as necessary to produce an effluent acceptable to the town under the provisions of this article. Any subsequent changes in the pretreatment facilities or method of operation shall be reported to and be approved by the director prior to the user's initiation of the changes.

(b) *Additional pretreatment measures.*

- (1) Whenever deemed necessary, the director may require users to restrict their discharge during peak flow periods, designate that certain wastewater be discharged only into specific sewers, relocate and/or consolidate points of discharge, separate sewage wastestreams from industrial wastestreams, and such other conditions as may be necessary to protect the wastewater collection system or POTW and determine the user's compliance with the requirements of this article.
- (2) The director may require any person discharging into the wastewater system to install and maintain, on their property and at their expense, a suitable storage and flow-control facility to ensure equalization of flow. A wastewater discharge permit may be issued solely for flow equalization.
- (3) Grease, oil, and sand interceptors shall be provided when, in the opinion of the director, they are necessary for the proper handling of wastewater containing excessive

amounts of grease and oil, or sand; except that such interceptors shall not be required for residential users. All interception units shall be of the type and capacity approved by the director and shall be so located to be easily accessible for cleaning and inspection. Such interceptors shall be inspected, cleaned, and repaired regularly, as needed, by the user at their expense.

- (4) Users with the potential to discharge flammable substances may be required to install and maintain an approved combustible gas detection meter.
- (5) The director may require a grinder to be installed as necessary for the proper handling of excessive amounts of trash, rags, etc., in a discharge.

Sec. 54-137. Accidental discharge/slug control plans.

At least once every two years, the director shall evaluate whether each significant industrial user needs an accidental discharge/slug control plan. The director may require any user to develop, submit for approval, and implement such a plan. Alternatively, the director may develop such a plan for any user. An accidental discharge/slug control plan shall address, at a minimum, the following:

- (1) Description of discharge practices, including nonroutine batch discharges;
- (2) Description of stored chemicals;
- (3) Procedures for immediately notifying the director of any accidental or slug discharge, as required by section 54-240; and
- (4) Procedures to prevent adverse impact from any accidental or slug discharge. Such procedures include, but are not limited to, inspection and maintenance of storage areas, handling and transfer of materials, loading and unloading operations, control of plant site runoff, worker training, building of containment structures or equipment, measures for containing toxic organic pollutants, including solvents, and/or measures and equipment for emergency response.

Sec. 54-138. Hauled wastewater.

(a) Septic tank waste may be introduced into the collection system only at locations designated by the director, and at such times as are established by the director. Such waste shall not violate this division or any other requirements established by the town. The director may require septic tank waste haulers to obtain wastewater discharge permits.

(b) The director shall require haulers of industrial waste to obtain wastewater discharge permits. The director may require generators of hauled industrial waste to obtain wastewater discharge permits. The director also may prohibit the disposal of hauled industrial waste. The discharge of hauled industrial waste is subject to all other requirements of this article.

(c) Industrial waste haulers may discharge loads only at locations designated by the director. No load may be discharged without prior consent of the director. The director may collect samples of each hauled load to ensure compliance with applicable standards. The director may require the industrial waste hauler to provide a waste analysis of any load prior to discharge.

(d) Industrial waste haulers must provide a waste-tracking form for every load. This form shall include, at a minimum, the name and address of the industrial waste hauler, permit number, truck identification, names and addresses of sources of waste, and volume and characteristics of waste. The form shall identify the type of industry, known or suspected waste constituents, and whether any wastes are RCRA hazardous wastes.

Sec. 54-139. Use of public sewers.

(a) *Reasonable accessibility.* A property owner is considered to have reasonable access to the public sewer collection system when the property is located within 200 feet of the public sewer. Property owners meeting this criteria are required to connect to the public sewer system in the time described in subsection (b) of this section.

(b) *Compliance time.* A property owner meeting the reasonable accessibility requirement will receive proper notice that he is being requested to provide a connection to the public sewer. Allowable compliance time, a reasonable time allowance for completion of the work, to make a proper connection shall not exceed 60 days.

Sec. 54-140. Regulations concerning building of sewers and connections.

Regulations for building or construction of public sewers and connections are properly covered in the state plumbing and building codes and shall be followed.

Sec. 54-141. Confidential information.

(a) Information and data on a user obtained from reports, questionnaires, permit applications, permits and monitoring programs and from inspections shall be available to the public or other governmental agency without restriction, unless the user specifically requests and is able to demonstrate to the satisfaction of the director that the release of such information would divulge information, processes or methods of production entitled to protection as trade secrets of the user. Any such request must be asserted at the time of submission of the information or data.

(b) When requested by the person furnishing a report, the portions of a report which might disclose trade secrets or secret processes shall not be made available for inspection by the public, but shall be made available upon written request to governmental agencies for uses related to this article, the NPDES permit, nondischarge permit and/or the pretreatment programs; provided, however, that such portions of a report shall be available for use by the state or any state agency in judicial review or enforcement proceedings involving the person furnishing the report. Wastewater constituents and characteristics will not be recognized as confidential information.

(c) All records relating to compliance with pretreatment standards shall be made available to officials of the approval authority and the EPA upon request.

Sec. 54-142. Enforcement.

(a) *Administrative remedies.*

(1) *Notification of violation.* Whenever the director finds that any industrial user has violated or is violating this article, wastewater permit, or any prohibition, limitation or requirements contained therein or any other pretreatment requirement, the director may serve upon such a person a written notice stating the nature of the violation. Within 30 days from the date of this notice, an explanation for the violation and a plan for the satisfactory correction thereof shall be submitted to the town by the user. Submission of this plan does not relieve the discharger of liability for any violations occurring before or after receipt of the notice of violation.

(2) *Consent orders.* The director is hereby empowered to enter into consent orders, assurances of voluntary compliance, or other similar documents establishing an agreement with the person responsible for the noncompliance. Such orders will include specific action to be taken by the discharger to correct the noncompliance within a time period also specified by the order. Consent orders shall have the same force and effect as an administrative order issued pursuant to subsection (a)(4) of this section.

(3) *Show cause hearing.*

- a. The director may order any industrial user who causes or is responsible for an unauthorized discharge, has violated this article or is in noncompliance with a wastewater discharge permit to show cause why a proposed enforcement action should not be taken. In the event the director determines that a show cause order should be issued, a notice shall be served on the user specifying the time and place for the hearing, the proposed enforcement action, the reasons for such action, and a request that the user show cause why this proposed enforcement action should not be taken. The notice of the hearing shall be served personally or by registered or certified mail (return receipt requested) at least ten days before the hearing. Service may be made on any agent or officer of a corporation.
- b. The director shall review the evidence presented at the hearing and determine whether the proposed enforcement action is appropriate.
- c. A show cause hearing under this section is not a prerequisite to the assessment of a civil penalty under subsection (b) of this section, nor is any action or inaction taken by the director under this section subject to an administrative appeal under section 54-208.

(4) *Administrative orders.* When the director finds that an industrial user has violated or continues to violate this article, permits or orders issued hereunder, or any other pretreatment requirement, the director may issue an order to cease and desist all such violations and direct those persons in noncompliance to do any of the following:

- a. Immediately comply with all requirements;

- b. Comply in accordance with a compliance time schedule set forth in the order;
 - c. Take appropriate remedial or preventive action, in the event of a continuing or threatened violation;
 - d. Disconnect unless adequate treatment facilities, devices or other related appurtenances are installed and properly operated within a specified time period.
- (5) *Emergency suspensions.*
- a. The director may suspend the wastewater treatment service and/or wastewater permit when such suspension is necessary in order to stop an actual or threatened discharge which presents or may present an imminent or substantial endangerment to the health or welfare of persons or the environment, interferes with or causes the town to violate any condition of its NPDES or nondischarge permit.
 - b. Any user notified of a suspension of the wastewater treatment service and/or the wastewater permit shall immediately stop or eliminate the contribution. A hearing will be held within 15 days of the notice of suspension to determine whether the suspension may be lifted or the user's waste discharge permit terminated. In the event of a failure to comply voluntarily with the suspension order, the director shall take such steps as deemed necessary, including immediate severance of the sewer connection, to prevent or minimize damage to the wastewater system or endangerment to any individuals. The director shall reinstate the wastewater permit and the wastewater treatment service upon proof of the elimination of the noncompliant discharge. The industrial user shall submit a detailed written statement describing the causes of the harmful contribution and the measures taken to prevent any future occurrence to the director prior to the date of the hearing described in this subsection.
- (6) *Termination of permit.* Any user who violates the following conditions of this article or applicable state and federal regulations is subject to having its permit terminated:
- a. Failure to accurately report the wastewater constituents and characteristics of his discharge;
 - b. Failure to report significant changes in operations, or wastewater constituents and characteristics;
 - c. Refusal of reasonable access to the user's premises for the purpose of inspection or monitoring; or
 - d. Violation of conditions of the permit.

Noncompliant industrial users will be notified of the proposed termination of their wastewater permit and will be offered an opportunity to show cause under subsection (a) of this section why the proposed action should not be taken.

(b) *Civil penalties.*

- (1) Any user who is found to have failed to comply with any provision of this article, or the orders, rules, regulations and permits issued hereunder, may be fined up to \$10,000.00 per day per violation.
- (2) Any user who is found to have conducted malicious damage to the public sewer system, treatment works, and/or all appurtenances shall be subject to punitive action and penalties.
- (3) In determining the amount of the civil penalty, the director shall consider the following:
 - a. The degree and extent of the harm to the natural resources, to the public health, or to public or private property resulting from the violation;
 - b. The duration and gravity of the violation;
 - c. The effect on groundwater or surface water quantity or quality or on air quality;
 - d. The cost of rectifying the damage;
 - e. The amount of money saved by noncompliance;
 - f. Whether the violation was committed willfully or intentionally;
 - g. The prior record of the violator in complying or failing to comply with the pretreatment program;
 - h. The cost of enforcement to the town.
- (4) Actions for any unpaid civil penalties shall be referred to the town attorney for collection.
- (5) Appeals of civil penalties assessed in accordance with this section shall be as provided in section 54-208.

(c) *Other available remedies.* Remedies, in addition to those previously mentioned in this article, are available to the director, who may use any single one or combination against a noncompliant user. Additional available remedies include, but are not limited to:

- (1) *Criminal violations.* The district attorney for the 278 Judicial District may, at the request of the town, prosecute noncompliant users who violate the provisions of G.S. 143-215.6B.
- (2) *Injunctive relief.* Whenever a user is in violation of the provisions of this article or an order or permit issued hereunder, the director, through the town attorney, may petition the superior court of justice for the issuance of a restraining order or a preliminary and permanent injunction which restrains or compels the activities in question.
- (3) *Water supply severance.* Whenever an industrial user is in violation of the provisions of this article or an order or permit issued hereunder, water service to the industrial user may be severed and service will only recommence, at the user's expense, after he has satisfactorily demonstrated ability to comply.

- (4) *Public nuisances.* Any violation of the prohibitions or effluent limitations of this article or of a permit or order issued hereunder, is hereby declared a public nuisance and shall be corrected or abated as directed by the director. Any person creating a public nuisance shall be subject to the provisions of the town Code governing such nuisances, including reimbursing the town for any costs incurred in removing, abating or remedying said nuisance.

(d) *Remedies nonexclusive.* The remedies provided for in this article are not exclusive. The director may take any, all, or any combination of these actions against a noncompliant user. Enforcement of pretreatment violations will generally be in accordance with the town's enforcement repose plan. However, the director may take other action against any user when the circumstances warrant. Further, the director is empowered to take more than one enforcement action against any noncompliant user.

Sec. 54-143. Annual publication of significant noncompliance.

At least annually, the director shall publish, in the largest daily newspaper circulated in the service area, a list of those industrial users who were found to be in significant noncompliance, also referred to as reportable noncompliance in 15A N.C. Admin. Code 02H.0903(b)(10), with applicable pretreatment standards and requirements, during the previous 12 months.

Secs. 54-144—54-169. Reserved.

DIVISION 2. FEES

Sec. 54-170. Purpose.

It is the purpose of this article to provide for the recovery of costs from users of the town's wastewater disposal system for the implementation of the program established herein. The applicable charges or fees shall be as set forth in the town's schedule of charges and fees.

Sec. 54-171. User charges.

A user charge shall be levied on all users, including, but not limited to, persons that discharge or that cause or permit the discharge of sewage into the collection system.

- (1) The user charge shall reflect at least the cost of debt service, operation and maintenance (including replacement) of the collection system.
- (2) Each user shall pay its proportionate cost based on volume of flow.
- (3) The town shall review annually the sewage contributions of each user, the total costs of debt service, operation and maintenance of the system and will make recommendations to the town for adjustments in the schedule of charges and fees as necessary.
- (4) Charges for flow to the collection system not directly attributable to the user shall be distributed among each user of the system based upon the volume of flow of the users.

Sec. 54-172. Surcharges.

(a) All industrial users of the wastewater collection system are subject to industrial waste surcharges on discharges which exceed the following levels:

BOD	250	mg/l
TSS	250	mg/l
COD	500	mg/l
Oil and grease	40	mg/l

(b) The amount of surcharge will be based upon the mass emission rate (in pounds per day) discharged above the levels listed above. The amount charged per pound of excess will be set forth in the schedule of charges and fees.

- (1) The volume of flow used in determining the total discharge of wastewater for payment of user charges and surcharges shall be based on the following:
 - a. Metered water consumption as shown in the records of meter readings maintained by the town;
 - b. If required by the town or at the individual discharges option, other flow monitoring devices which measure the actual volume of wastewater discharged to the sewer. Such devices shall be accessible and safely located, and the measuring system shall be installed in accordance with plans approved by the town. The metering system shall be installed and maintained at the users' expense according to arrangements that may be made with the town.
 - c. Where any user procures all or part of his water supply from sources other than the town, the user shall install and maintain, at his own expense, a flow measuring device of a type approved by the town.
- (2) The character and concentration of the constituents of the wastewater used in determining surcharges shall be determined by samples collected and analyzed by the town. Samples shall be collected in such a manner as to be representative of the actual discharge and shall be analyzed using procedures set forth in 40 CFR 136.
- (3) The determination of the character and concentration of the constituents of the wastewater discharge by the director or his duly appointed representatives shall be binding as a basis for charges.

Sec. 54-173. Pretreatment program administration charges.

The schedule of charges and fees adopted by the town may include charges and fees for:

- (1) Reimbursement of costs of setting up and operating the pretreatment program;
- (2) Monitoring, inspections and surveillance procedures;
- (3) Reviewing slug control plans, including accidental and/or slug load discharge procedures and construction plans and specifications;
- (4) Permitting;

- (5) Other fees as the town may deem necessary to carry out the requirements of the pretreatment program.

Secs. 54-174—54-199. Reserved.

DIVISION 3. WASTEWATER DISCHARGE PERMITS

Sec. 54-200. Permission to connect or discharge to wastewater collection system; required wastewater information.

It shall be unlawful for any person to connect or discharge to the wastewater collection system without first obtaining the permission of the town. When requested by the director, a user must submit information on the nature and characteristics of its wastewater within 30 days of the request. The director is authorized to prepare a form for this purpose and may periodically require users to update this information.

Sec. 54-201. Significant industrial user permit—Required; determination.

(a) *Required.* All significant industrial users shall obtain a significant industrial user permit prior to the commencement of discharge to the wastewater collection system. Existing industrial users who are determined by the director to be significant industrial users shall obtain a significant industrial user permit within 180 days of receiving notification of the director's determination. Industrial users who do not fit the significant industrial user criteria may at the discretion of the director be required to obtain a wastewater discharge permit for nonsignificant industrial users.

(b) *Determination.* All persons proposing to discharge nondomestic wastewater, or proposing to change the volume or characteristics of an existing discharge of nondomestic wastewater shall request from the director a significant industrial user determination. If the director determines or suspects that the proposed discharge fits the significant industrial user criteria, he will require that a significant industrial user permit application be filed.

Sec. 54-202. Same—Application.

Users required to obtain a significant industrial user permit shall complete and file with the town an application in the form prescribed by the director, and accompanied by an application fee in the amount prescribed in the schedule of charges and fees. Significant industrial users shall apply for a significant industrial user permit within 90 days after notification of the director's determination in section 28-142(b). In support of the application, the user shall submit, in units and terms appropriate for evaluation, the following information:

- (1) Name, address, and location (if different from the address);
- (2) Standard industrial classification (SIC) codes for pretreatment, the industry as a whole, and any processes for which categorical pretreatment standards have been promulgated;

- (3) Analytical data on wastewater constituents and characteristics, including, but not limited to, those mentioned in division 1 of this article, any of the priority pollutants listed in section 307(a) of the act which the applicant knows or suspects are present in the discharge, as determined by a reliable analytical laboratory, and any other pollutant of concern to the town; sampling and analysis shall be performed in accordance with procedures established by the EPA pursuant to section 304(g) of the act and contained in 40 CFR 136, as amended;
- (4) Time and duration of the indirect discharge;
- (5) Average daily and 30-minute peak wastewater flow rates, including daily, monthly, and seasonal variations if any;
- (6) Site plans, floor plans, mechanical and plumbing plans and details to show all sewers, floor drains, sewer connections, direction of flow and appurtenances by the size, location and elevation;
- (7) Description of activities, facilities and plant processes on the premises including all materials which are or could be accidentally or intentionally discharged;
- (8) Where known, the nature and concentration of any pollutants in the discharge which are limited by any town, state, or federal pretreatment standards, and a statement regarding whether or not the pretreatment standards are being met on a consistent basis, and if not, whether additional operation and maintenance and/or additional pretreatment is required for the user to meet applicable pretreatment standards;
- (9) If additional pretreatment and/or operation and maintenance will be required to meet the pretreatment standards, the shortest schedule by which the user will provide such additional pretreatment. The completion date in this schedule shall not be longer than the compliance date established for the applicable pretreatment standard. The following conditions shall apply to this schedule:
 - a. The schedule shall contain progress increments in the form of dates for the commencement and completion of major events leading to the construction and operation of additional pretreatment required for the user to meet the applicable pretreatment standards. No increment in the schedule shall exceed nine months.
 - b. No later than 14 days following each date in the schedule and the final date for compliance, the user shall submit a progress report to the director, including, at a minimum, whether or not it complied with the increment of progress, the reason for any delay, and if appropriate, the steps being taken by the user to return to the established schedule. In no event shall more than nine months elapse between such progress reports to the director.
- (10) Each product produced by type, amount, process or processes, and rate of production;
- (11) Type and amount of raw materials processed (average and maximum per day);
- (12) Number and type of employees, hours of operation of plant, and proposed or actual hours of operation of pretreatment system;

- (13) If subject to a categorical standard, a baseline monitoring report in accordance with 40 CFR 403.12(b) and 15A N.C. Admin. Code 02H.0908(a), as outlined in section 54-235;
- (14) Any other information as may be deemed by the director to be necessary to evaluate the permit application.

Sec. 54-203. Same—Required signature, certification.

All wastewater discharge permit applications and user reports must be signed by an authorized representative of the user and contain the following certification statement:

"I certify, under penalty of law, that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system, or those persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations."

Sec. 54-204. Same—Application review and evaluation.

The director will evaluate the data furnished by the user and may require additional information.

- (1) The director is authorized to accept applications for the town and shall refer all applications to the town staff for review and evaluation.
- (2) Within 30 days of receipt, the director shall acknowledge and accept the complete application or, if not complete, shall return the application to the applicant with a statement of what additional information is required.

Sec. 54-205. Same—Tentative determination and draft.

(a) The town staff shall conduct a review of the application and an on-site inspection of the significant industrial user, including any pretreatment facilities, and shall prepare a written evaluation and tentative determination to issue or deny the significant industrial user permit.

(b) If the staff's tentative determination in subsection (a) of this section is to issue the permit, the following additional determinations shall be made in writing:

- (1) Proposed discharge limitations for those pollutants proposed to be limited;
- (2) Proposed schedule of compliance, including interim dates and requirements, for meeting the proposed limitations; and
- (3) A brief description of any other proposed special conditions which will have significant impact upon the discharge described in the application.

(c) The staff shall organize the determinations made pursuant to subsections (a) and (b) of this section and the town's general permit conditions into a significant industrial user permit.

Sec. 54-206. Same—Synopsis.

A fact sheet providing a brief synopsis of the application shall be prepared by the town staff for submission to the applicant and the approval authority and shall be made available to the public upon request. The contents of such fact sheets shall include at least the following information:

- (1) A sketch and detailed description of the industrial facilities and pretreatment facilities, including the location of all points of discharge to the wastewater collection system and all established compliance monitoring points.
- (2) A quantitative description of the discharge described in the application which includes at least the following:
 - a. The rate or frequency of the proposed discharge; if the discharge is continuous, the average daily flow;
 - b. The actual average daily discharge, in pounds per day, of any limited pollutant and any pollutant identified in the application as known or suspected present; and
 - c. The basis for the pretreatment limitations, including the documentation of any calculations in applying categorical pretreatment standards.

Sec. 54-207. Same—Final action on applications.

(a) The director shall take final action on all applications not later than 90 days following receipt of a complete application.

(b) The director is authorized to:

- (1) Issue a significant industrial user permit containing such conditions as are necessary to effectuate the purposes of this article and G.S. 143-215.1;
- (2) Issue a significant industrial user permit containing time schedules for achieving compliance with applicable pretreatment standards and requirements;
- (3) Modify any permit upon not less than 60 days' notice and pursuant to section 54-209;
- (4) Revoke any permit pursuant to section 54-142(a);
- (5) Suspend a permit pursuant to section 54-142(a);
- (6) Deny a permit application when, in the opinion of the director, such discharge may cause or contribute to pass-through or interference of the wastewater treatment plant or where necessary to effectuate the purposes of G.S. 143-215.1.

Sec. 54-208. Same—Hearings.

(a) *Initial adjudicatory hearing.* An applicant whose permit is denied or is granted subject to conditions he deems unacceptable, a permittee/user assessed a civil penalty under section 54-142(b), or one issued an administrative order under section 54-142(a), shall have the right to an adjudicatory hearing before a hearing officer designated by the director upon making

written demand, identifying the specific issues to be contested, to the director within 30 days following receipt of the significant industrial user permit, civil penalty assessment, or administrative order. Unless such written demand is made within the time specified herein, the action shall be final and binding. The hearing officer shall make a final decision on the contested permit, penalty, or order within 45 days of the receipt of the written demand for a hearing. The director shall transmit a copy of the hearing officer's decision by registered or certified mail.

- (1) *New permits.* Upon appeal, including judicial review in the general courts of justice, of the terms or conditions of a newly issued permit, the terms and conditions of the entire permit are stayed and the permit is not in effect until either the conclusion of judicial review or until the parties reach a mutual resolution.
- (2) *Renewed permits.* Upon appeal, including judicial review in the general courts of justice, of the terms or conditions of a renewed permit, the terms and conditions of the existing permit remain in effect until either the conclusion of judicial review or until the parties reach a mutual resolution.

(b) *Final appeal hearing.* Any decision of a hearing officer made as a result of an adjudicatory hearing held under subsection (a) of this section may be appealed to the town council upon filing a written demand within ten days of receipt of notice of the decision. Hearings held under this division shall be conducted in accordance with procedures adopted by the town council. Failure to make written demand within the time specified herein shall bar further appeal. The town council shall make a final decision on the appeal within 90 days of the date the appeal was filed and shall transmit a written copy of its decision by registered or certified mail.

(c) *Official record.* When a final decision is issued under subsection (b) of this section, the town council shall prepare an official record of the case that includes:

- (1) All notices, motions, and other like pleadings.
- (2) A copy of all documentary evidence introduced.
- (3) A certified transcript of all testimony taken, if testimony is transcribed. If testimony is taken and not transcribed, then a narrative summary of any testimony taken.
- (4) A copy of the final decision of the town council.

(d) *Judicial review.* Any person against whom a final order or decision of the town council is entered, pursuant to the hearing conducted under subsection (b) of this section, may seek judicial review of the order or decision by filing a written petition within 30 days after receipt of notice by registered or certified mail of the order or decision, but not thereafter, with the county superior court, along with a copy to the town. Within 30 days after receipt of the copy of the petition of judicial review, the town council shall transmit to the reviewing court the original or a certified copy of the official record.

Sec. 54-209. Same—Modification.

(a) Modifications of permits shall be subject to the same procedural requirements as the issuance of permits except as follows:

- (1) Changes in the ownership of the discharge when no other change in the permit is indicated.
- (2) A single modification of any compliance schedule not in excess of four months.
- (3) Modification of compliance schedules (construction schedules) in permits for new sources where the new source will not begin to discharge until control facilities are operational.

Any changes or new conditions in the permit shall include a reasonable time schedule for compliance.

(b) Within nine months of the promulgation of a National Categorical Pretreatment Standard, the wastewater discharge permit of users subject to such standards shall be revised to require compliance with such standard within the time frame prescribed by such standard. Where a user subject to a National Categorical Pretreatment Standard has not previously submitted an application for a wastewater discharge permit as required by section 54-202, the user shall apply for a wastewater discharge permit within 180 days after the promulgation of the applicable National Categorical Pretreatment Standard.

(c) A request for a modification by the permittee shall constitute a waiver of the 60-day notice required by G.S. 143-215.1(b) for modifications.

Sec. 54-210. Same—Conditions.

(a) The director shall have the authority to grant a permit with such conditions attached as he believes necessary to achieve the purpose of this article and G.S. 143-215.1. Wastewater permits shall contain, but are not limited to, the following:

- (1) A statement of duration (in no case more than five years);
- (2) A statement of nontransferability;
- (3) Applicable effluent limits based on categorical standards, local limits or both;
- (4) Applicable monitoring, sampling, reporting, notification, and record keeping requirements. These requirements shall include an identification of pollutants to be monitored, sampling location, sampling frequency, and sample type based on federal, state and local law;
- (5) Notification requirements for slug loads; and
- (6) A statement of applicable civil and criminal penalties for violation of pretreatment standards and requirements and any applicable compliance schedule.

- (b) In addition, permits may contain, but are not limited to, the following:
- (1) Limits on the average and/or maximum rate of discharge, and/or requirements for flow regulation and equalization.
 - (2) Limits on the instantaneous, daily and monthly average and/or maximum concentration, mass, or other measure of identified wastewater pollutants or properties.
 - (3) Requirements for the installation of pretreatment technology or construction of appropriate containment devices, etc., designed to reduce, eliminate, or prevent the introduction of pollutants into the treatment works.
 - (4) Development and implementation of spill control plans or other special conditions including management practices necessary to adequately prevent accidental, unanticipated, or nonroutine discharges.
 - (5) Development and implementation of waste minimization plans to reduce the amount of pollutants discharged to the municipal wastewater system.
 - (6) The unit charge or schedule of user charges and fees for the management of the wastewater discharged to the system.
 - (7) Requirements for installation and maintenance of inspection and sampling facilities and equipment.
 - (8) Specifications for monitoring programs, which may include sampling locations, frequency of sampling, number, types, and standards for tests, and reporting schedules.
 - (9) Requirements for immediate reporting of any instance of noncompliance and for automatic resampling and reporting within 30 days where self-monitoring indicates a violation.
 - (10) Compliance schedules for meeting pretreatment standards and requirements.
 - (11) Requirements for submission of periodic self-monitoring or special notification reports.
 - (12) Requirements for maintaining and retaining plans and records relating to wastewater discharges as specified in section 54-247 and affording the director or his representatives access thereto.
 - (13) Requirements for prior notification and approval by the director of any new introduction of wastewater pollutants or of any significant change in the volume or character of the wastewater prior to introduction in the system.
 - (14) Requirements for the prior notification and approval by the director of any change in the manufacturing and/or pretreatment process used by the permittee.
 - (15) Requirements for immediate notification of excessive, accidental, or slug discharges, or any discharge which could cause any problems to the system.
 - (16) A statement that compliance with the permit does not relieve the permittee of responsibility for compliance with all applicable federal and state pretreatment standards, including those which become effective during the terms of the permit.

- (17) Other conditions as deemed appropriate by the director to ensure compliance with this article and state and federal laws, rules, and regulations.

Sec. 54-211. Same—Duration.

Permits shall be issued for a specified time period, not to exceed five years. A permit may be issued for a period less than a year or may be stated to expire on a specific date.

Sec. 54-212. Same—Transfer.

Wastewater permits are issued to a specific user for a specific operation. A wastewater discharge permit shall not be reassigned or transferred or sold to a new owner, new user, different premises, or a new or changed operation.

Sec. 54-213. Same—Reissuance.

A significant industrial user shall apply for permit reissuance by submitting a complete permit application in accordance with this division a minimum of 180 days prior to the expiration of the existing permit.

Secs. 54-214—54-234. Reserved.

DIVISION 4. REPORTING REQUIREMENTS

Sec. 54-235. Baseline monitoring reports.

(a) Within either 180 days after the effective date of a categorical pretreatment standard, or the final administrative decision on a category determination under 40 CFR 403.6(a)(4), whichever is later, existing categorical users currently discharging to or scheduled to discharge to the wastewater collection system shall submit to the director a report which contains the information listed in subsection (b) of this section. At least 90 days prior to commencement of their discharge, new sources, and sources that become categorical users subsequent to the promulgation of an applicable categorical standard, shall submit to the director a report which contains the information listed in subsection (b) of this section. A new source shall report the method of pretreatment it intends to use to meet applicable categorical standards. A new source also shall give estimates of its anticipated flow and quantity of pollutants to be discharged.

(b) Users described in subsection (a) of this section shall submit the following information:

- (1) Identifying information. The name and address of the facility, including the name of the operator and owner.
- (2) Environmental permits. A list of any environmental control permits held by or for the facility.

- (3) Description of operations. A brief description of the nature, average rate of production, and standard industrial classifications of the operation carried out by such user. This description should include a schematic process diagram which indicates points of discharge to the wastewater collection system from the regulated processes.
- (4) Flow measurement. Information showing the measured average daily and maximum daily flow, in gallons per day, to the wastewater collection system from regulated process streams and other streams, as necessary, to allow use of the combined wastestream formula set out in 40 CFR 403.6(e).
- (5) Measurement of pollutants.
 - a. The categorical pretreatment standards applicable to each regulated process.
 - b. The results of sampling and analysis identifying the nature and concentration, and/or mass, where required by the standard or by the director, of regulated pollutants in the discharge from each regulated process. Instantaneous, daily maximum, and longterm average concentrations, or mass, where required, shall be reported. The sample shall be representative of daily operations and shall be analyzed in accordance with procedures set out in section 54-244.
 - c. Sampling must be performed in accordance with procedures set out in section 54-245.
- (6) Certification. A statement, reviewed by the user's authorized representative and certified by a qualified professional, indicating whether pretreatment standards are being met on a consistent basis, and, if not, whether additional operation and maintenance and/or additional pretreatment is required to meet the pretreatment standards and requirements.
- (7) Compliance schedule. If additional pretreatment and/or operation and maintenance will be required to meet the pretreatment standards, the shortest schedule by which the user will provide such additional pretreatment and/or operation and maintenance. The completion date in this schedule shall not be later than the compliance date established for the applicable pretreatment standard. A compliance schedule pursuant to this section must meet the requirements set out in section 54-236.
- (8) Signature and certification. All baseline monitoring reports must be signed and certified in accordance with section 54-203.

Sec. 54-236. Compliance schedule progress reports.

The following conditions shall apply to the compliance schedule required by section 54-235(b)(7):

- (1) The schedule shall contain progress increments in the form of dates for the commencement and completion of major events leading to the construction and operation of additional pretreatment required for the user to meet the applicable pretreatment

standards. Such events include, but are not limited to, hiring an engineer, completing preliminary and final plans, executing contracts for major components, commencing and completing construction, and beginning and conducting routine operation;

- (2) No increment referred to in subsection (1) of this section shall exceed nine months;
- (3) The user shall submit a progress report to the director no later than 14 days following each date in the schedule and the final date of compliance including, as a minimum, whether or not it complied with the increment of progress, the reason for any delay, and, if appropriate, the steps being taken by the user to return to the established schedule; and
- (4) In no event shall more than nine months elapse between such progress reports to the director.

Sec. 54-237. Reports on compliance with categorical pretreatment standard deadline.

Within 90 days following the date for final compliance with applicable categorical pretreatment standards, or in the case of a new source following commencement of the introduction of wastewater into the wastewater collection system, any user subject to such pretreatment standards and requirements shall submit to the director a report containing the information described in section 54-235(b)(4)—(b)(6). For users subject to equivalent mass or concentration limits established in accordance with the procedures in 40 CFR 403.6(c), this report shall contain a reasonable measure of the user's longterm production rate. For all other users subject to categorical pretreatment standards expressed in terms of allowable pollutant discharge per unit of production (or other measure of operation), this report shall include the user's actual production during the appropriate sampling period. All compliance reports must be signed and certified in accordance with section 54-203.

Sec. 54-238. Periodic compliance reports.

(a) All significant industrial users shall, at a frequency determined by the director, but in no case less than twice per year (in June and December), submit a report indicating the nature and concentration of pollutants in the discharge which are limited by pretreatment standards and the measured or estimated average and maximum daily flows for the reporting period. All periodic compliance reports must be signed and certified in accordance with section 54-203.

(b) All wastewater samples must be representative of the user's discharge. Wastewater monitoring and flow measurement facilities shall be properly operated, kept clean, and maintained in good working order at all times. The failure of a user to keep its monitoring facility in good working order shall not be grounds for the user to claim that sample results are unrepresentative of its discharge.

(c) If a user subject to the reporting requirement in this section monitors any pollutant more frequently than required by the director, using the procedures prescribed in section 54-244, the results of this monitoring shall be included in the report.

Sec. 54-239. Reports of changed conditions.

Each user must notify the director of any planned significant changes to the user's operations or system which might alter the nature, quality, or volume of its wastewater at least 30 days before the change.

- (1) The director may require the user to submit such information as may be deemed necessary to evaluate the changed condition, including the submission of a wastewater discharge permit application under division 3 of this article.
- (2) The director may issue a wastewater discharge permit under division 3 of this article or modify an existing wastewater discharge permit under division 3 of this article in response to changed conditions or anticipated changed conditions.
- (3) For purposes of this requirement, significant changes include, but are not limited to, flow increases of 20 percent or greater and the discharge of any previously unreported pollutants.

Sec. 54-240. Reports of potential problems.

(a) In the case of any discharge, including, but not limited to, accidental discharges, discharges of a nonroutine, episodic nature, noncustomary batch discharges, or slug loads, that may cause potential problems for the system, the user shall immediately telephone and notify the director of the incident. This notification shall include the location of the discharge, type of waste, concentration and volume, if known, and corrective actions taken by the user.

(b) Within five days following such discharge, the user shall, unless waived by the director, submit a detailed written report describing the cause of the discharge and the measures to be taken by the user to prevent similar future occurrences. Such notification shall not relieve the user of any expense, loss, damage, or other liability which may be incurred as a result of damage to the wastewater system, natural resources, or any other damage to person or property; nor shall such notification relieve the user of any fines, penalties, or other liability which may be imposed pursuant to this article.

(c) A notice shall be permanently posted on the user's bulletin board or other prominent place advising employees whom to call in the event of a discharge described in subsection (a) of this section. Employers shall ensure that all employees, who may cause such a discharge to occur, are advised of the emergency notification procedure.

Sec. 54-241. Reports from nonpermitted users.

All users not required to obtain a wastewater discharge permit shall provide appropriate reports to the director as the director may require.

Sec. 54-242. Notice of violation/repeat sampling and reporting.

If sampling performed by a user indicates a violation, the user must notify the director within 24 hours of becoming aware of the violation. The user shall also repeat the sampling and analysis and submit the results of the repeat analysis to the director within 30 days after

becoming aware of the violation. The user is not required to resample if the POTW director monitors at the user's facility at least once a month, or if the director samples between the user's initial sampling and when the user receives the results of this sampling.

Sec. 54-243. Notification of the discharge of hazardous waste.

It shall be unlawful for any user to discharge any hazardous waste as defined in 40 CFR 261 without first having obtained written permission or a special permit, pursuant to division 3 of this article, from the director. If permission to discharge hazardous waste is granted by the director, the following procedures shall apply:

- (1) Any user who commences the discharge of hazardous waste shall notify the town, the EPA regional waste management division director, and state hazardous waste authorities, in writing, of any discharge into the wastewater system of a substance which, if otherwise disposed of, would be a hazardous waste under 40 CFR 261. Such notification must include the name of the hazardous waste as set forth in 40 CFR 261, the EPA hazardous waste number, and the type of discharge (continuous, batch, or other). If the user discharges more than 100 kilograms of such waste per calendar month to the wastewater system, the notification also shall contain the following information to the extent such information is known and readily available to the user: an identification of the hazardous constituents contained in the wastes, an estimation of the mass and concentration of such constituents in the wastestream discharge during the calendar month, and an estimation of the mass of constituents in the wastestream expected to be discharged during the following 12 months. All notifications must take place no later than 180 days after the discharge commences. Any notification under this subsection need be submitted only once for each hazardous waste discharge. However, notifications of changed conditions must be submitted under section 54-239. The notification requirement in this section does not apply to pollutants already reported by users subject to categorical pretreatment standards under the self-monitoring requirements of sections 54-235, 54-237, and 54-238.
- (2) In the case of any new regulation under section 3001 of RCRA identifying additional characteristics of hazardous waste or listing any additional substance as a hazardous waste, the user must notify the director, the EPA regional waste management waste division director, and state hazardous waste authorities of the discharge of such substance within 90 days of the effective date of such regulations.
- (3) In the case of any notification made under this section, the user shall certify that it has a program in place to reduce the volume and toxicity of hazardous wastes generated to the degree it has determined to be economically practical.
- (4) This provision does not create a right to discharge any substance not otherwise permitted to be discharged by this article, a permit issued thereunder, or any applicable federal or state law.

Sec. 54-244. Analytical requirements.

All pollutant analyses, including sampling techniques, to be submitted as part of a wastewater discharge permit application or report shall be performed in accordance with the techniques prescribed in 40 CFR 136, unless otherwise specified in an applicable categorical pretreatment standard. If 40 CFR 136 does not contain sampling or analytical techniques for the pollutant in question, sampling and analyses must be performed in accordance with procedures approved by the EPA.

Sec. 54-245. Sample collection.

(a) Except as indicated in subsection (b) of this section, the user must collect wastewater samples using flow proportional composite collection techniques. In the event flow proportional sampling is not feasible, the director may authorize the use of time proportional sampling or a minimum of four grab samples where the user demonstrates that this will provide a representative sample of the effluent being discharged. In addition, grab samples may be required to show compliance with instantaneous discharge limits.

(b) Samples for oil and grease, temperature, pH, cyanide, phenols, sulfides, and volatile organic compounds must be obtained using grab collection techniques.

Sec. 54-246. Timing.

Written reports will be deemed to have been submitted on the date postmarked. For reports which are not mailed, postage prepaid, into a mail facility serviced by the United States Postal Service, the date of receipt of the report shall govern.

Sec. 54-247. Recordkeeping.

Users subject to the reporting requirements of this article shall retain, and make available for inspection and copying, all records of information obtained pursuant to any monitoring activities required by this article and any additional records of information obtained pursuant to monitoring activities undertaken by the user independent of such requirements. Records shall include the date, exact place, method, and time of sampling, the name of the person taking the samples, the dates analyses were performed, the name of the person who performed the analyses, the analytical techniques or methods used, and the results of such analyses. These records shall remain available for a period of at least three years. This period shall be automatically extended for the duration of any litigation concerning the user or the town or where the user has been specifically notified of a longer retention period by the director.

Secs. 54-248—54-272. Reserved.

DIVISION 5. COMPLIANCE MONITORING

Sec. 54-273. Monitoring facilities.

(a) The town requires the user to provide and operate, at the user's own expense, monitoring facilities to allow inspection, sampling, and flow measurement of the building sewer and/or internal drainage systems. The monitoring facility should normally be situated

on the user's premises, but the town may, when such a location would be impractical or cause undue hardship on the user, allow the facility to be constructed in the public street or sidewalk area and located so that it will not be obstructed by landscaping or parked vehicles.

(b) There shall be ample room in or near such sampling manhole or facility to allow accurate sampling and preparation of samples for analysis. The facility, sampling, and measuring equipment shall be maintained at all times in a safe and proper operating condition at the expense of the user.

(c) Whether constructed on public or private property, the sampling and monitoring facilities shall be provided in accordance with the town's requirements and all applicable local construction standards and specifications. Construction shall be completed within 90 days following written notification by the town.

Sec. 54-274. Inspection and sampling.

The town will inspect the facilities of any user to ascertain whether the purpose of this article is being met and all requirements are being complied with. Persons or occupants of premises where wastewater is created or discharged shall allow the town, approval authority and the EPA or their representative ready access at all reasonable times to all parts of the premises for the purposes of inspection, sampling, records examination and copying or in the performance of any of their duties. The town's approval authority and the EPA shall have the right to set up on the user's property such devices as are necessary to conduct sampling, inspection, compliance monitoring and/or metering operations. Where a user has security measures in force which would require proper identification and clearance before entry into their premises, the user shall make necessary arrangements with its security guards so that upon presentation of suitable identification, personnel from the town approval authority and the EPA will be permitted to enter, without delay, for the purposes of performing their specific responsibilities. Denial of the town director's, approval authority's, or the EPA's access to the user's premises shall be a violation of this article. Unreasonable delays may constitute denial of access.

Sec. 54-275. Search warrants.

If the director, approval authority, or EPA has been refused access to a building, structure, or property, or any part thereof, and is able to demonstrate probable cause to believe that there may be a violation of this article, or that there is a need to inspect and/or sample as part of a routine inspection and sampling program of the town designed to verify compliance with this article or any permit or order issued hereunder, or to protect the overall public health, safety and welfare of the community, then the director, approval authority, or EPA may seek issuance of a search warrant from the court of appropriate jurisdiction.

Secs. 54-276—54-298. Reserved.

DIVISION 6. AFFIRMATIVE DEFENSES TO DISCHARGE VIOLATIONS

Sec. 54-299. Upset.

(a) An upset shall constitute an affirmative defense to an action brought for noncompliance with categorical pretreatment standards if the requirements of subsection (b) of this section are met.

(b) A user who wishes to establish the affirmative defense of upset shall demonstrate, through properly signed, contemporaneous operating logs or other relevant evidence, that:

- (1) An upset occurred and the user can identify the cause of the upset;
- (2) The facility was, at the time, being operated in a prudent and workman-like manner and in compliance with applicable operation and maintenance procedures; and
- (3) The user has submitted the following information to the director within 24 hours of becoming aware of the upset. If this information is provided orally, a written submission must be provided within five days:
 - a. A description of the indirect discharge and cause of noncompliance;
 - b. The period of noncompliance, including exact dates and times or, if not corrected, the anticipated time the noncompliance is expected to continue; and
 - c. Steps being taken and/or planned to reduce, eliminate, and prevent recurrence of the noncompliance.

(c) In any enforcement proceeding, the user seeking to establish the occurrence of an upset shall have the burden of proof.

(d) Users will have the opportunity for a judicial determination on any claim of upset only in an enforcement action brought for noncompliance with categorical pretreatment standards.

(e) Users shall control production of all discharges to the extent necessary to maintain compliance with categorical pretreatment standards upon reduction, loss, or failure of its treatment facility until the facility is restored or an alternative method of treatment is provided. This requirement applies in the situation where, among other things, the primary source of power of the treatment facility is reduced, lost, or fails.

Sec. 54-300. Prohibited discharge standards defense.

A user shall have an affirmative defense to an enforcement action brought against him for noncompliance with the general prohibitions in section 54-130(a) or the specific prohibitions in sections 54-130(b)(2), (3), (5)—(7), and (9)—(22) if he can prove that he did not know, or have reason to know, that his discharge, alone or in conjunction with discharges from other sources, would cause pass through or interference, and that either:

- (1) A local limit exists for each pollutant discharged and the user was in compliance with each limit directly prior to, and during, the pass through or interference; or

- (2) No local limit exists, but the discharge did not change substantially in nature or constituents from the user's prior discharge when the town was regularly in compliance with its NPDES permit, and in the case of interference, was in compliance with applicable sludge use or disposal requirements.

Sec. 54-301. Bypass.

(a) A user may allow any bypass to occur which does not cause pretreatment standards or requirements to be violated, but only if it also is for essential maintenance to assure efficient operation. These bypasses are not subject to the provision of subsections (b) and (c) of this section.

(b) The following notices shall be required:

- (1) If a user knows in advance of the need for a bypass, it shall submit prior notice to the director, at least ten days before the date of the bypass, if possible.
- (2) A user shall submit oral notice to the director of an unanticipated bypass that exceeds applicable pretreatment standards within 24 hours from the time it becomes aware of the bypass. A written submission shall also be provided within five days of the time the user becomes aware of the bypass. The written submission shall contain a description of the bypass and its cause, the duration of the bypass, including exact dates and times, and, if the bypass has not been corrected, the anticipated time it is expected to continue, and steps taken or planned to reduce, eliminate, and prevent reoccurrence of the bypass. The director may waive the written report on a case-by-case basis if the oral report has been received within 24 hours.

(c) Bypasses shall be allowable under the following circumstances:

- (1) The bypass is prohibited, and the director may take an enforcement action against a user for a bypass, unless:
 - a. The bypass was unavoidable to prevent loss of life, personal injury, or severe property damage;
 - b. There were no feasible alternatives to the bypass, such as the use of auxiliary treatment facilities, retention of untreated wastes, or maintenance during normal periods of equipment downtime. This condition is not satisfied if adequate back-up equipment should have been installed in the exercise of reasonable engineering judgment to prevent a bypass which occurred during normal periods of equipment downtime or preventive maintenance; and
 - c. The user submitted notices as required under subsection (b) of this section.
- (2) The director may approve an anticipated bypass, after considering its adverse effects, if the director determines that it will meet the three conditions listed in subsection (c)(1) of this section.

Secs. 54-302—54-330. Reserved.

ARTICLE V. STORMWATER QUALITY MANAGEMENT AND DISCHARGE CONTROL

DIVISION 1. TITLE, PURPOSE AND GENERAL PROVISIONS

Sec. 54-331. Title.

This article shall be known as the "Stormwater Quality Management and Discharge Control Ordinance" of the Town of China Grove and may be so cited.

(Ord. of 8-2-2011, § 1.1)

Sec. 54-332. Authority.

Under G.S. ch. 160A, the Town of China Grove has the responsibility and authority to regulate land use and development, enforce ordinances within its jurisdiction, and to adopt regulations designed to promote the public health, safety, and general welfare of its citizenry.

(Ord. of 8-2-2011, § 1.2)

Sec. 54-333. Purpose and intent.

The purpose and intent of this article is to:

- (1) Ensure the health, safety, and general welfare of citizens, and protect and enhance the water quality of watercourses and water bodies in a manner pursuant to and consistent with the Federal Clean Water Act (33 U.S.C. § 1251 et seq.) by reducing pollutants in stormwater discharges to the maximum extent practicable and by prohibiting non-stormwater discharges to the storm drain system.
- (2) Establish minimum criteria to control and minimize the quantitative and qualitative impacts of stormwater runoff from development within the Town of China Grove.
- (3) Encourage sustainable development. Prudent site planning should include special consideration for preserving natural drainage ways, maximizing infiltration, slowing stormwater runoff from individual sites in route to streams and rivers by use of effective runoff management, structural and non-structural best management practices, drainage structures, and stormwater facilities.

(Ord. of 8-2-2011, § 1.3)

Sec. 54-334. Applicability.

The provisions of the article shall apply to all areas within the incorporated limits of the Town of China Grove. This article shall be permanently on file in China Grove Municipal Building. The Town of China Grove may furnish additional policy, criteria, and information, including specifications and standards, and may provide such information in the form of a

stormwater best management practices manual. That manual may be updated and expanded, from time to time, at the discretion of the local review authority, based on improvements in engineering, science, monitoring, and local maintenance experience.

(Ord. of 8-2-2011, § 1.4)

Sec. 54-335. Exceptions to applicability.

This stormwater management article shall not apply to those activities exempted in specific sections of this article or as identified below:

(1) Existing permitted developments may be continued and maintained. Expansion to existing structures, classified as existing development, must meet the provisions of this article.

(2) Activities on a bona fide farm unless the activity is for non-farm purpose.

(Ord. of 8-2-2011, § 1.5)

Sec. 54-336. Definitions.

The terms used in this article shall have the following meanings:

Applicant means an owner or developer of a site who executes the stormwater permit application pursuant to this article.

Best management practices means activities, practices, and procedures to prevent or reduce the discharge of pollutants directly or indirectly to the storm drain system and waters of the United States. Best management practices (BMPs) include but are not limited to: treatment facilities to remove pollutants from stormwater; operating and maintenance procedures; facility management practices to control runoff, spillage or leaks of non-stormwater, waste disposal, and drainage from materials storage; erosion and sediment control practices; and the prohibition of specific activities, practices, and procedures and such other provisions as the town determines appropriate for the control of pollutants. Please refer to the stormwater best management practices manual for further information and for specific BMP requirements.

Bona fide farm means any tract of land containing at least one acre which is used for activities relating to production, and activities incidental to production of crops, fruits, vegetables, ornamental and flowering plants, grasses and grains, forest products, dairy, livestock, fish and shellfish, poultry, and other agricultural products having a domestic or foreign market, and excludes commercial and industrial processing.

Building means any structure, either temporary or permanent, having walls and a roof, designed for a shelter of any person, animal, or property.

Built-upon area means that portion of a development that is covered by impervious or partially impervious cover including buildings, pavement, gravel areas (e.g., roads, parking lots, paths), recreation facilities (e.g., tennis courts), etc. Slatted decks and the water area of a swimming pool or pond are considered pervious.

Channel means a natural or artificial watercourse with a definite bed and banks that conducts flowing water.

Channel bank means the location of the upper edge of the active channel above which the water spreads into the overbanks on either side of the channel or the elevation of the two-year frequency storm. Where the channel bank is not well defined, the channel bank shall be considered the edge of the waterline during a two-year frequency storm.

Town means the Town of China Grove, North Carolina.

Clean Water Act means the Federal Water Pollution Control Act (33 U.S.C. § 1251 et seq.), and any subsequent amendments thereto.

Construction activity means activities subject to National Pollutant Discharge Elimination System (NPDES) Construction Permits or the Rowan County Erosion and Sediment Control Program. These include construction projects resulting in land disturbance. Such activities include but are not limited to clearing and grubbing, grading, excavating, and demolition.

Design storm means the specific frequency and, if necessary, duration of the rainfall event to be used in design to meet the criteria established in the stormwater best management practices manual.

Development means any land disturbing activity, which adds to or changes the amount of impervious or partially impervious cover on a land area or which otherwise decreases the infiltration of precipitation into the soil.

Drainage structures shall include swales, channels, storm sewers, curb inlets, yard inlets, culverts, and other structures designed to convey stormwater.

Grandfathered rights. See "Vested rights."

Hazardous materials means any material, including any substance, waste, or combination thereof, which, because of its quantity, concentration, or physical, chemical, or infectious characteristics may cause, or significantly contribute to, a substantial present or potential hazard to human health, safety, property, or the environment when improperly treated, stored, transported, disposed of, or otherwise managed.

Illicit connections means an illicit connection is defined as either of the following:

- (1) Any drain or conveyance, whether on the surface or subsurface, which allows an illegal discharge to enter the storm drain system including but not limited to any conveyances which allow any non-stormwater discharge including sewage, process wastewater, and wash water to enter the storm drain system and any connections to the storm drain system from indoor drains and sinks, regardless of whether said drain or connection had been previously allowed, permitted, or approved by a government agency; or
- (2) Any drain or conveyance connected from a commercial or industrial land use to the storm drain system which has not been documented in plans, maps, or equivalent records and approved by the town.

Illicit discharge means any unlawful disposal, placement, emptying, dumping, spillage, leakage, pumping, pouring, or other discharge of any substance other than stormwater into a stormwater conveyance system, the waters of the state, or upon the land such that the substance is likely to reach a stormwater conveyance system or waters of the state constitutes an illegal discharge, except as exempted in division 2, section 54-361 of this article.

Impervious surface means any surface which in whole or in part, restricts or prevents the natural absorption of water into the ground. Such surfaces may include, but not be limited to compacted earth, traffic-bearing gravel, concrete, asphalt, or other paving material, and all area covered by the footprint of buildings or structures. Uncovered slatted decks and the water area of a swimming pool, pond, or other water body are considered pervious.

Industrial activity means activities subject to NPDES industrial permits as defined in 40 CFR, section 122.26(b)(14).

Intermittent streams means a natural drainage way, which shows up as a blue line on the most recent version of the U.S.G.S. 7.5-minute quadrangle maps or as a demarcated stream on the most recent version of the maps of the Soil Survey of Rowan County from the U.S. Department of Agriculture, and has a contributing drainage area of 300 acres or less, shall be considered an intermittent stream for the purposes of this article.

Land disturbing activities means the use of land by any person that results in a change in the natural cover or topography that may contribute to or alter the quantity and/or quality of stormwater runoff.

National Pollutant Discharge Elimination System means general, group, and individual stormwater discharge permits that regulate facilities defined in federal NPDES regulations pursuant to the Clean Water Act.

Natural drainage way shall mean an incised channel with a defined channel bed and banks that are part of the natural topography. Construction channels such as drainage ditches shall not be considered a natural drainage way unless the constructed channel was a natural drainage way that has been relocated, widened, or otherwise altered.

Non-stormwater discharge means any discharge to the storm drain system that is not composed entirely of stormwater.

Owner means a property owner, their heirs, successors or assigns; a legal entity with control over the management of a property; or any other person or corporation that occupies a position that controls the operation, maintenance, and/or repair to a property.

Perennial stream means streams that have essentially continuous flows or are shown as blue lines on the most recent version of the United States Geological Survey (USGS) 1:24,000 (7.5 min.) scale topographic maps or are demarcated on the most recent version of maps of the Soil Survey of Rowan County, prepared by the U.S. Department of Agriculture, and that have a contributing drainage area of more than 300 acres shall be considered a perennial stream for the purposes of this article.

Pollutant means anything that causes or contributes to pollution. Pollutants shall include, but are not limited to: paints, vanishes, and solvents; oil and other automotive fluids; non-hazardous liquid and solid wastes and yard wastes; refuse, rubbish, garbage, litter, or other discarded or abandoned objects, articles, and accumulations, so that same may cause or contribute to pollution; floatables; pesticides, herbicides, and fertilizers; hazardous substances and wastes; untreated commercial car wash water and industrial discharges, contaminated fountain drains and cooling waters; sewage, fecal coliform and pathogens; dissolved and particulate metals; animal wastes; wastes and residues that result from constructing a structure (including but not limited to sediments, slurries, and concrete rinsates); and noxious or offensive matter of any kind.

Pollution means the human-made or human-induced alteration of the quality of waters by waste to a degree which unreasonably affects, or has the potential to unreasonably affect, either the waters for beneficial uses or the facilities which serve these beneficial uses.

Premises means any building, lot, parcel of land, or portion of land whether improved or unimproved including adjacent sidewalks and parking strips.

Riparian buffer means an area of trees, shrubs, or other vegetation that is adjacent to a natural drainage way or surface water. Riparian buffers reduce the impact of upland sources by trapping, filtering, and converting nutrients, sediments, and other chemicals, and maintain the integrity of the natural drainage way. For the purposes of this article, a natural drainage way or surface water shall be present if the feature is approximately shown on the most recent version of the 1:24,000 (7.5 min.) quadrangle topographic maps prepared by the United States Geological Survey (USGS) or on the latest version of the Soil Survey of Rowan County as prepared by the U.S. Department of Agriculture Natural Resource Conservation Service (NRCS).

Sheet flow means the even flow of water across the land surface so that there is no discernable "concentration" of water.

Soil erosion and sedimentation control plan means the graphic plans including narrative where appropriate required by the State of North Carolina, by Rowan County, and by the Town of China Grove as a prerequisite for a construction permit. The purpose of this plan is to explain existing conditions and proposed grading of land including any development and to describe the activities and measures to be undertaken to control soil erosion and sedimentation.

Storm drain system means publicly-owned facilities operated by the town by which stormwater is collected and/or conveyed, including but not limited to any roads with drainage systems, streets, gutters, curbs, inlets, piped storm drains, pumping facilities, retention and detention basins, natural and human-made or altered drainage channels, reservoirs, and other drainage structures which are within the town and are not part of a publicly-owned treatment works as defined in 40 CFR Section 122.2.

Stormwater means any surface flow, runoff, and drainage consisting entirely of water from atmospheric precipitation.

Stormwater administrator means the person designated by the town manager of Town of China Grove to have authority to review and approve stormwater permits and stormwater management plans. The stormwater administrator shall also be responsible for inspecting development and making sure the provisions of this article are being followed.

Stormwater facilities shall include devices designed specifically to detain or retain stormwater for water quantity or water quality control. These devices shall not include those drainage structures that provide incidental water quantity or water quality control. These devices include but are not limited to wet ponds, dry ponds, bioretention areas, filter strips, or infiltration trenches.

Stormwater best management practices manual means the NCDENR stormwater best management practices manual of design, performance, and review criteria adopted by the town council of China Grove for the administration of the stormwater program.

Stream buffer means strips of land adjacent to streams and rivers which are retrained in their natural vegetated, revegetated or reforested state through the preservation of appropriate perennial vegetation.

Structural stormwater facility means a constructed facility, designed by a qualified professional, under 15A NCAC 2H.1008(c) or other application code, for the purpose of managing stormwater flow and quality.

Structure. Structures include buildings, wells, screened enclosures, fences, advertising signs, billboards, poster panels, swimming pools, manufactured houses, modular houses, and underground shelters.

Vegetative buffer means an area that has a dense ground cover of herbaceous or woody species, which provides for diffusion and infiltration of runoff and filtering of pollutants.

Vested rights. A vested right is a right to perform some action based on prior approvals, explicit or implicit, even if that action would otherwise result in a violation of a current ordinance, regulation, standard, or other requirement.

Water dependent structures means those structures which require the access or proximity to, or sitting within surface waters to fulfill its basic purpose, such as boat ramps, boat houses, docks, and bulkheads. Ancillary facilities such as restaurants, outlets for boat supplies, parking lots, and commercial boat storage areas are not considered water-dependent structures.

Waters of the United States means surface watercourses and water bodies as defined in 40 CFR § 122.2, including all natural waterways and definite channels and depressions in the earth that may carry water, even though such waterways may only carry water during rains and storms and may not carry stormwater at and during all times and seasons.

Wetland means those areas regulated under section 404 of the clean water act as identified under guidelines employed by the United States Army Corps of Engineers in evaluating permit applications under 33 U.S.C. 1344 and applicable federal regulations. Wetlands also include areas defined by the State of North Carolina as "isolated wetlands."
(Ord. of 8-2-2011, § 1.6)

Sec. 54-337. Interpretation.

(a) In interpreting and applying this article, the requirements are intended to be minimum requirements that are imposed and are to be conformed to, and are in addition to, and not in lieu of, all other legal requirements.

(b) This article shall not be deemed to interfere with or annul or otherwise affect in any manner whatsoever any ordinance, rules, regulations, permits, or easements, covenants, or other agreements between parties, provided however that, where this article imposes greater restrictions and controls with respect to stormwater management, the provisions of this article shall prevail.

(c) This article shall not be interpreted to mean that the Town of China Grove accepts responsibility for the maintenance and upkeep of stormwater facilities located and/or situated entirely or partially on private property. Maintenance, upgrade and/or improvements to existing and/or new stormwater facilities located and/or situated entirely or partially on private property shall remain the responsibility of the property owner.
(Ord. of 8-2-2011, § 1.7)

Sec. 54-338. Permits.

(a) Except where provided elsewhere, development shall not commence without obtaining a stormwater permit pursuant to the provisions of this article.

(b) The stormwater permit application shall be made by, or on behalf of, the owner(s) or developer(s) of the site for which the permit is sought. The application shall be filed with the town on a form supplied by the town and shall be accompanied with the information identified in the stormwater best management practices manual.

(c) A stormwater permit shall not be issued until the following conditions are met:

- (1) Approval by the stormwater administrator of the supporting information.
- (2) Submission and approval of any required easements.
- (3) Submission and approval of any required inspection and maintenance agreements.
- (4) Payment of all fees.

(d) If the development requires a sediment and erosion control permit, the stormwater permit will be conditional upon the owner receiving such sediment and erosion permit and upon the filing of a copy of the approved sediment and erosion control plan and associated permit to the stormwater administrator.

(e) The stormwater permit will be valid for one year from the date of issuance or if significant changes in the development are made that change the intent of the permit. Significant changes shall be determined by the stormwater administrator. If significant changes are made, the original stormwater permit shall not be valid and a new permit shall be required.

(Ord. of 8-2-2011, § 1.8)

Sec. 54-339. Fees.

A list of fees associated with the article is available at the Town of China Grove Stormwater Administrator's Office.

(Ord. of 8-2-2011, § 1.9)

Sec. 54-340. Applicability and vested rights.

This article shall apply to all water entering the storm drain system generated on any developed and undeveloped lands lying within the planning jurisdiction of the town including any amendments or revisions thereto.

The provisions of this article shall be applied to the maximum extent that they do not contravene vested rights. Vested rights shall be based upon the following criteria:

- Having an outstanding building permit in compliance with G.S. 153A-344.1 or G.S. 160A-385.1; or
- Having an approved site specific or phased development plan in compliance with G.S. 153A-344.1 or G.S. 160A-385.1; or
- For projects that require a state permit, such as landfills, NPDES wastewater discharges, land application or residuals and road construction activities, shall be considered to have vested rights if a state permit was issued prior to the effective date of the adoption of this article.

(Ord. of 8-2-2011, § 1.10)

Sec. 54-341. Responsibility for administration.

The stormwater administrator of the town shall administer, implement, and enforce the provisions of this article. Any powers granted or duties imposed upon the stormwater administrator may be delegated in writing by the stormwater administrator to persons or entities acting in the beneficial interest of or in the employ of the town.

(Ord. of 8-2-2011, § 1.11)

Sec. 54-342. Variances and appeals.

An interested party may appeal any final order or other decision of the stormwater administrator. All appeals must be filed in a timely manner, but not more than 30 days after a final order or other decision of the stormwater administrator. Appeals must be filed on forms obtained from the office of the stormwater administrator and must be filed with the

stormwater administrator. A notice of appeal shall be considered filed when delivered to the stormwater administrator's office in a form deemed complete and acceptable to the stormwater administrator. The stormwater administrator shall enter the date and time of filing on the notice. An appeals officer appointed by the town council will consider all such applications for variance or other appeal. The appeals officer shall schedule a hearing of the appeal within 14 days of the filing of a notice of appeal and shall rule on the appeal within 14 days of the hearing of the appeal.

An interested party may appeal any final order or other decision of the appeals officer. All appeals must be filed in a timely manner, but not more than 30 days after a final order or other decision of the appeals officer. Appeals must be filed on forms obtained from the office of the stormwater administrator and must be filed in the office of the town manager. A notice of appeal shall be considered filed when delivered to the town manager's office in a form deemed complete and acceptable by the town manager. The town manager shall enter the date and time of filing on the notice. A technical review committee appointed by the town council will consider an appeal of any decision of the appeals officer. The technical review committee shall schedule a public hearing of the appeal within 30 days of the filing of a notice of appeal, shall provide appropriate public notice of that hearing, and shall rule on the appeal within 30 days of the public hearing of the appeal.

(Ord. of 8-2-2011, § 1.12)

Sec. 54-343. Severability.

The provisions of this article are hereby declared to be severable. If any provision, clause, sentence, or paragraph of this article or the application thereof to any person, establishment, or circumstances shall be held invalid, such invalidity shall not affect the other provisions or application of this article.

(Ord. of 8-2-2011, § 1.13)

Sec. 54-344. Regulatory consistency.

This article shall be construed to assure consistency with the requirements of the Clean Water Act and acts amendatory thereof or supplementary thereto, or any applicable implementing regulations.

(Ord. of 8-2-2011, § 1.14)

Sec. 54-345. Ultimate responsibility of discharger.

The standards set forth herein and promulgated pursuant to this article are minimum standards; therefore, this article does not intend nor imply that compliance by any person will ensure that there will be no contamination, pollution, or unauthorized discharge of pollutants into waters of the United States caused by said person. This article shall not create liability on the part of the town, or any agent or employee thereof for any damages that result from any discharger's reliance on this article or any administrative decision lawfully made thereunder.

(Ord. of 8-2-2011, § 1.15)

Sec. 54-346. Stormwater management.

(a) Stormwater shall be conveyed through development in an adequately designed drainage system of natural drainage ways, grass swales, storm sewers, culverts, inlets, and channels. Drainage systems shall be designed, constructed, and maintained so as to provide natural infiltration, control flooding, extend the time of concentration of stormwater runoff, and to control to the maximum extent practicable the impacts of development. Where the above conditions are met and where a development does not require the preparation of a stormwater management plan, as provided in subsection (b) of this article, obtaining a Town of China Grove Stormwater Permit is not required.

(b) Stormwater management plans must be prepared for, and shall be approved by, the stormwater administrator pursuant to the application for a stormwater permit for:

- (1) All proposed developments that will exceed 20,000 square feet of cumulative impervious coverage. All such developments shall be required to construct a complete drainage system sufficient to mitigate the impacts of the design rainfall events identified in the stormwater best management practices manual and below.
- (2) Any activity that disturbs land within a designated stream buffer area, except when such disturbance is designated as exempt or allowable in the stormwater best management practices manual.
- (3) Any filling or excavation of a parcel in excess of one thousand cubic feet of material, or any filling or excavation that would impact an adjoining parcel by resulting in the alteration of the drainage path, or the ponding of water, or a change in the stormwater flow on the adjoining parcel.
- (4) Any activity or development that will ultimately result in the disturbance of a total area of one or more acres, except for the following:
 - a. Activity on a bona fide farm, unless the activity is for non-farm purposes.
 - b. Activities on forestland for the production and harvesting of timber and timber products.

(c) Stormwater management plans shall:

- (1) Include drawings, maps, supporting calculations, specifications, and summaries as outlined in the stormwater best management practices manual.
- (2) Demonstrate through accepted engineering practices described in the stormwater best management practices manual the impacts of the proposed development. Impacts of the proposed developments may include:
 - a. Effects on existing upstream and/or downstream drainage systems and property.
 - b. Ability of the natural drainage way to handle additional stormwater runoff.
 - c. Water quality impacts on receiving waters.
 - d. Site-specific criteria.

- (3) Demonstrate through accepted engineering practices described in the stormwater best management practices manual that stormwater runoff is adequately conveyed through the development in a drainage system designed to meet the criteria described in the stormwater best management practices manual. The project shall control and treat the runoff from the first one-inch of rain. Runoff volume drawdown time must be a minimum of 48 hours, but not more than 120 hours. High-density projects must discharge the storage volume at a rate equal to or less than the pre-development discharge rate for the one-year, 24-hour storm. All structural stormwater treatment systems must be designed to achieve 85 percent average annual removal of total suspended solids; fecal coliform, and other pollutants to levels identified in the stormwater best management practices manual. Post development runoff rate shall not exceed pre-development runoff rate unless a maximum discharge rate has "been adopted for the applicable drainage basin and the discharge does not exceed that rate. If a maximum discharge rate has not been adopted for the applicable drainage basin, post development discharge rate may not exceed pre-development discharge rate. Stormwater volumes resulting from the proposed development shall be detained within the development and released at a rate no greater than existed prior to the development. Detention facilities shall be designed to maintain the pre-developed runoff rate from the one-year and ten-year design storm events, and other events as specifically required by the town's stormwater best management practices manual.
 - (4) Demonstrate through accepted engineering practices described in the stormwater best management practices manual that stormwater facilities control the impacts of the development to the maximum extent practicable and that those facilities are designed to meet the criteria described in the stormwater best management practices manual.
 - (5) All stormwater management plans submitted for developments that incorporate structural stormwater facilities or developments where the density exceeds 24 percent built-upon area must be designed to meet or exceed the criteria contained in 15A NCAC 2H.1008(c) and must be signed and sealed by a qualified professional.
- (d) Stormwater facilities inspection and maintenance requirements.
- (1) A written inspection and maintenance agreement in a form acceptable to the stormwater administrator and executed by the applicant of the stormwater permit and the owners of the facility, if different than the applicant, shall be provided prior to receiving a stormwater permit. The agreement shall provide the following:
 - a. Shall bind the parties thereto and all subsequent owners, successors, and assigns.
 - b. The required inspection maintenance and access of the facility as defined in the stormwater best management practices manual.
 - c. That, if the town directs the correction, repair, replacement, or maintenance of the facility in writing and the actions are not satisfactorily performed within a reasonable time (but not greater than 60 days), the town may, after reasonable notice, enter the land and perform all the necessary work and may assess the

owner(s) of the facility with the cost of the work performed. The owner(s) served by the facility shall be jointly responsible to the town for the maintenance of the facility and liable for any costs incurred by the town pursuant to the said agreement and all properties are jointly subject to the imposition of liens for said costs.

- d. The inspection and maintenance agreement shall be recorded in the register of deeds at the expense of the applicant.
- e. Stormwater facilities shall be included in an easement. The easement shall include the area of the facility, area of ponded water, and enough area for access and maintenance. The easement shall be recorded in the register of deeds at the expense of the applicant.

(Ord. of 8-2-2011, § 1.16)

Sec. 54-347. Stream buffers.

(a) Stream buffers shall be maintained on all sides of perennial and intermittent streams, lakes and other natural waterways as provided in the stormwater best management practices manual.

(b) The following are exempt from this stream buffer requirement:

- (1) Areas along streams or other waterways that are mapped on the USGS quadrangle map or NRCS soils map where such streams or waterways do not actually exist on the ground.
- (2) Ponds and lakes created for animal watering, irrigation, or other agricultural uses that are not part of a natural drainage way.
- (3) Where application of these requirements would prevent all prospective use of a lot platted and recorded prior to the effective date of this article.
- (4) Water dependent structures provided that those structures shall be designed, constructed, and maintained to provide the maximum practicable nutrient and bacterial removal, have the least practicable adverse effects on aquatic habitat, and to otherwise protect water quality.
- (5) Roads, bridges, stormwater management facilities, ponds, and utilities where no other practical alternative exists. These structures shall be located, designed, constructed, and maintained to have minimal disturbance, provide the maximum practicable nutrient and bacterial removal, have the least practicable adverse effects on aquatic habitat, and to otherwise protect water quality.
- (6) Ditches and manmade conveyances other than modified natural streams.

(c) The stream buffer shall be measured from the top of channel bank landward:

- (1) The size of the stream buffer for a perennial stream shall be an undisturbed area measured from the average annual stream bank perpendicularly for a distance of 50 feet plus four times the average percent of slope of area adjacent to the stream. This

slope shall be calculated by measuring a distance of 250 feet from the center of the stream. The percent of slope for this distance shall serve as the determining factor. However, the maximum distance shall not exceed 120 feet from the edge of the stream.

An additional 20-foot vegetated setback from the stream buffer shall be required on perennial streams.

- (2) The size of the stream buffer for an intermittent stream shall be measured from the average annual stream bank perpendicularly for a distance of 30 feet. The first 20 feet shall be an undisturbed area.

- (d) The following activities shall not be allowed in buffer areas:

- (1) New on-site sewage systems, which utilize ground absorption.
- (2) New structures, except as specifically provided in the stormwater best management practices manual.

(e) The stream buffer shall be maintained by the landowner or homeowners association to maintain sheet flow to the maximum extent practical to provide for diffusion and infiltration of runoff and filtering pollutants into the affected stream and consistent with maintenance criteria as set out in the stormwater best management practices manual.

(f) Stream buffer areas shall be designated on recorded plats as easements. The plat shall be included with the stormwater permit application.

(Ord. of 8-2-2011, § 1.17)

Secs. 54-348—54-360. Reserved.

DIVISION 2. DISCHARGE PROHIBITIONS

Sec. 54-361. Illegal discharges.

No person shall cause or allow the discharge, emission, disposal, pouring, or pumping directly or indirectly into the town storm drain system, watercourses, any stormwater conveyance, the waters of the state, or upon the land in manner and amount that the substance is likely to reach a stormwater conveyance or the waters of the state, any liquid, solid, gas, or other substance, other than stormwater. The commencement, conduct, or continuance of any illegal discharge to the storm drain system is prohibited except as described as follows:

- (1) Discharges from the following activities will not be considered a source of pollutants to the storm drain system and to waters of the United States when properly managed to ensure that no potential pollutants are present, and therefore they shall not be considered illegal discharges unless determined to cause a violation of the provisions of this article: water line flushing; uncontaminated pumped ground water; discharges from potable water sources; landscape irrigation; irrigation water; lawn watering; diverted stream flows; rising ground water; uncontaminated ground water infiltration

(as defined at 40 CFR 35.2005(20)) to the storm drain system; uncontaminated foundation and footing drains; uncontaminated water from crawl space pumps; air conditioning condensation; uncontaminated roof drains; springs; individual residential car washing; flows from riparian habitats and wetlands; dechlorinated swimming pool discharges; street wash waters; and other non-stormwater discharges for which a valid NPDES discharge permit has been approved and issued by the State of North Carolina, and provided that any such discharges to the municipal separate storm sewer system shall be authorized by the Town of China Grove.

- (2) The prohibition shall not apply to any non-stormwater discharge permitted under an NPDES permit, waiver, or waste discharge order issued to the discharger and administered by the State of North Carolina under the authority of the Federal Environmental Protection Agency, provided that the discharger is in full compliance with all requirements of the permit, waiver, or order and other applicable laws and regulations, and provided that written notification of such permitted discharge has been filed with the stormwater administrator, in a form acceptable to the stormwater administrator, for any discharge to the storm drain system.
 - (3) With written concurrence of the North Carolina Department of Environment and Natural Resources, the stormwater administrator may exempt in writing other non-stormwater discharges, which are not a source of pollutants to the storm drain system or waters of the United States.
- (Ord. of 8-2-2011, § 2.1)

Sec. 54-362. Illicit connections.

(a) Connections to a stormwater conveyance or stormwater conveyance system that allow the discharge of non-stormwater, other than the exclusions described in section 54-361 above, are unlawful.

(b) Where such connections exist in violation of this section and said connections were made prior to the adoption of this provision or any other ordinance prohibiting such connections, the property owner or the person using said connection shall remove the connection within one year following the effective date of this article. However, the one-year grace period shall not apply to connections which may result in the discharge of hazardous materials or other discharges which pose an immediate threat to health and safety, or are likely to result in immediate injury and harm to real or personal property, natural resources, wildlife, or habitat.

(c) Where it is determined that said connection:

- (1) May result in the discharge of hazardous materials or may pose an immediate threat to health and safety, or is likely to result in immediate injury and harm to real or personal property, natural resources, wildlife, or habitat; or

- (2) Was made in violation of any applicable regulation or ordinance, other than this section; the stormwater administrator shall designate the time within which the connection shall be removed. In setting the time limit for compliance, the stormwater administrator shall take into consideration:
- a. The quantity and complexity of the work;
 - b. The consequences of delay;
 - c. The potential harm to the environment, to the public health, and to public and private property; and
 - d. The cost of remedying the damage.

(d) The construction, use, maintenance, or continued existence of illicit connections to the storm drain system is prohibited.

(Ord. of 8-2-2011, § 2.2)

Sec. 54-363. Waste disposal prohibitions.

No person shall throw, deposit, leave, maintain, keep, or permit to be thrown, deposited, left, or maintained, in or upon any public or private property, driveway, parking area, street, alley, sidewalk, component of the storm drain system, or water of the United States, any refuse, rubbish, garbage, litter, or other discarded or abandoned objects, articles, and accumulations, so that the same may cause or contribute to pollution. Wastes deposited in streets in proper waste receptacles for the purposes of collection are exempted from this prohibition.

(Ord. of 8-2-2011, § 2.3)

Sec. 54-364. Discharges in violation of industrial or construction activity NPDES stormwater discharge permit.

Any person subject to an industrial or construction activity NPDES stormwater discharge permit shall comply with all provisions of such permit. Proof of compliance with said permit may be required in a form acceptable to the stormwater administrator prior to or as a condition of a subdivision map, site plan, building permit, or development or improvement plan; upon inspection of the facility; during any enforcement proceeding or action; or for any other reasonable cause.

(Ord. of 8-2-2011, § 2.4)

Secs. 54-365—54-394. Reserved.

DIVISION 3. REGULATIONS AND REQUIREMENTS

Sec. 54-395. Requirement to prevent, control, and reduce stormwater pollutants.

(a) *Authorization to adopt and impose best management practices.* The town will adopt requirements identifying best management practices for any activity, operation, or facility that may cause or contribute to pollution or contamination of stormwater, the storm drain system,

or waters of the United States, as documented in a separate stormwater best management practices manual. Where BMPs requirements are promulgated by the town or any federal, State of North Carolina, or regional agency for any activity, operation, or facility which would otherwise cause the discharge of pollutants to the storm drain system or water of the United States, every person undertaking such activity or operation, or owning or operating such facility shall comply with such requirements. The stormwater administrator will report to town council annually, or as otherwise needed, on the status of implementation of BMPs, the pollutants of concern to be addressed the next year, and any new BMPs to be developed. BMPs developed under this program will be incorporated as part of the stormwater best management practices manual.

(b) *New development and redevelopment.* The town may adopt requirements identifying appropriate BMPs to control the volume, rate, and potential pollutant load of stormwater runoff from new development and redevelopment projects as may be appropriate to minimize the generation, transport, and discharge of pollutants. The town shall incorporate such requirements in any land use entitlement and construction or building-related permit to be issued relative to such development or redevelopment. The owner and developer shall comply with the terms, provisions, and conditions of such land use entitlements and building permits as required in this article.

(c) *Responsibility to implement best management practices.* Notwithstanding the presence or absence of requirements promulgated pursuant to subsections (a) and (b), any person engaged in activities or operations, or owning facilities or property which will or may result in pollutants entering stormwater, the storm drain system, or waters of the United States shall implement BMPs to the maximum extent practicable to prevent and reduce such pollutants. The owner or operator of a commercial or industrial establishment shall provide reasonable protection from accidental discharge of prohibited materials or other wastes into the municipal storm drain system or watercourses. Facilities to prevent accidental discharge of prohibited materials or other wastes shall be provided and maintained at the owner or operator's expense.

BMPs required by the town can be obtained from the stormwater administrator's office by requesting the BMP information appropriate to a commercial or industrial activity from the stormwater best management practices manual.

(Ord. of 8-2-2011, § 3.1)

Sec. 54-396. Requirement to eliminate illegal discharges.

Notwithstanding the requirements of division 5, section 54-446 herein, the stormwater administrator may require by written notice that a person responsible for an illegal discharge immediately, or by a specified date, discontinues the discharge and, if necessary, take measures to eliminate the source of the discharge to prevent the occurrence of future illegal discharges.

(Ord. of 8-2-2011, § 3.2)

Sec. 54-397. Requirement to eliminate or secure approval for illicit connections.

(a) The stormwater administrator may require by written notice that a person responsible for an illicit connection to the storm drain system comply with the requirements of this article to eliminate or secure approval for the connection by a specified date, regardless of whether or not the connection or discharges to it had been established or approved prior to the effective date of this article.

(b) If, subsequent to eliminating a connection found to be in violation of this article, the responsible person can demonstrate that an illegal discharge will no longer occur, said person may request town approval to reconnect. The reconnection or reinstallation of the connection shall be at the responsible person's expense.

(Ord. of 8-2-2011, § 3.3)

Sec. 54-398. Watercourse protection.

Every person owning property through which a watercourse passes, or such person's lessee, shall keep and maintain that part of the watercourse within the property reasonably free of trash, debris, excessive vegetation, and other obstacles that would pollute, contaminate, or significantly retard the flow of water through the watercourse. In addition, the owner or lessee shall maintain existing privately owned structures within or adjacent to a watercourse, so that such structures will not become a hazard to the use, function, or physical integrity of the watercourse. The owner or lessee shall not remove healthy bank vegetation beyond that actually necessary for maintenance, nor remove said vegetation in such a manner as to increase the vulnerability of the watercourse to erosion. The property owner shall be responsible for maintaining and stabilizing that portion of the watercourse that is within their property lines in order to protect against erosion and degradation of the watercourse originating or contributed from their property. Any disturbance or modification of a watercourse must be conducted in a manner consistent with and, where required, under a valid permit issued by the State of North Carolina and the U.S. Army Corps of Engineers.

(Ord. of 8-2-2011, § 3.4)

Sec. 54-399. Requirement to remediate.

Whenever the stormwater administrator finds that a discharge of pollutants is taking place or has occurred which will result in or has resulted in pollution of stormwater, the storm drain system, or water of the United States, the stormwater administrator may require by written notice to the owner of the property and/or the responsible person that the pollution be remediated and the affected property restored within a specified time pursuant to the provisions of divisions 4 through 5 below.

(Ord. of 8-2-2011, § 3.5)

Sec. 54-400. Requirement to monitor and analyze.

The stormwater administrator may require by written notice of requirement that any person engaged in any activity and/or owning or operating any facility which may cause or

contribute to stormwater pollution, illegal discharges, and/or non-stormwater discharges to the storm drain system or waters of the United States, undertake at said person's expense such monitoring and analyses and furnish such reports as deemed necessary to determine compliance with this article.

(Ord. of 8-2-2011, § 3.6)

Sec. 54-401. Notification of spills.

Notwithstanding other requirements of law, as soon as any person responsible for a facility or operation, or responsible for emergency response for a facility or operation has information of any known or suspected release of materials which are resulting or may result in illegal discharges or pollutants discharging into stormwater, the storm drain system, or waters of the United States from said facility, said person shall take all necessary steps to ensure the discovery, containment, and cleanup of such release. In the event of such a release of a hazardous material, said person shall immediately notify emergency response officials of the occurrence via emergency dispatch services (911). In the event of a release of non-hazardous materials, said person shall notify the stormwater administrator's office in person or by phone or facsimile no later than 5:00 p.m. of the next business day. Notifications in person or by phone shall be confirmed by written notice addressed and mailed to the town's public works department within three business days of the phone notice. If the discharge of prohibited materials emanates from a commercial or industrial establishment, the owner or operator of such establishment shall also retain an on-site written record of the discharge and the actions taken to prevent its recurrence. Such records shall be retained for at least three years.

(Ord. of 8-2-2011, § 3.7)

Secs. 54-402—54-425. Reserved.

DIVISION 4. INSPECTION AND MONITORING

Sec. 54-426. Authority to inspect.

Whenever necessary to make an inspection to enforce any provision of this article, or whenever the stormwater administrator has cause to believe that there exists, or potentially exists, in or upon any premises any condition which constitutes a violation of this article, the administrator may enter such premises at all reasonable times to inspect the same and to inspect and copy records related to stormwater compliance. In the event the owner or occupant refuses entry after a request to enter and inspect has been made, the town is hereby empowered to seek assistance from any court of competent jurisdiction in obtaining such entry. The authority to inspect, and take associated enforcement actions under this article, shall extend to all components of the drainage and stormwater management facilities that drain to the waters of the State of North Carolina or to waters of the United States on any public or private property, regardless of when those facilities were constructed.

(Ord. of 8-2-2011, § 4.1)

Sec. 54-427. Authority to sample, establish sampling devices, and test.

During any inspection as provided herein, the stormwater administrator may take any samples and perform any testing deemed necessary to aid in the pursuit of the inquiry or to record site activities.

(Ord. of 8-2-2011, § 4.2)

Secs. 54-428—54-445. Reserved.

DIVISION 5. [ENFORCEMENT AND PENALTIES]

Sec. 54-446. Enforcement.

(a) Whenever, by the provisions of this article, the performance of any act is required, or the performance of any act is prohibited, or whenever any regulation or limitation is imposed on the use of any land, or on the erection, alteration, or the use or change of use of a structure, a failure to comply with such provisions shall constitute a violation of this article.

(b) The owner, tenant, or occupant of any land or structure, or part thereof, and any architect, engineer, builder, contractor, agent or other person who participates in, assists, directs, creates, or maintains any situation that is contrary to the requirements of this article may be held responsible for the violation and be subject to the penalties and remedies provided herein.

(c) Failure to follow an approved stormwater management plan or permit shall constitute a violation of this article and subject to the penalties and remedies provided herein.

(d) Procedures upon discovery of violations shall be as follows:

- (1) Upon determination that any provision of this section is being violated, the stormwater administrator shall deliver a written notice by personal service or by registered or certified mail, return receipt requested, to the person(s) responsible for such violation, indicating the nature of the violation and ordering the action necessary to correct it. Additional written notices may be sent at the stormwater administrator's discretion.
- (2) The final written notice, which may also be the initial notice, shall state the action the stormwater administrator intends to take if the violation is not corrected, and shall advise that the stormwater administrator's order may be appealed as provided in section 54-342, variances and appeals.
- (3) In cases when delay would seriously threaten the effective enforcement of this article, or pose a danger to the public health, safety, or general welfare, the stormwater administrator may seek enforcement without prior written notice by invoking any of the penalties or remedies contained in subsection (e).

(e) Penalties and remedies shall be as follows:

- (1) Any violation of any provision of any section of the stormwater management ordinance shall constitute a misdemeanor and shall subject the violator to the maximum fine permissible under North Carolina law.
- (2) Any act constituting a violation of this article shall also subject the offender to a civil penalty up to the full amount of penalty to which the Town of China Grove is subject for violations of its phase II stormwater permit, or \$27,500.00 per day for each violation. If the offender fails to pay the penalty within ten days of receiving final written notice of a violation, the penalty may be recovered by the town in a civil action in the nature of a debt. A civil penalty may not be appealed to the stormwater administrator if the offender received a final written notice of violation and did not file the appeal within 30 days.
- (3) Any person who negligently violates any permit condition of the phase II stormwater permit issued to the Town of China Grove is subject to criminal penalties of \$2,500.00 to \$25,000.00 per day of violation, or imprisonment for not more than one year, or both.
- (4) Any person who knowingly violates conditions of the phase II stormwater permit issued to the Town of China Grove is subject to criminal penalties of \$5,000.00 to \$50,000.00 per day of violation, or imprisonment for not more than three years, or both.
- (5) Any person who violates a condition of the phase II stormwater permit issued to the Town of China Grove may be assessed an administrative penalty not to exceed \$11,000.00 per violation with the maximum amount not to exceed \$137,500.00.
- (6) Each day that any violation continues after receipt of the final written notice of such violation shall constitute a separate violation and a separate offense for purposes of the penalties and remedies specified herein.
- (7) In addition to the penalties and remedies above, the town may institute any appropriate action or proceedings to prevent, restrain, or abate a violation of this article.

(f) Illegal discharge. Any person that allows, acts in concert, participates, directs, or assists directly or indirectly in an illegal discharge shall be subject to civil penalties as follows:

- (1) For first time offenders, if the quantity of the discharge is equal to or less than five gallons and consists of domestic or household products, said person shall be assessed a civil penalty not to exceed \$100.00 per violation or per day for any continuing violation. If the quantity of the discharge is greater than five gallons or contains non-domestic substances or if the person cannot provide clear and convincing evidence of the volume and nature of the substance discharged, said person shall be assessed a civil penalty not to exceed \$1,000.00 per violation or per day for continuing violation.

- (2) For repeat offenders, the amount of the penalty shall be double the amount assessed for the previous penalty not to exceed \$10,000.00 per violation or per day for any continuing violation.
 - (3) The stormwater administrator shall take the following into consideration when determining the civil penalty amount:
 - a. The degree and extent of harm to the environment, public health, and property.
 - b. The cost of remedying the damage.
 - c. The willfulness of the violation.
 - d. The duration of the violation.
 - e. The violator's prior record in complying or failing to comply with this article.
 - f. The amount of money saved by the violator by noncompliance.
 - (4) If the offender fails to pay the penalty within ten days of receiving final written notice of a violation, the town in a civil action may recover the penalty. A civil penalty may be appealed under the process provided in section 54-342, variances and appeals. A civil penalty may not be appealed if the offender received a final written notice of violation and penalty and did not file and appeal within 30 days.
 - (5) Each day that any violation continues after receipt of the final written notice of such violation shall constitute a separate violation and a separate offense for purposes of the penalties and remedies specified herein.
 - (6) In addition to the penalties and remedies above, the town may institute any appropriate action or proceedings to prevent, restrain, correct, or abate a violation of this article.
- (Ord. of 8-2-2011, § 5.1)

Sec. 54-447. Notice of violation.

Whenever the stormwater administrator finds that a person has violated a prohibition or failed to meet a requirement of this article, the stormwater administrator may order compliance by written notice of violation to the responsible person. Such notice may require without limitation:

- (1) The performance of monitoring, analyses, and reporting.
- (2) The elimination of illicit connections or discharges.
- (3) That violating discharges, practices, or operations shall cease and desist.
- (4) The abatement or remediation of stormwater pollution or contamination hazards and the restoration of any affected property.
- (5) Payment of a fine to cover administrative and remediation costs.
- (6) The implementation of source control or treatment BMPs.

If abatement of a violation and/or restoration of affected property is required, the notice shall set forth a deadline within which such remediation or restoration must be completed. Said notice shall further advise that, should the violator fail to remediate or restore within the established deadline, the work will be done by the stormwater administrator, or a contractor designated by the stormwater administrator, and the expense thereof shall be charged to the violator pursuant to section 54-450.

(Ord. of 8-2-2011, § 5.2)

Sec. 54-448. Appeal.

Notwithstanding the provisions of section 54-451 below, any person receiving a notice of violation under section 54-447 above may appeal the determination of the stormwater administrator under the process provided in section 54-342, variances and appeals.

(Ord. of 8-2-2011, § 5.3)

Sec. 54-449. Abatement.

If the violation has not been corrected pursuant to the requirements set forth in the notice of violation, or in the event of an appeal under section 54-448 within ten days of the decision of the appeals officer or of the technical review committee, upholding the decision of the stormwater administrator, then the stormwater administrator or a contractor designated by the stormwater administrator shall enter upon the subject private property and is authorized to take any and all measures necessary to abate the violation and/or restore the property. It shall be unlawful for any person, owner, agent or person in possession of any premises to refuse to allow the town or designated contractor to enter upon the premises for the purposes set forth above.

(Ord. of 8-2-2011, § 5.4)

Sec. 54-450. Charging cost of abatement/liens.

Within 30 days after abatement of the nuisance by town, the stormwater administrator shall notify the property owner of the cost of abatement, including administrative costs. The property owner may file a written protest objecting to the amount of the assessment with the town manager within 15 days. The town manager shall set the matter for public hearing by the town council. The decision of the town council shall be set forth by resolution and shall be final.

If the amount due is not paid within ten days of the decision of the town council or the expiration of the time in which to file an appeal under this section, the charges shall become a special assessment against the property and shall constitute a lien on the property for the amount of the assessment. A copy of the resolution shall be turned over to Rowan County so that the county may enter the amounts of the assessment against the parcel as it appears on the current assessment roll, and the tax collector shall include the amount of the assessment on the bill for taxes levied against the parcel of land.

(Ord. of 8-2-2011, § 5.5)

Sec. 54-451. Urgency abatement.

The stormwater administrator is authorized to require immediate abatement of any violation of this article that constitutes an immediate threat to the health, safety, or well-being of the public. If any such violation is not abated immediately as directed by the stormwater administrator, the stormwater administrator is authorized to enter onto private property and to take any and all measures required to remediate the violation. Any expense related to such remediation undertaken by the stormwater administrator shall be fully reimbursed by the property owner and/or responsible party. Any relief obtained under this section shall not prevent the stormwater administrator from seeking other and further relief authorized under this article.

(Ord. of 8-2-2011, § 5.6)

Sec. 54-452. Violations.

It shall be unlawful for any person to violate any provision or fail to comply with any of the requirements of this article. A violation of or failure to comply with any of the requirements of this article shall constitute a misdemeanor and shall be punished as set forth in town code.

(Ord. of 8-2-2011, § 5.7)

Sec. 54-453. Compensatory action.

In lieu of enforcement proceedings, penalties, and remedies authorized by this article, the stormwater administrator may impose upon violator alternative compensatory actions, such as storm drain stenciling, attendance at compliance workshops, creek cleanup, or other appropriate actions.

(Ord. of 8-2-2011, § 5.8)

Sec. 54-454. Violations deemed a public nuisance.

In addition to the enforcement processes and penalties hereinbefore provided, any condition caused or permitted to exist in violation of any of the provisions of this article is a threat to public health, safety, and welfare, and is declared and deemed a nuisance, and may be summarily abated or restored by the town at the violator's expense, and/or a civil action to abate, enjoin, or otherwise compel the cessation of such nuisance may be taken by the town.

(Ord. of 8-2-2011, § 5.9)

Sec. 54-455. Acts potentially resulting in a violation of the Federal Clean Water Act.

Any person who violates any provision of this article or any provision of any requirement issued pursuant to this section, may also be in violation of the Clean Water Act and may be subject to the sanctions of those acts including civil and criminal penalties. Any enforcement action authorized under this article shall also include written notice to the violator of such potential liability.

(Ord. of 8-2-2011, § 5.10)

Chapter 55—57

RESERVED

Chapter 58

VEHICLES AND TRAFFIC*

Article I. In General

- Sec. 58-1. Definitions.
- Sec. 58-2. Applicability of chapter to person riding, propelling, etc., pushcarts, tractors, trailers, carts, animals, etc.
- Sec. 58-3. Public employees to obey traffic regulations.
- Sec. 58-4. Authority of police and fire department officials.
- Sec. 58-5. Obedience to police and fire department officials.
- Sec. 58-6. Official traffic map.
- Sec. 58-7. Use of coasters, roller skates, and similar devices restricted.
- Sec. 58-8. Authorized emergency vehicles.
- Sec. 58-9. Trains blocking crossing regulated.
- Sec. 58-10. Clerk constituted a traffic bureau.
- Sec. 58-11. Penalties for violation.
- Sec. 58-12. Reserved.

Article II. Operation

- Sec. 58-13. Emerging from alley, driveway, or building.
- Sec. 58-14. Stop when traffic obstructed.
- Sec. 58-15. Speed limits.
- Sec. 58-16. Required position and method of turning at intersections.
- Sec. 58-17. Turning markers.
- Sec. 58-18. Authority to place restricted turn signs.
- Sec. 58-19. Obedience to no-turn signs.
- Sec. 58-20. Limitations on turning around.
- Sec. 58-21. Authority to sign one-way streets and alleys.
- Sec. 58-22. One-way streets and alleys.
- Sec. 58-23. Boarding or alighting from public conveyances or other vehicles.
- Sec. 58-24. Unlawful riding.
- Sec. 58-25. Entering, jumping on, or riding vehicles without permission.
- Sec. 58-26. Passengers to remain in vehicle while in operation.
- Sec. 58-27. Not more than three persons permitted in front seat.
- Sec. 58-28. Unlawful to operate vehicles on sidewalks.
- Sec. 58-29. Driving vehicles on private property limited.
- Secs. 58-30—58-46. Reserved.

Article III. Traffic Control Devices

- Sec. 58-47. Obedience to signs, other signals, generally.
- Sec. 58-48. Signs as prerequisite to enforcement.
- Sec. 58-49. Specifications for traffic control devices.
- Sec. 58-50. Display of unauthorized signs, signals, or markings.

***State law references**—Motor vehicles, G.S. 20-1 et seq.; powers of local authorities, G.S. 20-169; traffic control by municipalities, G.S. 160A-300 et seq.

CHINA GROVE CODE OF ORDINANCES

- Sec. 58-51. Interference with official traffic control devices, signs or signals.
- Sec. 58-52. Authority to establish play streets.
- Sec. 58-53. Traffic lanes.
- Sec. 58-54. Zone of quiet.
- Sec. 58-55. School zones.
- Sec. 58-56. Yield signs.
- Sec. 58-57. Authority to erect stop signs.
- Sec. 58-58. Intersections where stop required.
- Sec. 58-59. Signs to bear the word "Stop."
- Sec. 58-60. Vehicles to stop at stop signs.
- Sec. 58-61. Avoidance of official traffic-control devices.
- Secs. 58-62—58-69. Reserved.

Article IV. Parking, Stopping and Standing

Division 1. Generally

Secs. 58-70—58-78. Reserved.

Division 2. Regulations

- Sec. 58-79. Application of division.
- Sec. 58-80. Regulations not exclusive.
- Sec. 58-81. Parking signs required.
- Sec. 58-82. Vehicles not to stop in streets, exceptions.
- Sec. 58-83. Stopping, standing, or parking prohibited.
- Sec. 58-84. Parking not to obstruct traffic.
- Sec. 58-85. Parking in alleys.
- Sec. 58-86. Standing or parking for certain purposes prohibited.
- Sec. 58-87. All night parking prohibited.
- Sec. 58-88. Parking adjacent to schools.
- Sec. 58-89. Standing or parking on one-way roadways.
- Sec. 58-90. Stopping, standing, or parking near hazardous or congested places.
- Sec. 58-91. Stopping, standing or parking for primary purpose of advertising prohibited.
- Sec. 58-92. Loading and unloading zones.
- Sec. 58-93. Standing or parking close to curb.
- Sec. 58-94. Signs or markings indicating angle parking.
- Sec. 58-95. Obedience to angle parking signs or markings.
- Sec. 58-96. Lights on parked vehicles.
- Sec. 58-97. Vehicles backed up to curb.
- Sec. 58-98. Unattended vehicles.
- Sec. 58-99. Moving cars from parked positions.
- Sec. 58-100. Passenger loading zones.
- Sec. 58-101. Commercial loading zones.
- Sec. 58-102. Public carrier stops and stands.
- Sec. 58-103. Stopping, standing and parking of buses and taxicabs regulated.
- Sec. 58-104. Restricted use of bus and taxicab stands.
- Sec. 58-105. Parking prohibited at all times on certain streets.
- Sec. 58-106. Parking time limited on certain streets.
- Sec. 58-107. Parking prohibited with left side of vehicle to curb.

VEHICLES AND TRAFFIC

Sec. 58-108. Towing of standing or parked vehicles.
Secs. 58-109—58-115. Reserved.

Division 3. Parking of Special/Commercial Vehicles

Sec. 58-116. Parking and/or storage prohibited.
Sec. 58-117. Definitions.
Sec. 58-118. Administration and enforcement.
Sec. 58-119. Penalty.
Secs. 58-120—58-127. Reserved.

Article V. Pedestrians

Sec. 58-128. Pedestrians subject to traffic control signals.
Sec. 58-129. Pedestrians' right-of-way in crosswalk.
Sec. 58-130. Pedestrians to use right half of crosswalk.
Sec. 58-131. Crossing at right angles.
Sec. 58-132. When pedestrian shall yield.
Sec. 58-133. Pedestrians walking along roadways.
Sec. 58-134. Pedestrians soliciting rides or business.
Sec. 58-135. Drivers to exercise due care.
Secs. 58-136—58-150. Reserved.

Article VI. Bicycles

Sec. 58-151. Effect of regulations.
Sec. 58-152. Traffic laws apply to persons riding bicycles.
Sec. 58-153. Obedience to traffic control devices.
Sec. 58-154. Riding on bicycles.
Sec. 58-155. Riding on roadways and bicycle paths.
Sec. 58-156. Speed.
Sec. 58-157. Emerging from alley or driveway.
Sec. 58-158. Carrying articles.
Sec. 58-159. Parking.
Sec. 58-160. Use of skateboards and bicycles restricted.
Sec. 58-161. Lamps and other equipment on bicycles.
Secs. 58-162—58-169. Reserved.

Article VII. Low Speed Vehicles

Sec. 58-170. Definitions.
Sec. 58-171. Rules and regulations.
Sec. 58-172. Permit, application and revocation.
Sec. 58-173. Reciprocity.
Sec. 58-174. Penalty and enforcement.

ARTICLE I. IN GENERAL**Sec. 58-1. Definitions.**

The definitions, interpretations and rules of construction of terms used in this chapter shall be the same as those set forth in G.S. 20-1 et seq.

(Code 1977, § 7-1001; Code 1993, § 29-1)

Sec. 58-2. Applicability of chapter to person riding, propelling, etc., pushcarts, tractors, trailers, carts, animals, etc.

Every person operating, riding, propelling or driving any pushcart, tractor, trailer, bicycle, buggy, cart or other type of machine or conveyance or any person riding or driving or leading an animal upon any of the public streets of the town shall be subject to the provisions of this chapter, except those provisions of this chapter which, by their very nature, can have no application.

(Code 1977, § 7-1021; Code 1993, § 29-2)

Sec. 58-3. Public employees to obey traffic regulations.

The provisions of this chapter applicable to the drivers of vehicles upon streets shall apply to the driver of any vehicle owned by or used in the service of the United States government, this state or any other state, or any county or city. It shall be unlawful for any such driver to violate any such provisions of this chapter, except as otherwise permitted in this chapter or by state statute.

(Code 1977, § 7-1022; Code 1993, § 29-3)

Sec. 58-4. Authority of police and fire department officials.

(a) It shall be the duty of the officers of the police department or such officers as are assigned by the chief of police to enforce all street traffic laws and all of the state vehicle laws applicable to street traffic.

(b) Officers of the police department or such officers as are assigned by the chief of police are hereby authorized to direct all traffic by voice, hand, or signal in conformance with traffic laws; provided that, in the event of a fire or other emergency or to expedite traffic or safeguard pedestrians, officers of the police department may direct traffic as conditions may require, notwithstanding the provisions of the traffic laws.

(c) Officers of the fire department, when at the scene of a fire, may direct or assist the police in directing traffic thereat or in the immediate vicinity.

(Code 1977, § 7-1023; Code 1993, § 29-4)

Sec. 58-5. Obedience to police and fire department officials.

No person shall willfully fail or refuse to comply with any lawful order or direction of a police officer or fire department official.

(Code 1977, § 7-1024; Code 1993, § 29-5)

Sec. 58-6. Official traffic map.

(a) An official traffic map shall be kept on file in the town hall showing any of the following regulations applicable within the town:

- (1) Location of traffic control devices.
- (2) Regulations applicable to parking, loading, bus stops or taxicab stands.
- (3) Speed limits.
- (4) Location of through streets.
- (5) Stop intersections.
- (6) Yield right-of-way intersections.
- (7) Waiting lanes.
- (8) One-way streets.
- (9) Truck traffic routes.
- (10) Regulations upon vehicle turns at designated locations.

(b) Such map shall constitute the official codification of town ordinances or resolutions regarding those areas of traffic regulation enumerated by this section.

(Code 1993, § 29-6)

State law reference—Authority of town to codify traffic regulations by use of official traffic maps, G.S. 160A-77.

Sec. 58-7. Use of coasters, roller skates, and similar devices restricted.

No person upon roller skates or riding in or by means of any coaster, toy vehicle, or similar device shall go upon any roadway, except while crossing a street on a crosswalk, and when so crossing, such person shall be granted all of the rights and shall be subject to all of the duties applicable to pedestrians. This section shall not apply upon any street while set aside as a play street, as authorized by ordinance.

(Code 1977, § 7-1025; Code 1993, § 29-7)

Sec. 58-8. Authorized emergency vehicles.

(a) The driver of an authorized emergency vehicle, when responding to an emergency call or when in the pursuit of an actual suspected violator of the law or when responding to but not upon returning from a fire alarm, may exercise the privileges set forth in this section, but subject to the conditions herein stated.

(b) The driver of an authorized emergency vehicle may:

- (1) Park or stand irrespective of the provisions of this chapter;
- (2) Proceed past a red stop signal or stop sign, but only after slowing down as may be necessary for safe operation;
- (3) Exceed the prima facie speed limits, so long as he does not endanger life or property;

- (4) Disregard regulations governing direction of movement or turning in specified directions.

(c) The exemptions herein granted to an authorized emergency vehicle shall apply only when the driver of any such vehicle, while in motion, sounds audible signal by bell, siren, or exhaust whistle as may be reasonably necessary, and when the vehicle is equipped with at least one lighted lamp displaying a light visible under normal atmospheric conditions from a distance of 500 feet to the front of such vehicle, except that an authorized emergency vehicle operated as a police vehicle need not be equipped with or display a light visible from in front of the vehicle.

(d) The foregoing provisions shall not relieve the driver of an authorized emergency vehicle from the duty to drive with due regard for the safety of all persons, nor shall such provisions protect the driver from the consequences of his reckless disregard for the safety of others.
(Code 1977, § 7-1026; Code 1993, § 29-8)

State law reference—Privileges of authorized emergency vehicle drivers, G.S. 20-156.

Sec. 58-9. Trains blocking crossing regulated.

It shall be unlawful for any person to allow a railroad train, locomotive, or any railroad vehicle to stand upon a public crossing, or any part thereof, for more than five minutes at any time.

(Code 1977, § 7-1096; Code 1993, § 29-9)

Sec. 58-10. Clerk constituted a traffic bureau.

The clerk is hereby constituted a traffic bureau to accept a plea of guilty and to otherwise handle the following traffic violations within the town:

- (1) Parking overtime.
- (2) Parking between 2:00 a.m. and 6:00 a.m.
- (3) Parking more than 12 inches from curb.
- (4) Parking within 25 feet of an intersection.
- (5) Parking within 15 feet of a fire hydrant.
- (6) Parking in a "NO PARKING" space.
- (7) Illegal use of:
 - a. Loading zones.
 - b. Bus stops.
- (8) Parking at the entrance of an alley or driveway.
- (9) Double parking.
- (10) Parking on the left side of curb.

(Code 1977, § 7-1011; Code 1993, § 29-10)

Sec. 58-11. Penalties for violation.

Any person receiving citations for any of the offenses enumerated in section 58-10 shall, upon conviction, be punished in accordance with section 1-6.
(Code 1977, §§ 7-1012, 7-1013; Code 1993, § 29-11)

Sec. 58-12. Reserved.

ARTICLE II. OPERATION*

Sec. 58-13. Emerging from alley, driveway, or building.

The driver of a vehicle within a business or residence district emerging from an alley, driveway, or building shall stop such vehicle immediately prior to driving onto a sidewalk or onto the sidewalk area extending across any alleyway or driveway, yielding the right-of-way to any pedestrian as may be necessary to avoid collision, and upon entering the roadway, shall yield the right-of-way to all vehicles approaching on the roadway.
(Code 1977, § 7-1086; Code 1993, § 29-31)

Sec. 58-14. Stop when traffic obstructed.

No driver shall enter an intersection or a marked crosswalk unless there is sufficient space on the other side of the intersection or crosswalk to accommodate the vehicle he is operating without obstructing the passage of other vehicles or pedestrians, notwithstanding any traffic control signal indication to proceed.
(Code 1977, § 7-1087; Code 1993, § 29-32)

Sec. 58-15. Speed limits.

(a) Except as otherwise provided in this chapter, it shall be unlawful to operate a vehicle in excess of 35 miles per hour inside the municipal corporate limits.

(b) It shall be unlawful to operate a vehicle in excess of the speeds posted upon the streets or portions of streets of the state highway system which are listed on the official traffic schedule which is available in the town offices.

(c) It shall be unlawful to operate a vehicle in excess of the speeds posted upon the streets or portions of streets not a part of the state highway system. Such streets and portions of streets are listed on the official traffic schedule, which is available in the town offices.
(Code 1977, § 7-1052; Code 1993, § 29-33)

State law reference—Speed restrictions, G.S. 20-141.

***State law reference**—Operation of vehicles and rules of the road, G.S. 20-138 et seq.

Sec. 58-16. Required position and method of turning at intersections.

The driver of a vehicle intending to turn at an intersection shall do so as follows:

- (1) *Right turns.* Both the approach for a right turn and a right turn shall be made as close as practicable to the right-hand curb or edge of the roadway.
- (2) *Left turns on two-way roadways.* At any intersection where traffic is permitted to move in both directions on each roadway entering the intersection, an approach for a left turn shall be made in that portion of the right half of the roadway nearest the centerline thereof and by passing to the right of such centerline where it enters the intersection, and after entering the intersection, the left turn shall be made so as to leave the intersection to the right of the centerline of the roadway being entered. Whenever practicable the left turn shall be made in that portion of the intersection to the left of the center of the intersection.
- (3) *Left turns on other than two-way roadways.* At any intersection where traffic is restricted to one direction on one or more of the roadways, the driver of a vehicle intending to turn left at any such intersection shall approach the intersection in the extreme left-hand lane lawfully available to traffic moving in such direction upon the roadway being entered.

(Code 1977, § 7-1061; Code 1993, § 29-34)

Sec. 58-17. Turning markers.

When authorized markers, buttons, or other indications are placed within an intersection indicating the course to be traveled by vehicles turning thereat, no driver of a vehicle shall disobey the directions of such indications.

(Code 1977, § 7-1062; Code 1993, § 29-35)

Sec. 58-18. Authority to place restricted turn signs.

The town council shall determine those intersections at which drivers of vehicles shall not make a right, left, or U-turn and shall place proper signs at such intersections. The making of such turns may be prohibited between certain hours of any day and permitted at other hours, in which event the same shall be plainly indicated on the signs, or they may be removed when such turns are permitted. Restrictions on turning movements shall be as specified on the official traffic map which is available in the town offices.

(Code 1977, § 7-1063; Code 1993, § 29-36)

Sec. 58-19. Obedience to no-turn signs.

Whenever authorized signs are erected indicating that no right or left or U-turn is permitted, no driver of a vehicle shall disobey the directions of any sign.

(Code 1977, § 7-1064; Code 1993, § 29-37)

Sec. 58-20. Limitations on turning around.

The driver of any vehicle shall not turn such vehicle so as to proceed in the opposite direction upon any street in a business district and shall not upon any other street so turn a vehicle unless such movement can be made in safety and without interfering with other traffic.
(Code 1977, § 7-1065; Code 1993, § 29-38)

Sec. 58-21. Authority to sign one-way streets and alleys.

Whenever any street or alley is designated by ordinance as a one-way street or alley, there shall be signs giving notice thereof, and no such regulation shall be effective unless such signs are in place. Signs indicating the direction of lawful traffic movement shall be placed at every intersection where movement of traffic in the opposite direction is prohibited.
(Code 1977, § 7-1071; Code 1993, § 29-39)

Sec. 58-22. One-way streets and alleys.

Upon those streets and parts of streets and in those alleys designated one-way streets and alleys on the official traffic map, vehicular traffic shall move only in the indicated direction when signs indicating the direction of traffic are erected and maintained at every intersection where movement in the opposite direction is prohibited.
(Code 1977, § 7-1072; Code 1993, § 29-40)

Sec. 58-23. Boarding or alighting from public conveyances or other vehicles.

No person shall board or alight from any public conveyance or other vehicle while such conveyance or vehicle is in motion.
(Code 1977, § 7-1091; Code 1993, § 29-41)

Sec. 58-24. Unlawful riding.

No person shall ride on any public conveyance, vehicle, or any portion thereof not designed or intended for the use of passengers. This provision shall not apply to an employee engaged in the necessary discharge of a duty or to persons riding within truck bodies in spaces intended for merchandise.
(Code 1977, § 7-1092; Code 1993, § 29-42)

Sec. 58-25. Entering, jumping on, or riding vehicles without permission.

No person shall enter, jump on, or ride any automobile or other vehicle without the consent of the owner or driver.
(Code 1977, § 7-1093; Code 1993, § 29-43)

Sec. 58-26. Passengers to remain in vehicle while in operation.

No person when riding shall allow any part of his body to protrude beyond the limits of the vehicle in which he is riding, except to give such signals as are by law required, and no person shall hang on to any vehicle whatsoever.
(Code 1977, § 7-1094; Code 1993, § 29-44)

Sec. 58-27. Not more than three persons permitted in front seat.

It shall be unlawful for the driver or the person in charge of any motor vehicle to permit more than three persons, including the driver, to ride in the front or driver's seat of a motor vehicle.

(Code 1977, § 7-1095; Code 1993, § 29-45)

Sec. 58-28. Unlawful to operate vehicles on sidewalks.

It shall be unlawful for any person to operate any motor vehicle, including minibikes, on any sidewalk, in parks, or in or upon any other property owned or under the control of the town; provided, however, that nothing herein shall prohibit the operation of a registered motor vehicle on the public streets or highways in the town in accordance with the laws of the state or upon property set aside for the use of motor vehicles; and further provided, however, that nothing herein shall prohibit the operation of a motor vehicle across sidewalks at a driveway to obtain ingress or egress to any lot or parcel of land served by the driveway.

(Code 1977, § 7-1098; Code 1993, § 29-46)

Sec. 58-29. Driving vehicles on private property limited.

(a) It shall be unlawful for any person to loiter in or upon or to drive any vehicle upon any private property on any day between the hours of 12:00 a.m. and 6:00 a.m. when signs have been posted by the owner or his employee or agent prohibiting the same.

(b) It shall be unlawful for any person to loiter in or upon or to drive any vehicle upon any private business property, parking lot or area at any time such business is not open to the public, when signs have been posted by the owner or his employee or agent stating that such loitering or driving of vehicles is prohibited at or during certain designated times.

(Code 1977, §§ 7-1099, 7-1100; Code 1993, § 29-47)

Secs. 58-30—58-46. Reserved.**ARTICLE III. TRAFFIC CONTROL DEVICES*****Sec. 58-47. Obedience to signs, other signals, generally.**

Any person failing or refusing to comply with the directions indicated on any sign, marker or device for the control or direction of traffic erected or placed in accordance with the provisions of this chapter when so placed or erected shall be guilty of a misdemeanor. This section shall not be construed to apply when the driver of a vehicle is otherwise directed by a police officer or when an exception is granted to the driver of an authorized emergency vehicle under section 58-7.

(Code 1977, § 7-1031; Code 1993, § 29-61)

***State law reference**—Municipal authority to use traffic control devices, G.S. 20-158.

Sec. 58-48. Signs as prerequisite to enforcement.

No provisions of this chapter for which signs are required shall be enforced against an alleged violator if, at the time and place of the alleged violation, an official sign is not in proper position and sufficiently legible to an ordinarily observant person. Whenever any particular section in this chapter does not state that signs are required, such section shall be effective without signs being placed to give notice thereof.

(Code 1977, § 7-1032; Code 1993, § 29-62)

Sec. 58-49. Specifications for traffic control devices.

All traffic control signs, signals, and devices shall conform to state regulations. All signs and signals required hereunder for a particular purpose shall so far as practicable be uniform as to type and location. All traffic control devices so erected and not inconsistent with the provisions of state law or this article shall be official traffic control devices.

(Code 1977, § 7-1033; Code 1993, § 29-63)

Sec. 58-50. Display of unauthorized signs, signals, or markings.

(a) No person shall place, maintain, or display upon or in view of any highway any unauthorized sign, signal, marking, or device which purports to be or is an imitation of or resembles an official traffic control device, sign or signal, or which attempts to direct the movement of traffic, or which hides from view or interferes with the effectiveness of any official traffic control device, sign or signal.

(b) No person shall place or maintain nor shall any public authority permit upon any highway any traffic sign or signal bearing thereon any commercial advertising.

(c) This section shall not be deemed to prohibit the erection upon private property adjacent to highways of signs giving useful directional information and of a type that cannot be mistaken for official signs.

(d) Every such prohibited sign, signal, or marking is hereby declared to be a public nuisance and the authority having jurisdiction over the highway is hereby empowered to remove the same or cause it to be removed without notice.

(Code 1977, § 7-1037; Code 1993, § 29-64)

Sec. 58-51. Interference with official traffic control devices, signs or signals.

No person shall without lawful authority attempt to or in fact alter, deface, injure, knock down, or remove any official traffic control device, sign or signal or any inscription, shield, or insignia thereon, or any other part thereof.

(Code 1977, § 7-1038; Code 1993, § 29-65)

Sec. 58-52. Authority to establish play streets.

Whenever authorized signs are erected indicating any street or part thereof as a play street, no person shall drive a vehicle upon any such street or portion thereof except drivers of vehicles having business or whose residences are within such closed area, and then any such driver shall exercise the greatest care in driving upon any such street or portion thereof.

(Code 1977, § 7-1039; Code 1993, § 29-66)

Sec. 58-53. Traffic lanes.

Where traffic lanes have been marked, it shall be unlawful for the operator of any vehicle to fail or refuse to keep such vehicle within the boundaries of any such lane, except when lawfully passing another vehicle or preparatory to making a lawful turning movement.

(Code 1977, § 7-1040; Code 1993, § 29-67)

Sec. 58-54. Zone of quiet.

Whenever authorized signs are placed indicating a zone of quiet, the person operating a motor vehicle within such zone shall not sound the horn or any other warning device, except in an emergency.

(Code 1977, § 7-1041; Code 1993, § 29-68)

Sec. 58-55. School zones.

Whenever authorized signs are placed designating any street or part thereof as a school zone, drivers of motor vehicles using such street shall exercise the greatest care for the protection of children.

(Code 1977, § 7-1042; Code 1993, § 29-69)

Sec. 58-56. Yield signs.

Whenever yield right-of-way signs are used, they shall require vehicular traffic to yield the right-of-way to other intersection traffic from any other road or street. Yield right-of-way signs shall be located at the streets designated as having yield right-of-way signs on the official traffic map which is available in the town offices.

(Code 1977, § 7-1043; Code 1993, § 29-70)

Sec. 58-57. Authority to erect stop signs.

Whenever any ordinance designates and describes a through street, there shall be a stop sign on each and every street intersecting such through street or intersecting portion thereof described and designated as such by any ordinance unless traffic at any such intersection is controlled at all times by traffic control signals; provided, however, that at the intersection of two such through streets or at the intersection of a through street and a heavy traffic street not so designated, stop signs shall be erected at the approaches of either of such streets.

(Code 1977, § 7-1082; Code 1993, § 29-71)

Sec. 58-58. Intersections where stop required.

The town council may determine and designate intersections where particular hazard exists upon other than through streets and may determine whether vehicles shall stop at one or more entrances to any such stop intersection, and shall erect a stop sign at every such place where a stop is required. Such places are specified on the official traffic map, which is available in the town offices.

(Code 1977, § 7-1083; Code 1993, § 29-72)

Sec. 58-59. Signs to bear the word "Stop."

Every sign erected pursuant to section 58-58 shall bear the word "Stop" in letters not less than eight inches in height, and such signs shall at nighttime be rendered luminous by steady or flashing internal illumination, or by a fixed floodlight projected on the face of the sign, or by efficient reflecting elements on the face of the sign. Every stop sign shall be located as near as practicable at the nearest line of the crosswalk on the near side of the intersection or, if none, at the nearest line of the roadway.

(Code 1977, § 7-1084; Code 1993, § 29-73)

Sec. 58-60. Vehicles to stop at stop signs.

When stop signs are erected as herein authorized at or near the entrance to any intersection, every driver of a vehicle shall stop before entering the crosswalk on the near side of the intersection, or, in the event there is no crosswalk, shall stop at a clearly marked stop line, but if none, then at the point nearest the intersecting roadway where the driver has a view of approaching traffic on the intersecting roadway before entering the intersection, except when directed to proceed by a police officer or traffic control signal.

(Code 1977, § 7-1085; Code 1993, § 29-74)

Sec. 58-61. Avoidance of official traffic-control devices.

No person may drive any vehicle over and upon private property for the purpose of entering any cross street or intersecting street, or enter such cross street or intersecting street in any manner other than by driving such vehicle over and upon public streets.

(Ord. No. 2018-12, 11-6-2018)

Secs. 58-62—58-69. Reserved.**ARTICLE IV. PARKING, STOPPING AND STANDING*****DIVISION 1. GENERALLY****Secs. 58-70—58-78. Reserved.**

***State law reference**—Authority to regulate parking, G.S. 20-169, 160A-301.

DIVISION 2. REGULATIONS

Sec. 58-79. Application of division.

The provisions of this division prohibiting the standing or parking of a vehicle shall apply at all times or at the times herein specified or as indicated on official signs, except when it is necessary to stop a vehicle to avoid conflict with other traffic or in compliance with the directions of a police officer or official traffic control device.

(Code 1977, § 7-1181; Code 1993, § 29-101)

Sec. 58-80. Regulations not exclusive.

The provisions of this division imposing a time limit on parking shall not relieve any person from the duty to observe other and more restrictive provisions prohibiting or limiting the stopping, standing, or parking of vehicles in specified places or at specified times.

(Code 1977, § 7-1182; Code 1993, § 29-102)

Sec. 58-81. Parking signs required.

Whenever, by this or any other article, any parking time limit is imposed or parking is prohibited on designated streets, there shall be appropriate signs giving notice thereof, and no such regulations shall be effective unless such signs are erected and in place at the time of any alleged offense.

(Code 1977, § 7-1185; Code 1993, § 29-103)

Sec. 58-82. Vehicles not to stop in streets, exceptions.

No vehicle shall stop in any street, except for the purpose of parking as prescribed in this division, unless such stop is made necessary by the approach of fire apparatus, by the approach of a funeral or other procession which is given the right-of-way, by the stopping of a public conveyance, by the lowering of railway gates, by being given countermanding traffic signals, by the passing of some other vehicle or a pedestrian, or by some emergency. In all cases covered by such exceptions, such vehicles shall stop so as not to obstruct any footway, pedestrian aisle, safety zone, crossing, or street intersection, if it can be avoided.

(Code 1977, § 7-1186; Code 1993, § 29-104)

Sec. 58-83. Stopping, standing, or parking prohibited.

(a) No person shall stop, stand, or park a vehicle, except when necessary to avoid conflict with other traffic or in compliance with law or the directions of a police officer or traffic control device, in any of the following places:

- (1) On a sidewalk;
- (2) In front of a public or private driveway;
- (3) Within an intersection;
- (4) Within 15 feet of a fire hydrant;

- (5) On a crosswalk;
- (6) Within 20 feet of a crosswalk at an intersection;
- (7) Within 30 feet upon the approach to any flashing beacon, stop sign, or traffic control signal located at the side of a roadway;
- (8) Between a safety zone and the adjacent curb or within 30 feet of points on the curb immediately opposite the ends of a safety zone, unless signs or markings indicate a different length;
- (9) Within 50 feet of the nearest rail of a railroad crossing;
- (10) Within 20 feet of the driveway entrance to any fire station and on the side of a street opposite the entrance to any fire station within 75 feet of the entrance (when properly sign-posted);
- (11) Alongside or opposite any street excavation or obstruction when stopping, standing, or parking would obstruct traffic;
- (12) On a roadway side of any vehicle stopped or parked at the edge or curb of a street;
- (13) Upon any bridge or other elevated structure upon a highway or within a highway tunnel; or
- (14) At any place where official signs prohibit stopping.

(b) No person shall move a vehicle not lawfully under his control into any of the prohibited areas in subsection (a) of this section or such distance away from a curb as is unlawful.

(Code 1977, § 7-1151; Code 1993, § 29-105)

State law reference—Similar provisions, G.S. 20-162.

Sec. 58-84. Parking not to obstruct traffic.

No person shall park any vehicle upon a street, other than an alley, in such a manner or under such conditions as to leave available less than ten feet of the width of the roadway for free movement of vehicular traffic.

(Code 1977, § 7-1152; Code 1993, § 29-106)

Sec. 58-85. Parking in alleys.

No person shall park a vehicle within an alley in such a manner or under such conditions as to leave available less than ten feet of the width of the roadway for the free movement of vehicular traffic, and no person shall stop, stand, or park a vehicle within an alley, in such position as to block the driveway entrance to any abutting property.

(Code 1977, § 7-1153; Code 1993, § 29-107)

Sec. 58-86. Standing or parking for certain purposes prohibited.

It shall be unlawful for any person to stand or park a vehicle upon any street or public right-of-way of the town for the principal purposes of:

- (1) Displaying for sale;
- (2) Washing, greasing or repairing such vehicle, except repairs made necessary by a bona fide emergency;
- (3) Storing by garages, dealers or other persons when such storing is not incident to the bona fide use and operation of such automobile or other vehicle;
- (4) Storing of any detached trailer or van when the towing unit has been disconnected or for the purpose of transferring merchandise or freight from one vehicle to another; and
- (5) Parking unattended for a period in excess of 24 hours of any truck tractor and/or trailer, motor home, utility trailer, boat and/or trailer, camper, or any similar vehicles.

(Code 1977, § 7-1155; Code 1993, § 29-108; Ord. No. 2017-11, 10-3-2017)

Sec. 58-87. All night parking prohibited.

When respective signs are placed in certain streets, no person shall park a vehicle between the hours of 2:00 a.m. and 6:00 a.m. upon any of the streets or parts of streets designated as limited parking streets on the official traffic map; provided that this section shall not apply to automobiles or other vehicles if their owners are at work in the building or on the premises near which the vehicles are parked.

(Code 1977, § 7-1154; Code 1993, § 29-109; Ord. of 11-2-1982)

Sec. 58-88. Parking adjacent to schools.

When official signs are erected indicating no parking upon either side of a street adjacent to any school property as authorized herein, no person shall park a vehicle in any such designated place.

(Code 1977, § 7-1156; Code 1993, § 29-110)

Sec. 58-89. Standing or parking on one-way roadways.

If a highway includes two or more separate roadways and traffic is restricted to one direction upon any such roadway, no person shall stand or park a vehicle upon the left-hand side of such one-way roadway unless signs are erected to permit such standing or parking.

(Code 1977, § 7-1157; Code 1993, § 29-111)

Sec. 58-90. Stopping, standing, or parking near hazardous or congested places.

Where official signs are erected designating hazardous or congested places, no person shall stop, stand, or park a vehicle in any such designated place.

(Code 1977, § 7-1158; Code 1993, § 29-112)

Sec. 58-91. Stopping, standing or parking for primary purpose of advertising prohibited.

No person shall stop, stand, or park on any street any vehicle for the primary purpose of advertising.

(Code 1977, § 7-1159; Code 1993, § 29-113)

Sec. 58-92. Loading and unloading zones.

Whenever vehicle loading and unloading zones are designated and described by this division, and when signs are placed, erected or installed, giving notice thereof, it shall be unlawful for any person to stop, stand or park any vehicle for any purpose or period of time except in accordance with the requirements of this division.

(Code 1977, § 7-1171; Code 1993, § 29-114)

Sec. 58-93. Standing or parking close to curb.

No person shall stand or park a vehicle in a roadway other than parallel with the edge of the roadway with the wheels of the vehicle within 18 inches of the curb or edge of the roadway, except as otherwise provided in this division.

(Code 1977, § 7-1141; Code 1993, § 29-115; Ord. of 11-2-1982)

Sec. 58-94. Signs or markings indicating angle parking.

(a) The town council shall determine upon what streets angle parking shall be permitted and shall mark or sign such streets, and such streets or parts of streets shall be designated on the official traffic map of the town.

(b) Angle parking shall not be indicated or permitted at any place where passing traffic would thereby be caused or required to drive upon the left side of the street.

(Code 1977, § 7-1142; Code 1993, § 29-116)

Sec. 58-95. Obedience to angle parking signs or markings.

Upon those streets which have been signed or marked for angle parking, no person shall park or stand a vehicle other than at the angle to the curb or edge of the roadway indicated by such signs or markings.

(Code 1977, § 7-1143; Code 1993, § 29-117)

Sec. 58-96. Lights on parked vehicles.

(a) Whenever a vehicle is lawfully parked at nighttime upon any street within a business or residence district no lights need be displayed upon such parked vehicle.

(b) Whenever a vehicle is parked upon a street or highway outside of a business or residence district during the hours between one-half hour after sunset and one-half hour before sunrise, such vehicle shall be equipped with one or more lamps which shall exhibit a white light on the roadway side visible from a distance of 500 feet to the front of the vehicle and a red light visible from a distance of 500 feet to the rear.

(c) Any lighted headlamps upon a parked vehicle shall be depressed or dimmed.
(Code 1977, § 7-1144; Code 1993, § 29-118)

Sec. 58-97. Vehicles backed up to curb.

In no case shall a vehicle remain backed up to the curb, except when actually loading or unloading.
(Code 1977, § 7-1145; Code 1993, § 29-119)

Sec. 58-98. Unattended vehicles.

It shall be unlawful for any person to leave the engine or motor of any motor vehicle running while the same is standing parked upon the streets.
(Code 1977, § 7-1146; Code 1993, § 29-120)

Sec. 58-99. Moving cars from parked positions.

Parked cars shall move out in the direction headed, or if they are parked at an angle with the curb, they shall back out at that angle until they have cleared the other cars and shall then proceed in the direction they are most nearly headed in.
(Code 1977, § 7-1147; Code 1993, § 29-121)

Sec. 58-100. Passenger loading zones.

Certain streets or parts thereof are hereby designated as passenger loading and unloading zones, and no person shall stop, stand or park a vehicle therein during the hours of 8:00 a.m. to 6:00 p.m. for any purpose other than the expeditious loading or unloading of passengers, and then only for a period not to exceed ten minutes. The designated streets shall be found on the official traffic map, which is available in the town offices.
(Code 1977, § 7-1172; Code 1993, § 29-122)

Sec. 58-101. Commercial loading zones.

Certain streets, or parts thereof, are hereby designated as commercial loading and unloading zones and no person shall stop, stand or park a vehicle therein during the hours of 8:00 a.m. to 6:00 p.m. for any purpose other than the expeditious unloading and delivery, or pickup and loading of materials and goods, and then only for a period not to exceed 30 minutes. The designated streets may be found on the official traffic map, which is available in the town offices.
(Code 1977, § 7-1173; Code 1993, § 29-123)

Sec. 58-102. Public carrier stops and stands.

Bus stands, taxicab stands and stands for other passenger common-carrier motor vehicles, designated by appropriate signs, shall be designated as such and may be found on the official traffic map, which is available in the town offices.

(Code 1977, § 7-1174; Code 1993, § 29-124)

Sec. 58-103. Stopping, standing and parking of buses and taxicabs regulated.

(a) The operator of a bus shall not stand or park such vehicle upon any street at any place other than at a bus stand so designated as provided herein.

(b) The operator of a bus shall not stop such vehicle upon any street at any place for the purpose of loading or unloading passengers or their baggage other than at a bus stop, bus stand, or passenger loading zone so designated as provided herein, except in case of an emergency.

(c) The operator of a bus shall enter a bus stop, bus stand, or passenger loading zone on a public street in such a manner that the bus when stopped to load or unload passengers or baggage shall be in a position with the right front wheel of such vehicle not farther than 18 inches from the curb, and the bus approximately parallel to the curb, so as not to unduly impede the movement of other vehicular traffic.

(d) The operator of a taxicab shall not stand or park such vehicle upon any street at any place other than a taxicab stand so designated as provided herein. This provision shall not prevent the operator of a taxicab from temporarily stopping in accordance with other stopping or parking regulations at any place for the purpose of and while actually engaged in the expeditious loading or unloading of passengers.

(Code 1977, § 7-1175; Code 1993, § 29-125)

Sec. 58-104. Restricted use of bus and taxicab stands.

No person shall stop, stand, or park a vehicle other than a bus in a bus stop, or other than a taxicab in a taxicab stand when any such stop has been officially designated and appropriately signed, except that the driver of a passenger vehicle may temporarily stop therein for the purpose of and while actually engaged in loading or unloading passengers when such stopping does not interfere with any bus, or taxicab waiting to enter or about to enter such zone.

(Code 1977, § 7-1176; Code 1993, § 29-126)

Sec. 58-105. Parking prohibited at all times on certain streets.

When signs are erected giving notice thereof, no person shall park a vehicle at any time upon any of the streets designated as such on the official traffic map which is available in the town offices.

(Code 1977, § 7-1183; Code 1993, § 29-127)

Sec. 58-106. Parking time limited on certain streets.

When signs are erected in each block giving notice thereof, no person shall park a vehicle for longer than the times specified within the district or upon any of the streets designated as such on the official traffic map, which is available in the town offices.

(Code 1977, § 7-1184; Code 1993, § 29-128)

Sec. 58-107. Parking prohibited with left side of vehicle to curb.

No person shall park a vehicle with the vehicle's left side to the curb on the streets or portions of streets designated as such on the official traffic map which is made a part hereof and which is available in the town offices.

(Code 1977, § 7-1187; Code 1993, § 29-129)

Sec. 58-108. Towing of standing or parked vehicles.

Any vehicle which shall be or remain standing upon any public street, avenue, way, alley or other public place may be removed by or upon order of the chief of police, under the following circumstances:

- (1) When any vehicle is found upon a street, avenue, alley, way or public place and a report has been previously made that such vehicle has been stolen or a complaint has been filed and a warrant issued thereon, charging that such vehicle has been stolen or converted in violation of law.
- (2) When a vehicle is upon any bridge, overpass or other elevated structure or within an underpass structure, where such vehicle constitutes an obstruction to traffic.
- (3) When a police officer has reasonable grounds to believe that any such vehicle has been abandoned.
- (4) When a vehicle is so disabled that its normal operation is impossible or impractical and the persons in charge of such vehicle are incapacitated by reason of physical injury or other causes to such an extent as to be unable to provide for its removal or custody, or cannot be found or are not in the immediate vicinity of such vehicle.
- (5) When a vehicle is parked upon a street and is so parked illegally as to constitute a definite hazard or obstruction to the normal movement of traffic.
- (6) When a vehicle is parked upon a street continuously for more than 48 hours.
- (7) When the driver of a vehicle is taken into custody by a police officer and such vehicle would thereby be left unattended upon the street.
- (8) When removal is necessary in the interest of public safety because of fire, flood, storm or other emergency.
- (9) When any vehicle is parked on a street to be used for a procession, assemblage or parade.

(Ord. of 3-1-2016(1))

State law reference—Impoundment of vehicles, G.S. § 20-219.9 et seq., 160A-303.

Secs. 58-109—58-115. Reserved.

DIVISION 3. PARKING OF SPECIAL/COMMERCIAL VEHICLES

Sec. 58-116. Parking and/or storage prohibited.

The parking and/or storage on any street within the town limits of any oversized commercial vehicle as defined in section 58-117 is prohibited. The parking and/or storage of any oversized commercial vehicle on any land in a residential zoned property of less than one acre is prohibited. Exception to the parking and/or storage prohibition is taken in the following instances:

- (1) The vehicle is engaged in a permitted construction project or is engaged in routine pickups, deliveries or similar typical activities.
 - (2) The vehicle is engaged in a bona fide farm operation as defined in the zoning ordinance.
 - (3) The vehicle is involved in a governmental purpose and/or performing an emergency purpose.
 - (4) The vehicle is licensed as a school, church or non-profit organizational bus.
 - (5) The vehicle is incidentally associated with and stored/parked at a permitted or conditional use or legally existing nonconforming use as set forth in the zoning ordinance.
 - (6) The vehicle is being parked for a period of less than six hours for the purposes of loading or unloading items at the location where it is parked.
 - (7) The vehicle is loading/unloading materials and goods of a commercial nature.
- (Ord. of 10-1-1996, pt. 1(29-201); Ord. of 5-6-2014)

Sec. 58-117. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Oversized commercial vehicle means a vehicle which meets any one or more of the following classifications:

- (1) A vehicle with a gross vehicle weight of over 26,000 lbs.
 - (2) A vehicle that has more than two axles.
 - (3) A vehicle that is used to transport hazardous materials that requires the vehicle to be placarded under the Code of Federal Regulations, part 172, subpart F.
- (Ord. of 10-1-1996, pt. 1(29-202); Ord. of 5-6-2014)

Sec. 58-118. Administration and enforcement.

The primary responsibility of enforcement for all violations of this section shall be the China Grove Police Department.

(Ord. of 10-1-1996, pt. 1(29-203); Ord. of 5-6-2014)

Sec. 58-119. Penalty.

Violations of the terms of this division shall subject the violator to the penalties and remedies, either criminal or civil or both, as set forth in section 1-6.

(Ord. of 10-1-1996, pt. 1(29-204); Ord. of 11-1-2011(2); Ord. of 5-6-2014)

Secs. 58-120—58-127. Reserved.**ARTICLE V. PEDESTRIANS*****Sec. 58-128. Pedestrians subject to traffic control signals.**

Pedestrians shall be subject to traffic control signals, but at all other places, pedestrians shall be granted those rights and be subject to the restrictions stated in this article.

(Code 1977, § 7-1111; Code 1993, § 29-151)

***State law reference**—Pedestrians, G.S. 20-172 et seq.

Sec. 58-129. Pedestrians' right-of-way in crosswalk.

(a) When traffic control signals are not in place or not in operation, the driver of a vehicle shall yield the right-of-way, slowing down or stopping if need be to so yield, to a pedestrian crossing the roadway within a crosswalk when the pedestrian is upon the half of the roadway upon which the vehicle is traveling, or when the pedestrian is approaching so closely from the opposite half of the roadway as to be in danger, but no pedestrian shall suddenly leave a curb or other place of safety and walk or run into the path of a vehicle which is so close that it is impossible for the driver to yield. A pedestrian's right-of-way in a crosswalk is modified under the condition and as stated in section 58-132(b).

(b) Whenever any vehicle is stopped at a marked crosswalk or at any unmarked crosswalk at an intersection to permit a pedestrian to cross the roadway, the driver of any other vehicle approaching from the rear shall not overtake and pass such stopped vehicle.

(Code 1977, § 7-1112; Code 1993, § 29-152)

Sec. 58-130. Pedestrians to use right half of crosswalk.

Pedestrians shall move, whenever practicable, upon the right half of crosswalks.

(Code 1977, § 7-1113; Code 1993, § 29-153)

Sec. 58-131. Crossing at right angles.

No pedestrian shall cross a roadway at any place other than by a route at right angles to the curb or by the shortest route to the opposite curb, except in a crosswalk.

(Code 1977, § 7-1114; Code 1993, § 29-154)

Sec. 58-132. When pedestrian shall yield.

(a) Every pedestrian crossing a roadway at any point other than within a marked crosswalk or within an unmarked crosswalk at an intersection shall yield the right-of-way to all vehicles upon the roadway.

(b) Any pedestrian crossing a roadway at a point where a pedestrian tunnel or overhead pedestrian crossing has been provided shall yield the right-of-way to all vehicles upon the roadway.

(Code 1977, § 7-1115; Code 1993, § 29-155)

Sec. 58-133. Pedestrians walking along roadways.

(a) Where sidewalks are provided it shall be unlawful for any pedestrian to walk along and upon an adjacent roadway.

(b) Where sidewalks are not provided any pedestrian walking along and upon a highway shall when practicable walk only on the left side of the roadway or its shoulder facing traffic which may approach from the opposite direction.

(Code 1977, § 7-1116; Code 1993, § 29-156)

Sec. 58-134. Pedestrians soliciting rides or business.

(a) No person shall stand in a roadway for the purpose of soliciting a ride, employment, or business from the occupant of any vehicle.

(b) No person shall stand on or in proximity to a street or highway for the purpose of soliciting the watching or guarding of any vehicle while parked or about to be parked on a street or highway.

(Code 1977, § 7-1117; Code 1993, § 29-157)

Sec. 58-135. Drivers to exercise due care.

Notwithstanding the foregoing provisions of this article, every driver of a vehicle shall exercise due care to avoid colliding with any pedestrian upon any roadway; shall give warning by sounding the horn when necessary; and shall exercise proper precaution upon observing any child or any confused or incapacitated person upon a roadway.

(Code 1977, § 7-1118; Code 1993, § 29-158)

Secs. 58-136—58-150. Reserved.

ARTICLE VI. BICYCLES*

Sec. 58-151. Effect of regulations.

(a) The parent of any child and the guardian of any ward shall not authorize or knowingly permit any such child or ward to violate any of the provisions of this article.

(b) These regulations, applicable to bicycles, shall apply whenever a bicycle is operated upon any street or upon any public path set aside for the exclusive use of bicycles, subject to those exceptions stated herein.

(Code 1977, § 7-1121; Code 1993, § 29-181)

Sec. 58-152. Traffic laws apply to persons riding bicycles.

Every person riding a bicycle upon a roadway shall be granted all of the rights and shall be subject to all of the duties applicable to the driver of a vehicle by the laws of this state declaring rules of the road applicable to vehicles or by this chapter applicable to the driver of a vehicle, except as to special regulations in this article and except as to those provisions of laws and ordinances which by their nature can have no application.

(Code 1977, § 7-1122; Code 1993, § 29-182)

Sec. 58-153. Obedience to traffic control devices.

(a) Any person operating a bicycle shall obey the instructions of official traffic control signals, signs, and other control devices applicable to vehicles, unless otherwise directed by a police officer.

***State law reference**—Operation of bicycles, G.S. 20-171.1 et seq.

(b) Whenever authorized signs are erected indicating that no right turn, left turn, or U-turn is permitted, no person operating a bicycle shall disobey the direction of any such sign, except where such person dismounts from the bicycle to make any such turn, in which event such person shall then obey the regulations applicable to pedestrians.

(Code 1977, § 7-1123; Code 1993, § 29-183)

Sec. 58-154. Riding on bicycles.

(a) A person propelling a bicycle shall not ride other than astride a permanent and regular seat attached thereto.

(b) No bicycle shall be used to carry more persons at one time than the number for which it is designed and equipped.

(Code 1977, § 7-1124; Code 1993, § 29-184)

Sec. 58-155. Riding on roadways and bicycle paths.

(a) Every person operating a bicycle upon a roadway shall ride as near to the right-hand side of the roadway as practicable, exercising due care when passing a standing vehicle or one proceeding in the same direction.

(b) Persons riding bicycles upon a roadway shall not ride more than two abreast except on paths or parts of roadways set aside for the exclusive use of bicycles.

(c) Whenever a usable path for bicycles has been provided adjacent to a roadway, bicycle riders shall use such path and shall not use the roadway.

(Code 1977, § 7-1125; Code 1993, § 29-185)

Sec. 58-156. Speed.

No person shall operate a bicycle at a speed greater than is reasonable and prudent under the conditions then existing.

(Code 1977, § 7-1126; Code 1993, § 29-186)

Sec. 58-157. Emerging from alley or driveway.

The operator of a bicycle emerging from an alley, driveway or building shall, upon approaching a sidewalk or the sidewalk area extending across any alleyway, yield the right-of-way to all pedestrians approaching on said sidewalk or sidewalk area, and upon entering the roadway, shall yield the right-of-way to all vehicles approaching on such roadway.

(Code 1977, § 7-1127; Code 1993, § 29-187)

Sec. 58-158. Carrying articles.

No person operating a bicycle shall carry any package, bundle, or article which prevents the rider from keeping at least one hand upon the handlebars.

(Code 1977, § 7-1128; Code 1993, § 29-188)

Sec. 58-159. Parking.

No person shall park a bicycle upon a street other than upon the roadway against the curb, upon the sidewalk in a rack to support the bicycle, or against a building or at the curb, in such a manner as to afford the least obstruction to pedestrian traffic.

(Code 1977, § 7-1129; Code 1993, § 29-189)

Sec. 58-160. Use of skateboards and bicycles restricted.

(a) Except as otherwise provided, no person shall skate on any roller skates, skateboard or other similar device upon any public street, right-of-way, or sidewalk, located in the business district of the town. No person shall ride a bicycle on a sidewalk located in the business district of the town at any time.

(b) No person shall skate on roller skates, skateboard or other similar device from 7:00 p.m. to 7:00 a.m. upon any street or sidewalk located in the town.

(c) The violation of this section shall be a misdemeanor, and the town shall be authorized to prosecute noncompliance with this section as a crime. The remedies for violation of this section shall be:

- (1) A juvenile who violates any provision of this ordinance is subject to be adjudicated delinquents. The Court may, in its discretion, impose any dispositional alternative(s) that are provided in the North Carolina Juvenile Code for any juvenile who is delinquent.
- (2) Any person other than a juvenile who violates any provision of this ordinance shall be guilty of a misdemeanor and shall be subject to a fine not to exceed \$100.00, and imprisonment in the discretion of the court in accordance with G.S. 14-4.

(Code 1993, § 29-190; Ord. of 3-16-1992, § 1)

Sec. 58-161. Lamps and other equipment on bicycles.

(a) Every bicycle, when in use at nighttime, shall be equipped with a lamp on the front which shall emit a white light visible from a distance of at least 500 feet to the front and with a red reflector on the rear of a type which shall be visible from all distances from 50 feet to 300 feet to the rear when directly in front of lawful upper beams of headlamps on a motor vehicle. A lamp emitting a red light visible from a distance of 500 feet to the rear may be used in addition to the red reflector.

(b) Every bicycle shall be equipped with a brake which will enable the operator to make the brake wheel skid on dry, level, clean pavement.

(Code 1977, § 7-1131; Code 1993, § 29-191)

Secs. 58-162—58-169. Reserved.

ARTICLE VII. LOW SPEED VEHICLES**Sec. 58-170. Definitions.**

[The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:]

Carts and *LSV(s)*. Golf carts and low speed vehicles are defined as motorized pleasure vehicles that do not exceed 28 miles per hour on a straight and level surface. For the purpose of this article, John Deere "Gators," Husqvarna "HUVs," and any other manufacturers equivalent shall be considered as slow moving vehicles. Lawn mowers, tractors, four-wheelers, ATVs, or any other conveyance, other than those described herein are excluded from the provisions of this article.

Permit of operation means a sticker issued by the China Grove Police Department that must be displayed, on the left side of any carts and LSV(s) operated within the Town of China Grove. (Ord. of 6-7-2011; Ord. of 6-21-2012)

Sec. 58-171. Rules and regulations.

(a) Carts and LSV(s). All operators of said vehicles, and their passengers, must be observant of, and attentive to, the safety of themselves, motorists, pedestrians, bicyclists, and the personal and real property of others. The Town of China Grove has no liability, under any theory of liability, for permitting the operation of carts and LSVs on streets, roads, paths, or highways under its jurisdiction as allowed by North Carolina General Statutes and special legislation granted by the North Carolina State Legislature, but governed by this article.

(b) Carts and LSV(s) may only be operated on the streets, roads, paths, and highways within the Town of China Grove in accordance with the following rules and regulations:

- (1) Before Carts or LSVs can be operated on the designated streets, roads, pathways, or highways within the jurisdiction of the Town of China Grove, the owners thereof must purchase and maintain liability insurance in at least the minimum amount required by the State of North Carolina for a licensed motor vehicle which policy insures against personal injury and property damage of any nature, relative to the operation of said vehicles. Proof of insurance must be provided to the China Grove Police Department at the time of application for a permit to operate said vehicles and must be carried by the operator at all times that said vehicles are in operation.
- (2) Any person who operates a cart or LSV in the Town of China Grove takes full responsibility for all liability associated with the operation of said vehicles. Any person who rides or sits as a passenger on a cart or LSV in the Town of China Grove takes full responsibility for all liability associated with the "riding on" or the "sitting on" of said vehicles.
- (3) Any person that operates a cart or LSV on the designated streets, roads, pathways, or highways within the Town of China Grove's jurisdiction, shall be at least 16 years of

age and hold a valid driver's license issued by a state within these United States, and, said operator shall have this driver's license on their person at all times while operating said vehicles. [The chief of police may issue a permit of operation, at his desecration, to individual at least 21 years of age that do not possess a valid driver's license. Revision 6/7/2011]

- (4) Carts or LSVs may only be operated during daylight hours, between sunrise and sunset, unless the vehicle is equipped with headlights, brake lights, and turn signals that have been approved by the chief of police.
- (5) Carts or LSVs may not be operated during inclement weather, when visibility is reduced or impaired by weather, smoke, fog, or other conditions or at anytime when there is insufficient light clearly to see a person or a vehicle on the roadway at a distance of 500 feet.
- (6) Carts and LSVs must be equipped with a rear vision mirror capable of providing the operator with a 200 feet clear rear sight picture, and shall also be equipped (on the rear of the vehicle) with a Low Speed Vehicle placard that meets ASAE S276.4 standards, and shall be equipped with sufficient brakes, reliable steering, and safe tires.
- (7) Carts and LSVs may only be operated on US 29/601 and NC 152 Hwy and any and all state roadways within the Town of China Grove's jurisdiction when necessary to access a town street, road, or pathway, or a business or residential access point that is not readily accessible from a town back-street, back-road, or pathway. Any continuous travel on these highways is hereby prohibited and shall be subject to civil penalty or fine. At no time will travel be allowed on any Interstate Highway System.
- (8) Any person who operates a cart or LSV within the Town of China Grove's jurisdiction must adhere to all State of North Carolina traffic laws, and all laws governing the use of, or the possession of, alcoholic beverages and controlled substances.
- (9) Cart and LSV operators must yield the right-of-way to pedestrians and overtaking vehicles at all times.
- (10) All passengers, including children, must be properly seated while the cart or LSV is in motion and shall not be transported in a negligent manner.
- (11) The maximum occupancy of any cart or LSV shall not exceed the manufacturer's design or recommended seating capacity.
- (12) Carts or LSVs shall not be allowed to operate on any town sidewalks, unless otherwise designated by the chief of police.
- (13) Carts or LSVs shall not be allowed to park in designated "handicapped parking spaces" unless the operator, or one of the passengers of the vehicle, has a valid "handicapped placard" or sticker. This placard shall be appropriately displayed while the vehicle is so parked.

(Ord. of 6-7-2011; Ord. of 6-21-2012)

Sec. 58-172. Permit, application and revocation.

(a) All carts and LSVs operated within the Town of China Grove's jurisdiction must display, on the left side of the vehicle (not on a windshield), a valid "permit of operation" sticker issued by the China Grove Police Department. The initial application fee for said sticker shall not exceed \$50.00 per vehicle with a \$10.00 annual renewal thereafter, and said fee will be used for implementation and maintenance of this privilege. The chief of police shall have the right to refuse to issue and/or revoke any permit sticker and may remove said sticker from any cart or LSV at any time and for any reason that he, or she, feels is appropriate to ensure the safety and well-being of the citizens, and the motoring or pedestrian traffic, of the Town of China Grove.

(b) In all cases, the chief of police must approve the use of carts or LSVs on the streets, roads, pathways, or highways within the Town of China Grove's jurisdiction. All permits approved shall be valid for the year of issuance with the annual period being from 1 January until 31 December of each year. The initial issue shall be valid through the end of year 2011.

(c) Any person wishing to make application for a "permit of operation" for carts or LSVs shall complete the required application form distributed for the China Grove Police Department by the town clerk, execute a release, indemnity and hold harmless agreement and shall pay the town clerk the annual non-refundable registration fee at the time of application. The fee must be paid even if a "permit of operation" is denied or revoked by the chief of police.

- (1) Permit application form. The application form shall include the full name, address, and telephone number of the applicant; the applicant's date of birth; the applicant's driver's license information to include state of issuance and the driver's license number (shall be attached a photocopy of the applicant's driver's license to the application form); the name of the applicant's insurance company and the applicant's insurance policy number, along with the date of expiration of said policy; the date of the application; an executed "release, indemnity and hold harmless agreement on the form approved by the chief of police and the applicants signature attesting to his or her reading and understanding of the Town of China Grove's Ordinance governing the operation of carts or LSVs, within the Town of China Grove's jurisdiction. As a condition to obtaining a "permit of operation", the chief of police may require an applicant to submit a certificate signed by a licensed physician to the effect that the applicant is able to safely operate a motorized cart or LSV within the Town of China Grove's jurisdiction.
- (2) Any "permit of operation" may be revoked by the chief of police if there is any evidence of material misrepresentation made in the permit application, if liability insurance has been revoked, suspended, expired, or is no longer in effect, or if there is any evidence that the permittee cannot safely operate a cart or LSV. A permit shall be revoked by the chief of police if it is found that the operator, or any person that the operator allows to operate said vehicle, driver's license has been suspended, revoked, or has expired. The chief of police shall issue a "notice of revocation" in the event that

a permit is revoked and shall hand deliver said revocation notice to the permit holder, or the chief of police may send said notice by certified mail to the address of the permittee or applicant. The revocation shall be effective immediately upon hand delivery or three days after mailing by certified mail.

- (3) Any party having a permit of operation revoked under the terms of this article may apply for reinstatement in writing to the chief of police stating the reasons for reinstatement. The chief of police shall establish a hearing within 15 days of receiving a request for reinstatement and promptly notify the applicant of the time and place of the hearing. The chief of police may reissue the permit in his discretion if he is satisfied that the applicant has complied with the provisions of this ordinance, complied with the reasons for the original revocation and the interest of public safety would not be harmed by reissuing the permit.

(Ord. of 6-7-2011; Ord. of 6-21-2012)

Sec. 58-173. Reciprocity.

(a) The China Grove Police Department may establish reciprocity agreements with other municipalities to allow the operation of LSVs permitted by that jurisdiction to operate within the Town of China Grove and LSVs permitted by the Town of China Grove to operate within other municipalities.

(b) No reciprocity agreement may be established with any municipality that does not require proof of liability insurance for LSVs permitted by that municipality to be filed with that jurisdiction.

(c) Any LSV operated in the Town of China Grove pursuant to a reciprocity agreement must display a permit issued by the permitting municipality, carry proof of liability insurance as required by section 58-171(b)(1), be operated by a licensed driver, and comply with all equipment and operational regulations specified in section 58-171.

(Ord. of 8-2-2016(2016-09))

Sec. 58-174. Penalty and enforcement.

(a) Any person who violates any section or part of this article, or fails to comply with any section or part of this article shall be held responsible for an infraction and shall be required to pay a civil penalty in the amount of \$50.00 pursuant to chapter 1, section 1-6.

(b) All ordinances or parts of ordinances in conflict herewith are hereby repealed.

(c) If any court of competent jurisdiction holds any word, part, section, paragraph, or provision hereof to be unlawful or unconstitutional, such ruling or finding shall not affect the remaining portions of this article, which shall remain in full force and effect.

(Ord. of 6-7-2011; Ord. of 6-21-2012; Ord. of 8-2-2016(2016-09))

Editor's note—Ord. No. 2016-09, adopted Aug. 2, 2016, renumbered former § 58-173 to § 58-174.

Chapters 59—61

RESERVED

Chapter 62

VEHICLES FOR HIRE

Article I. In General

Secs. 62-1—62-18. Reserved.

Article II. Taxicabs

Division 1. Generally

Sec. 62-19. Definitions.
Sec. 62-20. Identification of vehicles.
Sec. 62-21. Posting of rates.
Sec. 62-22. Storage space for taxicabs; parking vehicles on street.
Secs. 62-23—62-47. Reserved.

Division 2. Certificate of Convenience and Necessity

Sec. 62-48. Required.
Sec. 62-49. Application.
Sec. 62-50. Issuance generally.
Sec. 62-51. Hearing required; notice of hearing.
Sec. 62-52. Determination of convenience and necessity.
Sec. 62-53. Burden of proof.
Sec. 62-54. Time limit for beginning operations.
Sec. 62-55. Duration; renewal.
Sec. 62-56. Transfer.
Sec. 62-57. Revocation.
Sec. 62-58. Substitution of vehicles.
Secs. 62-59—62-89. Reserved.

Division 3. Driver's Permit

Sec. 62-90. Required.
Sec. 62-91. Application.
Sec. 62-92. Investigation.
Sec. 62-93. Issuance; fee.
Sec. 62-94. Display.
Sec. 62-95. Revocation.

ARTICLE I. IN GENERAL

Secs. 62-1—62-18. Reserved.

ARTICLE II. TAXICABS***DIVISION 1. GENERALLY**

Sec. 62-19. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Taxicab means any motor vehicle seating nine or fewer passengers, operated upon any street or highway on call or on demand, accepting or soliciting passengers indiscriminately for hire between such points along streets or highways as may be directed by the passenger so being transported.

(Code 1977, § 6-1001; Code 1993, § 30-26; Ord. of 12-2-1990)

Sec. 62-20. Identification of vehicles.

Every person operating taxicabs shall have permanent signs at conspicuous places on each taxicab showing that it is a taxi.

(Code 1977, § 6-1008; Code 1993, § 30-27; Ord. of 12-2-1990)

Sec. 62-21. Posting of rates.

Every person operating taxicabs within the city shall observe and charge only the rates conspicuously posted inside of the taxicab.

(Code 1977, § 6-1009; Code 1993, § 30-28; Ord. of 12-2-1990)

Sec. 62-22. Storage space for taxicabs; parking vehicles on street.

It shall be unlawful for any person to operate a taxicab business within the corporate limits of the town without providing adequate space for the storage of all taxicabs owned or operated by that person, so as to avoid the necessity of storing the taxicabs on public streets during any period when they are not in use, and no taxicab shall at any time be parked upon the streets unless it is being used for hire.

(Code 1977, § 6-1010; Code 1993, § 30-29; Ord. of 3-8-1985)

Secs. 62-23—62-47. Reserved.

***State law references**—Filing proof of financial responsibility with governing body of municipalities required, G.S. 20-280; authority to regulate taxis, G.S. 160A-304.

DIVISION 2. CERTIFICATE OF CONVENIENCE AND NECESSITY

Sec. 62-48. Required.

It shall be unlawful for any person to operate a taxicab upon and over the streets of the town without first having applied for and secured from the town council a certificate of convenience and necessity, as set forth in this division.

(Code 1977, § 6-1011; Code 1993, § 30-51)

Sec. 62-49. Application.

Every person desiring to operate a taxicab upon and over the streets of the town shall file, on forms supplied by the clerk, an application for a certificate of convenience and necessity.

(Code 1977, § 6-1012; Code 1993, § 30-52)

Sec. 62-50. Issuance generally.

The town council shall have power and duty to order certain certificates to be issued under this division or to refuse to issue certain certificates, or to issue certificates for only a partial exercise of the privileges sought. It may attach to the exercise of the rights granted by the certificate such terms and conditions as, in its judgment, the public convenience and necessity may require.

(Code 1977, § 6-1013; Code 1993, § 30-53)

Sec. 62-51. Hearing required; notice of hearing.

Each application for a certificate of convenience and necessity under this division shall be scheduled for a hearing not later than 20 days after the application is filed, and the applicant shall be notified by the clerk, by mail, at the business address set forth in the application, of the date and time of the hearing. Such notification shall be sent at least ten days before the date and time of the hearing. The clerk shall also, within the same time, notify all persons who, at that time, hold certificates of convenience and necessity for the operation of taxicabs within the town of the date and time of the hearing and the name of the applicant. In addition, the clerk shall cause to be published at least once in a newspaper of general circulation, at least ten days before the hearing, a notice setting forth the name of the applicant and the date and time of the hearing. The cost of the publication shall be paid by the applicant.

(Code 1977, § 6-1016; Code 1993, § 30-54)

Sec. 62-52. Determination of convenience and necessity.

(a) In determining whether the public convenience and necessity require the franchising of taxicabs, the town council shall, among other things, take into consideration the following factors:

- (1) Whether or not the public convenience and necessity require proposed or additional taxicab service within the town.

- (2) The financial responsibility of the applicant and the likelihood of the proposed service being permanent, responsible and satisfactory.
- (3) The number of taxicabs and condition of equipment.
- (4) The schedule of proposed rates to be charged.
- (5) The number of taxicabs now operated and the demand for increased service, if any, whether or not the safe use of the streets by the public, both vehicular and pedestrian, will be preserved, and whether or not adequate provision has been made for off-street parking of the taxicabs.
- (6) The experience of the applicant in the taxicab business.
- (7) Such other relative facts as may be deemed necessary and advisable.

(b) Before making any decision with respect to the issuance of a certificate of convenience and necessity, the town council, or a committee thereof, shall make a full and complete investigation of all facts and may, if it so desires, subpoena witnesses and utilize the service of the chief of police or any other officer or employee of the town.

(Code 1977, § 6-1015; Code 1993, § 30-55)

Sec. 62-53. Burden of proof.

The burden of proof shall be upon the applicant to establish the existence of public convenience and necessity for the operation of the taxicabs specified in his application, and all other facts required for the granting of a certificate under this division.

(Code 1977, § 6-1017; Code 1993, § 30-56)

Sec. 62-54. Time limit for beginning operations.

If a certificate is granted to an applicant under this division and the applicant fails, in accordance with the provisions of the certificate, to begin operations within 60 days after the date of the certificate, the certificate shall become null and void.

(Code 1977, § 6-1018; Code 1993, § 30-57)

Sec. 62-55. Duration; renewal.

A certificate issued under this division shall constitute a franchise from the town for the operation of taxicabs within the town, subject to the provisions of this article, for one year, unless a shorter period of time is specified in the certificate. Applications for renewal shall be filed annually and hearings conducted as provided in this division.

(Code 1977, § 6-1014; Code 1993, § 30-58)

Sec. 62-56. Transfer.

A certificate issued under this division is not transferable without the consent of the town council. Applications for a permit to transfer shall be filed in the same manner as an

application for a certificate of convenience and necessity. The proceedings upon the application for a transfer shall be the same as those described for the issuance of a certificate, except that the question of public convenience and necessity need not be proved.

(Code 1977, § 6-1019; Code 1993, § 30-59)

Sec. 62-57. Revocation.

(a) The town council may, at any time, after a public hearing, revoke any certificate issued by authority of this division, for any one or more of the following causes:

- (1) Failure to operate the taxicabs specified in the certificate in such a manner as to serve the public adequately and efficiently.
- (2) Failure to maintain motor equipment in good repair.
- (3) Failure to carry liability insurance or bond as required by ordinance.
- (4) Failure to pay to the town taxes or license fees imposed upon taxicabs for each taxicab.
- (5) Repeated and persistent violation by the taxicab drivers of traffic and safety ordinances or state laws relating to alcoholic beverages or prostitution.
- (6) Failure to report accidents.
- (7) Willful failure to comply with any provision of this article or other ordinances or state laws relating to the operation of taxicabs.

(b) No certificate shall be revoked until the owner has had at least five days' notice by personal service or registered mail of the charges against him, and of the time and place of the hearing. If, after the hearing, it is found that the owner is guilty of one or more of the offenses listed in this section, the town council shall have the power to revoke the certificate, or to condition a revocation upon compliance with its order within any time fixed by it.

(Code 1977, § 6-1020; Code 1993, § 30-60)

Sec. 62-58. Substitution of vehicles.

The person to whom a certificate has been issued under this division may, by appropriate endorsement thereon by the clerk, substitute other vehicles for the vehicles for which the certificate was granted. In such instance, the liability insurance or bonds shall also be transferred to the substitute vehicle.

(Code 1977, § 6-1021; Code 1993, § 30-61)

Secs. 62-59—62-89. Reserved.

DIVISION 3. DRIVER'S PERMIT

Sec. 62-90. Required.

No person shall drive any taxicab carrying passengers for hire from place to place within the town, or within a distance of five miles thereof, unless that person shall have first applied to and secured from the town council a permit to drive a taxicab.

(Code 1977, § 6-1002; Code 1993, § 30-76; Ord. of 12-2-1990)

Sec. 62-91. Application.

(a) Application for a permit to drive a taxicab shall be made annually upon forms furnished by the town for that purpose and shall, among other things, state the applicant's name, address, physical condition, physical description, former employers, court record and state chauffeur's license number, and shall include proof of liability insurance. The application shall be signed and sworn to by the applicant.

(b) An emergency permit for no more than ten days may be issued by the clerk for permission to drive a taxicab while the application is being filed and investigated if, in his opinion, the applicant is a suitable person to drive a taxicab.

(Code 1977, § 6-1003; Code 1993, § 30-77; Ord. of 12-2-1990)

Sec. 62-92. Investigation.

The chief of police is hereby charged with the duty of investigating the facts stated in the application for a taxicab driver's permit, and he shall report his findings and recommendations to the town council.

(Code 1977, § 6-1004; Code 1993, § 30-78; Ord. of 12-2-1990)

Sec. 62-93. Issuance; fee.

If the town council finds that the applicant for a permit under this division has not been convicted of a felony for a ten-year period, has proof of liability insurance, and has properly marked his taxicab and properly marked the rates, the council may issue a permit to the applicant to drive a taxicab. The fee shall be as determined by the town council from time to time.

(Code 1977, § 6-1005; Code 1993, § 30-79; Ord. of 12-2-1990)

Sec. 62-94. Display.

The driver of every taxicab shall, at all times while operating the taxicab, prominently post and display in the taxicab, so as to be visible to the passengers therein, his permit to drive a taxicab.

(Code 1977, § 6-1007; Code 1993, § 30-80; Ord. of 12-2-1990)

Sec. 62-95. Revocation.

At any time after the issuance of a permit to any person to drive a taxicab, the town council may revoke the permit if the person holding the permit fails to comply with the standards set forth in section 62-93.

(Code 1977, § 6-1006; Code 1993, § 30-81; Ord. of 12-2-1990)

APPENDIX A

ZONING* (RESERVED)

***Federal law references**—Preservation of local zoning authority concerning wireless telecommunications facilities, 47 USC 322(c)(7); limited federal preemption of state and local zoning laws affecting amateur radio facilities, *Memorandum Opinion and Order*, PRB-1, 101 FCC 2d 952 (1985) and 47 CFR 97.15(b); Religious Land Use and Institutionalized Persons Act, 42 USC 2000cc et seq.

State law references—Grant of zoning power, G.S. 160A-381; planning agency and zoning plan, G.S. 160A-387; board of adjustment, G.S. 160A-388.

CODE COMPARATIVE TABLE

1977 CODE

This table gives the location within this Code of those sections of the 1977 Code which were carried over into the 1993 Code, and which are in whole or in part a source from which provisions in this 2008 Code are derived. For the location of sections of the 1993 Code and of ordinances included herein, see the tables immediately following this table.

1977 Code Section	Section this Code	1977 Code Section	Section this Code
1-1001—1-1003	1-2—1-4	4-1011—	
1-1006	1-5	4-1014	50-89—50-92
2-1001	2-24	4-1015	50-96
2-1003	2-23	4-1021,	
2-1004	2-22	4-1022	50-122
2-1005	2-21	4-1023	50-123
2-1011—		4-1024	50-125
2-1018	2-52—2-59	4-1025	50-124
2-1021—		4-1026,	
2-1024	2-77—2-80	4-1027	50-126, 50-127
2-1025,		4-1028	50-2
2-1026	2-80, 2-81	4-1029	50-121
2-2001	2-124	4-1030	50-128
2-2002	2-147	4-1031	50-1
2-2003	2-179	4-1032	38-1
2-2004	2-178	4-1033	50-3
2-4001	2-1	4-1034—	
2-4002	2-180	4-1037	50-129
2-7001—		4-2010	30-4
2-7003	2-251—2-253	4-4001—	
3-1001—		4-4006	42-20—42-25
3-1003	34-19—34-21	4-4011—	
3-2001,		4-4013	42-26—42-28
3-2002	30-2, 30-3	4-4014	42-30
3-2021	30-1	4-4015	42-29
3-3001,		4-4016	42-31
3-3002	22-2, 22-3	4-4017	42-19
3-3003	22-1	5-1001	54-19
3-3011,		5-1002	54-24
3-3012	22-4	5-1003	54-23
4-1001,		5-1004	54-33
4-1002	50-83, 50-84	5-1005(a),	
4-1003	50-86	5-1005(b)	54-25, 54-26
4-1004	50-85	5-1006	54-32
4-1005	50-87	5-1007	54-35
4-1006,		5-1008	54-20
4-1007	50-93	5-1009	54-22
4-1008	50-94	5-1010	54-30
4-1009	50-88	5-1011	54-29
4-1010	50-95	5-1012	54-31

CHINA GROVE CODE OF ORDINANCES

1977 Code Section	Section this Code	1977 Code Section	Section this Code
5-1013	54-21	6-2026	50-195
5-1014	54-34	6-2027,	
5-1015,		6-2028	50-160, 50-161
5-1016	54-27, 54-28	6-2029	50-158
6-1001	62-19	7-1001	58-1
6-1002—		7-1011,	
6-1005	62-90—62-93	7-1012	58-10, 58-11
6-1006	62-95	7-1013	58-11
6-1007	62-94	7-1021—	
6-1008—		7-1024	58-2—58-5
6-1010	62-20—62-22	7-1025,	
6-1011—		7-1026	58-7, 58-8
6-1013	62-48—62-50	7-1031—	
6-1014	62-55	7-1033	58-47—58-49
6-1015	62-52	7-1037—	
6-1016	62-51	7-1043	58-50—58-56
6-1017,		7-1052	58-15
6-1018	62-53, 62-54	7-1061—	
6-1019—		7-1065	58-16—58-20
6-1021	62-56—62-58	7-1071,	
6-1041—		7-1072	58-21, 58-22
6-1044	6-56—6-59	7-1082—	
6-1045	6-63	7-1085	58-57—58-60
6-1046	6-62	7-1086,	
6-1047	6-61	7-1087	58-13, 58-14
6-1048	6-60	7-1091—	
6-1051—		7-1095	58-23—58-27
6-1053	18-58—18-60	7-1096	58-9
6-1061,		7-1098,	
6-1062	18-25, 18-26	7-1099	58-28, 58-29
6-1062	18-27	7-1100	58-29
6-1071	38-4	7-1111—	
6-1081	6-19	7-1118	58-128—58-135
6-1083—		7-1121—	
6-1085	6-20—6-22	7-1129	58-151—58-159
6-1086	6-24	7-1131	58-161
6-1087	6-26	7-1141—	
6-1088	6-23	7-1147	58-93—58-99
6-1089	6-25	7-1151—	
6-2001—		7-1153	58-83—58-85
6-2005	50-31—50-35	7-1154	58-87
6-2011—		7-1155	58-86
6-2013	38-2	7-1156—	
6-2014—		7-1159	58-88—58-91
6-2016	50-5	7-1171	58-92
6-2017	50-4	7-1172—	
6-2021	50-157	7-1176	58-100—58-104
6-2022,		7-1181,	
6-2023	50-193, 50-194	7-1182	58-79, 58-80
6-2024	50-194	7-1183,	
6-2025	50-159	7-1184	58-105, 58-106

CODE COMPARATIVE TABLE

1977 Code Section	Section this Code
7-1185, 7-1186	58-81, 58-82
7-1187	58-107
8-2001	10-7
8-2005(a)	10-2
8-2005(b)	10-21
8-2007	10-8
8-2008	10-6
8-3001	26-58
8-3002	26-54
8-3003	26-57
8-3004	26-61
8-3006—	
8-3010	26-63—26-67
8-3011	26-56
8-3012	26-68
8-5001—	
8-5003	26-19—26-21
8-5004—	
8-5006	26-22
8-5008	26-24
8-5010	26-23
8-6003	38-33
8-6004	38-35
8-6006—	
8-6008	38-34
8-6009	38-3
8-6012	18-3
8-6015, 8-6016	38-5

CODE COMPARATIVE TABLE

1993 CODE

This table gives the location within this Code of those sections of the 1993 Code which are included herein. Sections of the 1993 Code not listed herein have been omitted as repealed, superseded, obsolete or not of a general and permanent nature. For the location of ordinances included herein, see the table immediately following this table.

1993 Code Section	Section this Code	1993 Code Section	Section this Code
1-1—1-9	1-1—1-9	29-1—29-11	58-1—58-11
2-1	2-1	29-31—29-47	58-13—58-29
2-26, 2-27	2-21, 2-22	29-61—29-74	58-47—58-60
2-29, 2-30	2-23, 2-24	29-101—29-129	58-79—58-107
2-51—2-58	2-52—2-59	29-151—29-158	58-128—58-135
2-81—2-85	2-77—2-81	29-181—29-191	58-151—58-161
2-131	2-124	30-26—30-29	62-19—62-22
2-151	2-147	30-51—30-61	62-48—62-58
2-171—2-173	2-178—2-180	30-76—30-81	62-90—62-95
2-231—2-233	2-251—2-253		
4-26—4-33	6-19—6-26		
4-56—4-63	6-56—6-63		
6-1—6-22	10-1—10-22		
8-1	14-1		
8-36—8-56	14-21—14-41		
10-1—10-3	18-1—18-3		
10-31—10-33	18-25—18-27		
10-56—10-58	18-58—18-60		
12-1—12-4	22-1—22-4		
14-31—14-34	26-19—26-22		
14-37—14-39	26-23—26-25		
14-57	26-54		
14-57—14-69	26-56—26-68		
14-91—14-95	26-81—26-85		
16-1—16-4	30-1—30-4		
18-31—18-33	34-19—34-21		
20-1—20-6	38-1—38-6		
20-31—20-33	38-33—38-35		
22-31—22-43	42-19—42-31		
26-1—26-6	50-1—50-6		
26-31—26-35	50-31—50-35		
26-61—26-64	50-59—50-62		
26-86—26-99	50-83—50-96		
26-131—26-139	50-121—50-129		
26-156—26-161	50-157—50-162		
26-176—26-178	50-193—50-195		
28-31—28-47	54-19—54-35		
28-67—28-71	54-93—54-97		
28-72	54-99		

CODE COMPARATIVE TABLE

ORDINANCES/RESOLUTIONS

This table gives the location of ordinances/resolutions which are included in this Code. Ordinances/resolutions not listed herein have been omitted as repealed, superseded, obsolete or not of a general and permanent nature.

Date	Section	Section this Code
11-16-1977(Res.)		14-1
12- 6-1977(Ord.)		18-1
7-10-1979(Ord.)		38-33
4- 7-1981(1)(Ord.)	1, 2	2-251, 2-252
6- 7-1982(Ord.)		18-2
11- 2-1982(Ord.)		58-87
		58-93
3- 8-1985(Ord.)		62-22
1- 7-1986(Ord.)	I—III	14-21—14-23
	IV—XI	14-34—14-41
	XII	14-26
	XIII—XVIII	14-28—14-33
	XX, XXI	14-24, 14-25
	XVIX	14-27
10- 7-1986(Ord.)	art. I—	54-94—54-97
	art. IV	
	art. V	54-99
	arts. VI, VII	54-93
3- 3-1987(Ord.)		6-63
10- 6-1987(Ord.)		26-25
7-11-1989(Ord.)	1	38-35
8- 1-1989(2)(Ord.)	1	38-3
12- 2-1990(Ord.)		62-19—62-21
		62-90—62-95
6- 4-1991(1)(Ord.)		26-54
		26-56—26-58
		26-61
		26-63—26-68
6- 4-1991(2)(Ord.)	I	10-1
	II	10-9
	III(A)—(E)	10-12
	III(F)	10-10
	IV, V	10-13, 10-14
	VI	10-11
	VII	10-18
	VIII(A), (B)	10-15
	VIII(C)	10-17
	IX, X	10-19, 10-20

CHINA GROVE CODE OF ORDINANCES

Date	Section	Section this Code
	XI	10-4
	XII	10-16
	XIII	10-5
	XV	10-3
7- 9-1991(Ord.)	pt. 1(8-4001), pt. 1(8-4002) pt. 1(8-4003) pt. 1(8-4004), pt. 1(8-4005) pt. 1(8-4006)	50-61 50-60 50-62 50-59
3-16-1992(Ord.)	1	58-160
4- 7-1992(Ord.)	1—4	26-81—26-84
5- 4-1993(Ord.)		38-36
1- 3-1995(1)(Ord.)		10-1 10-13
1- 3-1995(2)(Ord.)	1	26-85
11-14-1995(Ord.)		50-7
1-11-1996(Ord.)	pt. 1(26-161)	50-162
6- 4-1996(Ord.)	1(20-7(A)), 1(20-7(B)) 1(20-7(C))—1(20-7(G)) 1(20-7(H))	38-71, 38-72 38-74—38-78 38-73
10- 1-1996(Ord.)	pt. 1(29-201)—	58-116—58-119 pt. 1(29-204)
2- 3-1998(Ord.)	pt. I	38-8
6- 2-1998(Ord.)	pt. I(8-61)—	14-81—14-88 pt. I(8-68) 14-89, 14-90
	pt. I(8-70), pt. I(8-71) pt. I(8-72), pt. I(8-73) pt. I(8-74)— pt. I(8-83) pt. I(8-84)— pt. I(8-88)	14-121, 14-122 14-151—14-160 14-181—14-185
1- 5-1999(1)(Ord.)	pt. 1(14-31)— pt. 1(14-34) pt. 1(14-37)— pt. 1(14-39) pt. 1(14-56) pt. 1(14-57) pt. 1(14-57)— pt. 1(14-69)	26-19—26-22 26-23—26-25 26-55 26-54 26-56—26-68
1- 5-1999(2)(Ord.)	pt. 1(1-6)	1-6
10- 3-2000(Ord.)	pt. 1(26-3)	50-61
12-19-2000(Res.)	pt. 1(26-6)	50-6
1- 9-2001(1)(Ord.)	28-66—28-73	54-92—54-99
10- 7-2003(Ord.)	28-48a—28-48p	54-59—54-74

CODE COMPARATIVE TABLE

Date	Section	Section this Code
10- 5-2004(Ord.)	pt. 1(6-22)	10-22
5- 2-2006(1)(Ord.)		26-85
5- 2-2006(2)(Ord.)	1-2	38-7
5- 2-2006(3)(Ord.)	2—8	46-1—46-7
5- 6-2008(Ord.)		Added Adopt. Ord. pg. vii
6- 3-2008(Res.)	1—7	Added 2-25
7- 7-2009(Ord.)		Rpld 18-2
6- 7-2011(Ord.)		Added 58-170—58-173
8- 2-2011(Ord.)	(1.1—5.10)	Added 54-331—54-347, 54-361—54-364, 54-395—54-401, 54-426, 54-427, 54-446—54-455
11- 1-2011(1)(Ord.)		26-19(4) 26-54(5)
11- 1-2011(2)(Ord.)		58-119
1- 3-2012(1)(Ord.)		Added 10-23
1- 3-2012(2)(Ord.)		Added 38-35(3)
6- 5-2012(Ord.)		38-3
		Added 38-9
6-21-2012(Ord.)		58-170—58-173
8- 7-2012(Ord.)		10-7
9-11-2012(Ord.)		Added 26-22(d)
3- 5-2013(Ord.)		38-33 38-35, 38-36 42-23
2- 4-2014(Ord.)		Added 42-1
5- 6-2014(Ord.)		58-116—58-119
5- 5-2015(Ord.)		14-26
11- 3-2015(Ord.)		Added 26-1
12- 1-2015(Ord.)		26-1(a)(3), (c)(2)
2- 2-2016(Ord.)		34-19—34-21
3- 1-2016(1)(Ord.)		Added 58-108
3- 1-2016(2)(Ord.)		Added 30-5
8- 2-2016(Ord.)		Added 10-24
(2016-07)		
8- 2-2016(Ord.)		50-61
(2016-08)		
		50-62(a), (c)
8- 2-2016(Ord.)		Added 58-173
(2016-09)		
		Rnbd 58-173
		as 58-174
9- 6-2016(Ord.)		Added 18-58
(2016-10)		
		Rpld 18-59

CHINA GROVE CODE OF ORDINANCES

Date	Section	Section this Code
		Rnbd 18-58
		as 18-59
		Rnbd 18-60
		as 18-70
		Added 18-60—18-69
		18-70
12- 6-2016(Ord.) (2016-13)	1	38-4
	2	Added 43-1—43-4
1- 3-2017(Ord.) (2016-14)		26-54
2- 7-2017(Ord.) (2017-01)		Added 26-19(9)—(11)
3- 7-2017(Ord.) (2017-02)		18-27
		Added 18-28—18-31
3- 4-2017(Ord.) (2017-04)		30-5(f)
8- 1-2017(Ord.) (2017-07)	1—5	Added 2-2
10- 3-2017(Ord.) (2017-09)		18-59, 18-60
		18-61(a)(6), (b)(5), (6)
		18-62(a), (b)
		Added 18-62(e)
		Rpld 18-63(e), (f)
		18-64, 18-65
		18-70(a)
10- 3-2017(Ord.) (2017-11)		58-86
		Added 58-86(5)
10- 3-2017(Ord.) (2017-12)		26-19(3)
		Added 26-19(6)
		Rnbd 26-19(6)—(11)
		as 26-19(7)—(12)
10- 3-2017(Ord.) (2017-13)		50-61
10- 3-2017(Ord.) (2017-14)		10-22
11- 7-2017(Ord.) (2017-16)		46-1
		46-4(b), (d)
		46-7
8- 7-2018(Ord.) (2018-05)		18-1

CODE COMPARATIVE TABLE

Date	Section		Section this Code
8- 7-2018(Ord.) (2018-06)		Added	26-82(5)
			26-84
11- 6-2018(Ord.) (2018-12)		Added	58-61
2- 7-2023(Ord.) (2023-01)			2-55(c)
6- 4-2024(Ord.) (2024-14)		Rpld	38-4
			43-1—43-3
		Rnbd	43-4
		to	43-5
		Added	43-4
9- 2-2025(Ord.) (2025-16)	1		30-2—30-4

STATE LAW REFERENCE TABLE

This table shows the location within this Charter and Code, either in the text or notes following the text, of references to the General Statutes of North Carolina.

G.S.	Section this Code	G.S.	Section this Code
1-593	1-2		58-1
7A-227, 7A-228	14-159	20-37.7	18-68
12-3	1-2	20-137.6	Ch. 26, Art. II, Div. 2
14-1 et seq.	Ch. 38		Ch. 58, Art. II
14-4	1-6	20-138 et seq.	58-15
	14-25	20-141	58-8
	14-33	20-156	Ch. 58, Art. III
	14-185	20-158	58-83
	Ch. 38	20-162	Ch. 50, Art. VI
	38-78	20-169	Ch. 58
	50-162		Ch. 58, Art. IV
	58-160		Ch. 58, Art. VI
14-4(a)	43-5	20-171.1 et seq.	Ch. 58, Art. V
14-127	38-1	20-172 et seq.	58-108
14-132	38-1	20-219.9 et seq.	26-63
14-208.18	42-1	20-219.11	Ch. 62, Art. II
14-225.1	Ch. 50, Art. VI	20-280	50-1
14-228.12	Ch. 22	20-356 et seq.	50-1
14-234	2-25	20-368	14-159
14-284.1	38-36	42-29, 42-30	26-65
14-288.1 et seq.	Ch. 22	44A-1 et seq.	38-6
14-399	38-2	90-86 et seq.	Ch. 2, Art. III, Div. 3
14-399.1	38-2	105-349	Char. § 5.3
15A-1340.20 et seq.	42-1		Ch. 2, Art. III, Div. 3
16-141 et seq.	26-56	105-350	Char. § 5.3
18B	43-4		43-4
18B-101	43-1	106A-205.4	Ch. 26
	43-2	113A-1 et seq.	Ch. 26
18B-200	43-1	130A-19,	10-11
18B-1001	18-1	130A-20	Ch. 50, Art. VI
18B-1001(1)	43-1	130A-196	26-1
18B-1001(3)	43-1	130A-258	38-9
18B-1001(5)	43-1	130A-498(c1)	Ch. 50, Art. II
18B-1001(10)	43-1	136-31	26-56
18B-1004(c)	18-1	136-90, 136-91	14-29
18B-1010	43-4	136-143	
18B-1100(5)	43-1	140A-446(f)	
19A-20 et seq.	Ch. 10	ch. 143, art.	
ch. 20	50-61	33C	42-1
20-1 et seq.	Ch. 58	143-138	Ch. 14

CHINA GROVE CODE OF ORDINANCES

G.S.	Section this Code	G.S.	Section this Code
143-138(e)	Ch. 14	160A-188	10-6
143-143.2	Ch. 14	160A-189	Ch. 38, Art. II
143-213(18)	54-128	160A-193	Ch. 26
143-215.1	54-128		Ch. 26, Art. II
	54-207		26-22
	54-210	160A-194	Ch. 18
143-215.1(b)	54-209	160A-200	26-22
143-215.3(a)(14)	54-128	160A-200.1	26-22
143-215.6B	54-142	160A-205.3	18-1
143-355	Ch. 54, Art. III, Div. 2	160A-211	Ch. 18
153A-344.1	54-340	160A-216 et seq.	14-32
159-7 et seq.	2-1		14-158
ch. 160A	54-332		50-87
ch. 160A, art. 7,		160A-218	50-89
pt. 2	Char. § 4.1	160A-266	2-2
160A-1	Char. § 1.2	160A-270	2-2
160A-1 et seq.	Ch. 2	160A-281	Ch. 34, Art. II
160A-59 et seq.	Ch. 2, Art. II	160A-281 et seq.	Ch. 34
160A-63	Char. § 2.7	160A-282	Ch. 34, Art. II
160A-64	2-21	160A-285,	
160A-67	2-24	160A-286	Ch. 34, Art. II
160A-69	2-24	160A-288	22-4
160A-71	Ch. 2, Art. II, Div. 2	160A-291—	
	2-55	160A-293	Ch. 30
160A-71(c)	Char. § 2.6	160A-293	30-3
160A-74	Char. § 2.6	160A-296	Ch. 50
160A-75	Char. § 2.6		50-83
	2-25	160A-300 et seq.	Ch. 58
160A-76(b)	Ch. 14		Ch. 58, Art. IV
160A-77	58-6	160A-301	Ch. 26, Art. II,
160A-77 et seq.	Ch. 2, Art. II, Div. 3	160A-303	Div. 2
160A-79	1-1		58-108
160A-147 et seq.	Ch. 2, Art. III	160A-303.1	Ch. 46
160A-171	Ch. 2, Art. III, Div. 4	160A-304	Ch. 62, Art. II
160A-173	Ch. 2, Art. III, Div. 2	160A-307	Ch. 50
	2-124	160A-311,	
160A-174	14-82	160A-312	Ch. 54
160A-175	1-6	160A-314	54-29
160A-181	Ch. 6	160A-317	54-23
160A-183	Ch. 38, Art. II	160A-317(b)	Ch. 46
160A-184	Ch. 26, Art. III	160A-350 et seq.	Ch. 42
160A-185	Ch. 46	160A-360 et seq.	2-253
160A-186	Ch. 10		14-21
160A-186,		160A-381	App. A
160A-187	10-13, 10-14	160A-385.1	54-340
		160A-387	App. A

STATE LAW REFERENCE TABLE

G.S.	Section this Code
160A-388	App. A
160A-411	14-21
160A-412	Ch. 14
160A-428	14-153
160A-443	14-29
160A-443(5)	14-31
160A-444	Ch. 14, Art. II
	14-21
160A-446(6)	14-32
160A-446(f), 160A-446(g)	14-29
163-227.2	38-9
163-292	Char. § 3.1
164-7	1-9
166A-7 et seq.	Ch. 22
166A-8	Ch. 22
168-1	10-22

CHARTER INDEX

	Section
A	
ADMINISTRATIVE OFFICERS AND EMPLOYEES	
Other Administrative Officers and Employees	5.4
Tax Collector	5.3
Town Attorney	5.1
Town Clerk	5.2
Town Manager's Authority; Role of Elected Officials	5.5
AGENCIES. See: DEPARTMENTS AND OTHER AGENCIES OF TOWN	
ALDERMEN	
Elections	
Election of Aldermen	3.2
ATTORNEYS	
Administrative officers and employees	
Town Attorney	5.1
B	
BOARDS, COMMISSIONS AND COMMITTEES	
Governing body	
Town Board of Aldermen; Composition; Terms of Office...	2.2
BOUNDARIES	
Incorporation, corporate powers, and boundaries	1.1 et seq.
See: INCORPORATION, CORPORATE POWERS, AND BOUNDARIES	
C	
CLERKS	
Administrative officers and employees	
Town Clerk	5.2
COMMISSIONS AND COMMITTEES. See: BOARDS, COMMISSIONS AND COMMITTEES	
COMPENSATION, SALARIES, ETC. See: OFFICERS AND EMPLOYEES	
D	
DEFINITIONS. See specific subjects as indexed	
DEPARTMENTS AND OTHER AGENCIES OF TOWN	
Administrative officers and employees	
Town Manager's Authority; Role of Elected Officials; shall have the power to appoint, suspend, and remove all department heads	5.5
Town Manager; Appointment; Powers and Duties	4.2

CHINA GROVE CODE OF ORDINANCES

	Section
E	
ELECTIONS	
Election of Aldermen.....	3.2
Election of Mayor.....	3.3
Regular Municipal Elections	3.1
Special Elections and Referenda.....	3.4
EMERGENCIES	
Governing Body	
Meetings; special and emergency meetings may be held as provided by general law.....	2.5
EMPLOYEES. See: OFFICERS AND EMPLOYEES	
ENFORCEMENT. See specific subjects as indexed	
F	
FINANCES	
Compensation, salaries, etc. See: OFFICERS AND EMPLOY- EES	
G	
GOVERNING BODY	
Compensation; Qualifications for Office; Vacancies.....	2.7
Mayor Pro Tempore	2.4
Mayor; Term of Office; Duties.....	2.3
Meetings.....	2.5
Quorum; Voting.....	2.6
Town Board of Aldermen; Composition; Terms of Office	2.2
Town Governing Body; Composition.....	2.1
H	
HEARINGS. See specific subjects as indexed	
I	
INCORPORATION, CORPORATE POWERS, AND BOUND- ARIES	
Corporate Limits	1.3
Incorporation.....	1.1
Powers	1.2
L	
LAW	
Governing body	
Mayor; Term of Office; Duties; shall exercise the powers and duties conferred by law or as directed by the Town Board	2.3

CHARTER INDEX

	Section
LAW (Cont'd.)	
Meetings; special and emergency meetings may be held as provided by general law.....	2.5
Incorporation, corporate powers, and boundaries.....	1.2
Town Manager; Appointment; Powers and Duties; additional powers and duties conferred by the Town Board	4.2
M	
MAYOR	
Elections	
Election of Mayor	3.3
Governing body	
Mayor Pro Tempore.....	2.4
Mayor; Term of Office; Duties	2.3
MEETINGS. See specific subjects as indexed	
O	
OFFICERS AND EMPLOYEES	
Administrative officers and employees.....	5.1 et seq.
See: ADMINISTRATIVE OFFICERS AND EMPLOYEES	
Compensation, salaries, etc.	
Governing body	
Compensation; Qualifications for Office; Vacancies.....	2.7
Elections.....	3.1 et seq.
See: ELECTIONS	
Governing body	2.1 et seq.
See: GOVERNING BODY	
Salaries. See herein: Compensation, Salaries, Etc.	
Town manager	4.1, 4.2
P	
PERSONNEL. See: OFFICERS AND EMPLOYEES	
POWERS	
Administrative officers and employees	
Town Manager's Authority; Role of Elected Officials; shall have the power to appoint, suspend, and remove all nonelected officers, department heads, and employees of the Town	5.5
Governing body	
Mayor; Term of Office; Duties; shall exercise the powers and duties conferred by law or as directed by the Town Board	2.3
Incorporation, corporate powers, and boundaries.....	1.2
Town manager	
Appointment; Powers and Duties	4.2

CHINA GROVE CODE OF ORDINANCES

	Section
R	
RIGHTS (Generally)	
Governing body	
Mayor; Term of Office; Duties; shall have the right to vote	2.3
S	
SALARIES	
Compensation, salaries, etc. See: OFFICERS AND EMPLOYEES	
T	
TAX COLLECTOR	
Administrative officers and employees	
Tax Collector	5.3
TOWN ATTORNEY	
Administrative officers and employees.....	5.1
TOWN BOARD OF ALDERMEN	
Governing body	
Generally	2.2
Mayor; Term of Office; Duties; shall exercise the powers and duties conferred by law or as directed by the Town Board	2.3
Town Manager; Appointment; Powers and Duties; additional powers and duties conferred by the Town Board	4.2
TOWN CLERK	
Administrative officers and employees.....	5.2
TOWN MANAGER	
Administrative officers and employees	
Town Manager's Authority; Role of Elected Officials	5.5
Form of Government	4.1
Town Manager; Appointment; Powers and Duties.....	4.2
V	
VOTES AND VOTING	
Elections.....	3.1 et seq.
See: ELECTIONS	
Governing body	
Mayor; Term of Office; Duties; shall have the right to vote	2.3
Quorum; Voting	2.6

CODE INDEX

	Section
A	
ABANDONED AND JUNKED MOTOR VEHICLES	
Nuisances	26-54 et seq.
See: NUISANCES	
ABANDONMENT	
Animals	
Unwanted animals	10-19
Offenses	
Abandoned airtight containers.....	38-5
Vehicles and traffic	
Parking, stopping and standing	
Regulations	
Unattended vehicles.....	58-98
ABATEMENTS	
Nuisances	26-21 et seq.
See: NUISANCES	
ACCESS	
Utilities	
Sewer service	
Use of public sewers	
Reasonable accessibility	54-139(a)
Water quality protection	
Right of access.....	54-63
ACCIDENTS	
Utilities	
Sewer service	
Accidental discharge/slug control plans.....	54-137
ADDRESS	
Streets, sidewalks and other public property	
Street address numbers	50-6
ADMINISTRATION (Chapter 2)	
Boards, commissions and committees	2-251 et seq.
See: BOARDS, COMMISSIONS AND COMMITTEES	
Disbursement of funds	2-1
Mayor and town council.....	2-21 et seq.
See: MAYOR AND TOWN COUNCIL	
Officers and employees.....	2-124 et seq.
See: OFFICERS AND EMPLOYEES	
Procedures for disposing of personal property valued at less than \$30,000.00	2-2
ADVERTISING	
Parks and recreation	
Use of parks and recreation areas	
Posting of advertisements.....	42-24
Vehicles and traffic	
Parking, stopping and standing	

CHINA GROVE CODE OF ORDINANCES

	Section
ADVERTISING (Cont'd.)	
Regulations	
Stopping, standing or parking for primary purpose of advertising prohibited	58-91
AFFIRMATION. See: OATH, AFFIRMATION, SWEAR OR SWORN	
AGE CONCERNS	
Minors. See that subject	
AGENCIES. See: DEPARTMENTS AND OTHER AGEN- CIES OF TOWN	
AGENTS	
Pool rooms, bowling alleys and amusement centers	
Responsibility of licensee for acts of agents and employees	6-61
Town clerk	
Duties as purchasing agent	2-180
AGREEMENTS. See: CONTRACTS AND AGREEMENTS	
AID	
Civil emergencies	
Mutual aid agreements	22-4
AIRTIGHT CONTAINERS	
Offenses	
Abandoned airtight containers.....	38-5
ALARMS	
Offenses	
Security alarm systems.....	38-8
ALCOHOLIC BEVERAGES	
Amusements and entertainment. See that subject	
Businesses	
Sale of malt beverages and wine on Sunday.....	18-1
Definitions	43-1
Penalty	43-5
Pool rooms, bowling alleys and amusement centers.....	6-56 et seq.
See: POOL ROOMS, BOWLING ALLEYS AND AMUSE- MENT CENTERS	
Possession, consumption, and distribution at certain town facilities or town owned or controlled property	43-3
Possession or consumption.....	43-2
Social districts.....	43-4
ALLEYS	
Vehicles and traffic	58-13 et seq.
See: VEHICLES AND TRAFFIC	

CODE INDEX

	Section
AMENDMENTS	
Amendments to Code	1-7
Buildings and building regulations	
Nonresidential building maintenance standards	14-90
Mayor and town council	
Ordinances	2-80
AMUSEMENT CENTERS	
Pool rooms, bowling alleys and amusement centers	6-56 et seq.
See: POOL ROOMS, BOWLING ALLEYS AND AMUSEMENT CENTERS	
AMUSEMENTS AND ENTERTAINMENT	
Businesses	18-1 et seq.
See: BUSINESSES	
Circuses, carnivals and similar entertainment; mechanical rides	6-19 et seq.
See: CIRCUSES, CARNIVALS AND SIMILAR ENTERTAINMENT; MECHANICAL RIDES	
Parks and recreation	42-19 et seq.
See: PARKS AND RECREATION	
Peddlers and solicitors	18-58 et seq.
See: PEDDLERS AND SOLICITORS	
Pool rooms, bowling alleys and amusement centers	6-56 et seq.
See: POOL ROOMS, BOWLING ALLEYS AND AMUSEMENT CENTERS	
Streets, sidewalks and other public property	
Obstructions	
Assembly on street or sidewalk	50-31
Vehicles and traffic	58-7 et seq.
See: VEHICLES AND TRAFFIC	
ANIMALS	
Animal bites	
Dogs and cats	10-11(a)
Other animals	10-11(b)
Animals at large	10-13
Animals at town-sponsored events	10-22
Animal waste	10-24
Authority to destroy certain animals	10-17
Buildings and building regulations	
Minimum housing standards	
Control of insects, rodents and other infestations; garbage and rubbish disposal	14-39
Cruelty to animals; maintenance of animal pens	10-20
Damage, injury, etc.	
Authority to destroy certain animals	10-17
Cruelty to animals; maintenance of animal pens	10-20
Injured, sick or diseased animals	10-18
Definitions	
Generally	10-1

CHINA GROVE CODE OF ORDINANCES

	Section
ANIMALS (Cont'd.)	
Dogs	
Animal bites	
Dogs and cats.....	10-11(a)
Rabies vaccination required for dogs and cats.....	10-9
Report and confinement of animal suspected of having rabies.....	10-10
Unlawful removal of vaccination tag; interfering with dog belonging to another	10-21
Fees for animal control activities	10-4
Impoundment	
Adoption	10-12(e)
Animals subject to impoundment	10-12(a)
Notification of owner.....	10-12(b)
Redemption by owner	10-12(c)
Retention period	10-12(d)
Voluntary surrender of animal	10-12(f)
Injured, sick or diseased animals	10-18
Interference with animal control officer	10-5
Keeping or grazing livestock near residential structure	10-8
Nuisance animals	10-15
Parks and recreation	
Use of parks and recreation areas	
Animals running at large; horseback riding.....	42-29
Molesting animals	42-31
Permission required for keeping of certain animals.....	10-7
Rabies vaccination required for dogs and cats	10-9
Report and confinement of animal suspected of having rabies	10-10
Right to hearing on declaration of viciousness or public nuisance.....	10-16
Territorial applicability of chapter.....	10-3
Town declared a bird sanctuary.....	10-6
Unlawful removal of vaccination tag; interfering with dog belonging to another.....	10-21
Unwanted animals.....	10-19
Urban archery deer hunting.....	10-23
Vehicles and traffic	
Applicability of chapter to person riding, propelling, etc.	58-2
Vicious animals	10-14
Violation of chapter.....	10-2
ANNEXATIONS	
Ordinances not affected by Code.....	1-9
APPEALS	
Buildings and building regulations.....	14-27 et seq.
See: BUILDINGS AND BUILDING REGULATIONS	
Noise	
Permit authorized for regulated activities; application; appeal upon denial	26-83

CODE INDEX

	Section
APPEALS (Cont'd.)	
Utilities	
Sewer service	
Wastewater discharge permits	
Significant industrial user permit	
Final appeal hearing	54-208(b)
APPROPRIATIONS. See: FINANCES	
ASSEMBLIES	
Streets, sidewalks and other public property	
Obstructions	
Assembly on street or sidewalk	50-31
ASSESSMENTS	
Streets, sidewalks and other public property.....	50-62 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC PROPERTY	
Utilities	
Water quality protection	
Enforcement by civil penalty	54-73(b)
ATTORNEYS	
Town attorney	2-124
AUTHORITY (Defined)	
Definitions and rules of construction	
Joint authority	1-2
AUTOMOBILES. See: VEHICLES AND TRAFFIC	
B	
BANNERS	
Businesses	
Temporary signs or banners advertising fairs, carnivals and similar events.....	18-3
BEER. See: ALCOHOLIC BEVERAGES	
BICYCLES	
Vehicles and traffic	58-151 et seq.
See: VEHICLES AND TRAFFIC	
BIRD SANCTUARY	
Animals	
Town declared a bird sanctuary	10-6
BITES, ANIMAL	
Animals	10-11
BOARDS, COMMISSIONS AND COMMITTEES	
Buildings and building regulations	
Minimum housing standards	
Appeals board	14-27

CHINA GROVE CODE OF ORDINANCES

	Section
BOARDS, COMMISSIONS AND COMMITTEES (Cont'd.)	
Definitions and rules of construction	
Joint authority	1-2
Planning board	2-251 et seq.
See: PLANNING BOARD	
BONDS	
Ordinances not affected by Code.....	1-9
BOUNDARIES	
Animals	
Territorial applicability of chapter	10-3
Fire prevention and protection	
Fire protection service outside town limits	30-3
Ordinances not affected by Code.....	1-9
Solid waste	
Disposal of waste from outside corporate limits.....	46-6
BOWLING ALLEYS. See: POOL ROOMS, BOWLING ALLEYS AND AMUSEMENT CENTERS	
BRUSH. See: VEGETATION	
BUILDINGS AND BUILDING REGULATIONS	
Animals	
Keeping or grazing livestock near residential structure .	10-8
Appeals	
Minimum housing standards	
Appeals board	14-27
Enforcement and appeal procedure.....	14-29
Nonresidential building maintenance standards	
Procedures for enforcement	
Appeal of order of inspector; finality if not appealed	14-156
Businesses	
Minimum housing standards	
Roominghouses	14-40
Nonresidential building maintenance standards. See herein that subject	
County inspections department to enforce and administer building codes	14-1
Definitions	
Minimum housing standards	14-22
Nonresidential building maintenance standards	
General definitions and interpretations.....	14-84
Special definitions and interpretations	14-85
Demolition	
Minimum housing standards	
Repair or demolition of dwelling on failure to comply with order	14-31
Nonresidential building maintenance standards	
Procedures for enforcement	
Demolition of nonresidential buildings by owner	14-160

CODE INDEX

	Section
BUILDINGS AND BUILDING REGULATIONS (Cont'd.)	
Remedies; lien for cost of demolition and removal ...	14-158
Fire prevention and protection	30-1 et seq.
See: FIRE PREVENTION AND PROTECTION	
Inspections/inspectors	
County inspections department to enforce and administer building codes	14-1
Minimum housing standards	
Housing inspector	14-26
Inspections; right of entry	14-28
Nonresidential building maintenance standards. See herein that subject	
Minimum housing standards	
Alternate remedies	14-33
Appeals board	14-27
Compliance with article	14-23
Conflicting provisions	14-24
Control of insects, rodents and other infestations; garbage and rubbish disposal	
Garbage storage and disposal	14-39(e)
Responsibility for extermination	14-39(c)
Rodent control	14-39(b)
Rubbish storage and disposal	14-39(d)
Screens	14-39(a)
Definitions	14-22
Enforcement and appeal procedure	
Action on failure to comply with order	
In personam remedy	14-29(c)(1)
In rem remedy	14-29(c)(2)
Appeals from orders of inspector	14-29(d)
Determination and order of housing inspector	14-29(b)
Petition to superior court	14-29(e)
Preliminary investigation; notice of hearing; hearing ..	14-29(a)
Findings; purpose of article; statutory authority	14-21
General maintenance standards	
Bathroom floors	14-38(e)
Drainage	14-38(g)
Egress	14-38(h)
Exterior foundation, walls and roof	14-38(a)
Interior floors, walls and ceilings	14-38(b)
Stairs, porches and appurtenances	14-38(d)
Supplied facilities	14-38(f)
Windows and doors	14-38(c)
Housing inspector	14-26
Inspections; right of entry	14-28
Plumbing, heating and electrical equipment and facilities	
Electrical system	14-35(c)
Heating system	
Central and electric heating systems	14-35(b)(1)
Other heating facilities	14-35(b)(2)

CHINA GROVE CODE OF ORDINANCES

	Section
BUILDINGS AND BUILDING REGULATIONS (Cont'd.)	
Plumbing system.....	14-35(a)
Repair or demolition of dwelling on failure to comply with order	
Authority; placarding of dwelling	14-31
Lien for payment of costs	14-32
Responsibilities of owner and occupants	
Care of facilities, equipment and structure.....	14-41(e)
Cleanliness.....	14-41(b)
Disposal of rubbish and garbage	14-41(c)
Plumbing fixtures	14-41(d)
Public areas.....	14-41(a)
Roominghouses	
Applicability of article.....	14-40(a)
Location of sanitary facilities.....	14-40(e)
Minimum floor area for sleeping purposes	14-40(c)
Sanitary conditions required	14-40(d)
Water closet, hand lavatory and bath facilities	14-40(b)
Service of complaints and orders	14-30
Size and use of rooms	
Room size	14-37(a)
Use of basement for living purposes.....	14-37(c)
Use of cellar for living purposes	14-37(b)
Structural condition of dwellings.....	14-34
Violation of article; penalty	14-25
Windows and ventilation	14-36
Noise.....	26-81 et seq.
See: NOISE	
Nonresidential building maintenance standards	
Administration	
Defects in buildings to be corrected	14-183
Inspections.....	14-182
Office of nonresidential building maintenance standards	
inspector created; powers and duties.....	14-181
Penalties for violations; alternative remedies	14-185
Violations	14-184
Amendments	14-90
Conflict with other provisions	14-89
Duties and responsibilities of the occupant	14-87
Duties and responsibilities of the owner	14-86
Findings; authority.....	14-82
General definitions and interpretations	14-84
Inspections/inspectors	
Administration	
Inspections	14-182
Office of nonresidential building maintenance standards inspector created; powers and duties.	14-181

CODE INDEX

	Section
BUILDINGS AND BUILDING REGULATIONS (Cont'd.)	
Procedures for enforcement. See herein that subhead- ing	
Procedures for enforcement	
Appeal of order of inspector; finality if not appealed...	14-156
Complaint and notice of hearing	14-153
Demolition of nonresidential buildings by owner	14-160
Failure of occupant to comply with order to vacate	14-159
Failure to comply with order of inspector	14-157
Inspections/inspectors	
Appeal of order of inspector; finality if not appealed	14-156
Failure to comply with order of inspector	14-157
Service of written notice or order of inspector	14-155
Unsafe buildings shall be condemned by the inspec- tor	14-151
Order to take corrective action; contents; issuance	14-154
Remedies; lien for cost of demolition and removal	14-158
Removal of condemnation notice unlawful	14-152
Service of written notice or order of inspector	14-155
Unsafe buildings shall be condemned by the inspector	14-151
Purpose	14-81
Relationship of duties and responsibilities to occupancy.	14-88
Scope; jurisdiction	14-83
Special definitions and interpretations	14-85
Standards for nonresidential buildings and premises fitness	
Buildings and premises not declared unsafe but which are not in compliance with all standards	14-122
Unsafe buildings and structures; conditions and standards	
Conditions	14-121(b)
Enumerated standards	14-121(c)
Unlawful to own	14-121(a)
Offenses	
Security alarm systems	38-8
Officers and employees	
County inspections department to enforce and administer building codes	14-1
Minimum housing standards	
Enforcement and appeal procedure	
Appeals from orders of inspector	14-29(d)
Determination and order of housing inspector	14-29(b)
Housing inspector	14-26
Nonresidential building maintenance standards	
Administration. See herein that subheading	
Procedures for enforcement. See herein that subhead- ing	
Parks and recreation	42-19 et seq.
See: PARKS AND RECREATION	

CHINA GROVE CODE OF ORDINANCES

	Section
BUILDINGS AND BUILDING REGULATIONS (Cont'd.)	
Peddlers and solicitors	18-58 et seq.
See: PEDDLERS AND SOLICITORS	
Pool rooms, bowling alleys and amusement centers.....	6-56 et seq.
See: POOL ROOMS, BOWLING ALLEYS AND AMUSE- MENT CENTERS	
Smoking prohibited in all town-owned buildings and parks	26-1
Solid waste.....	46-1 et seq.
See: SOLID WASTE	
Streets, sidewalks and other public property.....	50-1 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC PROPERTY	
Utilities.....	54-19 et seq.
See: UTILITIES	
Vehicles and traffic	
Operation	
Emerging from alley, driveway, or building.....	58-13
BURNING	
Fire prevention and protection	
Regulation of open burning	30-4
BUSES	
Vehicles and traffic	
Parking, stopping and standing	
Regulations	
Restricted use of bus and taxicab stands.....	58-104
Stopping, standing and parking of buses and taxicabs regulated.....	58-103
BUSINESSES	
Amusements and entertainment. See that subject	
Buildings and building regulations.....	14-40 et seq.
See: BUILDINGS AND BUILDING REGULATIONS	
Circuses, carnivals and similar entertainment; mechanical rides	6-19 et seq.
See: CIRCUSES, CARNIVALS AND SIMILAR ENTERTAINMENT; MECHANICAL RIDES	
Garage sales	18-25 et seq.
See: GARAGE SALES	
Peddlers and solicitors	18-58 et seq.
See: PEDDLERS AND SOLICITORS	
Pool rooms, bowling alleys and amusement centers.....	6-56 et seq.
See: POOL ROOMS, BOWLING ALLEYS AND AMUSE- MENT CENTERS	
Sale of malt beverages and wine on Sunday	18-1
Streets, sidewalks and other public property	
Acceptance and improvement of public streets	
Payment of costs by developer when improvements done by town.....	50-92

CODE INDEX

	Section
BUSINESSES (Cont'd.)	
Obstructions	
Display of goods on sidewalk	50-32

CODE INDEX

	Section
BUSINESSES (Cont'd.)	
Taxicabs	62-19 et seq.
See: TAXICABS	
Temporary signs or banners advertising fairs, carnivals and similar events.....	18-3
Utilities.....	54-93 et seq.
See: UTILITIES	
Vehicles and traffic.....	58-101 et seq.
See: VEHICLES AND TRAFFIC	

C

CARNIVALS

Circuses, carnivals and similar entertainment; mechanical rides.....	6-19 et seq.
See: CIRCUSES, CARNIVALS AND SIMILAR ENTER- TAINMENT; MECHANICAL RIDES	

CARS. See: VEHICLES AND TRAFFIC

CARTS

Vehicles and traffic	
Applicability of chapter to person riding, propelling, etc. .	58-2

CATCHLINES IN CODE

Catchlines of sections; history notes and references.....	1-4
---	-----

CATS

Animals.....	10-9, 10-11
--------------	-------------

CERTIFICATES/CERTIFICATION

Circuses, carnivals and similar entertainment; mechanical rides	
Certificate of public liability insurance.....	6-25
Taxicabs	62-48 et seq.
See: TAXICABS	
Utilities	
Sewer service	
Wastewater discharge permits	
Significant industrial user permit	
Required signature, certification	54-203

CHIEFS

Police department	
Appointment and duties of chief of police.....	34-20

CHILDREN. See: MINORS

CHINA GROVE, TOWN OF. See: TOWN

CIRCUSES, CARNIVALS AND SIMILAR ENTERTAINMENT; MECHANICAL RIDES

Businesses	
Temporary signs or banners advertising fairs, carnivals and similar events	18-3

CHINA GROVE CODE OF ORDINANCES

	Section
CIRCUSES, CARNIVALS AND SIMILAR ENTERTAINMENT; MECHANICAL RIDES (Cont'd.)	
Certificate of public liability insurance	6-25
Disorderly conduct; sale of obscene material; obscene performances.....	6-26
Inspection	6-24
Licenses	
Application for license; issuance	6-20
Grounds for denial of license	6-21
License fee.....	6-22
Required	6-19
Suspension or revocation of license	6-23
CITATION OF CODE	
Designation and citation of Code	1-1
CIVIL EMERGENCIES	
Contents of declaration of state of emergency	22-3
Emergencies. See that subject	
Mutual aid agreements.....	22-4
Penalty for violation of chapter or restrictions imposed by proclamation	22-1
State of emergency defined; authority of mayor	22-2
CLERKS	
Town clerk.....	2-178 et seq.
See: TOWN CLERK	
Vehicles and traffic	
Clerk constituted a traffic bureau	58-10
COASTERS	
Vehicles and traffic	
Use of coasters, roller skates, and similar devices restricted	58-7
CODE	
Definitions and rules of construction.....	1-2
CODE OF ORDINANCES*	
Amendments to Code	1-7
Catchlines of sections; history notes and references.....	1-4
Definitions and rules of construction.....	1-2
Designation and citation of Code	1-1
General penalty; enforcement of ordinances; continuing violations	1-6
Ordinances not affected by Code	1-9
Provisions considered as continuation of existing ordinances	1-3
Severability of parts of Code	1-5

***Note**—The adoption, amendment, repeal, omissions, effective date, explanation of numbering system and other matters pertaining to the use, construction and interpretation of this Code are contained in the adopting ordinance and preface which are to be found in the preliminary pages of this volume.

CODE INDEX

	Section
CODE OF ORDINANCES* (Cont'd.)	
Supplementation of Code	1-8
CODES (Generally)	
Buildings and building regulations	
County inspections department to enforce and administer building codes	14-1
Fire prevention and protection	
Adoption of fire prevention code	30-1
COMBUSTIBLES AND INFLAMMABLES	
Fire prevention and protection	30-1 et seq.
See: FIRE PREVENTION AND PROTECTION	
COMMERCE (Generally). See: BUSINESSES	
COMMISSIONS AND COMMITTEES. See: BOARDS, COM- MISSIONS AND COMMITTEES	
COMPENSATION, SALARIES, ETC. See: OFFICERS AND EMPLOYEES	
COMPLAINTS	
Buildings and building regulations	
Minimum housing standards	
Service of complaints and orders	14-30
Nonresidential building maintenance standards	
Procedures for enforcement	
Complaint and notice of hearing	14-153
CONDEMNATION	
Buildings and building regulations	
Nonresidential building maintenance standards	
Procedures for enforcement	
Removal of condemnation notice unlawful	14-152
Unsafe buildings shall be condemned by the inspec- tor	14-151
CONDUCT	
Circuses, carnivals and similar entertainment; mechanical rides	
Disorderly conduct; sale of obscene material; obscene performances	6-26
Pool rooms, bowling alleys and amusement centers	
Prohibited acts by licensee and employees	6-63
CONFIDENTIALITY	
Utilities	
Sewer service	
Confidential information	54-141

***Note**—The adoption, amendment, repeal, omissions, effective date, explanation of numbering system and other matters pertaining to the use, construction and interpretation of this Code are contained in the adopting ordinance and preface which are to be found in the preliminary pages of this volume.

CHINA GROVE CODE OF ORDINANCES

	Section
CONSERVATION	
Utilities.....	54-92 et seq.
See: UTILITIES	
CONSTRUCTION (Generally). See: BUILDINGS AND BUILDING REGULATIONS	
CONTRACTS AND AGREEMENTS	
Civil emergencies	
Mutual aid agreements	22-4
Ordinances not affected by Code.....	1-9
Solid waste	
Garbage collection and recycling	
Garbage and recycling contract	46-2(a)
COUNCIL. See: TOWN COUNCIL	
COUNTY	
Definitions and rules of construction.....	1-2
COURT	
Buildings and building regulations	
Minimum housing standards	
Enforcement and appeal procedure	
Petition to superior court.....	14-29(e)
Utilities	
Sewer service	
Wastewater discharge permits	
Significant industrial user permit	
Judicial review	54-208(d)
CRIME, CRIMINALS	
Offenses	38-1 et seq.
See: OFFENSES	
Utilities	
Sewer service	
Enforcement	
Other available remedies	
Criminal violations	54-142(c)(1)
CROSSWALKS	
Vehicles and traffic	
Pedestrians	
Pedestrians' right-of-way in crosswalk	58-129
Pedestrians to use right half of crosswalk	58-130
CURBS	
Streets, sidewalks and other public property	
Acceptance and improvement of public streets	
Acceptance of new streets	
Curbs and gutters	
For developments	50-84(g)
Individual lots	50-84(f)

CODE INDEX

	Section
CURBS (Cont'd.)	
Vehicles and traffic	58-93 et seq.
See: VEHICLES AND TRAFFIC	
CURFEWS	
Offenses	
Juvenile curfew	38-71 et seq.
See: OFFENSES	
D	
DAMAGE, INJURY, ETC.	
Animals	10-17 et seq.
See: ANIMALS	
Offenses	
Damaging town property	38-1
Parks and recreation	42-22 et seq.
See: PARKS AND RECREATION	
Streets, sidewalks and other public property	
Damaging street with machinery or equipment.....	50-2
Utilities	
Water service	
Tampering with or obstructing water lines.....	54-32
DEBRIS. See: SOLID WASTE	
DEDICATIONS	
Ordinances not affected by Code.....	1-9
Streets, sidewalks and other public property	
Acceptance and improvement of public streets	
Acceptance of new streets	
Dedication for public use; recording of map.....	50-84(a)
DEFINITIONS	
Definitions and rules of construction.....	1-2
Other definitions. See specific subjects as indexed	
DEMOLITION	
Buildings and building regulations.....	14-31 et seq.
See: BUILDINGS AND BUILDING REGULATIONS	
DEMONSTRATIONS	
Streets, sidewalks and other public property.....	50-157 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC PROPERTY	
DEPARTMENTS AND OTHER AGENCIES OF TOWN	
Buildings and building regulations	
County inspections department to enforce and administer building codes.....	14-1
Definitions and rules of construction	
Joint authority	1-2
Police department.....	34-19 et seq.
See: POLICE DEPARTMENT	

CHINA GROVE CODE OF ORDINANCES

	Section
DEPARTMENTS AND OTHER AGENCIES OF TOWN	
(Cont'd.)	
Vehicles and traffic	
Clerk constituted a traffic bureau.....	58-10
DEVELOPMENT. See: PLANNING AND DEVELOPMENT	
DISASTERS	
Civil emergencies	22-1 et seq.
See: CIVIL EMERGENCIES	
Emergencies. See that subject	
DISEASE CONTROL	
Animals	
Injured, sick or diseased animals	10-18
DISORDERLY CONDUCT	
Circuses, carnivals and similar entertainment; mechanical rides	6-26
DISPLAY. See also: POSTING	
Streets, sidewalks and other public property	
Obstructions	
Display of goods on sidewalk	50-32
Taxicabs	
Driver's permit.....	62-94
Vehicles and traffic	
Traffic control devices	
Display of unauthorized signs, signals, or markings ...	58-50
DISPOSAL (Generally). See: SOLID WASTE	
DOGS	
Animals	10-9 et seq.
See: ANIMALS	
DRAINAGE	
Buildings and building regulations	
Minimum housing standards	
General maintenance standards	14-38(g)
Streets, sidewalks and other public property	
Acceptance and improvement of public streets	
Acceptance of new streets	
Basins for entrance of surface water.....	50-84(e)
Storm drainage generally	50-84(d)
DRIVEWAYS	
Streets, sidewalks and other public property	
Excavation and repair	
Construction of driveways	50-129
Vehicles and traffic	
Bicycles	
Emerging from alley or driveway	58-157

CODE INDEX

	Section
DRIVEWAYS (Cont'd.)	
Operation	
Emerging from alley, driveway, or building.....	58-13
DRUGS	
Offenses	
Loitering for the purpose of engaging in drug-related activity	38-6
E	
ELECTIONS	
Town clerk	
Election; general duties.....	2-178
ELECTRICITY	
Buildings and building regulations	
Minimum housing standards	
Plumbing, heating and electrical equipment and facilities	14-35
EMERGENCIES	
Civil emergencies	22-1 et seq.
See: CIVIL EMERGENCIES	
Fire prevention and protection.....	30-1 et seq.
See: FIRE PREVENTION AND PROTECTION	
Utilities.....	54-94 et seq.
See: UTILITIES	
Vehicles and traffic	
Authorized emergency vehicles	58-8
EMPLOYEES. See: OFFICERS AND EMPLOYEES	
ENCLOSURES. See: FENCES, WALLS, HEDGES AND ENCLOSURES	
ENFORCEMENT. See specific subjects as indexed	
ENTERTAINMENT. See: AMUSEMENTS AND ENTERTAINMENT	
ENTRY	
Buildings and building regulations	
Minimum housing standards	
Inspections; right of entry	14-28
Nuisances	
Right of entry	26-23
Utilities	
Water service	
Right of entry.....	54-21
Vehicles and traffic	
Operation	
Entering, jumping on, or riding vehicles without permission	58-25

CHINA GROVE CODE OF ORDINANCES

	Section
ENVIRONMENT	
Noise.....	26-81 et seq.
See: NOISE	
Nuisances	26-19 et seq.
See: NUISANCES	
Parks and recreation	
Use of parks and recreation areas	
Injuring plant material.....	42-30
Smoking prohibited in all town-owned buildings and parks	26-1
Utilities.....	54-59 et seq.
See: UTILITIES	
EXCAVATIONS	
Parks and recreation	
Use of parks and recreation areas	42-27
Streets, sidewalks and other public property.....	50-121 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC PROPERTY	
F	
FAIRS	
Businesses	
Temporary signs or banners advertising fairs, carnivals and similar events.....	18-3
FALSE REPRESENTATIONS	
Streets, sidewalks and other public property	
Acceptance and improvement of public streets	
Petition for improvements	
Misrepresentation to induce withdrawal of signers..	50-86(e)
FEDERAL CONCERNS	
Utilities	
Water quality protection	
Compliance with federal and state law	54-60
FEES. See specific subjects as indexed	
FENCES, WALLS, HEDGES AND ENCLOSURES	
Animals	
Cruelty to animals; maintenance of animal pens	10-20
FINANCES	
Administration	
Disbursement of funds.....	2-1
Appropriations	
Ordinances not affected by Code	1-9
Compensation, salaries, etc. See: OFFICERS AND EMPLOYEES	
Ordinances not affected by Code.....	1-9

CODE INDEX

	Section
FINANCES (Cont'd.)	
Streets, sidewalks and other public property	
Excavation and repair	
Disposition of fees.....	50-124
Tax collector	
Remittance of funds; monthly report.....	2-147
Town clerk	
Duties as purchasing agent	2-180
Utilities.....	54-19 et seq.
See: UTILITIES	
FINES, FORFEITURES AND OTHER PENALTIES	
General penalty; enforcement of ordinances; continuing violations.....	1-6
Ordinances not affected by Code.....	1-9
FIRE PREVENTION AND PROTECTION	
Adoption of fire prevention code	30-1
Fire protection service generally.....	30-2
Fire protection service outside town limits	30-3
Knox boxes.....	30-5
Offenses	
Security alarm systems.....	38-8
Parks and recreation	
Use of parks and recreation areas	
Fires	42-26
Regulation of open burning.....	30-4
Utilities	
Water service	
Use of fire hydrants	54-34
Vehicles and traffic	
Authority of police and fire department officials	58-4
Obedience to police and fire department officials	58-5
FIREARMS AND WEAPONS	
Offenses	38-33 et seq.
See: OFFENSES	
Parks and recreation	
Use of parks and recreation areas	
Firearms and other weapons	42-23
Streets, sidewalks and other public property	
Posting of signs prohibiting the carrying of concealed weapons on certain municipal property	50-7
FIREWORKS	
Streets, sidewalks and other public property	
Parades and demonstrations	
"Snappers" prohibited	50-162
FLAMMABLES. See: COMBUSTIBLES AND INFLAMMABLES	

CHINA GROVE CODE OF ORDINANCES

	Section
FLOODS	
Ordinances not affected by Code.....	1-9
FOLLOWING	
Definitions and rules of construction.....	1-2
FOOD AND FOOD SERVICES	
Amusements and entertainment. See that subject	
Businesses	18-1 et seq.
See: BUSINESSES	
Peddlers and solicitors	18-58 et seq.
See: PEDDLERS AND SOLICITORS	
Pool rooms, bowling alleys and amusement centers.....	6-56 et seq.
See: POOL ROOMS, BOWLING ALLEYS AND AMUSE- MENT CENTERS	
FORFEITURES. See: FINES, FORFEITURES AND OTHER PENALTIES	
FRANCHISES	
Ordinances not affected by Code.....	1-9
FUNDS (Generally). See: FINANCES	
G	
GAMES	
Parks and recreation	
Use of parks and recreation areas	
Games and sports	42-28
GARAGE SALES	
Definitions	18-25
Frequency and length	18-28
General regulations.....	18-27
Location	18-30
Penalties	18-31
Prohibited sales	18-26
Signage.....	18-29
GARBAGE. See: SOLID WASTE	
GAS	
Fire prevention and protection.....	30-1 et seq.
See: FIRE PREVENTION AND PROTECTION	
GENDER (Of Code Words)	
Definitions and rules of construction.....	1-2
GOVERNOR	
Definitions and rules of construction.....	1-2
GRADES AND GRADING	
Ordinances not affected by Code.....	1-9
Streets, sidewalks and other public property	
Acceptance and improvement of public streets	

CODE INDEX

	Section
GRADES AND GRADING (Cont'd.)	
Acceptance of new streets	
Grading	50-84(b)

CODE INDEX

	Section
G.S. AND GENERAL STATUTES	
Definitions and rules of construction.....	1-2
GUTTERS	
Streets, sidewalks and other public property	
Acceptance and improvement of public streets	
Acceptance of new streets	
Curbs and gutters	
For developments.....	50-84(g)
Individual lots	50-84(f)
H	
HAZARDS	
Utilities	
Sewer service	
Reporting requirements	
Notification of the discharge of hazardous waste	54-243
Water quality protection	
Hazardous uses.....	54-65
Vehicles and traffic	
Parking, stopping and standing	
Regulations	
Stopping, standing, or parking near hazardous or congested places.....	58-90
HEALTH AND SANITATION	
Animals.....	10-1 et seq.
See: ANIMALS	
Buildings and building regulations.....	14-1 et seq.
See: BUILDINGS AND BUILDING REGULATIONS	
Fire prevention and protection.....	30-1 et seq.
See: FIRE PREVENTION AND PROTECTION	
Nuisances	
Violation of county health regulations.....	26-24
Solid waste	46-1 et seq.
See: SOLID WASTE	
Streets, sidewalks and other public property	
Excavation and repair	
Public safety requirements	50-127
Utilities.....	54-19 et seq.
See: UTILITIES	
HEARINGS. See specific subjects as indexed	
HEATING	
Buildings and building regulations	
Minimum housing standards	
Plumbing, heating and electrical equipment and facilities	14-35
HEDGES. See: FENCES, WALLS, HEDGES AND ENCLOSURES	

CHINA GROVE CODE OF ORDINANCES

	Section
HIGHWAYS. See: STREETS, SIDEWALKS AND OTHER PUBLIC PROPERTY	
HISTORY NOTES	
Catchlines of sections; history notes and references.....	1-4
HORSEBACK RIDING	
Parks and recreation	
Use of parks and recreation areas	
Animals running at large.....	42-29
HOTELS, ETC.	
Buildings and building regulations	
Minimum housing standards	
Roominghouses	14-40
HOUSING	
Animals	
Keeping or grazing livestock near residential structure...	10-8
Buildings and building regulations.....	14-1 et seq.
See: BUILDINGS AND BUILDING REGULATIONS	
Fire prevention and protection.....	30-1 et seq.
See: FIRE PREVENTION AND PROTECTION	
Utilities	
Water service	
Two or more dwelling units using single tap.....	54-30
I	
ICEBOXES	
Offenses	
Abandoned airtight containers	38-5
IDENTIFICATION	
Offenses	
Stopping of a suspect and request for identification	38-7
Taxicabs	
Identification of vehicles	62-20
IMPOUNDMENT	
Animals.....	10-12
Nuisances	26-65 et seq.
See: NUISANCES	
IMPROVEMENTS. See: PUBLIC WORKS AND IMPROVEMENTS	
INDEBTEDNESS (Generally). See: BONDS; See also: FINANCES	
INDECENCY AND OBSCENITY	
Circuses, carnivals and similar entertainment; mechanical rides	
Disorderly conduct; sale of obscene material; obscene performances	6-26

CODE INDEX

	Section
INDEMNIFICATION	
Streets, sidewalks and other public property	
Excavation and repair	
Indemnification of town	50-123
INDUSTRIAL CONCERNS	
Utilities	
Sewer service	
Industrial waste survey and local limits.....	54-132
Wastewater discharge permits	
Significant industrial user permit	54-201
INFLAMMABLES. See: COMBUSTIBLES AND INFLAMMABLES	
INJURY. See: DAMAGE, INJURY, ETC.	
INSECTS	
Buildings and building regulations	
Minimum housing standards	
Control of insects, rodents and other infestations; garbage and rubbish disposal.....	14-39
INSPECTIONS/INSPECTORS	
Buildings and building regulations.....	14-1 et seq.
See: BUILDINGS AND BUILDING REGULATIONS	
Circuses, carnivals and similar entertainment; mechanical rides	
Inspection	6-24
Utilities	
Sewer service	
Compliance monitoring	
Inspection and sampling	54-274
Water quality protection	
Inspection of property.....	54-62
INSURANCE	
Circuses, carnivals and similar entertainment; mechanical rides	
Certificate of public liability insurance.....	6-25
INTERFERENCE (Generally). See: OBSTRUCTIONS	
INTERSECTIONS	
Streets, sidewalks and other public property	
Control of vegetation near streets	
Visibility at intersections	50-60
Vehicles and traffic	
Operation	
Required position and method of turning at intersections.....	58-16
Traffic control devices	
Intersections where stop required	58-58

CHINA GROVE CODE OF ORDINANCES

	Section
INTOXICATION, INTOXICANTS. See: ALCOHOLIC BEVERAGES	
INVESTIGATIONS	
Buildings and building regulations	
Minimum housing standards	
Enforcement and appeal procedure	
Preliminary investigation; notice of hearing; hearing	14-29(a)
Nuisances	26-20
Taxicabs	
Driver's permit	62-92
J	
JUVENILES. See: MINORS	
L	
LANDSCAPING	
Parks and recreation	
Use of parks and recreation areas	
Injuring plant material	42-30
LAW	
Offenses	38-1 et seq.
See: OFFENSES	
Police department	34-19 et seq.
See: POLICE DEPARTMENT	
Streets, sidewalks and other public property	
Posting of signs prohibiting the carrying of concealed weapons on certain municipal property	
Severability; conflict of laws	50-7(c)
Utilities	
Water quality protection	
Compliance with federal and state law	54-60
Vehicles and traffic	
Bicycles	
Traffic laws apply to persons riding bicycles	58-152
LAW ENFORCEMENT	
Police department	34-19 et seq.
See: POLICE DEPARTMENT	
LIABILITY	
Nuisances	
Abandoned and junked motor vehicles	
Nonliability of persons disposing of vehicles	26-67
Parks and recreation	
Use of parks and recreation areas	
Permit for use of facilities	
Liability of permittee	42-19(4)

CODE INDEX

	Section
LIABILITY (Cont'd.)	
Utilities	
Water quality protection	
Limitation of liability	54-74
LICENSES AND PERMITS	
Businesses.....	18-1 et seq.
See: BUSINESSES	
Circuses, carnivals and similar entertainment; mechanical rides.....	6-19 et seq.
See: CIRCUSES, CARNIVALS AND SIMILAR ENTERTAINMENT; MECHANICAL RIDES	
Noise	
Permit authorized for regulated activities; application; appeal upon denial.....	26-83
Parks and recreation	
Use of parks and recreation areas	
Permit for use of facilities	42-19
Pool rooms, bowling alleys and amusement centers.....	6-56 et seq.
See: POOL ROOMS, BOWLING ALLEYS AND AMUSEMENT CENTERS	
Streets, sidewalks and other public property	50-122 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC PROPERTY	
Taxicabs	62-90 et seq.
See: TAXICABS	
Utilities.....	54-24 et seq.
See: UTILITIES	
LIENS, RECOVERY OF COST, ETC.	
Buildings and building regulations	
Minimum housing standards	
Repair or demolition of dwelling on failure to comply with order	
Lien for payment of costs	14-32
Nonresidential building maintenance standards	
Procedures for enforcement	
Remedies; lien for cost of demolition and removal	14-158
Nuisances	
Abatement by town	
Lien for unpaid charges	26-22(c)
Payment of costs.....	26-22(b)
Streets, sidewalks and other public property	
Acceptance and improvement of public streets	
Payment of costs by developer when improvements done by town	50-92
LIGHTS AND LIGHTING	
Streets, sidewalks and other public property	
Acceptance and improvement of public streets	
Location of streetlights	50-96

CHINA GROVE CODE OF ORDINANCES

	Section
LIGHTS AND LIGHTING (Cont'd.)	
Vehicles and traffic	
Bicycles	
Lamps and other equipment on bicycles.....	58-161
Parking, stopping and standing	
Regulations	
Lights on parked vehicles.....	58-96
LIQUOR. See: ALCOHOLIC BEVERAGES	
LITTER. See: SOLID WASTE	
LIVESTOCK	
Animals	
Keeping or grazing livestock near residential structure...	10-8
LOCATION	
Buildings and building regulations	
Minimum housing standards	
Roominghouses	
Location of sanitary facilities.....	14-40(e)
Ordinances not affected by Code	1-9
Solid waste	46-2 et seq.
See: SOLID WASTE	
Streets, sidewalks and other public property	
Acceptance and improvement of public streets	
Location of streetlights	50-96
Posting of signs prohibiting the carrying of concealed weapons on certain municipal property	
Location of signs.....	50-7(b)
LOITERING	
Offenses	
Loitering for the purpose of engaging in drug-related activity	38-6
LOTS	
Streets, sidewalks and other public property	
Acceptance and improvement of public streets	
Acceptance of new streets	
Curbs and gutters for individual lots.....	50-84(f)
M	
MANUALS	
Personnel manual	
Adopted; availability.....	2-199
MAPS. See: SURVEYS, MAPS AND PLATS	
MARKS, MARKERS, ETC.	
Vehicles and traffic.....	58-17 et seq.
See: VEHICLES AND TRAFFIC	

CODE INDEX

	Section
MAY	
Definitions and rules of construction.....	1-2
MAYOR AND TOWN COUNCIL	
Administrative powers of town council.....	2-23
Civil emergencies	
State of emergency defined; authority of mayor	22-2
Code of ethics.....	2-25
Compensation of councilmembers.....	2-21
Duties of mayor	2-24
Meetings	
Adjourned meetings	2-53
Disruption of meeting.....	2-59
Motion to adjourn	2-58
Moving the previous question.....	2-56
Order of business	2-54
Precedence of motions	2-57
Rules of procedure generally	
Agenda	2-55(a)
Decisions on questions of order	2-55(e)
Public comment period	2-55(c)
Content-based restrictions generally prohibited.....	2-55(c)(3)
Frequency of public comment periods	2-55(c)(1)
Rules for public comment periods	2-55(c)(2)
Rules of debate	2-55(b)
Use of Robert's Rules of Order, Newly Revised	2-55(f)
Voting; explanation of vote.....	2-55(d)
Time and place of regular meetings; attendance	2-52
Ordinances	
Amendments	2-80
Form.....	2-77
Inclusion in Code	2-81
Official copy	2-79
Ordinances to be confined to single subject; exception ...	2-78
Resignation of councilmembers	2-22
MECHANICAL RIDES. See: CIRCUSES, CARNIVALS AND SIMILAR ENTERTAINMENT; MECHANICAL RIDES	
MEETINGS. See specific subjects as indexed	
METERS	
Utilities	
Water service	
Adjustment of bills for meter error	54-27
Testing of meters.....	54-28
MINORS	
Offenses	38-71 et seq.
See: OFFENSES	
MONIES (Generally). See: FINANCES	

CHINA GROVE CODE OF ORDINANCES

	Section
MONTH	
Definitions and rules of construction.....	1-2
MOTOR VEHICLES. See: VEHICLES AND TRAFFIC	
MOVING OF BUILDINGS	
Streets, sidewalks and other public property.....	50-1
N	
NAMES AND NAMING	
Ordinances not affected by Code.....	1-9
NATIONAL CATEGORICAL PRETREATMENT STANDARDS	
Utilities	
Sewer service.....	54-131
N.C. ADMIN. CODE	
Definitions and rules of construction.....	1-2
NCAC	
Definitions and rules of construction.....	1-2
NOISE	
Offenses	
Security alarm systems.....	38-8
Permit authorized for regulated activities; application; appeal upon denial.....	26-83
Prohibited noises enumerated.....	26-82
Unreasonable sound amplification.....	26-85
Unreasonably loud noise prohibited.....	26-81
Vehicles and traffic	
Traffic control devices	
Zone of quiet.....	58-54
Violations; penalties	26-84
NORTH CAROLINA, STATE OF. See: STATE	
NOTICES. See specific subjects as indexed	
NUISANCES	
Abandoned and junked motor vehicles	
Administration.....	26-55
Definitions.....	26-54
Disposition of unclaimed impounded vehicle	26-65
Exceptions.....	26-56
Exceptions to prior notice requirement	
Other abandoned or nuisance vehicles	26-62(2)
Right to hearing.....	26-63
Vehicles abandoned on the streets.....	26-62(1)
Impoundment	
Disposition of unclaimed impounded vehicle	26-65
Redemption of impounded vehicle	26-64
Unlawful removal of impounded vehicle	26-68
Junked motor vehicle regulated; removal authorized.....	26-59

CODE INDEX

	Section
NUISANCES (Cont'd.)	
Nonliability of persons disposing of vehicles.....	26-67
Nuisance vehicles prohibited.....	26-57
Nuisance vehicles unlawful: removal authorized.....	26-58
Redemption of impounded vehicle.....	26-64
Removal of abandoned, nuisance or junked motor vehicles	
Post-towing notice requirements.....	26-61
Pre-towing notice requirements.....	26-60
Removal of vehicles from private property.....	26-66
Unlawful removal of impounded vehicle.....	26-68
Abatement	
Authority to abate obstructions of sewer line.....	26-25
By town	
Authority.....	26-22(a)
Lien for unpaid charges.....	26-22(c)
Payment of costs.....	26-22(b)
Order to abate.....	26-21
Animals	
Nuisance animals.....	10-15
Right to hearing on declaration of viciousness or public nuisance.....	10-16
Authority to abate obstructions of sewer line.....	26-25
Certain conditions declared nuisance.....	26-19
Impoundment	
Abandoned and junked motor vehicles. See herein that subject	
Investigation.....	26-20
Noise.....	26-81 et seq.
See: NOISE	
Order to abate.....	26-21
Right of entry.....	26-23
Solid waste.....	46-1 et seq.
See: SOLID WASTE	
Utilities	
Sewer service	
Enforcement	
Other available remedies	
Public nuisances.....	54-142(c)(4)
Violation of county health regulations.....	26-24
NUMBERS AND NUMBERING	
Definitions and rules of construction.....	1-2
Streets, sidewalks and other public property	
Street address numbers.....	50-6
O	
OATH, AFFIRMATION, SWEAR OR SWORN	
Definitions and rules of construction	
Oath.....	1-2

CHINA GROVE CODE OF ORDINANCES

	Section
OBLIGATIONS (Generally). See: BONDS; See also: FINANCES	
OBSCENITY. See: INDECENCY AND OBSCENITY	
OBSTRUCTIONS	
Animals	
Interference with animal control officer	10-5
Nuisances	
Authority to abate obstructions of sewer line.....	26-25
Streets, sidewalks and other public property.....	50-31 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC PROPERTY	
Utilities	
Water service	
Tampering with or obstructing water lines.....	54-32
Vehicles and traffic	58-9 et seq.
See: VEHICLES AND TRAFFIC	
OCCUPANT	
Definitions and rules of construction.....	1-2
OCCUPATIONS (Generally). See: BUSINESSES	
OFFENSES	
Abandoned airtight containers	38-5
Campaign signs on state highway system roads.....	38-9
Curfews. See herein: Juvenile Curfew	
Damaging town property.....	38-1
Definitions	
Juvenile curfew	38-72
Weapons	
Possession of certain weapons prohibited in public places	38-34(a)
Fines, forfeitures and other penalties	
Juvenile curfew	
Penalties	38-78
Littering	
Penalty	38-2(c)
General penalty; enforcement of ordinances; continuing violations.....	1-6
Juvenile curfew	
Applicability.....	38-73
Defense	38-76
Definitions.....	38-72
Enforcement.....	38-77
Exceptions	38-75
Penalties.....	38-78
Purpose	38-71
Violations.....	38-74

CODE INDEX

	Section
OFFENSES (Cont'd.)	
Littering	
Penalty	38-2(c)
Prohibited	38-2(a)
Throwing litter from vehicle	38-2(b)
Loitering for the purpose of engaging in drug-related activity	38-6
Minors	
Juvenile curfew. See herein that subject	
Noise.....	26-81 et seq.
See: NOISE	
Nuisances	26-19 et seq.
See: NUISANCES	
Ordinances not affected by Code.....	1-9
Penalties. See herein: Fines, Forfeitures and Other Penalties	
Police department.....	34-19 et seq.
See: POLICE DEPARTMENT	
Posting of signs on public property	38-3
Security alarm systems	38-8
Stopping of a suspect and request for identification	38-7
Streets, sidewalks and other public places	
Damaging town property	38-1
Posting of signs on public property.....	38-3
Security alarm systems.....	38-8
Weapons	
Possession of certain weapons prohibited in public places	38-34
Weapons on town property.....	38-36
Weapons	
Discharge of firearms and other weapons firing projectile	38-35
Possession of certain weapons prohibited in public places	
Confiscation.....	38-34(c)
Definitions	38-34(a)
Possession prohibited.....	38-34(b)
Restrictions on carrying deadly weapon.....	38-33
Weapons on town property	38-36
OFFICERS AND EMPLOYEES	
Animals	
Interference with animal control officer.....	10-5
Buildings and building regulations.....	14-1 et seq.
See: BUILDINGS AND BUILDING REGULATIONS	
Compensation, salaries, etc.	
Mayor and town council	
Compensation of councilmembers.....	2-21
Ordinances not affected by Code	1-9
Definitions and rules of construction	
Joint authority	1-2
Officers.....	1-2

CHINA GROVE CODE OF ORDINANCES

	Section
OFFICERS AND EMPLOYEES (Cont'd.)	
Mayor and town council.....	2-21 et seq.
See: MAYOR AND TOWN COUNCIL	
Ordinances not affected by Code.....	1-9
Personnel manual.....	2-199
Planning board	2-251 et seq.
See: PLANNING BOARD	
Police department	
Appointment and duties of chief of police	34-20
Salaries. See herein: Compensation, Salaries, Etc.	
Tax collector	2-147
Town attorney	2-124
Town clerk	2-178 et seq.
See: TOWN CLERK	
Utilities	
Sewer service	
Prohibited discharge standards	
Violation; action of town director or POTW director .	54-130(c)
Water service	
Water superintendent	54-20
Vehicles and traffic	
Clerk constituted a traffic bureau.....	58-10
Public employees to obey traffic regulations.....	58-3
ORDINANCES, RESOLUTIONS, ETC.	
Code of ordinances.....	1-1 et seq.
See: CODE OF ORDINANCES	
Mayor and town council.....	2-77 et seq.
See: MAYOR AND TOWN COUNCIL	
OWNER	
Definitions and rules of construction.....	1-2

P

PARADES AND DEMONSTRATIONS

Streets, sidewalks and other public property.....	50-157 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC PROPERTY	

PARKING. See: VEHICLES AND TRAFFIC

PARKS AND RECREATION

Amusements and entertainment. See that subject	
Animals	10-1 et seq.
See: ANIMALS	
Circuses, carnivals and similar entertainment; mechanical rides	6-19 et seq.
See: CIRCUSES, CARNIVALS AND SIMILAR ENTERTAINMENT; MECHANICAL RIDES	

CODE INDEX

	Section
PARKS AND RECREATION (Cont'd.)	
Damage, injury, etc.	
Use of parks and recreation areas. See herein that subject	
Fire prevention and protection	30-1 et seq.
See: FIRE PREVENTION AND PROTECTION	
Noise.....	26-81 et seq.
See: NOISE	
Peddlers and solicitors	18-58 et seq.
See: PEDDLERS AND SOLICITORS	
Pool rooms, bowling alleys and amusement centers.....	6-56 et seq.
See: POOL ROOMS, BOWLING ALLEYS AND AMUSEMENT CENTERS	
Registered sex offenders in town parks and recreation centers.....	42-1
Smoking prohibited in all town-owned buildings and parks	26-1
Use of parks and recreation areas	
Animals running at large; horseback riding	42-29
Damage, injury, etc.	
Destruction of town property	42-22
Injuring plant material.....	42-30
Molesting animals	42-31
Destruction of town property	42-22
Excavations	42-27
Firearms and other weapons.....	42-23
Fires.....	42-26
Games and sports	42-28
Hours of operation.....	42-20
Injuring plant material	42-30
Molesting animals.....	42-31
Permit for use of facilities	
Application.....	42-19(1)
Compliance with park rules	42-19(3)
Liability of permittee.....	42-19(4)
Standards for issuance	42-19(2)
Posting of advertisements	42-24
Selling; peddling.....	42-25
Vehicles	42-21
Vehicles and traffic	58-1 et seq.
See: VEHICLES AND TRAFFIC	
PAVING, PAVEMENT	
Ordinances not affected by Code.....	1-9
Streets, sidewalks and other public property	
Acceptance and improvement of public streets	
Closing of streets during resurfacing.....	50-95
PEDDLERS AND SOLICITORS	
Application.....	18-61
Badge	18-70
Definitions	18-59

CHINA GROVE CODE OF ORDINANCES

	Section
PEDDLERS AND SOLICITORS (Cont'd.)	
Denial or revocation of permit	18-64
Display and possession of permit and identification	18-68
Exemptions	18-63
Issuance of permit	18-62
License required	18-60
Notice and hearing.....	18-67
Parks and recreation	
Use of parks and recreation areas	
Selling; peddling	42-25
Penalties	18-69
Prohibited conduct.....	18-65
Purpose.....	18-58
Revocation of permit.....	18-66
Vehicles and traffic	
Pedestrians	
Pedestrians soliciting rides or business	58-134
PEDESTRIANS	
Vehicles and traffic	58-128 et seq.
See: VEHICLES AND TRAFFIC	
PENALTIES. See: FINES, FORFEITURES AND OTHER PENALTIES	
PERMITS. See: LICENSES AND PERMITS	
PERSON. See also: BUSINESSES	
Definitions and rules of construction.....	1-2
PERSONAL PROPERTY	
Definitions and rules of construction.....	1-2
Property, generally. See: PROPERTY	
PERSONNEL DIRECTOR	
Town clerk	
Duties as personnel director	2-179
PERSONNEL MANUAL	
Adopted; availability.....	2-199
PERSONNEL. See: OFFICERS AND EMPLOYEES	
PETITIONS	
Buildings and building regulations	
Minimum housing standards	
Enforcement and appeal procedure	
Petition to superior court.....	14-29(e)
Streets, sidewalks and other public property	
Acceptance and improvement of public streets	
Opening and improving streets without petition	50-88
Petition for improvements	50-86

CODE INDEX

	Section
PICKETING	
Streets, sidewalks and other public property	
Parades and demonstrations	50-161
PLACARDING	
Buildings and building regulations	
Minimum housing standards	
Repair or demolition of dwelling on failure to comply with order	
Authority; placarding of dwelling	14-31
PLANNING AND DEVELOPMENT	
Buildings and building regulations	14-1 et seq.
See: BUILDINGS AND BUILDING REGULATIONS	
Streets, sidewalks and other public property.....	50-1 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC PROPERTY	
PLANNING BOARD	
Composition; appointment of members.....	2-251
Powers and duties.....	2-253
Term of office of members; vacancies.....	2-252
PLATS. See: SURVEYS, MAPS AND PLATS	
PLAYGROUNDS. See: PARKS AND RECREATION	
PLUMBING	
Buildings and building regulations	
Minimum housing standards	
Plumbing, heating and electrical equipment and facilities	14-35
Responsibilities of owner and occupants	
Plumbing fixtures	14-41(d)
POLICE DEPARTMENT	
Appointment and duties of chief of police.....	34-20
Composition.....	34-19
Offenses	38-1 et seq.
See: OFFENSES	
Operation policies.....	34-21
Vehicles and traffic	
Authority of police and fire department officials	58-4
Obedience to police and fire department officials	58-5
POOL ROOMS, BOWLING ALLEYS AND AMUSEMENT CENTERS	
Licenses	
Application for license	6-57
Contents of license; posting	6-59
Persons ineligible for license.....	6-58
Required; expiration; transfer.....	6-56
Revocation of license	6-60
Operation generally.....	6-62

CHINA GROVE CODE OF ORDINANCES

	Section
POOL ROOMS, BOWLING ALLEYS AND AMUSEMENT CENTERS (Cont'd.)	
Prohibited acts by licensee and employees	6-63
Responsibility of licensee for acts of agents and employees	6-61
POSTING. See also: DISPLAY	
Offenses	
Posting of signs on public property.....	38-3
Parks and recreation	
Use of parks and recreation areas	
Posting of advertisements.....	42-24
Pool rooms, bowling alleys and amusement centers	
Contents of license; posting	6-59
Streets, sidewalks and other public property	
Posting of signs prohibiting the carrying of concealed weapons on certain municipal property	50-7
Taxicabs	
Posting of rates	62-21
POWERS. See specific subjects as indexed	
PRECEDING	
Definitions and rules of construction.....	1-2
PRIVATE PROPERTY	
Nuisances	
Abandoned and junked motor vehicles	
Removal of vehicles from private property	26-66
Property, generally. See: PROPERTY	
Utilities	
Water service	
Approval of private water supply for premises rented or open to public.....	54-35
Vehicles and traffic	
Operation	
Driving vehicles on private property limited	58-29
PROCESSES. See: WRITS, WARRANTS AND OTHER PROCESSES	
PROFESSIONS (Generally). See: BUSINESSES	
PROPERTY	
Animals	10-1 et seq.
See: ANIMALS	
Buildings and building regulations.....	14-1 et seq.
See: BUILDINGS AND BUILDING REGULATIONS	
Definitions and rules of construction.....	1-2

CODE INDEX

	Section
PROPERTY (Cont'd.)	
Fire prevention and protection	30-1 et seq.
See: FIRE PREVENTION AND PROTECTION	
Noise	26-81 et seq.
See: NOISE	
Nuisances	26-19 et seq.
See: NUISANCES	
Offenses	38-1 et seq.
See: OFFENSES	
Parks and recreation	42-19 et seq.
See: PARKS AND RECREATION	
Peddlers and solicitors	18-58 et seq.
See: PEDDLERS AND SOLICITORS	
Solid waste	46-1 et seq.
See: SOLID WASTE	
Streets, sidewalks and other public property	50-1 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC PROPERTY	
Utilities	54-19 et seq.
See: UTILITIES	
Vehicles and traffic	58-1 et seq.
See: VEHICLES AND TRAFFIC	
PUBLIC PROPERTY. See: STREETS, SIDEWALKS AND OTHER PUBLIC PROPERTY	
PUBLIC WORKS AND IMPROVEMENTS	
Ordinances not affected by Code	1-9
Streets, sidewalks and other public property	50-83 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC PROPERTY	
PUBLICATION	
Utilities	
Sewer service	
Annual publication of significant noncompliance	54-143
PURCHASING AGENT	
Town clerk	
Duties as purchasing agent	2-180
PUSHCARTS	
Vehicles and traffic	
Applicability of chapter to person riding, propelling, etc.	58-2
R	
RABIES	
Animals	
Rabies vaccination required for dogs and cats	10-9

CHINA GROVE CODE OF ORDINANCES

	Section
RAILROADS AND TRAINS	
Vehicles and traffic	
Trains blocking crossing regulated.....	58-9
REAL PROPERTY	
Definitions and rules of construction.....	1-2
Property, generally. See: PROPERTY	
RECORDS AND REPORTS	
Animals	
Report and confinement of animal suspected of having rabies.....	10-10
Mayor and town council	
Ordinances	
Official copy.....	2-79
Streets, sidewalks and other public property	
Acceptance and improvement of public streets	
Acceptance of new streets	
Dedication for public use; recording of map.....	50-84(a)
Tax collector	
Remittance of funds; monthly report.....	2-147
Utilities.....	54-208 et seq.
See: UTILITIES	
RECOVERY OF COST. See: LIENS, RECOVERY OF COST, ETC.	
RECREATION. See: PARKS AND RECREATION	
RECYCLING	
Solid waste.....	46-2
REFERENCES	
Catchlines of sections; history notes and references.....	1-4
REFRIGERATORS	
Offenses	
Abandoned airtight containers.....	38-5
REFUSE. See: SOLID WASTE	
RENTALS	
Utilities	
Water service	
Approval of private water supply for premises rented or open to public.....	54-35
REPORTS. See: RECORDS AND REPORTS	
RESOLUTIONS. See: ORDINANCES, RESOLUTIONS, ETC.	
REVENUES (Generally). See: FINANCES	
RIGHT OF ENTRY. See: ENTRY	

CODE INDEX

	Section
RIGHTS (Generally)	
Animals	
Right to hearing on declaration of viciousness or public nuisance	10-16
Nuisances	
Abandoned and junked motor vehicles	
Exceptions to prior notice requirement	
Right to hearing	26-63
Ordinances not affected by Code	1-9
Streets, sidewalks and other public property	
Acceptance and improvement of public streets	
Petition for improvements	
Right to withdraw signature	50-86(c)
Utilities	
Sewer service	
Right of revision	54-134
Water quality protection	
Right of access	54-63
RIGHTS-OF-WAY	
Vehicles and traffic	
Pedestrians	
Pedestrians' right-of-way in crosswalk	58-129
ROADS. See: STREETS, SIDEWALKS AND OTHER PUBLIC PROPERTY	
ROBERT'S RULES OF ORDER, NEWLY REVISED	
Mayor and town council	
Meetings	
Rules of procedure generally	
Use of	2-55(f)
RODENTS	
Buildings and building regulations	
Minimum housing standards	
Control of insects, rodents and other infestations; garbage and rubbish disposal	14-39
ROLLERSKATES	
Vehicles and traffic	
Use of coasters, roller skates, and similar devices restricted	58-7
ROOMINGHOUSES	
Buildings and building regulations	
Minimum housing standards	14-40
ROWAN, COUNTY OF. See: COUNTY	
RUBBISH. See: SOLID WASTE	
RUNNING AT LARGE	
Animals at large	10-13

CHINA GROVE CODE OF ORDINANCES

	Section
RUNNING AT LARGE (Cont'd.)	
Parks and recreation	
Use of parks and recreation areas	
Animals running at large; horseback riding.....	42-29
S	
SALARIES	
Compensation, salaries, etc. See: OFFICERS AND EMPLOYEES	
SALES	
Amusements and entertainment. See that subject	
Businesses	18-1 et seq.
See: BUSINESSES	
Circuses, carnivals and similar entertainment; mechanical rides	
Disorderly conduct; sale of obscene material; obscene performances.....	6-26
Garage sales	18-25 et seq.
See: GARAGE SALES	
Parks and recreation	
Use of parks and recreation areas	
Selling; peddling	42-25
Peddlers and solicitors	18-58 et seq.
See: PEDDLERS AND SOLICITORS	
Pool rooms, bowling alleys and amusement centers.....	6-56 et seq.
See: POOL ROOMS, BOWLING ALLEYS AND AMUSEMENT CENTERS	
SANITATION. See: HEALTH AND SANITATION	
SCHEDULES	
Solid waste.....	46-2 et seq.
See: SOLID WASTE	
Utilities	
Sewer service	
Reporting requirements	
Compliance schedule progress reports.....	54-236
SCHOOLS	
Vehicles and traffic	
Parking, stopping and standing	
Regulations	
Parking adjacent to schools	58-88
Traffic control devices	
School zones	58-55
SEARCH WARRANTS (Generally). See: WRITS, WARRANTS AND OTHER PROCESSES	
SEVERABILITY	
Severability of parts of Code	1-5

CODE INDEX

	Section
SEWER. See: UTILITIES	
SEX OFFENDERS	
Parks and recreation	
Registered sex offenders in town parks and recreation centers	42-1
SHALL	
Definitions and rules of construction.....	1-2
SHRUBBERY. See: VEGETATION	
SIDEWALKS. See: STREETS, SIDEWALKS AND OTHER PUBLIC PROPERTY	
SIGNALS	
Vehicles and traffic	58-47 et seq.
See: VEHICLES AND TRAFFIC	
SIGNATURE	
Definitions and rules of construction.....	1-2
Streets, sidewalks and other public property	
Acceptance and improvement of public streets	
Petition for improvements	
Effect of withdrawal of signature.....	50-86(d)
Right to withdraw signature.....	50-86(c)
Utilities	
Sewer service	
Wastewater discharge permits	
Significant industrial user permit	
Required signature, certification.....	54-203
SIGNS	
Businesses	
Temporary signs or banners advertising fairs, carnivals and similar events.....	18-3
Offenses	
Posting of signs on public property.....	38-3
Streets, sidewalks and other public property	
Posting of signs prohibiting the carrying of concealed weapons on certain municipal property	50-7
Vehicles and traffic	58-18 et seq.
See: VEHICLES AND TRAFFIC	
SKATEBOARDS	
Vehicles and traffic	
Bicycles	
Use of skateboards and bicycles restricted	58-160
SNAPPERS	
Streets, sidewalks and other public property	
Parades and demonstrations	
"Snappers" prohibited	50-162
SOLICITORS. See: PEDDLERS AND SOLICITORS	

CHINA GROVE CODE OF ORDINANCES

	Section
SOLID WASTE	
Buildings and building regulations	
Minimum housing standards	
Control of insects, rodents and other infestations; garbage and rubbish disposal	14-39
Responsibilities of owner and occupants	
Disposal of rubbish and garbage	14-41(c)
Definitions	46-1
Disposal of waste from outside corporate limits	46-6
Garbage collection and recycling	
Frequency of collection.....	46-2(f)
Garbage and recycling contract.....	46-2(a)
Location of containers.....	46-2(c)
Notification of collection schedule.....	46-2(e)
Roll-out containers	46-2(b)
Storage and disposal	46-2(d)
Leaf collection	
Collection schedule	46-3(a)
General disposal	46-3(c)
Location of leaves.....	46-3(b)
Location	
Garbage collection and recycling	
Location of containers	46-2(c)
Leaf collection	
Location of leaves	46-3(b)
Other debris and materials	
Location of materials and debris.....	46-5(b)
Tree limbs and yard trimmings	
Location of tree limbs/yard trimmings	46-4(b)
Offenses	
Littering	38-2
Other debris and materials	
Collectible items	46-5(d)
Collection schedule	46-5(a)
General disposal	46-5(c)
Location of materials and debris	46-5(b)
Noncollectible items	46-5(e)
Penalty	46-7
Recycling. See herein: Garbage Collection and Recycling	
Schedules	
Garbage collection and recycling	
Notification of collection schedule	46-2(e)
Leaf collection	
Collection schedule	46-3(a)
Other debris and materials	
Collection schedule	46-5(a)
Tree limbs and yard trimmings	
Collection schedule	46-4(a)

CODE INDEX

	Section
SOLID WASTE (Cont'd.)	
Streets, sidewalks and other public property	
Maintenance of parking lots and other public areas	
Trash receptacles	50-5(b)
Vehicles dropping debris on street	50-4
Tree limbs and yard trimmings	
Collection schedule	46-4(a)
General disposal	46-4(c)
Items not collected	46-4(d)
Location of tree limbs/yard trimmings.....	46-4(b)
Utilities.....	54-127 et seq.
See: UTILITIES	
SOUND AMPLIFICATION	
Noise	
Unreasonable sound amplification	26-85
SPEED	
Vehicles and traffic	
Bicycles	58-156
Operation	
Speed limits.....	58-15
SPORTS	
Parks and recreation	
Use of parks and recreation areas	
Games and sports	42-28
STATE	
Definitions and rules of construction.....	1-2
STATUTES	
Buildings and building regulations	
Minimum housing standards	
Findings; purpose of article; statutory authority	14-21
STORAGE	
Solid waste	
Garbage collection and recycling	
Storage and disposal.....	46-2(d)
Taxicabs	
Storage space for taxicabs; parking vehicles on street....	62-22
Vehicles and traffic	
Parking, stopping and standing	
Parking of special/commercial vehicles	
Parking and/or storage prohibited.....	58-116
STORMWATER QUALITY MANAGEMENT AND DISCHARGE CONTROL	
Applicability	
Applicability and vested rights	54-340
Exceptions to.....	54-335
Provisions, re.....	54-334

CHINA GROVE CODE OF ORDINANCES

	Section
STORMWATER QUALITY MANAGEMENT AND DISCHARGE CONTROL (Cont'd.)	
Authority	54-332
Definitions	54-336
Discharge prohibitions	
Discharges in violation of industrial or construction activity NPDES stormwater discharge permit.....	54-364
Illegal discharges	54-361
Illicit connections	54-362
Waste disposal prohibitions	54-363
Enforcement and penalties	
Abatement.....	54-449
Acts potentially resulting in a violation of the Federal Clean Water Act	54-455
Appeal.....	54-448
Charging cost of abatement/liens.....	54-450
Compensatory action.....	54-453
Enforcement.....	54-446
Notice of violation	54-447
Urgency abatement.....	54-451
Violations	54-452
Violations deemed a public nuisance.....	54-454
Fees	54-339
Inspection and monitoring	
Authority to	
Inspect.....	54-426
Sample, establish sampling devices, and test	54-427
Interpretation	54-337
Permits	54-338
Purpose and intent	54-333
Regulations and requirements	
Notification of spills.....	54-401
Requirement to	
Monitor and analyze.....	54-400
Prevent, control, and reduce stormwater pollutants ...	54-395
Remediate.....	54-399
Requirement to eliminate	
Illegal discharges	54-396
Or secure approval for illicit connections	54-397
Watercourse protection	54-398
Regulatory consistency	54-344
Responsibility for administration.....	54-341
Severability	54-343
Stormwater management	54-346
Stream buffers.....	54-347
Title	54-331
Ultimate responsibility of discharger.....	54-345
Variances and appeals.....	54-342

CODE INDEX

	Section
STREETS, SIDEWALKS AND OTHER PUBLIC PROPERTY	
Acceptance and improvement of public streets	
Acceptance of new streets	
Basins for entrance of surface water	50-84(e)
Crushed stone stabilization.....	50-84(h)
Curbs and gutters for developments.....	50-84(g)
Curbs and gutters for individual lots.....	50-84(f)
Dedication for public use; recording of map	50-84(a)
Grading.....	50-84(b)
Sloping of banks when applicant does not control all property abutting street.....	50-84(c)
Storm drainage generally	50-84(d)
Closing of streets during resurfacing	50-95
Construction specifications for improvements	50-94
Determination of assessments for improvements	50-89
Improvement project procedure.....	50-87
Improvements in new subdivisions.....	50-91
Location of streetlights	50-96
Notice to utilities and property owners to prepare for street improvements	
Notification of property owners	50-93(b)
Notification of utilities	50-93(a)
Opening and improving streets without petition.....	50-88
Payment of assessments for improvements	50-90
Payment of costs by developer when improvements done by town	50-92
Petition for improvements	
Effect of withdrawal of signature	50-86(d)
Execution by owners.....	50-86(a)
Execution when town owns property	50-86(b)
Misrepresentation to induce withdrawal of signers	50-86(e)
Right to withdraw signature	50-86(c)
Policy.....	50-83
Street improvements defined	50-85
Animals	10-1 et seq.
See: ANIMALS	
Assessments	
Acceptance and improvement of public streets	
Determination of assessments for improvements.....	50-89
Payment of assessments for improvements.....	50-90
Control of vegetation near streets	
Notice of violation; removal of vegetation or obstruction by town	
Assessment of cost of removal	50-62(c)
Buildings and building regulations	
Acceptance and improvement of public streets	
Construction specifications for improvements.....	50-94
Excavation and repair	
Construction of driveways	50-129
Permit for sidewalk construction.....	50-128

CHINA GROVE CODE OF ORDINANCES

	Section
STREETS, SIDEWALKS AND OTHER PUBLIC PROPERTY	
(Cont'd.)	
Maintenance of parking lots and other public areas.....	50-5
Mixing building materials on street or sidewalk	50-3
Moving of buildings	50-1
Obstructions	
Construction near sidewalk.....	50-34
Structures and appurtenances over sidewalk	50-35
Control of vegetation near streets	
Control of vegetation near streets.....	50-61
Notice of violation; removal of vegetation or obstruction by town	
Assessment of cost of removal.....	50-62(c)
Notice of violation.....	50-62(a)
Performance of work by town.....	50-62(b)
Violation of article; obstructing enforcement of article ...	50-59
Visibility at intersections.....	50-60
Damaging street with machinery or equipment	50-2
Definitions	
Acceptance and improvement of public streets	
Street improvements defined.....	50-85
Definitions and rules of construction	
Street	1-2
Parades and demonstrations	50-157
Demonstrations. See herein: Parades and Demonstrations	
Excavation and repair	
Construction of driveways	
Application for permit.....	50-129(b)
Construction standards	50-129(d)
Permit required	50-129(a)
Standards for issuance of permit	50-129(c)
Disposition of fees	50-124
Indemnification of town	50-123
Licenses and permits. See herein: Permit	
Penalty for violation of article	50-121
Permit	
Application.....	50-122(b)
Construction of driveways	
Permit required	50-129
Permit for sidewalk construction.....	50-128
Required.....	50-122(a)
Permit for sidewalk construction	50-128
Public safety requirements.....	50-127
Street repair	50-126
Supervision of work	50-125

CODE INDEX

	Section
STREETS, SIDEWALKS AND OTHER PUBLIC PROPERTY	
(Cont'd.)	
Fines, forfeitures and other penalties	
Excavation and repair	
Penalty for violation of article	50-121
Maintenance of parking lots and other public areas	
Penalty	50-5(c)
Improvements. See herein: Public Works and Improvements	
Licenses and permits	
Excavation and repair. See herein that subject	
Parades and demonstrations	
Permit. See herein that subheading	
Maintenance of parking lots and other public areas	
Penalty	50-5(c)
Required	50-5(a)
Trash receptacles	50-5(b)
Mixing building materials on street or sidewalk	50-3
Moving of buildings	50-1
Noise	26-81 et seq.
See: NOISE	
Nuisances	
Abandoned and junked motor vehicles	
Exceptions to prior notice requirement	
Vehicles abandoned on the streets	26-62(1)
Obstructions	
Assembly on street or sidewalk	50-31
Construction near sidewalk	50-34
Control of vegetation near streets	
Notice of violation; removal of vegetation or obstruction	
by town	50-62
Violation of article; obstructing enforcement of article..	50-59
Display of goods on sidewalk	50-32
Parades and demonstrations	
Interference with parade	50-160
Placing objects on street or sidewalk	50-33
Structures and appurtenances over sidewalk	50-35
Offenses	38-1 et seq.
See: OFFENSES	
Ordinances not affected by Code	1-9
Parades and demonstrations	
Definitions	50-157
Exceptions to article	50-158
Interference with parade	50-160
Permit	
Issuance	
Conditions	50-194(b)
Standards	50-194(a)
Required	50-193
Revocation	50-195
Picketing	50-161

CHINA GROVE CODE OF ORDINANCES

	Section
STREETS, SIDEWALKS AND OTHER PUBLIC PROPERTY	
(Cont'd.)	
Prohibited acts by participants.....	50-159
"Snappers" prohibited	50-162
Parks and recreation.....	42-19 et seq.
See: PARKS AND RECREATION	
Peddlers and solicitors.....	18-58 et seq.
See: PEDDLERS AND SOLICITORS	
Penalties. See herein: Fines, Forfeitures and Other Penalties	
Posting of signs prohibiting the carrying of concealed weapons on certain municipal property	
Location of signs	50-7(b)
Posting of signs required.....	50-7(a)
Severability; conflict of laws	50-7(c)
Public works and improvements	
Acceptance and improvement of public streets. See herein that subject	
Sidewalks	
Definitions and rules of construction	1-2
Excavation and repair	
Permit for sidewalk construction	50-128
Mixing building materials on street or sidewalk.....	50-3
Obstructions. See herein that subject	
Vehicles and traffic	
Operation	
Unlawful to operate vehicles on sidewalks.....	58-28
Solid waste	46-1 et seq.
See: SOLID WASTE	
Street address numbers	50-6
Taxicabs	62-19 et seq.
See: TAXICABS	
Utilities.....	54-19 et seq.
See: UTILITIES	
Vehicles and traffic	58-1 et seq.
See: VEHICLES AND TRAFFIC	
Vehicles dropping debris on street.....	50-4
STRUCTURES (Generally). See: BUILDINGS AND BUILDING REGULATIONS	
SUBDIVISIONS	
Buildings and building regulations.....	14-1 et seq.
See: BUILDINGS AND BUILDING REGULATIONS	
Ordinances not affected by Code.....	1-9
Streets, sidewalks and other public property	
Acceptance and improvement of public streets	
Improvements in new subdivisions.....	50-91
SUBSCRIPTION	
Definitions and rules of construction.....	1-2

CODE INDEX

	Section
SUNDAY	
Businesses	
Sale of malt beverages and wine on Sunday.....	18-1
SUPPLEMENTATION	
Supplementation of code.....	1-8
SURVEYS, MAPS AND PLATS	
Ordinances not affected by Code.....	1-9
Streets, sidewalks and other public property	
Acceptance and improvement of public streets	
Acceptance of new streets	
Dedication for public use; recording of map	50-84(a)
Vehicles and traffic	
Official traffic map	58-6
SWEAR OR SWORN. See: OATH, AFFIRMATION, SWEAR OR SWORN	
T	
TAGS	
Animals	
Unlawful removal of vaccination tag; interfering with dog belonging to another.....	10-21
TAPE PLAYERS. See: RADIOS, TAPE PLAYERS AND OTHER SOUND AMPLIFICATION DEVICES	
TAX COLLECTOR	
Remittance of funds; monthly report.....	2-147
TAXATION	
Businesses.....	18-1 et seq.
See: BUSINESSES	
Ordinances not affected by Code.....	1-9
TAXICABS	
Certificate of convenience and necessity	
Application.....	62-49
Burden of proof.....	62-53
Determination of convenience and necessity.....	62-52
Duration; renewal.....	62-55
Hearing required; notice of hearing.....	62-51
Issuance generally	62-50
Required	62-48
Revocation	62-57
Substitution of vehicles	62-58
Time limit for beginning operations	62-54
Transfer	62-56
Definitions.....	62-19
Driver's permit	
Application.....	62-91
Display	62-94

CHINA GROVE CODE OF ORDINANCES

	Section
TAXICABS (Cont'd.)	
Investigation	62-92
Issuance; fee	62-93
Required	62-90
Revocation	62-95
Fees	
Driver's permit	
Issuance; fee	62-93
Identification of vehicles	62-20
Licenses and permits	
Driver's permit. See herein that subject	
Permits	
Driver's permit. See herein that subject	
Posting of rates	62-21
Storage space for taxicabs; parking vehicles on street	62-22
Vehicles and traffic	
Parking, stopping and standing	
Regulations	
Restricted use of bus and taxicab stands	58-104
Stopping, standing and parking of buses and taxicabs regulated	58-103
TEENAGERS. See: MINORS	
TENANT	
Definitions and rules of construction	1-2
TENSE (Of Code Words)	
Definitions and rules of construction	1-2
TIME (Defined)	
Definitions and rules of construction	
Official time standard	1-2
Time, computation of	1-2
TOWING	
Nuisances	
Abandoned and junked motor vehicles	
Removal of abandoned, nuisance or junked motor vehicles	
Post-Towing notice requirements	26-61
Pre-Towing notice requirements	26-60
TOWN	
Definitions and rules of construction	1-2
TOWN ATTORNEY	
Duties	2-124
TOWN CLERK	
Duties as personnel director	2-179
Duties as purchasing agent	2-180
Election; general duties	2-178

CODE INDEX

	Section
TOWN COUNCIL	
Definitions and rules of construction	
Council, town council	1-2
Mayor and town council	2-21 et seq.
See: MAYOR AND TOWN COUNCIL	
Utilities	
Water service	
Authority and duties of town council	54-19
TOWN DIRECTOR	
Utilities	
Sewer service	
Prohibited discharge standards	
Violation; action of town director or POTW director ..	54-130(c)
TRACTORS	
Vehicles and traffic	
Applicability of chapter to person riding, propelling, etc. .	58-2
TRADES (Generally). See: BUSINESSES	
TRAFFIC AND VEHICLES. See: VEHICLES AND TRAFFIC	
TRAILERS	
Vehicles and traffic	
Applicability of chapter to person riding, propelling, etc. .	58-2
TRAINS. See: RAILROADS AND TRAINS	
TRASH. See: SOLID WASTE	
TREES. See: VEGETATION	

U

UNDERAGED PERSONS. See: MINORS	
UTILITIES	
Buildings and building regulations	
Sewer service. See herein that subject	
Water quality protection	
New construction	54-68
Businesses	
Sewer service	
Industrial waste survey and local limits	54-132
Wastewater discharge permits	
Significant industrial user permit. See herein that subheading	
Water quality protection	
Water conservation	
Penalties and discontinuance of water service	
Municipal customers, water corporations or company compliance	54-93(c)

CHINA GROVE CODE OF ORDINANCES

	Section
UTILITIES (Cont'd.)	
Conservation	
Water quality protection	
Water conservation. See herein that subheading	
Definitions	
Sewer service.....	54-128
Water quality protection	
Generally.....	54-59
Water conservation.....	54-92
Emergencies	
Sewer service	
Enforcement	
Administrative remedies	
Emergency suspensions.....	54-142(a)(5)
Water quality protection	
Water conservation. See herein that subheading	
Fees	
Sewer service. See herein that subject	
Water service	
Fee for restoration of service after disconnection for nonpayment of bills	54-29
Fines, forfeitures and other penalties	
Sewer service	
Enforcement	
Civil penalties.....	54-142(b)
Water quality protection	
Enforcement by civil penalty.....	54-73
Water conservation	
Penalties and discontinuance of water service	54-93
Licenses and permits	
Sewer service	
Enforcement	
Administrative remedies	
Termination of permit.....	54-142(a)(6)
Wastewater discharge permits. See herein that subheading	
Water service	
Connection permit.....	54-24
Nuisances	
Authority to abate obstructions of sewer line.....	26-25
Ordinances not affected by Code.....	1-9
Penalties. See herein: Fines, Forfeitures and Other Penalties	
Permits. See herein: Licenses and Permits	
Records and reports	
Sewer service	
Reporting requirements. See herein that subheading	
Wastewater discharge permits	
Significant industrial user permit	
Official record	54-208(c)

CODE INDEX

	Section
UTILITIES (Cont'd.)	
Sewer service	
Abbreviations.....	54-129
Accidental discharge/slug control plans	54-137
Affirmative defenses to discharge violations	
Bypass	54-301
Prohibited discharge standards defense	54-300
Upset	54-299
Annual publication of significant noncompliance.....	54-143
Buildings and building regulations	
Compliance monitoring	
Monitoring facilities	54-273
Pretreatment of wastewater	
Pretreatment facilities	54-136(a)
Regulations concerning building of sewers and connections.....	54-140
Compliance monitoring	
Inspection and sampling.....	54-274
Monitoring facilities.....	54-273
Search warrants	54-275
Confidential information	54-141
Definitions	54-128
Dilution	54-135
Enforcement	
Administrative remedies	
Administrative orders	54-142(a)(4)
Consent orders	54-142(a)(2)
Emergency suspensions	54-142(a)(5)
Notification of violation	54-142(a)(1)
Show cause hearing	54-142(a)(3)
Termination of permit	54-142(a)(6)
Civil penalties	54-142(b)
Other available remedies	
Criminal violations	54-142(c)(1)
Injunctive relief	54-142(c)(2)
Public nuisances	54-142(c)(4)
Water supply severance	54-142(c)(3)
Remedies nonexclusive	54-142(d)
Fees	
Pretreatment program administration charges	54-173
Purpose	54-170
Surcharges	54-172
User charges	54-171
Hauled wastewater	54-138
Industrial waste survey and local limits	54-132
National Categorical Pretreatment Standards	54-131
Pretreatment of wastewater	
Additional pretreatment measures	54-136(b)
Pretreatment facilities	54-136(a)

CHINA GROVE CODE OF ORDINANCES

	Section
UTILITIES (Cont'd.)	
Prohibited discharge standards	
General prohibitions	54-130(a)
Specific prohibitions.....	54-130(b)
Violation; action of town director or POTW director	54-130(c)
Purpose and policy.....	54-127
Regulations concerning building of sewers and connections	54-140
Reporting requirements	
Analytical requirements	54-244
Baseline monitoring reports.....	54-235
Compliance schedule progress reports	54-236
Notice of violation/repeat sampling and reporting.....	54-242
Notification of the discharge of hazardous waste	54-243
Periodic compliance reports	54-238
Recordkeeping	54-247
Reports from nonpermitted users	54-241
Reports of changed conditions	54-239
Reports of potential problems.....	54-240
Reports on compliance with categorical pretreatment standard deadline	54-237
Sample collection	54-245
Timing	54-246
Right of revision	54-134
State requirements	54-133
Use of public sewers	
Compliance time.....	54-139(b)
Reasonable accessibility	54-139(a)
Wastewater discharge permits	
Permission to connect or discharge to wastewater collec- tion system; required wastewater information.....	54-200
Significant industrial user permit	
Application.....	54-202
Application review and evaluation.....	54-204
Conditions	54-210
Duration	54-211
Final action on applications	54-207
Hearings	
Final appeal hearing.....	54-208(b)
Initial adjudicatory hearing.....	54-208(a)
Judicial review.....	54-208(d)
Official record	54-208(c)
Modification	54-209
Reissuance	54-213
Required; determination	
Determination	54-201(b)
Required.....	54-201(a)
Required signature, certification	54-203
Synopsis.....	54-206
Tentative determination and draft.....	54-205
Transfer	54-212

CODE INDEX

	Section
UTILITIES (Cont'd.)	
Solid waste	
Sewer service. See herein that subject	
Stormwater quality management and discharge control.....	54-331 et seq.
See: STORMWATER QUALITY MANAGEMENT AND DISCHARGE CONTROL	
Streets, sidewalks and other public property	
Acceptance and improvement of public streets	
Notice to utilities and property owners to prepare for street improvements	50-93
Waste management	
Sewer service. See herein that subject	
Wastewater	
Sewer service	
Hauled wastewater.....	54-138
Wastewater discharge permits. See herein that subheading	
Water quality protection	
Changes in nature of use	54-70
Compliance with federal and state law.....	54-60
Consumer responsibilities.....	54-71
Definitions	54-59
Enforcement by civil penalty	
Assessment.....	54-73(b)
Enforcement option	54-73(d)
Equitable relief	54-73(c)
Penalty	54-73(a)
Existing conditions	54-64
Hazardous uses	54-65
Inspection of property	54-62
Installation of containment devices.....	54-67
Limitation of liability.....	54-74
New construction	54-68
Notification of consumer	54-69
Other connections.....	54-66
Right of access	54-63
Testing and maintenance of devices	54-72
Unlawful connections.....	54-61
Water conservation	
Declaration of water emergency	54-94
Definition.....	54-92
Emergencies	
Declaration of water emergency.....	54-94
Level I water emergency	54-95
Staged water use restriction	
Level II water emergency	54-96
Level III water emergency	54-97
Level IV water emergency.....	54-98
Level I water emergency	54-95
Lifting of restrictions	54-99

CHINA GROVE CODE OF ORDINANCES

	Section
UTILITIES (Cont'd.)	
Penalties and discontinuance of water service	
Discontinuance of service	54-93(b)
Municipal customers, water corporations or company compliance	54-93(c)
Penalties	54-93(a)
Staged water use restriction	
Level II water emergency	54-96
Level III water emergency	54-97
Level IV water emergency	54-98
Water service	
Adjustment of bills for meter error	54-27
Approval of private water supply for premises rented or open to public	54-35
Authority and duties of town council	54-19
Connection permit	54-24
Connection with public system required	54-23
Fee for restoration of service after disconnection for non-payment of bills	54-29
Furnishing water to other premises	54-31
Rates and charges	54-25
Right of entry	54-21
Sewer service	
Enforcement	
Other available remedies	
Water supply severance.....	54-142(c)(3)
Taking water from public facilities	54-33
Tampering with or obstructing water lines	54-32
Testing of meters.....	54-28
Two or more dwelling units using single tap	54-30
Unauthorized cut-off prohibited	54-26
Use of fire hydrants	54-34
Water superintendent	54-20
Work on water system.....	54-22

V

VACATION OF PUBLIC WAYS, ETC.	
Buildings and building regulations	
Nonresidential building maintenance standards	
Procedures for enforcement	
Failure of occupant to comply with order to vacate...	14-159
VACCINATIONS	
Animals	
Rabies vaccination required for dogs and cats.....	10-9
Unlawful removal of vaccination tag; interfering with dog belonging to another.....	10-21
VEGETATION	
Parks and recreation	

CODE INDEX

	Section
VEGETATION (Cont'd.)	
Use of parks and recreation areas	
Injuring plant material.....	42-30
Solid waste	
Leaf collection.....	46-3
Tree limbs and yard trimmings.....	46-4
Streets, sidewalks and other public property	
Control of vegetation near streets.....	50-59 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC PROPERTY	
VEHICLES AND TRAFFIC	
Alleys	
Bicycles	
Emerging from alley or driveway	58-157
Operation. See herein that subject	
Parking, stopping and standing	
Regulations	
Parking in alleys.....	58-85
Amusements and entertainment	
Bicycles	
Use of skateboards and bicycles restricted	58-160
Traffic control devices	
Authority to establish play streets.....	58-52
Use of coasters, roller skates, and similar devices restricted	58-7
Applicability of chapter to person riding, propelling, etc., pushcarts, tractors, trailers, carts, animals, etc.....	58-2
Authority of police and fire department officials	58-4
Authorized emergency vehicles.....	58-8
Bicycles	
Carrying articles.....	58-158
Effect of regulations.....	58-151
Emerging from alley or driveway.....	58-157
Lamps and other equipment on bicycles	58-161
Obedience to traffic control devices	58-153
Parking	58-159
Riding on bicycles	58-154
Riding on roadways and bicycle paths	58-155
Speed.....	58-156
Traffic laws apply to persons riding bicycles	58-152
Use of skateboards and bicycles restricted.....	58-160
Businesses	
Parking, stopping and standing	
Parking of special/commercial vehicles. See herein that subheading	
Regulations	
Commercial loading zones.....	58-101
Pedestrians	
Pedestrians soliciting rides or business	58-134
Clerk constituted a traffic bureau	58-10

CHINA GROVE CODE OF ORDINANCES

	Section
VEHICLES AND TRAFFIC (Cont'd.)	
Curbs	
Parking, stopping and standing	
Regulations. See herein that subheading	
Definitions	
Generally	58-1
Parking, stopping and standing	
Parking of special/commercial vehicles.....	58-117
Fines, forfeitures and other penalties	
Parking, stopping and standing	
Parking of special/commercial vehicles	
Penalty	58-119
Penalties for violation.....	58-11
Loading and unloading	
Parking, stopping and standing	
Regulations	
Commercial loading zones.....	58-101
Loading and unloading zones	58-92
Passenger loading zones	58-100
Low speed vehicles	
Definitions.....	58-170
Penalty and enforcement	58-174
Permit, application and revocation.....	58-172
Reciprocity.....	58-173
Rules and regulations.....	58-171
Marks, markers, etc.	
Operation	
Turning markers	58-17
Parking, stopping and standing	
Regulations	
Obedience to angle parking signs or markings	58-95
Signs or markings indicating angle parking	58-94
Traffic control devices	
Display of unauthorized signs, signals, or markings ...	58-50
Noise.....	26-81 et seq.
See: NOISE	
Nuisances	
Abandoned and junked motor vehicles	26-54 et seq.
See: NUISANCES	
Obedience to police and fire department officials.....	58-5
Obstructions	
Operation	
Stop when traffic obstructed.....	58-14
Parking, stopping and standing	
Regulations	
Parking not to obstruct traffic	58-84
Traffic control devices	
Interference with official traffic control devices, signs	
or signals.....	58-51
Trains blocking crossing regulated.....	58-9

CODE INDEX

	Section
VEHICLES AND TRAFFIC (Cont'd.)	
Offenses	
Littering	
Throwing litter from vehicle.....	38-2(b)
Official traffic map.....	58-6
Operation	
Alleys	
Authority to sign one-way streets and alleys.....	58-21
Emerging from alley, driveway, or building.....	58-13
One-way streets and alleys	58-22
Authority to place restricted turn signs	58-18
Authority to sign one-way streets and alleys	58-21
Boarding or alighting from public conveyances or other vehicles	58-23
Driving vehicles on private property limited	58-29
Emerging from alley, driveway, or building	58-13
Entering, jumping on, or riding vehicles without permission	58-25
Limitations on turning around	58-20
Not more than three persons permitted in front seat	58-27
Obedience to no-turn signs.....	58-19
One-way streets and alleys.....	58-22
Passengers to remain in vehicle while in operation.....	58-26
Required position and method of turning at intersections	
Left turns on other than two-way roadways.....	58-16(3)
Left turns on two-way roadways	58-16(2)
Right turns.....	58-16(1)
Speed limits	58-15
Stop when traffic obstructed	58-14
Turning markers	58-17
Unlawful riding.....	58-24
Unlawful to operate vehicles on sidewalks.....	58-28
Parking, stopping and standing	
Bicycles	
Parking	58-159
Parking of special/commercial vehicles	
Administration and enforcement.....	58-118
Definitions	58-117
Parking and/or storage prohibited	58-116
Penalty	58-119
Regulations	
All night parking prohibited.....	58-87
Application of division.....	58-79
Commercial loading zones	58-101
Curbs	
Parking prohibited with left side of vehicle to curb..	58-107
Standing or parking close to curb	58-93
Vehicles backed up to curb	58-97
Lights on parked vehicles.....	58-96
Loading and unloading zones.....	58-92

CHINA GROVE CODE OF ORDINANCES

	Section
VEHICLES AND TRAFFIC (Cont'd.)	
Moving cars from parked positions	58-99
Obedience to angle parking signs or markings.....	58-95
Parking adjacent to schools.....	58-88
Parking in alleys	58-85
Parking not to obstruct traffic.....	58-84
Parking prohibited at all times on certain streets.....	58-105
Parking prohibited with left side of vehicle to curb	58-107
Parking signs required	58-81
Parking time limited on certain streets.....	58-106
Passenger loading zones	58-100
Public carrier stops and stands	58-102
Regulations not exclusive	58-80
Restricted use of bus and taxicab stands	58-104
Signs or markings indicating angle parking	58-94
Standing or parking close to curb.....	58-93
Standing or parking for certain purposes prohibited...	58-86
Standing or parking on one-way roadways	58-89
Stopping, standing and parking of buses and taxicabs regulated	58-103
Stopping, standing or parking for primary purpose of advertising prohibited.....	58-91
Stopping, standing, or parking near hazardous or congested places.....	58-90
Stopping, standing, or parking prohibited	58-83
Towing of standing or parked vehicles	58-108
Unattended vehicles	58-98
Vehicles backed up to curb.....	58-97
Vehicles not to stop in streets, exceptions	58-82
Taxicabs	
Storage space for taxicabs; parking vehicles on street .	62-22
Parks and recreation	
Bicycles	
Use of skateboards and bicycles restricted	58-160
Traffic control devices	
Authority to establish play streets.....	58-52
Use of coasters, roller skates, and similar devices restricted	58-7
Use of parks and recreation areas	
Vehicles.....	42-21
Pedestrians	
Crossing at right angles	58-131
Drivers to exercise due care.....	58-135
Right-of-way in crosswalk	58-129
Soliciting rides or business.....	58-134
Subject to traffic control signals.....	58-128
To use right half of crosswalk.....	58-130
Walking along roadways.....	58-133

CODE INDEX

	Section
VEHICLES AND TRAFFIC (Cont'd.)	
When pedestrian shall yield	58-132
Penalties for violation	58-11
Penalties. See herein: Fines, Forfeitures and Other Penalties	
Public employees to obey traffic regulations	58-3
Signals	
Pedestrians	
Pedestrians subject to traffic control signals	58-128
Traffic control devices. See herein that subject	
Signs	
Operation	
Authority to place restricted turn signs.....	58-18
Authority to sign one-way streets and alleys.....	58-21
Parking, stopping and standing	
Regulations	
Obedience to angle parking signs or markings	58-95
Parking signs required.....	58-81
Signs or markings indicating angle parking	58-94
Traffic control devices. See herein that subject	
Stopping and Standing. See herein: Parking, Stopping and Standing	
Streets, sidewalks and other public property	
Vehicles dropping debris on street	50-4
Taxicabs	62-19 et seq.
See: TAXICABS	
Traffic control devices	
Authority to erect stop signs	58-57
Authority to establish play streets	58-52
Avoidance of official traffic control devices.....	58-61
Bicycles	
Obedience to traffic control devices.....	58-153
Display of unauthorized signs, signals, or markings.....	58-50
Interference with official traffic control devices, signs or signals	58-51
Intersections where stop required.....	58-58
Obedience to signs, other signals, generally	58-47
School zones	58-55
Signs	
Authority to erect stop signs	58-57
Display of unauthorized signs, signals, or markings ...	58-50
Interference with official traffic control devices, signs or signals.....	58-51
Obedience to signs, other signals, generally.....	58-47
Signs as prerequisite to enforcement.....	58-48
Signs to bear the word "Stop"	58-59
Vehicles to stop at stop signs	58-60
Yield signs	58-56
Specifications for traffic control devices	58-49
Traffic lanes	58-53

CHINA GROVE CODE OF ORDINANCES

	Section
VEHICLES AND TRAFFIC (Cont'd.)	
Vehicles to stop at stop signs	58-60
Yield signs	58-56
Zone of quiet	58-54
Trains blocking crossing regulated	58-9
Use of coasters, roller skates, and similar devices restricted	58-7
Zones	
Parking, stopping and standing	
Regulations	
Loading and unloading zones	58-92
Passenger loading zones	58-100
Traffic control devices	
School zones	58-55
Zone of quiet	58-54
VEHICLES FOR HIRE	
Taxicabs	62-19 et seq.
See: TAXICABS	
Vehicles and traffic	
Operation	
Boarding or alighting from public conveyances or other vehicles	58-23

CODE INDEX

	Section
VEHICLES FOR HIRE (Cont'd.)	
Parking, stopping and standing	
Regulations	
Public carrier stops and stands.....	58-102
VEHICLES. See: VEHICLES AND TRAFFIC	
VENDORS	
Peddlers and solicitors	18-58 et seq.
See: PEDDLERS AND SOLICITORS	
VICIOUS ANIMALS	
Animals	10-14
VISIBILITY	
Streets, sidewalks and other public property	
Control of vegetation near streets	
Visibility at intersections	50-60
VOCATIONS (Generally). See: BUSINESSES	
VOTES AND VOTING	
Mayor and town council	
Meetings	
Rules of procedure generally	
Voting; explanation of vote	2-55(d)
W	
WALLS. See: FENCES, WALLS, HEDGES AND ENCLOSURES	
WARRANTS. See: WRITS, WARRANTS AND OTHER PROCESSES	
WASTE MANAGEMENT	
Buildings and building regulations	
Minimum housing standards	
Control of insects, rodents and other infestations; garbage and rubbish disposal	14-39
Responsibilities of owner and occupants	
Disposal of rubbish and garbage	14-41(c)
Offenses	
Littering	38-2
Solid waste.....	46-1 et seq.
See: SOLID WASTE	
Utilities.....	54-127 et seq.
See: UTILITIES	
WASTEWATER	
Utilities.....	54-138 et seq.
See: UTILITIES	
WATER. See: UTILITIES	

CHINA GROVE CODE OF ORDINANCES

	Section
WATER SUPERINTENDENT	
Utilities	
Water service.....	54-20
WEAPONS. See: FIREARMS AND WEAPONS	
WEEDS. See: VEGETATION	
WINE. See: ALCOHOLIC BEVERAGES	
WRITING, WRITTEN	
Definitions and rules of construction.....	1-2
WRITS, WARRANTS AND OTHER PROCESSES	
Utilities	
Sewer service	
Compliance monitoring	
Search warrants	54-275
Enforcement	
Other available remedies	
Injunctive relief	54-142(c)(2)
WRITTEN, WRITING	
Buildings and building regulations	
Nonresidential building maintenance standards	
Procedures for enforcement	
Service of written notice or order of inspector	14-155
Y	
YEAR	
Definitions and rules of construction.....	1-2
YOUNG PERSONS. See: MINORS	
Z	
ZONES	
Vehicles and traffic	58-54 et seq.
See: VEHICLES AND TRAFFIC	
ZONING (Generally)	
Animals	10-1 et seq.
See: ANIMALS	
Buildings and building regulations.....	14-1 et seq.
See: BUILDINGS AND BUILDING REGULATIONS	
Ordinances not affected by Code.....	1-9
Streets, sidewalks and other public property.....	50-1 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC PROPERTY	
Vehicles and traffic	58-1 et seq.
See: VEHICLES AND TRAFFIC	